

American Restoration and Resilience Project

*A Roadmap for Repairing Institutional Damage, Restoring Trustworthy Government, and Preventing
Future Personalist Capture*

Public Proposal Draft

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American Restoration and Resilience Project (ARRP)

A Roadmap for Repairing Institutional Damage, Restoring Trustworthy Government, and Preventing Future Personalist Capture

Reader notice

The author studies public policy and does not have formal legal training. This project is a policy-reform research and drafting exercise, not legal advice. Proposed legislation, model acts, constitutional amendments, and administrative language in this repository are illustrative working drafts. They have not been reviewed or approved by an attorney, legislative counsel, legal scholar, public official, or affected institution, and should not be treated as final or ready-to-introduce legislative text.

This project is intended to be institution-focused and nonpartisan in its standards, methods, and proposed remedies. It is not neutral about institutional abuse, democratic backsliding, corruption, personalist capture, rule-of-law failure, or unitary executive theory, and it is transparent about seeking to reverse, repair, and prevent institutional outcomes associated with Project 2025 and similar efforts to subordinate public institutions to personal or factional control. The project uses real-world examples to identify structural vulnerabilities and possible repairs, not to advance a party program or defend or condemn any person, party, administration, or ideology as such. Proposed remedies are meant to apply prospectively and evenhandedly across parties, officeholders, and political circumstances.

The project does not avoid naming public actors, including Donald Trump, where specific conduct is relevant to identifying institutional damage, structural vulnerability, or necessary repair. Such references are not included as partisan argument or personal condemnation for its own sake, but because the project depends on concrete examples of how institutions were damaged, tested, or exploited. The same standards should apply to any officeholder, party, administration, or movement that creates comparable institutional risk.

The project is also a living research draft. Sources, citations, examples, issue classifications, and proposed remedies may be incomplete, provisional, or later revised as the work develops.

The project is author-directed. The author has set the research agenda, selected and organized the issues, made the editorial judgments, and remained in charge of the project's structure and development. Large language model tools, including ChatGPT, have been used extensively for research organization, drafting assistance, revision, comparison, and issue spotting, but the project was not generated from scratch by an LLM. The author asserts authorship of the project as a whole and remains responsible for its editorial choices, judgments, omissions, and errors.

For a dedicated authorship statement, see `AUTHORS . md`.

Foundational Premise

The American system of government is broken because it failed to prevent Donald Trump and the MAGA movement from subordinating constitutional duty, institutional independence, factual adjudication, and the peaceful transfer of power to personal loyalty. The damage must be repaired, the weaknesses that enabled it must be corrected, and stronger safeguards must be established against future personalist capture.

The project is written for readers who already accept that foundational diagnosis. Its purpose is not to repeatedly prove that the system is broken, but to determine how the failure occurred, what damage followed, which weaknesses allowed it, what must be repaired, and what reforms can prevent recurrence.

Mission

The project will:

1. identify the principal institutional damage caused or accelerated by Trump and the MAGA movement;
2. identify the legal, structural, administrative, and policy weaknesses that made that damage possible;
3. distinguish repair of existing damage from prevention of recurrence; and
4. develop a durable roadmap for restoring lawful and trustworthy government.

Scope

The project concerns systems, structures, institutions, laws, and policies. It does not attempt a comprehensive sociological account of voter psychology, cultural identity, or partisan affiliation except where those matters directly illuminate an institutional vulnerability or remedy.

Governing Principles

Institutional Focus

Trump is the principal case study, but the institutional weakness is the subject of analysis. Each issue must identify the legal, structural, administrative, institutional, or policy vulnerability that enabled, permitted, or failed to constrain the abuse. The project should not conclude merely that "Trump is the problem."

Neutral Application

The project is not neutral about abuse, but it is neutral about who may commit it. Evidence may involve presidents or administrations of either party where supported by reliable evidence, and safeguards must apply equally regardless of political affiliation.

The project rejects false equivalence, partisan exemptions, unsupported accusations, and rules that apply differently depending on who holds power.

Truth and Reconciliation

The project seeks truth, legal coherence, factual accountability, and reconciliation grounded in an honest record. Where evidence establishes responsibility, the project should state it directly. Where uncertainty remains, it should identify the uncertainty rather than manufacture balance.

Restoration and Reform

The objective is not automatic return to the pre-Trump status quo. Where prior arrangements enabled abuse, restoration must include redesign and legal hardening.

Functional Administrative Independence

Elected officials should control lawful policy direction. Factual determination, scientific assessment, adjudication, auditing, personnel administration, and individual enforcement decisions should receive protection from personal or partisan coercion.

Institutional Corrigibility

Not every institutional abuse can be prevented without impairing legitimate governmental authority, eliminating necessary discretion, or creating an equally serious countervailing danger. Where complete prevention is impracticable, the project should establish the least-complex adequate means by which abuse can be detected, documented, reviewed, exposed, remedied, deterred, and prevented from becoming entrenched.

A remedy may therefore be adequate even when it cannot prevent the first violation, provided it creates a credible and durable avenue for institutional self-correction. The analysis should distinguish prevention, detection, correction, deterrence, and containment rather than treating them as interchangeable.

Institutional corrigibility is not an excuse for weak reform. Preventive safeguards remain preferable where they are lawful, workable, and proportionate. Corrigibility becomes central where stronger front-end control would destroy necessary discretion, create unconstitutional supervision, or impose a cure more damaging than the underlying risk.

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Citation

For citation metadata, see `CITATION.cff`. The preferred citation may be updated when the project is formally released for broader public use.

Project Areas and Issues

A-01 — Department of Justice

Generalized Institutional Concern

The Department of Justice lacks sufficient structural independence, external oversight, and enforceable safeguards to prevent presidential use of its leadership, personnel, investigative authority, and prosecutorial discretion for personal protection, political retaliation, or partisan advantage.

Issues

- DOJ-001 — Appointment of recent presidential personal counsel to senior DOJ leadership
- DOJ-002 — White House Direction or Interference in Particular Federal Criminal Matters
- DOJ-003 — Politically Selective Enforcement, Charging, and Favoritism
- DOJ-004 — Protection of Career DOJ Personnel from Politically Motivated Removal or Reassignment _(status: Awaiting merits adjudication; priority: High)_
- DOJ-005 — Weak Enforcement and Internal Control of DOJ Recusal Duties
- **DOJ-006** — Insufficiently enforceable limits on White House–DOJ contacts _(status: Retired—merged into DOJ-002 and DOJ-007)_
- DOJ-007 — Independent Investigation of Presidential and Senior Executive Misconduct
- **DOJ-008** — Weak external review of politicized charging or noncharging decisions _(status: Retired—merged into DOJ-003)_
- DOJ-009 — Insufficient Professional-Qualification Requirements for Senior DOJ Leadership

Issue Boundaries

- **DOJ-002** owns preventive controls over case-specific White House and political contacts, including routing, logging, review, and preservation.
- **DOJ-003** owns politically selective charging and noncharging together with independent OIG anomaly review and congressional reporting.
- **DOJ-004** is paused pending merits adjudication of the Article II removal question presented by the Maurene Comey litigation.
- **DOJ-005** owns senior-official recusal administration and enforcement.
- **DOJ-007** owns independent investigation, evidence preservation, and congressional reporting when presidential or senior executive conflict makes ordinary DOJ accountability unreliable.
- **DOJ-009** owns baseline professional eligibility, good standing, disciplinary disclosure, and post-appointment discipline consequences for senior DOJ legal offices.

Notes

DOJ-001, DOJ-002, DOJ-003, DOJ-005, DOJ-007, and DOJ-009 are developed. DOJ-004 is substantively identified but intentionally held at Awaiting merits adjudication. DOJ-006 and DOJ-008 are retired as duplicative standalone issues, with their nonduplicative components preserved in the identified primary issues.

DOJ-001 — Recent Presidential Personal Counsel in Senior DOJ Leadership

Issue Snapshot

Problem: Recent presidential counsel can control DOJ.

Repair: Seven-year Attorney General cooling-off rule.

Vehicle: 28 U.S.C. § 503 amendment (draft).

Institutional Anomaly

The appointment framework does not adequately protect the Department of Justice from control by a president's recent personal counsel, especially where the prior representation involved criminal exposure or matters touching presidential power.

Manifestation of the Failure

Donald Trump placed Todd Blanche, his recent personal criminal-defense attorney, in senior Department leadership after Blanche represented him in criminal proceedings.

Resulting Damage

The arrangement creates a structural conflict between public law-enforcement responsibility and a recent relationship of personal loyalty, confidential knowledge, and strategic alignment. It also undermines confidence that Department decisions affecting the president, his associates, or political opponents are institutionally independent.

Underlying Weakness

Existing ethics and recusal rules are primarily matter-specific and internally administered. They do not fully address department-wide authority, personnel influence, access to information, agenda control, or the legitimacy costs created by placing recent personal counsel at the head of federal law enforcement.

Repair and Prevention

Repair requires transparent disclosure, independent review of present conflicts, enforceable screening, and verification that affected matters are insulated. Prevention requires rules addressing recent personal representation before appointment to senior Department leadership.

Proposal Survey

Existing federal models use targeted eligibility limits and cooling-off periods rather than broad personal-disqualification regimes. The Secretary of Defense statute bars appointment within seven years after active-duty commissioned service unless Congress grants a waiver. See 10 U.S.C. § 113. Federal post-employment restrictions separately regulate former officers' later appearances and communications, showing Congress's willingness to address relationship-based conflicts through time-limited rules. See 18 U.S.C. § 207.

DOJ's own conflict rules also provide a narrower internal analogue, requiring disqualification from criminal investigations or prosecutions where a personal or political relationship exists unless participation is authorized. See 28 C.F.R. § 45.2. DOJ-001 builds from those models but applies them at the appointment-eligibility stage, where matter-specific screening is insufficient.

Least-Complex Adequate Remedy

Congress should amend 28 U.S.C. § 503 to make a person ineligible to be appointed or serve as Attorney General during the seven years after personally providing covered legal representation or advice to the sitting President. Covered representation should include private, personal, electoral, criminal-defense, civil-liability, impeachment, or comparable matters in which the President's interests were distinct from, or could reasonably diverge from, the interests of the United States. Official legal service performed solely on behalf of the United States or the Executive Office of the President should be excluded. This mirrors Congress's established use of a cooling-off qualification for the Secretary of Defense under 10 U.S.C. § 113 and directly addresses the conflict without creating a new institution.

Annotation

Basis and Evidence. Former-client duties continue after representation ends, but they generally operate through confidentiality and matter-specific conflict rules. Senior Department leadership exercises authority extending beyond any single matter through supervision, personnel, policy, information access, and enforcement priorities. The initial source base includes the White House nomination record, the Department of Justice biography, 28 C.F.R. § 45.2, and ABA Model Rule 1.9.

Qualification. Prior representation does not create a perpetual duty to advance a former client's interests, and appointment of a former attorney is not automatically unlawful. The identified defect is the inadequacy of existing institutional safeguards, not a categorical assertion that current professional-responsibility law forbids the appointment.

Remedial Alternatives and Constraints. Disclosure, recusal, and screening alone are simpler but do not adequately address department-wide authority or institutional legitimacy. A broader prohibition covering any attorney who served in any legal capacity would be easier to state but constitutionally more vulnerable and unnecessarily overinclusive. The proposed rule therefore should be

temporary, generally applicable, and limited to personal or politically interested representation. Congress's use of office-specific cooling-off qualifications supports the design, but it is a statutory analogue rather than controlling judicial precedent. Full proposed legislative language is maintained separately in the project's Legislative Drafting Proposals under DOJ-001.

Proposed Legislation

- Seven-Year Cooling-Off Rule for Attorney General Eligibility

DOJ-002 — White House Direction or Interference in Particular Federal Criminal Matters

Issue Snapshot

Problem: Political pressure can steer specific criminal matters.

Repair: Require logging, review, and neutrality memoranda.

Vehicle: Justice Manual amendment (draft).

Institutional Anomaly

The Department of Justice lacks sufficiently enforceable front-end safeguards against White House or political-appointee direction, pressure, retaliation, or favoritism in particular federal criminal matters, including matters in which the President is not personally under investigation.

Manifestation of the Failure

Case-specific influence may concern whether to investigate an opponent, protect an ally, issue compulsory process, narrow or dismiss charges, alter a plea or sentencing position, disclose confidential information, manipulate staffing or resources, or deploy criminal process to coerce state or local officials.

In June 2026, the United States District Court for the District of Minnesota quashed grand-jury subpoenas issued to the offices of Governor Tim Walz and other Minnesota officials. The court found overwhelming evidence that the dominant purpose was to coerce assistance with federal civil-immigration enforcement and to harass or retaliate for refusal, while DOJ failed to identify a plausible criminal-investigative justification. The ruling demonstrates that judicial review can work, but only after coercive process has issued and affected institutions have incurred cost, disruption, and risk.

That episode therefore shows both sides of the institutional design problem: the back-end judicial safeguard functioned, while front-end DOJ safeguards may have failed. A successful challenge in an unusually well-documented case does not establish that all improper influence will be detected, challenged, or remedied, especially where targets lack resources, coercive acts evade precompliance review, or political pressure is less explicit.

Resulting Damage

Improper case-specific influence can burden protected activity, distort federalism, intimidate critics, favor allies, injure uncharged persons, waste investigative resources, and undermine confidence that criminal law is administered for lawful rather than personal or partisan purposes.

Underlying Weakness

Existing White House–DOJ contact restrictions and Public Integrity Section review procedures demonstrate that DOJ can front-load neutrality safeguards through internal rules. Their limits are incomplete coverage, uneven enforceability, dependence on self-reporting, and vulnerability to amendment, suspension, waiver, or noncompliance by the same leadership whose conduct the rules are intended to constrain.

Obstruction and related criminal statutes may reach some corrupt interference, but they do not create a complete White House–DOJ contact code. They require proof of particular elements and ordinarily operate only after misconduct has occurred. Moreover, *Trump v. United States* treated presidential communications with DOJ concerning investigation and prosecution as core official conduct protected by absolute criminal immunity. Preventive routing, logging, review, and preservation therefore remain necessary even where prosecution of the President is unavailable.

Judicial review remains indispensable but is principally reactive. It depends on reviewable process, a capable challenger, a suitable procedural vehicle, and timely adjudication. It ordinarily does not reveal who initiated the matter, create internal discipline, compensate for burdens already imposed, or prevent related investigative actions.

Repair and Prevention

DOJ should extend the existing Public Integrity review model to politically sensitive criminal matters involving:

- federal, state, Tribal, territorial, or local elected officials;
- candidates, campaigns, political parties, transitions, and inaugural committees;
- persons publicly identified by senior executive officials as political allies, opponents, or desired investigative targets;
- state and local governments and senior officials acting for them;
- journalists, news organizations, and confidential-source activity;
- nonprofit, advocacy, religious, academic, labor, civic, and membership organizations substantially engaged in protected expression or association; and

- persons or entities selected because of protected speech, protest, petitioning, political activity, or disagreement with federal policy.

Covered matters should require contemporaneous written criminal predication, disclosure and logging of White House and political-appointee contacts, designated routing points, career consultation before opening or materially advancing the matter, and prior Public Integrity approval before specified coercive or disposition-determinative actions. Emergency contacts should be documented promptly, records preserved, and unofficial campaign, party, personal-lawyer, or outside-political channels prohibited from directing DOJ action.

The rules should remain viewpoint-neutral and should not confer immunity from legitimate investigation.

Proposal Survey

DOJ already uses internal contact and consultation models that can be extended before creating a new institution. Justice Manual provisions restrict White House contacts concerning pending or contemplated matters and route communications through designated channels. See Justice Manual, § 1-8.000. DOJ also requires Public Integrity Section consultation or approval for specified public-corruption matters involving federal officials. See Justice Manual, § 9-85.000.

Statutory alternatives include broader criminal obstruction, civil-rights, and official-interference provisions, but those operate after misconduct and require offense-specific proof. DOJ-002 therefore adapts existing administrative review and contact-control models first, reserving codification for demonstrated evasion.

Least-Complex Adequate Remedy

Adopt and publish a Justice Manual provision requiring a Political Neutrality Memorandum and Public Integrity Section review before specified actions in politically sensitive criminal matters. The rule should include contact routing and logging, record preservation, emergency procedures, periodic review, notice of material amendment or suspension, prospective-only weakening, and referral of noncompliance to OPR or OIG.

This is less complex than creating a new independent institution and builds upon safeguards DOJ already administers. If repeated suspension, evasion, or noncompliance demonstrates that an internal rule is inadequate, Congress should codify the minimum procedures.

Proposed Justice Manual Amendment

The proposed text is maintained separately as Proposed Justice Manual § 9-85.115 — Politically Sensitive Criminal Matters.

Relationship to DOJ-007

DOJ-002 owns preventive controls over case-specific White House and political contacts. DOJ-007 owns independent investigation, evidence preservation, and reporting to Congress when presidential or senior executive conflict makes ordinary DOJ accountability unreliable. Former candidate issue DOJ-006 is therefore merged into these two issues rather than maintained separately.

Annotation

Basis and Evidence. Existing Justice Manual provisions restrict White House contacts concerning pending or contemplated matters and require Public Integrity consultation or approval for specified investigations involving Members of Congress. Those models establish the administrative feasibility of front-loaded career review. The June 2026 Minnesota subpoena ruling supplies a representative example of judicial correction after coercive process had already issued.

Qualification. Courts remain a capable and indispensable safeguard. The Minnesota result weighs against wholesale institutional replacement and supports reinforcing existing review mechanisms. Internal rules, however, remain legally amendable by executive leadership and therefore depend partly on transparency, institutional resistance, professional enforcement, and political cost.

Remedial Alternatives and Constraints. More durable alternatives include statutory contact restrictions, codified approval procedures, expedited judicial review, fee shifting for process quashed as retaliatory or issued for improper purpose, and expanded OIG jurisdiction. Those measures should remain fallbacks unless experience demonstrates that a published internal rule is inadequate. DOJ-002 concerns case-specific influence; DOJ-007 concerns extraordinary executive conflicts requiring independently protected investigation; DOJ-003 concerns unequal outcomes and systemic charging patterns.

DOJ-003 — Politically Selective Enforcement, Charging, and Favoritism

Issue Snapshot

Problem: Selective prosecution patterns remain invisible.

Repair: Create OIG comparator monitoring and anomaly notice.

Vehicle: Federal monitoring statute (draft).

Institutional Anomaly

Federal prosecutorial discretion lacks sufficiently comprehensive, independent, and reviewable safeguards against materially different investigative, charging, declination, dismissal, plea, or sentencing treatment based on political affiliation, viewpoint, loyalty, relationship, retaliation, or partisan advantage.

Manifestation of the Failure

Selective treatment can operate through unusually aggressive investigation or charging of opponents, unusually favorable declinations or resolutions for allies, strategic delay, narrow investigative scope, favorable plea terms, dismissal, reduced sentencing positions, or resource allocation that systematically burdens one political class while protecting another.

The 2026 federal case against former FBI Director James Comey illustrates the type of charging decision that warrants independent comparator review. DOJ charged Comey under federal threat statutes based in part on a May 2025 social-media post showing seashells arranged as “86 47.” The phrase is ambiguous and used in nonviolent senses, while Comey has long been a prominent critic of President Trump. DOJ has stated that the case rests on evidence beyond the post, and the pending case has not been adjudicated. The institutional question is therefore not whether the charge is conclusively illegitimate, but whether materially comparable expression is ordinarily investigated and charged in the same manner, whether political demands influenced the decision, and whether the treatment departed from ordinary practice.

A separate 2025–2026 episode involved six members of Congress who released a video stating that military personnel must refuse unlawful orders. Federal prosecutors investigated the lawmakers and sought indictments under a statute concerning interference with military loyalty or morale, but a District of Columbia grand jury declined to indict them. The statement reflected the established distinction between lawful and unlawful military orders, although its generality could legitimately be criticized as imprecise. The episode is relevant because criminal-process burdens may arise through investigation and attempted charging even when no indictment ultimately issues.

Neither example is treated here as conclusive proof of selective prosecution. Each instead demonstrates why department-wide comparator data, political-contact records, and independent anomaly review are necessary. Relevant questions include whether similarly situated speakers were treated similarly, whether public political demands preceded enforcement, whether career officials objected, and whether the charging theory departed materially from ordinary practice.

Direct White House instructions may never be documented. Unequal outcomes may instead emerge from Attorney General priorities, political-appointee supervision, informal institutional signals, resource allocation, repeated discretionary choices, or career officials anticipating leadership preferences. Individual defendants generally cannot see the broader universe of comparable matters needed to identify a pattern.

Resulting Damage

Politically selective enforcement destroys equality before the law, converts legitimate discretion into a mechanism of reward or punishment, chills protected activity, distorts elections and public debate, and permits sustained favoritism or retaliation to remain concealed behind case-specific explanations.

Underlying Weakness

Prosecutorial discretion is indispensable and courts properly hesitate to supervise ordinary charging decisions. The same discretion, secrecy, and factual variability make political misuse unusually difficult to prove. No two cases are identical; differences in evidence, culpability, cooperation, history, venue, resources, timing, and lawful priorities may legitimately produce different outcomes.

The defect therefore cannot be completely prevented without risking paralysis of legitimate enforcement or creating a second prosecutorial hierarchy. The practical institutional objective is corrigibility: preserve prosecutorial authority while creating the capacity to detect, document, investigate, report, and correct sustained unexplained disparities.

Repair and Prevention

DOJ should create a universal charging-and-disposition record and provide it to an independently empowered Office of Inspector General for statistical and contextual analysis. Monitoring should include filed charges, declined charges, dismissals, reductions, superseding decisions, plea agreements, deferred- and non-prosecution agreements, material sentencing positions, policy departures, and final case dispositions.

The system should distinguish proposed, authorized, and final operative decisions. Routine data should be extracted automatically from existing case-management systems. Manual explanation should be required where necessary to record evidence strength, aggravating and

mitigating factors, cooperation, policy departures, political contacts, and other legitimate comparators.

OIG should identify anomalies through transparent, validated methodology; conduct human contextual review; audit source files randomly; investigate materially unexplained political disparities; and report threshold-specific anomalies confidentially to the chairs and ranking minority members of the House and Senate Judiciary Committees. An anomaly must remain an oversight trigger, not proof of illegality or misconduct.

Proposal Survey

Existing law provides narrow case-level remedies rather than system-level detection. Selective-prosecution doctrine permits constitutional challenges but imposes demanding comparator and intent requirements that individual defendants rarely can satisfy. See *United States v. Armstrong*, 517 U.S. 456 (1996).

Oversight models already exist inside DOJ. The Inspector General Act authorizes Inspectors General to conduct audits and investigations and to report serious problems to agency heads and Congress. See 5 U.S.C. §§ 401-424. DOJ's OIG and OPR structures provide institutional homes for review, but not a comprehensive charging-comparator dataset. DOJ-003 therefore borrows the audit-and-reporting model and applies it to prosecutorial neutrality.

Least-Complex Adequate Remedy

Enact the Prosecutorial Neutrality Monitoring and Congressional Oversight Act. The Act should:

1. require standardized OIG collection of every final operative DOJ charging and disposition decision while preserving earlier proposed and authorized stages for audit;
2. require automated data extraction where practicable and targeted manual justification where analytically necessary;
3. create graduated internal-review, reportable, and urgent anomaly thresholds;
4. require contextual human review and external methodological validation;
5. limit political-characteristic data to public, case-relevant, and analytically necessary information;
6. require random source-file audits and penalties for concealment or falsification;
7. require bipartisan confidential congressional notice of qualifying anomalies; and
8. expressly prohibit OIG or Congress from directing an individual investigation, charge, plea, dismissal, or sentencing position.

The proposal will not necessarily prevent the first abusive decision. Its purpose is to prevent selective enforcement from remaining statistically invisible, institutionally unreviewable, or capable of becoming entrenched without congressional notice.

Proposed Legislation

The proposed text is maintained separately as the Prosecutorial Neutrality Monitoring and Congressional Oversight Act.

Annotation

Basis and Evidence. Selective-prosecution doctrine and the presumption of prosecutorial regularity make individual judicial challenges difficult. Centralized data analysis can reveal repeated severity or leniency patterns that no individual defendant or district can observe. The model preserves executive charging authority while strengthening Congress's ability to perform systemic oversight. The Comey case and the unsuccessful effort to indict six members of Congress are included as contemporary comparator-trigger examples, not adjudicated findings of political misuse.

Qualification. Statistical disparity is not self-proving. Reliable analysis must account for offense conduct, admissible evidence, culpability, history, cooperation, obstruction, harm, venue, resources, legal changes, sample size, and lawful enforcement priorities. Political data must not become a registry of private beliefs; collection should be limited to public and case-relevant facts. Pending or declined prosecutions must be described according to their actual procedural posture and with the presumption of innocence intact.

Remedial Alternatives and Constraints. Preapproval of every charging decision would be more preventive but could impede legitimate enforcement and create constitutional tension. Complaint-only OIG review would be simpler but would miss invisible patterns. Universal monitoring with threshold-specific reporting is more administratively demanding, but it is the least-complex mechanism capable of identifying systemic selectivity while leaving individual prosecutorial control in DOJ. DOJ-002 supplies front-end review for politically sensitive matters; DOJ-003 supplies universal back-end detection and correction. Former candidate issue DOJ-008 is merged here because external review is part of the same defect and remedy architecture.

DOJ-004 — Protection of Career DOJ Personnel from Politically Motivated Removal or Reassignment

Issue Snapshot

Problem: Career DOJ protections face Article II uncertainty.

Repair: Await merits ruling before final remedy.

Vehicle: Pending judicial clarification.

Institutional Anomaly

Career prosecutors, investigators, and legal officials may be removed, reassigned, stripped of responsibility, investigated, or professionally disadvantaged for resisting improper political influence even when existing civil-service and whistleblower protections nominally apply.

Manifestation of the Failure

The July 2025 termination of career SDNY prosecutor Maureen Comey presents a live test of this vulnerability. According to her complaint, DOJ terminated her without identifying misconduct or inadequate performance and cited Article II as the stated authority. Comey alleges that the action was based on her familial association with former FBI Director James Comey or perceived political views. DOJ disputes her claims. In April 2026, the district court permitted the constitutional challenge to proceed in federal court rather than requiring exclusive administrative channeling; the merits remain unresolved.

The episode is relevant because it raises a threshold question that may determine the appropriate remedy: whether Article II permits the executive branch to remove a career federal prosecutor notwithstanding statutory merit-system protections, and if so, to what extent.

Resulting Damage

Unexplained or politically perceived removals can chill candid legal advice, encourage anticipatory compliance, permit leadership to replace resistant personnel until it obtains a desired case outcome, and weaken confidence that prosecutorial decisions reflect law and evidence rather than personal loyalty.

Underlying Weakness

Existing protections under Title 5, the Civil Service Reform Act, whistleblower statutes, OSC and MSPB procedures, FBI-specific protections, OIG, and OPR may be inadequate if removal can be justified as an incident of presidential Article II authority or if review occurs only after the affected matter has been irreversibly altered.

The current litigation may determine whether the principal defect is:

1. insufficient statutory coverage;
2. inadequate enforcement and delay;
3. lack of an automatic interim remedy; or
4. a constitutional limitation on Congress's power to protect career prosecutorial personnel.

Repair and Prevention

Substantive development is intentionally paused pending merits adjudication. Potential safeguards include automatic temporary stays, expedited judicial review, contemporaneous written reasons, identification of the directing official, immediate preservation of political-contact and personnel records, interim pay and status protection, and rebuttable presumptions arising from unexplained or expressly constitutional removals.

Proposal Survey

Existing personnel-protection models include the Civil Service Reform Act, Office of Special Counsel complaint channels, Merit Systems Protection Board review, and whistleblower protections. See 5 U.S.C. § 2302 and 5 U.S.C. §§ 1211-1215. Those models assume that statutory merit-system protections meaningfully constrain agency action.

DOJ-004 remains different because the live issue is constitutional: whether Article II permits displacement of those protections for career federal prosecutors. Until that question is adjudicated, the relevant proposal survey is necessarily provisional. Possible models include automatic interim stays, expedited federal-court review, written-reason requirements, and record-preservation duties.

Least-Complex Adequate Remedy

No final remedy is selected at this stage. The least-complex adequate remedy depends materially on whether the courts hold that existing statutory protections constrain Article II removal authority over career federal prosecutors.

Annotation

Basis and Evidence. The litigation concerns an asserted Article II basis for terminating a career federal prosecutor outside ordinary documented cause procedures. The district court's April 2026 ruling addressed forum and channeling, not ultimate legality.

Qualification. Retaliatory motive, the scope of presidential removal authority, and the validity of Comey's claims have not been finally adjudicated. The case should not be treated as proof that every removal of a career prosecutor is unlawful or politically motivated.

Remedial Alternatives and Constraints. Expanding Title 5 protections may be sufficient if Article II does not displace them. If the courts recognize broader presidential removal authority, a statutory remedy may require narrower procedural protections, alternative institutional safeguards, or constitutional treatment.

DOJ-005 — Weak Enforcement and Internal Control of DOJ Recusal Duties

Issue Snapshot

Problem: DOJ recusal enforcement remains internally controlled.

Repair: Require independent senior-official recusal review.

Vehicle: Federal recusal-enforcement statute (draft).

Institutional Anomaly

Federal law already requires disqualification in specified DOJ conflicts, but disclosure, interpretation, waiver, succession, and enforcement remain substantially controlled within the same hierarchy affected by the conflict. The system is least reliable when the recusal question reaches the Attorney General, Acting Attorney General, Deputy Attorney General, or another official controlling a nationally significant matter.

Manifestation of the Failure

Matthew Whitaker and the Special Counsel investigation

After becoming Acting Attorney General in 2018, Matthew Whitaker assumed supervision of the Special Counsel investigation despite prior public criticism of the investigation and statements concerning its scope. DOJ ethics advice reportedly favored recusal, but the advice was nonbinding; other senior advisers concluded that recusal was not legally required, and Whitaker retained supervision. No later finding established that Whitaker improperly interfered with the investigation. The episode nevertheless demonstrates that a consequential recusal dispute could remain advisory, internally reversible, and unavailable for timely independent adjudication.

Jeff Sessions and pressure to reverse recusal

Attorney General Jeff Sessions recused from matters concerning the 2016 presidential campaign after receiving DOJ ethics advice. President Trump repeatedly pressed Sessions to reverse the recusal and publicly criticized him for failing to protect the President. The Mueller Report found evidence supporting an inference that at least one purpose was to regain control of and potentially restrict the investigation. Sessions did not reverse the recusal. The episode demonstrates the need for anti-retaliation and anti-evasion protection even when the initial recusal decision is sound.

Together, the episodes reveal complementary defects: a recused official may face pressure or removal, while the successor's own conflict may remain subject only to internal, nonbinding review.

Resulting Damage

Weak enforcement allows conflicted officials to retain direct or indirect control over investigations, appointments, staffing, jurisdiction, resources, charging, appeals, and disclosure. It also permits recusal to be narrowed, waived, or terminated without a durable record and may deter ethics officials from giving candid advice.

Underlying Weakness

The defect is not the absence of recusal law. Existing authorities include:

- 18 U.S.C. § 208 and 5 C.F.R. § 2635.402 for financial conflicts;
- 28 U.S.C. § 528 and 28 C.F.R. § 45.2 for DOJ personal, financial, political, and appearance conflicts in criminal investigations and prosecutions; and
- 5 C.F.R. § 2635.502 for impartiality concerns involving covered relationships.

The principal weaknesses are self-reporting, narrow definitions, internal supervisory control, discretionary authorization to continue participation, limited transparency, no generally enforceable private right, and inadequate safeguards against indirect supervision after recusal.

The analysis should distinguish:

1. duties that already exist but are weakly enforced;
2. conflicts the existing rules cover inadequately; and
3. conflicts the rules do not cover.

Repair and Prevention

Senior-official recusal decisions should require contemporaneous written disclosure and an independent determination outside the affected supervisory chain. A recused official should be barred from indirect supervision, staffing, funding control, outcome-oriented communication, selective briefing, and unilateral withdrawal from recusal.

The reviewing body should decide only whether an official may participate. It should not supervise investigative merits or direct charging outcomes.

Proposal Survey

Federal conflict law already includes both statutory and regulatory recusal models. Section 208 bars executive officials from participating in particular matters affecting specified financial interests. See 18 U.S.C. § 208. DOJ-specific rules require disqualification in criminal investigations or prosecutions where personal or political relationships create conflicts or appearances of conflict. See 28 U.S.C. § 528 and 28 C.F.R. § 45.2.

Other models rely on disclosure, waiver, and internal ethics advice. DOJ-005 treats those models as insufficient for the Attorney General and other senior officials because the conflict-review chain may itself be affected. The proposal therefore strengthens existing recusal duties rather than inventing a new substantive ethics code.

Least-Complex Adequate Remedy

Strengthen enforcement of existing DOJ recusal duties before creating a wholly new substantive regime. Congress should require:

1. mandatory written conflict disclosures and determinations;
2. independent review of recusal, nonrecusal, waiver, partial-recusal, and recusal-termination decisions involving specified senior officials;
3. temporary transfer of authority while a substantial conflict is reviewed;
4. identification of the lawful successor decisionmaker;
5. redacted public explanation and confidential congressional notice where lawful;
6. OIG or OPR referral for concealment or participation contrary to a binding determination;
7. meaningful discipline and corrective action; and
8. anti-evasion rules prohibiting indirect participation.

Broader substantive expansion should remain a fallback where significant political or institutional conflicts fall outside existing definitions.

Proposed Legislation

The proposed enforcement framework is maintained separately as the DOJ Senior-Official Recusal Enforcement and Transparency Act.

Annotation

Basis and Evidence. Section 528 already directs the Attorney General to promulgate disqualification rules for personal, financial, or political conflicts or appearances of conflict. Section 45.2 supplies mandatory language but leaves disclosure, evaluation, and authorization within DOJ management. The Whitaker and Sessions episodes show that internal advice may be nonbinding and that a valid recusal may be subjected to presidential pressure.

Qualification. Neither episode establishes that every disagreement over recusal is improper or that an official who declines recusal necessarily acts corruptly. Overbroad recusal can disrupt lawful presidential supervision, enable strategic disqualification, and diffuse accountability.

Remedial Alternatives and Constraints. A permanent external ethics tribunal would provide stronger insulation but add complexity and potentially raise Article II concerns. The narrower remedy makes existing duties independently reviewable for specified senior officials while preserving executive control over policy and case merits.

DOJ-007 — Independent Investigation of Presidential and Senior Executive Misconduct

Issue Snapshot

Problem: Conflicted executives control special-counsel initiation.

Repair: Authorize judicial appointment of investigative counsel.

Vehicle: Constitutional amendment and statute (draft).

Institutional Anomaly

Federal law provides no durable mechanism by which an institution outside the presidential chain of command can initiate and appoint an independent investigative counsel when the President, Attorney General, or senior executive officials possess a disabling conflict of interest. Existing special-counsel arrangements remain dependent on executive initiation, jurisdiction, resources, and removal authority.

Manifestation of the Failure

When alleged federal criminal conduct or abuse of federal investigative authority concerns the President, presidential associates, senior White House officials, or DOJ leadership, the officials ordinarily responsible for deciding whether an independent investigation should exist may themselves be politically, institutionally, or personally conflicted. A loyal Attorney General can prevent appointment, restrict jurisdiction, withhold resources, remove the investigator, or terminate the investigation.

The Mueller investigation illustrates the defect. The Special Counsel investigated substantial evidence concerning possible presidential obstruction but accepted the Office of Legal Counsel conclusion that a sitting President could not be indicted or criminally prosecuted and therefore declined to make a traditional prosecutorial judgment. The report stated that, had the evidence clearly established that the President did not commit obstruction, it would have said so; it did not exonerate him. The central structural lesson is not that an independent counsel should have prosecuted a sitting President. It is that investigation of presidential conduct remained dependent on an executive-branch arrangement vulnerable to presidential pressure, removal, jurisdictional restriction, and termination.

Watergate supplies an earlier analogue. Evidence concerning President Nixon was developed through criminal investigation and grand-jury process, transmitted to Congress, and addressed through impeachment-related mechanisms before later criminal accountability became moot through resignation and pardon. The episode demonstrates the need to preserve evidence and independent inquiry even when prosecution cannot proceed during presidential tenure.

Trump v. United States creates an additional accountability gap. Presidential communications with DOJ concerning investigation and prosecution may be absolutely immune from criminal prosecution as exercises of core presidential authority. That does not make the underlying conduct factually irrelevant to impeachment, congressional oversight, institutional reform, or the liability of other participants. It does, however, make ordinary executive investigation especially unreliable when the President is alleged to have used DOJ authority for personal protection, political retaliation, sham investigation, selective nonenforcement, or another improper case-specific purpose.

Judicial findings that executive action was unlawful may create substantial grounds for further inquiry but do not automatically establish criminal liability or an impeachable offense. The defect arises when credible evidence warrants independent examination but the President controls the institution that determines whether that examination continues.

Resulting Damage

The arrangement permits presidential self-protection, suppression of politically sensitive investigations, retaliatory or protective use of DOJ authority, obstruction or retaliation against investigators and witnesses, loss of evidence, expiration of limitations periods, and loss of public confidence that federal law applies equally to those controlling the executive branch.

Underlying Weakness

The Appointments Clause permits Congress to vest appointment of inferior officers in courts of law, and *Morrison v. Olson* upheld judicial appointment of an independent counsel after an executive trigger. That precedent does not securely authorize a court to initiate appointment over executive objection. More recent doctrine, particularly *Trump v. United States*, treats presidential control over federal investigation and prosecution as part of exclusive Article II authority. A direct judicial trigger therefore requires an express constitutional amendment.

The distinction between investigation and prosecution is essential. DOJ policy has permitted investigation of a sitting President while barring indictment and criminal prosecution during tenure. DOJ-007 is designed to protect investigation from presidential control, not to create authority to prosecute a sitting President or to supersede substantive immunity doctrine.

Repair and Prevention

The Constitution should authorize Congress to establish a narrowly bounded judicial mechanism for appointing an independent investigative counsel when credible evidence and structural executive conflict make ordinary DOJ control unreliable. The appointing panel should determine whether the trigger exists, appoint counsel, define jurisdiction, protect resources, review removal, and determine completion. It should not supervise investigative tactics, charging decisions concerning other persons, plea negotiations, trial strategy, or sentencing positions.

Qualifying subject matter should include credible information that the President or senior executive officials directed or sought a sham or pretextual investigation; sought investigation or prosecution of an opponent for an improper purpose; sought protection, dismissal, leniency, or nonenforcement for an ally; requested confidential investigative information for personal or political use; threatened personnel or manipulated staffing, jurisdiction, resources, or timing to obtain a desired case result; directed materially false representations; or obstructed, concealed, or retaliated against resistance to such conduct.

The counsel should be authorized to investigate a sitting President; use grand-jury and compulsory process; collect and preserve evidence; litigate privilege and access disputes; investigate obstruction, retaliation, witness tampering, or evidence destruction; prosecute other persons within jurisdiction where lawful; and transmit substantial and credible information to the House of Representatives and appropriate congressional committees.

The statute should expressly provide that a sitting President may not be indicted or tried under this mechanism while in office. It should toll applicable limitations periods so later accountability is not defeated by presidential tenure. Impeachment remains the constitutional mechanism for removal and may proceed before the investigation is complete.

Proposal Survey

The principal historical model is the former independent-counsel statute, which permitted judicial appointment after an executive trigger. The Supreme Court upheld that arrangement in *Morrison v. Olson*, 487 U.S. 654 (1988), but the statute later expired. The current special-counsel framework is regulatory and remains within DOJ control. See 28 C.F.R. Part 600.

Congress has also relied on impeachment, oversight, and ordinary DOJ investigation, but those mechanisms depend on political will or executive initiation. DOJ-007 therefore uses the independent-counsel tradition but requires constitutional authorization for a nonexecutive trigger, avoiding overreliance on a conflicted Attorney General.

Least-Complex Adequate Remedy

Adopt a constitutional amendment authorizing Congress to permit a specially constituted federal judicial panel to appoint an independent investigative counsel upon a verified petition and findings that:

1. credible information indicates that a federal offense, obstruction, retaliation, evidence destruction, or serious abuse of federal investigative or prosecutorial authority may have occurred; and
2. a conflict involving the President, Vice President, Attorney General, senior White House officials, presidential campaign activity, or DOJ leadership materially impairs the reliability of ordinary executive investigation.

The amendment should insulate the investigation from presidential direction and removal while preserving congressional definition of crimes and procedure, judicial protection of rights, lawful oversight, professional discipline, transparent reporting, and removal for defined misconduct or incapacity.

Proposed Constitutional Amendment

Section 1. Congress may by law authorize a court of the United States, or a judicial panel established by law, to appoint an independent investigative counsel when credible information and a conflict of interest materially impair the ordinary investigation of a possible offense, obstruction, retaliation, evidence destruction, or serious abuse of federal investigative or prosecutorial authority involving the President or other senior executive officials.

Section 2. A counsel appointed under this article shall exercise the investigative authority prescribed by law and shall not be subject to direction, supervision, or removal by the President or by any officer acting under presidential authority, except as implementing law may provide consistently with the independence of the office. The authority may include investigation of a sitting President, compulsory process, grand-jury proceedings, evidence preservation, prosecution of persons other than a sitting President within assigned jurisdiction, and transmission of substantial and credible information to the House of Representatives and appropriate committees of Congress.

Section 3. Investigation and reporting under this article may concern conduct that is immune from criminal prosecution, provided that immunity is not treated as evidence of wrongdoing and the counsel does not purport to impose criminal liability where immunity applies.

Section 4. A sitting President shall not be indicted or tried under authority conferred by this article while holding office. Congress may provide for suspension of otherwise applicable limitation periods during presidential tenure and for a reasonable period thereafter.

Section 5. Congress shall provide by law for jurisdiction, qualifications, tenure, resources, reporting, removal standards, judicial review, and termination. Removal shall require defined cause and written findings and shall be subject to expedited judicial review.

Section 6. The appointing court or panel shall not direct investigative or prosecutorial decisions and shall not participate in any criminal case arising from an appointment made under this article.

Section 7. Nothing in this article shall displace or bypass impeachment, alter the respective impeachment powers of the House and Senate, make investigation a condition precedent to impeachment, or determine the substantive scope of presidential criminal immunity.

Section 8. Congress shall have power to enforce and implement this article by appropriate legislation.

Enabling Legislation

The implementing proposal is maintained separately as the Independent Investigative Counsel Appointment and Accountability Act.

Relationship to DOJ-002 and IMM-001

DOJ-002 owns preventive routing, logging, review, and preservation requirements for White House and political contacts concerning particular matters. Former candidate issue DOJ-006 is merged into DOJ-002 and DOJ-007.

IMM-001 owns the substantive constitutional rule governing criminal immunity for presidential official acts. DOJ-007 remains independently useful even if immunity persists because investigation, evidence preservation, impeachment reporting, legislative oversight, and prosecution of other participants may still proceed.

Design Requirements for Implementing Legislation

Implementing legislation should provide:

- a three-judge appellate panel selected by rotation or random assignment from different circuits;
- verified petitions from authorized institutional actors rather than unrestricted private applications;
- a threshold limited to credible evidence and structural conflict, not guilt or probable cause;
- jurisdiction over serious misuse of federal investigative or prosecutorial authority as well as possible offenses;
- merit-based appointment and defined jurisdiction;
- express authority to investigate a sitting President, preserve evidence, use grand-jury process, and report substantial and credible impeachment- or oversight-related information;
- an express prohibition on indictment or trial of a sitting President under the mechanism;
- lawful prosecution of other persons within assigned jurisdiction;
- limitations-period tolling during presidential tenure;
- ordinary compliance with DOJ rules subject to notice-only good-cause departure;
- independent investigative capacity, protected resources, and binding access to assistance;
- removal only for misconduct, incapacity, substantial dereliction, or material jurisdictional violation;
- no displacement of impeachment and no requirement that Congress await completion;
- final reporting consistent with grand-jury secrecy, classification, defendants' rights, and privacy;
- disqualification of appointing judges from resulting cases; and
- termination when the assigned matter is complete.

Annotation

Basis and Evidence. *Morrison v. Olson*, 487 U.S. 654 (1988), sustained judicial appointment of a limited inferior officer after an Attorney General trigger. *Trump v. United States*, 603 U.S. 593 (2024), treated presidential control of executive investigation and prosecution as exclusive Article II authority, making a direct judicial trigger constitutionally insecure without amendment. The Mueller Report recognized both that investigation of a sitting President was permissible and that DOJ policy barred indictment and prosecution during tenure.

Qualification. The Mueller Report did not formally conclude that President Trump committed obstruction. DOJ-007 does not decide ultimate criminal liability, expand substantive offenses, abolish presidential immunity, or authorize prosecution of a sitting President. Investigation of immune conduct is permitted for factual, impeachment, oversight, and institutional purposes but must not be presented as proof that the conduct was criminal.

Remedial Alternatives and Constraints. A statutory restoration of the former independent-counsel model would be simpler but would leave an executive trigger capable of blocking appointment. Judicial review of refusal would reduce that vulnerability but remain constitutionally contestable. A permanent independent prosecution authority would be broader and more disruptive. This proposal is narrower: it protects investigation during extraordinary conflict, preserves impeachment as the tenure-removal mechanism, and coordinates with A-16 for any substantive immunity reform.

DOJ-009 — Insufficient Professional-Qualification Requirements for Senior DOJ Leadership

Issue Snapshot

Problem: Senior DOJ roles may lack good-standing requirements.

Repair: Require bar status, disclosure, and delegation rules.

Vehicle: DOJ qualification statute (draft).

Institutional Anomaly

The Attorney General and senior Department of Justice legal officers exercise extraordinary legal authority over federal prosecutions, federal civil litigation, legal positions of the United States, professional-responsibility systems, law-enforcement policy, legal opinions, and the government's conduct before courts. Yet federal appointment law may not expressly require that the Attorney General, Acting Attorney General, Deputy Attorney General, Associate Attorney General, Solicitor General, or other senior DOJ legal officers be attorneys in good standing, remain eligible to practice law, or be free from final professional discipline materially inconsistent with serving in a senior federal legal office.

Bar membership is not merely a credential. It is a continuing external professional-conduct framework administered by courts, bar authorities, disciplinary bodies, and licensing authorities. For senior DOJ legal officers, good standing in a bar provides an institutional check outside the Department's internal hierarchy and outside ordinary presidential supervision. A statutory good-standing requirement would therefore connect senior federal legal authority to an existing professional regulator capable of imposing discipline for misconduct, dishonesty, lack of candor, breach of fiduciary duty, misuse of client confidences, and other violations of professional legal obligations.

The Senate confirmation process and appointment norms are important safeguards, but they are political safeguards rather than legal eligibility rules. If the President and Senate are aligned, indifferent, or strategically motivated, those safeguards may not prevent a person who has been disbarred, suspended, or adjudicated professionally unfit from serving in a position that directs the legal work of the United States.

This issue does not assume wrongdoing by any current or former official. It concerns the structural question whether federal law should impose baseline professional-qualification and good-standing requirements for senior DOJ legal offices.

Manifestations of the Failure

No express good-standing rule for the Attorney General

Federal law establishes the office of Attorney General and provides for presidential appointment with Senate advice and consent, but it may not expressly require active bar membership, good standing, or absence of final professional discipline as an eligibility condition.

Political safeguards as insufficient legal safeguards

Confirmation, oversight, and political accountability may screen professional fitness in ordinary circumstances. They are weaker safeguards where the appointing President, Senate majority, or political coalition is willing to disregard professional discipline or treat it as irrelevant to service.

Senior legal authority without practice eligibility

A person who cannot practice law before state courts or has been suspended or disbarred by a licensing authority could still, absent a clear statutory bar, occupy an office supervising federal lawyers, legal positions, criminal prosecutions, civil enforcement, and professional-responsibility systems.

Pending complaints versus final discipline

Pending bar complaints or ethics allegations may be politically weaponized and should not automatically disqualify a nominee or officer. The stronger structural concern arises after final adjudicated discipline, suspension, disbarment, resignation in lieu of discipline, or other professional finding materially inconsistent with senior DOJ legal service.

Underlying Weakness

Existing law may lack:

- an express bar-admission or good-standing requirement for the Attorney General and selected senior DOJ legal officers;
- mandatory disclosure of bar memberships and disciplinary history before confirmation or appointment;
- continuing notification duties if discipline is imposed while in office;
- temporary delegation or recusal rules if an officer loses professional good standing;
- a distinction between pending allegations and final adjudicated professional discipline;
- a rule protecting the office while preventing politically motivated complaints from becoming automatic disqualification tools.

Repair and Prevention

Congress should consider statutory professional-qualification requirements for the Attorney General and selected senior DOJ legal officers.

The statute should require, at minimum:

1. admission to practice law in at least one United States jurisdiction;
2. good standing in at least one jurisdiction at the time of nomination, appointment, or designation;
3. disclosure of all current bar memberships, suspensions, disbarments, resignations in lieu of discipline, public discipline, and pending formal disciplinary charges;
4. continuing duty to notify the President, Senate Judiciary Committee, DOJ Inspector General, Office of Professional Responsibility, and Office of Government Ethics of final professional discipline while serving;
5. temporary delegation of legal-supervisory duties if the officer is disbarred, suspended, or otherwise finally disciplined in a manner materially inconsistent with service;
6. preservation of Senate and presidential appointment authority subject to baseline statutory eligibility limits;
7. an express rule that pending complaints, unadjudicated allegations, or politically motivated complaints do not create automatic disqualification.

Proposal Survey

Congress has often imposed office-specific qualifications for federal legal or law-enforcement roles. The Solicitor General and Assistant Attorneys General are statutory offices, but existing provisions do not clearly impose a general good-standing requirement for all senior DOJ legal officers. See 28 U.S.C. §§ 503-506. Federal courts and agencies, by contrast, commonly require attorneys appearing before them to be admitted and in good standing.

Ethics-disclosure models also exist through Senate confirmation, the Office of Government Ethics, OPR, and bar authorities. DOJ-009 draws from those models but converts professional fitness into a baseline eligibility and continuity rule for senior DOJ legal offices.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a targeted amendment to the statutes governing senior DOJ legal offices, beginning with the Attorney General, to require bar admission, good standing, disclosure, and post-appointment notification and delegation procedures.

Proposed Legislation

- Senior Department of Justice Professional Qualification and Good Standing Act

Relationship to Other Issues

- **DOJ-001** concerns appointment of recent presidential personal counsel to senior DOJ leadership.
- **DOJ-003** concerns politically selective enforcement, charging, and favoritism.
- **DOJ-005** concerns weak enforcement and internal control of DOJ recusal duties.
- **DOJ-007** concerns independent investigation of presidential and senior executive misconduct.
- **DOJ-009** concerns baseline professional eligibility, good standing, and disciplinary-disclosure rules for senior DOJ legal offices.

Annotation

No Personal Finding. This issue does not assume misconduct by any current or former official and should not be framed around any named person. Individual complaints or disciplinary proceedings may serve as source-development examples only if described neutrally and with procedural posture clearly identified.

Bar as External Regulator. Bar membership and good standing matter because attorney licensing authorities provide an external professional-conduct check on lawyers exercising legal authority, including senior DOJ legal officers.

Pending Complaints. Pending ethics complaints should not be automatic disqualifiers. A pending complaint may be relevant to disclosure or Senate evaluation, but automatic legal consequences should turn on final discipline, suspension, disbarment, resignation in lieu of discipline, or comparable adjudicated findings.

Working Draft. A first working draft has been created and should be reviewed for Appointments Clause, separation-of-powers, acting-officer, OPR, OIG, and OGE implications.

Appointment Clause Sensitivity. Any statutory qualification rule should be reviewed for compatibility with the Appointments Clause, presidential nomination authority, Senate advice-and-consent authority, and Congress's power to structure executive offices by statute.

Professional Independence. The rule should protect DOJ's professional legitimacy without allowing partisan or bad-faith bar complaints to be weaponized against nominees or officials.

Source Development Pending. Further source development should review 28 U.S.C. § 503, statutes governing the Deputy Attorney General, Associate Attorney General, Solicitor General, Assistant Attorneys General, acting officers, Office of Professional Responsibility rules, Office of Government Ethics rules, Senate confirmation materials, Appointments Clause doctrine, and comparable statutory qualification requirements for federal legal offices.

A-02 — Election Integrity

Generalized Institutional Concern

The election system remains vulnerable to federal executive interference, delegitimization of lawful results, pressure on election officials, disruption of certification, structural distortions in presidential selection, and efforts to obstruct the peaceful transfer of power.

Issues

- ELEC-001 — Federal Executive Interference with State and Local Election Administration
- ELEC-002 — Pressure on Certification and Canvassing Officials
- ELEC-003 — Insufficient Protection for Election Workers and Officials
- ELEC-004 — Abuse of Election Litigation and Investigatory Mechanisms
- ELEC-005 — Weak Safeguards Against False Presidential Result-Transmission Documents
- ELEC-006 — Insufficiently Automatic Presidential-Transition Procedures
- ELEC-007 — Improper Federal-Force Presence in Election Administration
- ELEC-008 — Accountability for Coordinated Federal Election-Subversion Schemes
- ELEC-009 — Electoral College Structure and National Popular Vote
- ELEC-010 — Mail-In Voting Access, Reliability, and Trust

Issue Boundaries

- **ELEC-001** concerns civilian executive interference through presidential authority, agencies, investigations, funding, regulation, intelligence, administrative process, or official influence.
- **ELEC-002** concerns the vulnerability of state and local canvassing and certification mechanisms to refusal, deadlock, delay, or unauthorized discretion, regardless of the source of pressure or motive.
- **ELEC-003** concerns politically neutral protection of election personnel and continuity of election operations, with state administration and only narrowly limited federal financial support.
- **ELEC-004** concerns abuse of election litigation, investigatory demands, subpoenas, audit requests, and extraordinary proceedings, including later-discovered improper-purpose coordination.
- **ELEC-005** concerns false or unauthorized presidential result-transmission documents entering federal receipt, preservation, recognition, or electoral-count channels.
- **ELEC-006** concerns continuity of government, transition automaticity, and narrow statutory backstops for presidential-transition access, agreements, agency cooperation, and enforcement.
- **ELEC-007** concerns improper federal-force presence, emergency response, and election-material custody safeguards around election administration.
- **ELEC-008** concerns coordinated federal election-subversion schemes using independently wrongful predicate acts to corruptly nullify, reverse, obstruct, delay, or procure official disregard of a lawful federal-election result.
- **ELEC-009** concerns whether the Electoral College itself should be restructured or replaced by a national popular-vote system.
- **ELEC-010** concerns the vulnerability of mail-in and absentee voting systems to unequal access, late or unreliable ballot delivery, inconsistent cure and signature rules, politicized postal or administrative disruption, chain-of-custody attacks, and unsupported delegitimization of lawful mail ballots.

Notes

ELEC-001, ELEC-002, ELEC-003, ELEC-004, ELEC-005, ELEC-006, ELEC-007, ELEC-008, ELEC-009, and ELEC-010 are developed.

ELEC-001 — Federal Executive Interference with State and Local Election Administration

Issue Snapshot

Problem: Federal power can pressure state election administration.

Repair: Ban result-directed executive election interference.

Vehicle: Hatch Act package (draft).

Institutional Anomaly

The President and other federal executive officials possess substantial investigative, prosecutorial, regulatory, funding, intelligence, administrative, and communicative power but possess no general constitutional authority to direct state or local election administration. Existing law does not provide a sufficiently precise, comprehensive, and rapidly enforceable prohibition against using federal executive office to obtain, prevent, alter, or secure a preferred electoral outcome through state or local election functions.

Manifestation of the Failure

On January 2, 2021, President Donald Trump called Georgia Secretary of State Brad Raffensperger after Georgia had certified its presidential election result and completed multiple reviews of the vote. Trump asked Raffensperger to “find 11,780 votes,” the number necessary to reverse Trump’s certified defeat, and invoked possible criminal consequences while urging state officials to act.

The institutional significance does not depend on a final criminal judgment:

A sitting President used the authority and influence of federal executive office to seek a candidate-specific alteration of a state’s lawful election determination.

The episode demonstrates that a President can exert federal executive influence directly upon a state election official without issuing a formal order, deploying an agency, or completing the requested alteration. Existing remedies did not supply an immediate, specialized mechanism to stop the pressure, preserve records, transfer investigation outside the presidential chain of command, or impose consequences tailored to misuse of federal office against a state election function.

Resulting Damage

Federal executive interference can distort or delay lawful election administration, coerce state and local officials, undermine federalism, convert federal law-enforcement or administrative powers into electoral leverage, chill resistance to unlawful demands, and damage public confidence that election outcomes are determined by lawful votes rather than federal executive pressure.

The harm exists even when the target refuses and the result remains unchanged. An unsuccessful attempt may still burden officials, consume public resources, generate threats or retaliation, and normalize future misuse of federal office.

Underlying Weakness

The Constitution assigns states primary responsibility for administering elections under state law, subject to federal constitutional protections and valid Acts of Congress. Article I, Section 4 gives Congress broad authority over congressional-election regulation; Article II assigns each state authority over the manner of appointing presidential electors, while reserving specified timing functions to Congress. Neither provision gives the President a general supervisory power over state election administration.

Existing federal law addresses portions of the problem but not the complete institutional defect:

- 5 U.S.C. § 7323 prohibits covered federal employees from using official authority or influence to interfere with or affect an election, but the Hatch Act excludes the President and Vice President from the relevant definition of employee.
- 18 U.S.C. § 595 criminalizes specified official interference with federal elections but is narrower in coverage, remedies, and institutional design.
- 18 U.S.C. §§ 241 and 242 protect federal voting rights but require proof of distinct statutory elements and do not directly create rapid protection for a state election authority facing federal executive pressure.
- obstruction, records, civil-rights, and election statutes may apply to particular conduct but do not establish a unified prohibition, mandatory record, expedited state-initiated remedy, and independent referral process.

The central gap is therefore not the absence of every possible legal prohibition. It is the absence of a coherent rule expressly covering the President and senior executive officials, defining prohibited result-directed interference, preserving legitimate federal functions, and providing relief before the election process becomes irreversible.

Repair and Prevention

Federal law should prohibit a covered executive official from knowingly using, directing, threatening, authorizing, requesting, or causing the use of official authority or influence derived from federal office to interfere with a state or local election function for the purpose of effectuating, preventing, altering, or securing a preferred outcome for an identified candidate, political party, slate of electors, ballot position, or election result.

The general prohibition should be paired with objectively defined covered acts, including efforts to:

1. add, exclude, alter, manufacture, destroy, suppress, count, or refuse to count votes contrary to law;
2. state, transmit, canvass, recount, or certify a materially false result;
3. depart from an applicable election statute, final judicial order, or lawfully completed administrative determination;
4. initiate or manipulate a federal investigation, prosecution, audit, regulatory action, funding action, intelligence activity, or administrative process without a good-faith lawful basis and for the prohibited electoral purpose;
5. obtain ballots, voting equipment, voter records, election data, or election materials without lawful authority;
6. procure a materially false official representation concerning fraud, vote totals, certification, or election results;
7. threaten or impose adverse federal action to obtain an election-related act; or
8. retaliate against an official who refuses an unlawful or unauthorized election-related request.

A completed alteration of the election result should not be required. Attempt, direction, authorization, conspiracy, and knowing material assistance should be covered.

The statute must preserve ordinary political advocacy, public criticism, lawful litigation, good-faith enforcement of federal law, compliance with judicial process, authorized voting-rights and election-crime enforcement, foreign-interference response, and voluntary technical or cybersecurity assistance requested by lawful state authorities.

Proposal Survey

The Hatch Act already prohibits many federal employees from using official authority to interfere with or affect an election, but it excludes the President and Vice President from the relevant employee definition. See 5 U.S.C. §§ 7322-7323. Criminal law also contains narrower election-interference provisions. See 18 U.S.C. § 595.

Civil-rights and voting-rights statutes may reach some coercive conduct, but they do not create a complete state-initiated emergency remedy for misuse of federal executive power. ELEC-001 therefore extends the Hatch Act principle while adding civil and criminal enforcement suited to state election functions.

Least-Complex Adequate Remedy

Amend the Hatch Act rather than create an entirely separate primary regime. The amendment should:

1. extend the prohibition on use of official authority or influence to the President and Vice President for this specific category of conduct without subjecting them to every Hatch Act restriction on political activity;
2. establish a separately named Federal Executive Election Noninterference provision within 5 U.S.C. chapter 73;
3. define state and local election functions, federal governmental authority, preferred electoral outcome, and specifically prohibited conduct;
4. require contemporaneous records and preservation of covered contacts;
5. authorize Office of Special Counsel investigation and ordinary Hatch Act administrative sanctions for covered subordinate officials;
6. provide anti-retaliation protections and referral to Inspectors General;
7. create a companion civil-enforcement title authorizing states and responsible election authorities to seek expedited declaratory, injunctive, preservation, and restorative relief; and
8. enact a companion criminal provision, preferably 18 U.S.C. § 595A, for knowing, intentional, coercive, or result-directed violations.

Where the President, Vice President, Attorney General, or another senior executive official creates a disabling investigative conflict, the matter should be referable to the independent investigative-counsel mechanism developed under DOJ-007. Criminal enforcement against presidential official acts remains subject to current immunity doctrine unless superseded by IMM-001.

This package is less complex than a wholly freestanding election-administration code because it extends an existing federal principle, uses established OSC and MSPB structures, and regulates federal executive actors rather than the internal organization of state elections.

Proposed Legislation

The working statutory draft is maintained separately as the Federal Executive Election Noninterference Act.

Enforcement Architecture

The eventual legislation should provide layered enforcement:

- immediate three-judge-court review and emergency injunctive relief;

- mandatory contact records, preservation orders, and narrow authorization for state election officials to record covered official communications;
- OSC, OIG, Public Integrity, and DOJ-007 referral according to jurisdiction and conflict;
- administrative discipline and disqualification from delegated election-related functions for subordinate officials;
- substantial civil penalties and reimbursement of state or local response costs;
- calibrated criminal penalties distinguishing attempted pressure, coercive use of federal powers, and completed alteration or falsification; and
- mandatory congressional reporting for substantiated violations involving senior officials.

Courts and investigators should not determine the winner of an election or substitute their policy judgment for lawful state election administration. Their role is to prevent and remedy misuse of federal executive authority.

Relationship to ELEC-007

ELEC-001 concerns civilian executive interference through presidential authority, agencies, investigations, funding, regulation, intelligence, administrative process, or official influence.

ELEC-007 should be narrowed to military, National Guard, or armed federal-force intervention in polling, counting, canvassing, recount, certification, or custody of election materials.

Annotation

Basis and Evidence. The Hatch Act already embodies the principle that federal employees may not use official authority or influence to interfere with or affect an election. Its exclusion of the President and Vice President and its employment-centered remedial structure leave the principal conduct identified here inadequately covered. The Trump–Raffensperger call is a representative manifestation because the requested numerical alteration corresponded to the margin necessary to reverse the state’s certified result.

Qualification. Federal executive officials retain lawful responsibilities concerning voting rights, election crimes, campaign finance, foreign interference, cybersecurity, federal judicial process, and other functions assigned by the Constitution or Congress. The proposal regulates misuse of federal office, not political speech, criticism, litigation, or good-faith execution of federal law. The term “partisan” is deliberately not used as an operative limitation because prohibited conduct may be personal, candidate-specific, retaliatory, factional, or otherwise result-directed without fitting a narrow partisan classification.

Remedial Alternatives and Constraints. A wholly freestanding statute would permit cleaner organization but would duplicate the Hatch Act’s established official-authority principle and enforcement institutions. Amending only the Hatch Act would remain inadequate because OSC–MSPB proceedings cannot supply rapid state-initiated injunctions and should not convert every administrative violation into a felony. The least-complex adequate solution is therefore a Hatch Act amendment with companion civil and criminal titles.

ELEC-002 — Pressure on Certification and Canvassing Officials

Issue Snapshot

Problem: Certifiers can delay or refuse ministerial duties.

Repair: Mandate certification and automatic substitution.

Vehicle: Model state act (draft).

Institutional Anomaly

State election law does not always provide sufficiently clear ministerial certification duties, fixed deadlines, automatic substitution, and immediate judicial enforcement when a designated state or local canvassing or certification official refuses, delays, deadlocks, or exceeds the lawful scope of the certification function.

The issue is directed principally at the design and conduct of state and local certification bodies, not at federal officials who pressure them. Federal executive interference is addressed separately in ELEC-001.

Manifestations of the Failure

Wayne County, Michigan — 2020

On November 17, 2020, the four-member Wayne County Board of Canvassers initially deadlocked along party lines over certification of the county's general-election results. The board later voted unanimously to certify. Two members subsequently sought to rescind their votes, although Michigan officials stated that no legal mechanism existed to undo the completed certification.

This episode demonstrated that a small canvassing body could temporarily place the certification of a large jurisdiction at risk even after ordinary tabulation had been completed.

Otero County, New Mexico — 2022

On June 13, 2022, the Otero County Commission refused to certify the county's primary-election results based on generalized concerns about voting machines rather than a demonstrated defect in the canvass. The New Mexico Secretary of State sought mandamus, and the New Mexico Supreme Court ordered certification. A majority ultimately complied, while one commissioner continued to refuse.

This episode demonstrated the need for a rule that generalized suspicion, intuition, or matters assigned to another review process do not authorize a certifying official to withhold a ministerial certification.

Cochise County, Arizona — 2022

Cochise County supervisors failed to certify the 2022 general-election canvass by the statutory deadline while raising objections concerning voting-machine certification. A state court ordered the board to perform its legal duty, and the county certified after the order. One supervisor later pleaded guilty to a misdemeanor offense for failure or refusal to perform an election duty, and litigation concerning another supervisor confirmed that certification was an administrative rather than discretionary legislative act.

This episode demonstrated the need for automatic substitution and immediate enforcement so statewide certification does not depend upon emergency litigation against local officials.

Fulton County, Georgia — 2024

A Fulton County election-board member sought a judicial declaration that local certifying officials possessed discretion to refuse certification based on perceived error or fraud. A Georgia court rejected that position and held that certification was mandatory, explaining that fraud concerns could be referred to appropriate authorities but could not be used to convert certifiers into investigators, prosecutors, judges, and juries.

This episode demonstrated the need to separate certification from investigation and election-contest adjudication expressly in statutory text.

Resulting Damage

Refusal, deadlock, or unauthorized delay can disenfranchise an entire jurisdiction, disrupt statewide deadlines, interfere with recounts and election contests, create leverage for alternate-electoral schemes, transfer electoral power from voters to low-visibility officials, consume public resources, and amplify misinformation even when courts eventually compel certification.

Underlying Weakness

Certification law often assumes that officials will perform their duties without expressly addressing strategic nonperformance. Existing provisions may require certification but fail to provide one or more of the following:

- a precise statement that certification is ministerial;
- a narrow definition of what defects may temporarily justify noncertification;
- automatic substitution upon refusal, deadlock, incapacity, or missed deadline;

- immediate mandamus jurisdiction;
- tolling or preservation of downstream deadlines;
- removal from the affected certification matter;
- anti-retaliation protection for officials who perform the duty; and
- consequences calibrated to knowing refusal or falsification.

Repair and Prevention

Each state should adopt a Model State Election Certification and Automatic Substitution Act providing that:

1. certification is ministerial after completion of tabulation, canvassing, recount, and adjudicative procedures assigned by law;
2. certifiers may identify only specific arithmetic, documentary, or statutory defects within their assigned authority;
3. generalized allegations of fraud, policy disagreement, personal belief, or matters assigned to another tribunal do not authorize withholding certification;
4. any temporary withholding must be written, particularized, and issued within a short statutory period;
5. refusal, deadlock, incapacity, or failure to meet the deadline automatically transfers the duty to a designated substitute official or court;
6. mandamus or equivalent emergency relief is available immediately;
7. downstream deadlines remain protected and may not be defeated by strategic delay;
8. officials may refer suspected fraud or illegality to law enforcement without withholding certification;
9. knowing refusal or delay for an unauthorized purpose supports removal from the matter, civil penalties, reimbursement of public costs, and appropriate discipline; and
10. intentional falsification, concealment, destruction, or corrupt alteration of certification records may be criminally punished.

Proposal Survey

States have begun clarifying certification duties through litigation and statutory practice, while Congress addressed presidential certificate procedures through the Electoral Count Reform and Presidential Transition Improvement Act of 2022. See Pub. L. No. 117-328, div. P. Those federal reforms reduced some electoral-count vulnerabilities but did not comprehensively redesign local and state certification bodies.

Common remedial models include mandamus, ministerial-duty statutes, automatic substitution, expedited judicial review, and penalties for refusal or falsification. ELEC-002 selects model state legislation because state law creates most canvassing and certification offices and can specify the correct substitute official or court.

Least-Complex Adequate Remedy

The least-complex adequate remedy is model state legislation rather than comprehensive federal regulation. States create and administer the relevant county and state certification offices and are best positioned to specify the lawful successor, court, deadline, and enforcement mechanism within their own institutional structures.

A limited federal floor may remain appropriate for elections containing a federal office, particularly under the Elections Clause for congressional elections and existing federal law governing presidential electors. The primary recommendation, however, is uniform state adoption of the model act.

Proposed Legislation

The working model statute is maintained separately as the Model State Election Certification and Automatic Substitution Act.

Relationship to Other Issues

- **ELEC-001** regulates federal executive officials who interfere with state election administration.
- **ELEC-002** makes the state certification mechanism resistant to refusal or deadlock regardless of the source or motive.
- **ELEC-005** addresses alternate-electoral and false-certification schemes.
- **ELEC-008** addresses broader accountability for efforts to overturn lawful election results.

Annotation

Scope. This issue retains the existing title because pressure upon certifiers remains an important manifestation, but its distinct institutional subject is the vulnerability of the certification mechanism itself.

State-Level Orientation. The proposal is intended principally as model state legislation. It does not presume a federal takeover of state election administration.

Qualification. Certification must not become automatic in the sense of ignoring a demonstrated defect that state law assigns the certifier to resolve. The model statute therefore permits narrow, written identification of defects within the official's lawful authority while prohibiting generalized investigation or relitigation through the certification process.

ELEC-003 — Insufficient Protection for Election Workers and Officials

Issue Snapshot

Problem: Election personnel face uneven protection.

Repair: Pair state protections with HAVA funding.

Vehicle: State and federal acts (state, federal).

Institutional Anomaly

Election administration depends on permanent officials, temporary workers, contractors, and volunteers who perform legally indispensable and politically sensitive duties, yet protection against threats, violence, coercive intimidation, unlawful disclosure of personal information, retaliation, and targeted harassment remains fragmented, reactive, and uneven among jurisdictions.

The federal government should not become the primary administrator, supervisor, or operational protector of state election personnel. Protection should remain principally state and local, with federal support confined to a narrowly structured financial backstop and independently authorized federal criminal enforcement.

Manifestations of the Failure

Ruby Freeman and Shaye Moss — Georgia, 2020–2022

After false allegations accused Fulton County election workers Ruby Freeman and Wandrea “Shaye” Moss of manipulating ballots, both women and members of their family were subjected to sustained racist harassment and death threats. Freeman testified that the FBI advised her to leave her home through the presidential inauguration. Moss testified that people went to her grandmother’s home, attempted to push inside, and claimed that they intended to make a “citizen’s arrest.” Moss subsequently left election work. The episode demonstrates family targeting, forced displacement, career loss, and the inability of ordinary post hoc remedies to prevent severe personal and institutional damage. See U.S. House Select Committee to Investigate the January 6th Attack, *Final Report*, ch. 2 (2022); fourth public hearing materials and testimony.

Threats against bipartisan Arizona election officials — 2021–2025

Federal prosecutions have documented repeated threats against Arizona election officials of both parties. James W. Clark threatened to detonate an explosive device unless then-Secretary of State Katie Hobbs resigned, searched for her home address and methods of killing her, and caused evacuation of portions of the state government complex and security sweeps of Hobbs’s home and vehicle. He was sentenced in March 2024 to 42 months’ imprisonment. Other prosecutions have involved threats against Maricopa County officials and later threats against officials in both Arizona and Colorado. These cases demonstrate that existing criminal law can punish provable true threats but often only after evacuation, fear, security expense, and operational disruption have already occurred. See *The Guardian*, March 12, 2024; Associated Press, May 29, 2025.

Election Day bomb threats and polling-place closures — 2024

On November 5, 2024, bomb threats were directed at polling locations in multiple battleground states. The FBI stated that many appeared to originate from Russian email domains and that none had been determined credible at the time. At least two Fulton County, Georgia polling locations were evacuated and closed temporarily; officials sought extended voting hours to compensate for the interruption. Later research identified at least 227 threats against polling places and tabulation centers and found evidence that extending hours may not have fully cured turnout suppression at affected DeKalb County precincts. This episode demonstrates that even noncredible threats can disrupt voting, divert law-enforcement resources, expose workers to risk, and produce harm that cannot necessarily be repaired after the fact. See Reuters, November 5, 2024; Sequoia Andrade & Philip B. Stark, *Does Extending Polling Hours Compensate for Bomb Threats? Evidence from the 2024 Election in Georgia, USA* (2025).

Doxxing and family-directed retaliation against senior election officials — 2020

Georgia Secretary of State Brad Raffensperger testified that his personal information was disseminated, his wife received sexualized threats, and intruders broke into the home of his widowed daughter-in-law after he refused efforts to alter Georgia’s certified result. Similar testimony described armed or threatening demonstrations outside the homes of other state officials. Although some conduct overlapped with pressure on certification officials, the personal-security failure was distinct: existing institutions did not reliably prevent political disputes over election administration from being transferred to officials’ homes and families. See U.S. House Select Committee to Investigate the January 6th Attack, *Final Report*, ch. 2 (2022); summary of fourth-hearing testimony.

Workforce attrition and recruitment damage — nationwide

The harm is not limited to a few prominent prosecutions. In a 2024 Brennan Center survey of 928 local election officials, 38 percent reported threats, harassment, or abuse related to their work; 27 percent reported knowing one or two officials who had resigned because of safety concerns; and 20 percent stated that they were unlikely to remain through the 2026 midterms. These findings support the institutional inference that intimidation is degrading experience, recruitment, and continuity across election offices even when no single communication results in prosecution. See Brennan Center survey reporting, May 1, 2024.

Existing criminal enforcement is necessary but incomplete. Some dangerous conduct remains constitutionally protected, cannot be attributed or proved beyond a reasonable doubt, falls below the applicable criminal threshold, or causes operational damage before prosecution can occur.

Resulting Damage

Inadequate protection can remove experienced personnel, deter recruitment, distort official judgment, increase security costs, disrupt polling or counting facilities, weaken continuity of operations, and make lawful election administration depend on whether individual officials are willing to endure escalating personal danger.

Personal courage should not substitute for institutional protection.

Underlying Weakness

The protection system may lack one or more of the following:

- uniform coverage of permanent and temporary election personnel;
- protection for family or household members targeted because of election duties;
- rapid threat reporting and risk assessment;
- expedited protective orders and emergency security assistance;
- address-confidentiality and anti-doxxing protections;
- facility-security and continuity planning;
- clear coordination among election administrators, law enforcement, prosecutors, and courts;
- civil, criminal, and administrative remedies calibrated to distinct forms of misconduct;
- financial capacity for small or resource-constrained jurisdictions; and
- safeguards against politically selective protection or enforcement.

A federal remedy centered on discretionary executive supervision would create an additional institutional risk: the same funding or protection mechanism could be used to reward, punish, pressure, or influence state election administration.

Repair and Prevention

State protection regime

Each state should enact a politically neutral election-personnel protection statute that:

1. protects permanent and temporary election officials, employees, poll workers, contractors, and volunteers when targeted because of election-related duties;
2. extends appropriate protection to family or household members targeted for the same reason;
3. applies without regard to party, candidate, viewpoint, ideology, election outcome, or the perceived political effect of an official act;
4. addresses threats, violence, coercive intimidation, unlawful doxxing, retaliation, and targeted harassment while preserving constitutionally protected speech;
5. establishes rapid reporting, threat assessment, and referral procedures;
6. authorizes expedited protective orders, emergency security, temporary relocation, and related support where justified;
7. protects residential and other sensitive personal information where constitutionally permissible;
8. requires facility-security and continuity-of-operations planning;
9. provides enforceable state remedies and institutional responsibility through existing state and local bodies; and
10. remains operative regardless of whether federal funding is available or accepted.

Limited federal support through HAVA

Congress should amend the Help America Vote Act of 2002 by adding a self-contained Election Personnel Protection Payments program. The program should provide automatic, formula-based block grants only to states that enact and maintain a qualifying neutral protection statute containing the minimum protections expressly enumerated by Congress.

Enactment and maintenance of the qualifying state statute should be the sole substantive eligibility condition. Grant funds should remain restricted to election-personnel protection and operational continuity, with ordinary accounting, audit, and anti-fraud requirements.

The amendment should:

1. create a new and dedicated funding stream rather than threaten existing HAVA or unrelated federal funds;
2. require only state certification and a provision-by-provision statutory crosswalk, not a federally approved state plan;

3. make qualification automatic after objective verification of the enumerated statutory elements;
4. prohibit competitive awards, discretionary scoring, waivers, supplemental eligibility conditions, and federal evaluation of state election policies;
5. confine the Election Assistance Commission, or any other administrator, to ministerial payment, accounting, and misuse-review functions;
6. preserve exclusive state control over institutional placement, procedures, enforcement, and methods of compliance beyond the enumerated minimum protections;
7. prohibit federal consideration of voter eligibility, registration, voting methods, ballot custody, counting, canvassing, recounts, certification, elector appointment, election outcomes, or election disputes;
8. prohibit a state's ineligibility from affecting any other federal payment or assistance; and
9. provide expedited de novo judicial review of a denial identifying the specific missing statutory element.

Federal criminal jurisdiction should remain limited to independently defined federal offenses, including conduct with an appropriate federal or interstate nexus. It should not become a source of administrative control over state election processes.

Proposal Survey

Federal law already protects voting rights and criminalizes some intimidation, threats, and interference. Relevant models include the Voting Rights Act intimidation provision, federal threat statutes, and civil-rights enforcement authority. See 52 U.S.C. § 10307 and 18 U.S.C. § 875.

Election-administration funding also has an established vehicle: the Help America Vote Act of 2002 created federal support through the Election Assistance Commission while preserving state administration. See 52 U.S.C. §§ 20901-21145. ELEC-003 combines state protection statutes with a HAVA-style funding backstop rather than federal operational control.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a coupled legislative package:

1. a model state Election Personnel Protection Act establishing the substantive, politically neutral protection regime; and
2. a narrowly drawn HAVA amendment offering automatic formula payments only to states maintaining that regime.

The state supplies legal protection and operational administration. The federal government supplies only a voluntary financial backstop, objective verification, protection-purpose accounting, and independently authorized criminal enforcement. Failure to participate results only in loss of the new grant.

This structure is less coercive and less susceptible to executive leverage than withholding existing election, justice, homeland-security, transportation, or other federal funds.

Proposed Legislation

- Model State Election Personnel Protection and Continuity Act
- Election Personnel Protection Amendments to the Help America Vote Act of 2002

Relationship to Other Issues

- **ELEC-001** concerns federal executive interference with state and local election administration.
- **ELEC-002** concerns the legal resilience of canvassing and certification mechanisms.
- **ELEC-003** concerns the personal security and operational continuity of election personnel throughout the election process.
- **ELEC-007** concerns military, National Guard, or armed federal-force intervention in election administration.
- **ELEC-008** concerns broader accountability for efforts to overturn lawful election results.

A threat intended to compel a certification decision may implicate both ELEC-002 and ELEC-003. ELEC-002 owns the certification mechanism; ELEC-003 owns protection of the targeted person and continuity of election operations.

Annotation

Constitutional Structure. Congress may encourage state action through clearly stated, related, and genuinely voluntary spending conditions. The proposal avoids commandeering by leaving states free to decline the new funds and avoids the principal coercion concern identified in *NFIB v. Sebelius* by placing no existing or unrelated funding at risk. See U.S. Const. art. I, § 8, cl. 1; *South Dakota v. Dole*, 483 U.S. 203 (1987); *NFIB v. Sebelius*, 567 U.S. 519 (2012); *Murphy v. NCAA*, 584 U.S. 453 (2018).

HAVA Placement. HAVA already provides a federal-state election-assistance architecture, including state certification and requirements payments. The proposed amendment should constitute a separate part rather than add election-personnel protection to the existing HAVA voting-system requirements or state-plan process. See 52 U.S.C. §§ 20921, 21001–21008, 21081–21085.

Neutrality. Political neutrality requires equal eligibility, procedures, benefits, enforcement standards, and remedies without regard to political affiliation, candidate preference, viewpoint, election-related position, or the political consequences of an official act. It does not prohibit risk-based distinctions grounded in credibility, imminence, severity, vulnerability, prior conduct, or operational impact.

First Amendment Qualification. The state regime must distinguish true threats, unlawful intimidation, retaliation, and actionable disclosure of protected information from constitutionally protected criticism, advocacy, protest, and rhetorical hyperbole. Criminal penalties should not be treated as the exclusive remedy because harmful conduct may remain protected, unattributable, unprovable, or below a criminal threshold.

Federalism Firewall. Federal eligibility review should be binary and statutory, not a general assessment of whether federal officials approve of a state's election-security program. No regulation, guidance, executive order, or grant term should be permitted to add substantive conditions beyond those enacted by Congress.

Source Note. The manifestations are illustrative rather than exhaustive. The examples were selected to show distinct institutional failures: individual and family targeting, forced displacement, prosecutable true threats, facility evacuation, Election Day operational disruption, and workforce attrition.

ELEC-004 — Abuse of Election Litigation and Investigatory Mechanisms

Issue Snapshot

Problem: Process can manufacture election uncertainty.

Repair: Add election Anti-SLAPP screening.

Vehicle: Federal and state acts (federal, state).

Institutional Anomaly

This issue is modeled on the logic of **Anti-SLAPP** laws. Anti-SLAPP statutes recognize that the legal process itself can be abused: even a weak claim can impose cost, delay, discovery burdens, reputational harm, and coercive pressure before a court reaches the merits. ELEC-004 applies that same procedural insight to election proceedings. The adapted target is not ordinary speech or petitioning activity, but the use of election litigation, subpoenas, audits, investigations, or inspection demands to delay certification, manufacture uncertainty, harass election personnel, obtain sensitive election materials, or create a false predicate for extra-legal pressure.

Election law necessarily permits candidates, parties, voters, public officials, and authorized institutions to seek recounts, contests, audits, investigations, and judicial relief. Existing law, however, does not always distinguish quickly and reliably between good-faith election review and proceedings used primarily for improper procedural leverage.

The institutional problem is not the availability of election challenges. The problem is the use of formal legal, quasi-legal, investigatory, subpoena, audit, or judicial mechanisms to convert unsupported allegations into deadline pressure, evidentiary rummaging, official harassment, or public claims that a lawful result remains unresolved.

Manifestations of the Failure

Pre-election process abuse

Frivolous or abusive pre-election challenges may seek emergency rule changes, voter-list disruption, ballot-design changes, candidate-access changes, broad election-office discovery, or access to sensitive election-system materials. These proceedings may be especially damaging when filed close enough to the election to interfere with ballot preparation, equipment programming, voter notices, mail-ballot processing, staffing, or other election-administration tasks.

2020 post-election litigation wave

After the 2020 presidential election, numerous lawsuits were filed challenging procedures, vote counting, certification, or state results. Many were dismissed for lack of standing, laches, lack of evidence, failure to state a claim, or absence of a legally available remedy. Even when unsuccessful, such filings imposed emergency burdens on courts and election officials and could be used publicly to claim that results remained legally contested.

Pennsylvania — mismatch between public fraud narrative and court presentation

In federal litigation challenging Pennsylvania's result, public claims of fraud were not matched by the legal theory ultimately presented in court. Counsel stated that the case was not a fraud case, and the Third Circuit rejected the effort to undo certification. The episode illustrates how public-facing allegations may be laundered through litigation even when the courtroom record does not support the public narrative.

Michigan — post-election suit and later sanctions

A federal post-election suit in Michigan sought extraordinary relief affecting the presidential result. The district court later sanctioned counsel, finding that the suit had been filed without adequate factual and legal basis and was not a legitimate vehicle for overturning the result. This episode illustrates that a proceeding may appear initially as litigation but later prove sanctionable when its factual basis, purpose, or coordination is examined more fully.

Wisconsin, Nevada, and other state proceedings

Post-election challenges in multiple states sought relief that would have affected certified or certifiable results, including selective invalidation of votes, extraordinary review, or annulment theories. Courts generally rejected claims that failed to establish material error sufficient to change the result or justify the requested remedy. These proceedings show the need for early materiality and remedy-fit requirements when a filing seeks election-disruptive relief.

Investigatory, subpoena, and audit mechanisms

Election pressure may also appear as subpoenas, public-records demands, nonstatutory audits, legislative investigations, or inspection demands for ballots, equipment, voter data, source code, logs, chain-of-custody records, or security-sensitive materials. Such demands may be legitimate when grounded in lawful authority and material evidence, but they can also be used to burden officials, expose sensitive systems, or imply fraud without proof.

Resulting Damage

Abusive election proceedings can compress statutory deadlines, shift attention from ordinary recount and contest channels, increase litigation and security costs, burden election personnel, expose sensitive materials, encourage forum shopping, create public misimpressions of legal uncertainty, and provide a predicate for certification delay, alternate-electoral schemes, legislative intervention, or federal executive pressure.

The damage is often procedural rather than outcome-determinative: delay, uncertainty, access pressure, and public delegitimization may succeed even when the underlying case eventually fails.

Underlying Weakness

Existing law may lack:

- Anti-SLAPP-style early screening adapted to extraordinary election-disruptive relief;
- a motion-invoked trigger that avoids unnecessary screening where no party disputes material facts or no sensitive process is sought;
- a pre-election timing bar preventing special motions concerning elections more than 180 days away, except for immediate sensitive-material or present security/privacy risks;
- an express rule that no fixed post-election cutoff applies while the proceeding remains functionally related to the election result, election administration, or sensitive election material;
- particularized pleading and evidentiary-proffer requirements;
- automatic stays of intrusive discovery, subpoenas, or inspection demands;
- materiality and remedy-fit requirements before certification or election deadlines are affected;
- protections for ballots, voter data, election equipment, source code, logs, chain-of-custody records, and security procedures;
- prompt sanctions for knowingly false, frivolous, or improper-purpose filings;
- later-discovered improper-purpose sanctions where coordination or bad faith emerges after initial proceedings;
- clear separation between citizen reporting, recounts, contests, audits, investigations, certification, and litigation;
- expedited appellate review before downstream deadlines expire; and
- safeguards against chilling good-faith reporting or authorized election contests.

Repair and Prevention

Federal-court legislation

Congress should enact an Anti-SLAPP-style federal Election Proceedings Integrity Act governing federal-court proceedings that seek election-disruptive relief or access to sensitive election materials in elections involving federal office. The statute should include:

1. a motion-invoked special procedure to screen election proceedings seeking extraordinary relief;
2. a bar on special motions concerning elections more than 180 days away, except where immediate sensitive-material access or a present security/privacy risk is at issue;
3. no fixed post-election cutoff where the proceeding remains functionally related to election administration, the election result, certification, recounts, contests, electoral appointment, or sensitive election material;
4. an automatic stay of intrusive discovery, subpoenas, inspections, and sensitive-material access pending screening once a proper motion is filed;
5. early requirements of legal authority, timeliness, particularized facts, materiality, evidentiary support, and remedy fit;
6. heightened findings before certification, electoral appointment, counting, tabulation, recount, or other statutory election deadlines may be delayed or disturbed;
7. protective-order procedures for ballots, voter data, equipment, source code, logs, chain-of-custody records, and security-sensitive information;
8. narrow discovery only where necessary to test a specific, colorable, material claim;
9. fee shifting and sanctions only upon specific findings of abuse, bad faith, frivolousness, knowingly false factual allegations, improper purpose, harassment, delay, or unauthorized-access motive;
10. a post-disposition lookback mechanism allowing sanctions where later-discovered evidence proves that the proceeding was part of a coordinated improper scheme; and
11. safe harbors for good-faith citizen reporting, ordinary recounts, ballot-specific voter remedies, and statutorily authorized contests.

Model state legislation

States should be encouraged to enact a parallel Anti-SLAPP-style Election Proceedings Integrity Act for state courts, state-law election contests, recount litigation, nonstatutory audit demands, subpoenas, and proceedings seeking to affect state or local certification. State adoption is necessary because many election contests and challenges arise in state court and under state law.

Citizen reporting distinction

ELEC-004 does not regulate ordinary citizen complaints, reports of suspected irregularity, ballot-specific voter remedies, or statutorily authorized recount participation. A voter may report suspected irregularities to election officials, law enforcement, candidates, parties, prosecutors, or other authorized bodies without triggering the special screening or sanctions mechanism.

The screening procedure applies to proceedings or demands that seek coercive, disruptive, or sensitive-material relief, regardless of whether the filer is a candidate, party, official, organization, attorney, or private plaintiff.

Proposal Survey

Anti-SLAPP statutes provide the closest procedural analogue: early screening, discovery stays, burden clarification, and fee shifting for abusive litigation. Because Anti-SLAPP law is primarily state law and varies widely, ELEC-004 adapts the architecture rather than copying any single state statute.

Federal procedural models also exist for accelerated election litigation and sensitive-material protection, including expedited review provisions in the Electoral Count Reform Act and ordinary protective-order practice. See Pub. L. No. 117-328, div. P and Federal Rule of Civil Procedure 26(c). The proposal applies those ideas to election-disruptive process abuse.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a two-track package:

1. mandatory federal-court Anti-SLAPP-style screening, discovery control, sensitive-material protection, and later-discovered improper-purpose sanctions for federal election proceedings; and
2. model state legislation encouraging states to adopt parallel procedures for state courts and state-law election proceedings.

This approach avoids a federal takeover of state election-contest systems while ensuring that federal courts do not become vehicles for election-disruptive litigation, evidentiary rummaging, or later-discovered coordinated schemes.

Proposed Legislation

- Federal Election Proceedings Integrity Act
- Model State Election Proceedings Integrity Act

Relationship to Other Issues

- **ELEC-001** concerns federal executive interference with state and local election administration.
- **ELEC-002** concerns certification refusal, deadlock, delay, or unauthorized discretion by certification bodies.
- **ELEC-003** concerns protection of election personnel from threats, harassment, doxxing, retaliation, and operational disruption.
- **ELEC-004** concerns Anti-SLAPP-style control of abusive election litigation, investigatory demands, subpoenas, audit requests, and extraordinary proceedings.
- **ELEC-005** concerns alternate-electoral or false-certification schemes.
- **ELEC-008** concerns broader accountability for efforts to overturn lawful results.

ELEC-004 may supply the procedural predicate for ELEC-002 or ELEC-005 conduct, but it owns the abuse of formal election process itself.

Annotation

Anti-SLAPP Analogy. This issue expressly borrows from Anti-SLAPP architecture: early screening, discovery stay, burden clarification, fee-shifting, and sanctions. The model is adapted for public-law election proceedings rather than ordinary civil claims affecting speech or petitioning.

Motion-Invoked Procedure. The screening mechanism is not automatic. It is invoked by a party or affected person, allowing uncontested cases, pure questions of law, and cases without sensitive-material or election-disruptive relief to proceed without unnecessary screening delay.

Timing Rule. The special motion is barred for future elections more than 180 days away, except where immediate access to sensitive election material or a present security/privacy risk is at issue. No fixed post-election cutoff applies; after the election, availability depends on functional relation to the election result, election administration, or sensitive election material.

No Anti-Challenge Rule. The proposal does not disfavor election challenges. It requires an early showing only when a proceeding seeks extraordinary relief, deadline disruption, intrusive discovery, sensitive-material access, or other coercive process capable of impairing election administration.

Later-Discovered Coordination. Sanctions should remain available after final disposition where later evidence shows that a filing or demand was materially connected to an improper scheme. The penalty is not retroactive criminalization; it is deferred enforcement against conduct that was improper when undertaken but provable only later.

Federalism. Federal legislation should govern federal courts and federal-election-related proceedings. States should be encouraged, not commandeered, to adopt parallel procedures for state courts and state-law contests.

Source Development Pending. Further development should cite representative cases and orders from Pennsylvania, Michigan, Wisconsin, Nevada, Georgia, and other election proceedings, together with Rule 11, 28 U.S.C. § 1927, inherent-power sanctions, and state Anti-SLAPP analogues.

ELEC-005 — Weak Safeguards Against False Presidential Result-Transmission Documents

Issue Snapshot

Problem: False presidential result documents can enter federal channels.

Repair: Define, mark, and penalize unauthorized transmissions.

Vehicle: Title 3 amendment (draft).

Institutional Anomaly

Federal presidential-election law relies on official state-issued documents entering a federal receipt, preservation, and counting or verification channel. Under the current Electoral College system, those documents include presidential-elect certificates and related elector-vote materials. Under any replacement system, they would include whatever official state or national presidential result-transmission documents federal law designates.

Existing law does not expressly define a purpose-built federal offense or civil enforcement mechanism for knowingly submitting, transmitting, filing, presenting, delivering, or using false or unauthorized presidential result-transmission documents in that federal channel.

The problem is not that existing fraud, forgery, false-statement, obstruction, conspiracy, or state-law remedies are unavailable in every case. The problem is that those remedies are retrospective, uneven, element-specific, and not expressly designed to protect the federal presidential result-transmission channel before false documents can be used as procedural or political leverage.

Manifestations of the Failure

Multi-state false-electoral certificates — 2020

After the 2020 presidential election, individuals in multiple states prepared or signed documents purporting to cast electoral votes for a candidate who had not been certified as the winner in those states. The institutional harm was the creation of facially official elector documents outside the lawful certificate-of-ascertainment process, with potential use in the federal electoral-count process.

State prosecutions under general statutes

Some states pursued prosecutions under general forgery, false-instrument, election-law, fraud, or conspiracy statutes. These prosecutions demonstrate that existing law may reach some conduct, but also demonstrate that prosecutors must fit presidential-result-transmission conduct into statutes not written for this specific federal-channel function.

Statutory-fit and remedial-gap concerns

At least some jurisdictions confronted questions about whether existing state statutes clearly covered the conduct. Even where prosecution is available, criminal law may not provide rapid declaratory relief, document invalidation, official recipient duties, or clear federal-channel handling rules.

Contingent or disputed-result ambiguity

A narrow category of contingent elector or disputed-result preservation activity may be legitimate where a real recount, contest, or litigation proceeding remains unresolved and the document is clearly conditional and nonoperative. The absence of clear federal labeling and transmission rules permits abusive documents to mimic lawful official result documents while claiming after the fact to be merely contingent.

Transmission and official-receipt vulnerability

False or unauthorized presidential result-transmission documents become most dangerous when sent to Congress, the President of the Senate, the Archivist, NARA, federal courts, or other federal recipients. Without explicit receipt duties, such documents may be preserved, circulated, cited, or publicly described in a way that creates legal uncertainty or supports pressure on federal actors.

Resulting Damage

False or unauthorized presidential result-transmission documents can manufacture ambiguity, support congressional objections, pressure federal officials, create public confusion, burden courts and election officials, and provide a predicate for efforts to obstruct or distort the lawful presidential result-recognition process.

Underlying Weakness

Existing law may lack:

- a federal prohibition on false or unauthorized presidential result-transmission documents entering federal channels;
- a clear definition of unauthorized presidential result-transmission documents, including presidential-elect documents under the current system;

- a safe harbor for genuinely contingent, nonoperative documents;
- explicit federal recipient duties to preserve, mark, refer, and avoid treating unauthorized documents as operative;
- rapid civil enforcement and declaratory relief;
- calibrated criminal penalties tied to knowing federal-channel misuse;
- an express rule preserving state authority before federal transmission; and
- clear nonpreemption of state criminal, civil, and election-law remedies.

Repair and Prevention

Congress should amend chapter 1 of title 3, United States Code, by adding a new section, likely 3 U.S.C. § 12A, governing false or unauthorized presidential result-transmission documents submitted or used in federal channels.

The federal amendment should:

1. apply only when a false or unauthorized presidential result-transmission document is transmitted, submitted, filed, presented, delivered, or used in a federal channel;
2. leave state appointment, recount, contest, canvass, certification, and result-determination procedures to state law before federal transmission;
3. define unauthorized presidential result-transmission documents, including elector certificates and certificates of vote under the current Electoral College framework;
4. protect clearly labeled contingent or disputed-result documents prepared solely to preserve lawful claims in pending proceedings;
5. impose duties on federal recipients to preserve, mark, refer, and avoid treating unauthorized documents as operative;
6. authorize civil declaratory and injunctive relief by the United States;
7. create calibrated criminal penalties for knowing federal-channel misuse; and
8. supplement, rather than displace, existing federal and state remedies.

Proposal Survey

The Electoral Count Reform Act clarified several certificate and electoral-count procedures but did not create a standalone false-result-transmission offense. See 3 U.S.C. §§ 5, 11, 12, and 15. Existing criminal statutes may apply to false documents, false statements, conspiracy, or obstruction, but they were not designed specifically for presidential result-transmission channels. See 18 U.S.C. §§ 371, 1001, and 1512.

State forgery, false-instrument, and election-law statutes provide additional models, but coverage and remedies vary. ELEC-005 therefore proposes a targeted federal-channel rule that supplements rather than displaces existing federal and state remedies.

Least-Complex Adequate Remedy

The least-complex adequate remedy within the existing Electoral College framework is a targeted federal amendment to Title 3 rather than a general federal regulation of state elector appointment. The amendment should protect only the federal receipt, preservation, and counting channel.

A less complex and more complete structural remedy may be abolition of the Electoral College itself, because eliminating presidential electors would make false presidential-electoral certificates moot. That broader structural reform belongs principally to ELEC-009. If a non-Electoral-College presidential election mechanism is adopted, however, the core principle of ELEC-005 should remain applicable to the official transmission of presidential-election results to federal officials. A replacement system would still require a protected federal channel for official state or national result documents, and knowingly false or unauthorized result-transmission documents should not be permitted to create federal procedural ambiguity.

Proposed Legislation

- Presidential Result Transmission Integrity Amendments

Relationship to Other Issues

- **ELEC-002** concerns certification refusal, deadlock, delay, or unauthorized discretion by certification bodies.
- **ELEC-004** concerns abusive election litigation, subpoenas, audits, and process leverage.
- **ELEC-005** concerns false or unauthorized presidential result-transmission documents entering federal channels.
- **ELEC-009** concerns whether the Electoral College itself should be restructured or replaced by a national popular-vote system.

- **ELEC-008** concerns broader accountability for efforts to overturn lawful results.

Annotation

Existing Remedies. This issue does not assume that false result-transmission conduct is otherwise lawful. Existing fraud, forgery, false-statement, obstruction, conspiracy, perjury, and state election statutes may apply. The proposed reform addresses the structural need for a federal-channel document-integrity rule.

Federalism Boundary. The proposal does not regulate how states appoint electors or determine presidential results before federal transmission. It attaches only when a presidential result-transmission document is submitted, transmitted, filed, presented, delivered, or used in a federal channel.

Electoral College Relationship. Abolishing the Electoral College would supersede the elector-certificate-specific problem addressed here. The general document-integrity principle would remain relevant, however, to any replacement system requiring official presidential-election results to be transmitted to federal officials.

Contingent Documents. A safe harbor is necessary to preserve legitimate litigation-contingent activity while prohibiting false present-tense certification or deceptive federal-channel use.

Source Development Pending. Further source development should review the Electoral Count Reform Act, 3 U.S.C. §§ 5, 11, 12, and 15, state false-electoral prosecutions, state statutory-gap reports, 18 U.S.C. §§ 371, 1001, and 1512, and relevant forgery and false-instrument statutes.

ELEC-006 — Insufficiently Automatic Presidential-Transition Procedures

Issue Snapshot

Problem: Transition access remains delay-prone.

Repair: Add automatic triggers and enforceable deadlines.

Vehicle: Transition Act amendment (draft).

Institutional Anomaly

Presidential-transition law depends on timely cooperation among the outgoing administration, the incoming transition team, federal agencies, the General Services Administration, national-security offices, ethics officials, clearance authorities, and Congress. Historically, many of these functions were regulated successfully by political norms rather than detailed statutory compulsion. Losing administrations generally cooperated, apparent winners received practical access, agencies prepared briefing materials, and transition teams accepted ethics, funding, and security conditions.

Recent transition cycles show that those norms can fail or be strategically delayed. Congress partially addressed one major failure point in 2022 by reducing the risk that a single administrator could indefinitely withhold transition resources from an apparent successful candidate. But presidential transition remains insufficiently automatic and enforceable as a continuity-of-government function.

The residual vulnerability is not only government-side obstruction. Transition readiness may also be impaired by candidate-side delay, refusal to execute required agreements, delayed ethics commitments, delayed security-clearance or FBI background-check arrangements, incomplete donor or funding disclosures, agency noncooperation, and dependence on congressional oversight that may not materialize if Congress is passive, divided, aligned with the delay, or complicit in it.

Manifestations of the Failure

Genuine uncertainty compressing transition time

The 2000 presidential election demonstrated that even good-faith legal uncertainty can substantially compress the effective transition period. When the election result remains unresolved for weeks, national-security preparation, personnel vetting, agency briefings, and continuity planning may be delayed even without bad faith.

Administrative discretion delaying transition access

The 2020 transition demonstrated a different failure mode: transition access can be delayed when statutory operation depends too heavily on discretionary recognition by a single official or small number of political actors. Even if Congress later applies oversight pressure, the delay itself may already have impaired readiness.

Congressional oversight as a politically contingent remedy

Congressional oversight is an inadequate emergency backstop when transition access is delayed. Oversight pressure may be effective only if congressional leaders and committees are institutionally willing to oppose the delay. If Congress is passive, divided, aligned with the delaying actor, or complicit in the delay, hearings, subpoenas, appropriations pressure, and public accountability may not occur in time to protect continuity of government.

Transition-team noncompliance and delayed agreements

A transition may also be impaired when the apparent incoming administration delays or refuses to execute transition agreements, ethics commitments, donor-disclosure obligations, information-security protocols, or arrangements necessary for background checks and clearances. This failure mode is distinct from GSA ascertainment delay and requires a different statutory response.

Underlying Weakness

Existing law may still lack:

- sufficiently automatic staged transition access;
- objective triggers for preliminary and expanded access;
- enforceable agency cooperation deadlines;
- consequences for delayed transition agreements;
- transition-team duties tied to ethics, security, funding, and vetting requirements;
- public written-denial or delay notices;
- direct expedited judicial review for missed statutory duties;
- protections against dependence on congressional oversight as the primary remedy; and
- a clear statement that transition access is administrative preparedness, not legal recognition of election victory.

Repair and Prevention

Congress should amend the Presidential Transition Act of 1963 to preserve ordinary cooperative transition norms while adding narrow statutory backstops for known failure points.

The statute should not replace historically successful transition practice with a radically new bureaucratic or judicialized system. Instead, it should establish default rules that activate only when ordinary transition cooperation fails.

The reform should include:

1. automatic pre-election planning access for qualifying candidates;
2. automatic limited post-election access when the outcome remains unresolved;
3. expanded access upon objective result-related triggers;
4. a ministerial GSA role;
5. statutory deadlines for transition agreements;
6. consequences for failure to execute required agreements;
7. agency deadlines for briefing materials, transition contacts, and access coordination;
8. written public explanations for denial or delay;
9. expedited judicial review for concrete missed statutory duties;
10. no concession requirement; and
11. preservation of congressional oversight without dependence on congressional action as the primary remedy.

Proposal Survey

The Presidential Transition Act of 1963 is the principal statutory model. Congress has repeatedly amended it, including through the 2022 Electoral Count Reform and Presidential Transition Improvement Act, which reduced dependence on a single GSA ascertainment decision where the apparent winner remains unclear. See 3 U.S.C. § 102 note and Pub. L. No. 117-328, div. P.

Prior reform models focus on resources, agency cooperation, ethics plans, security clearances, and ascertainment. ELEC-006 treats those as partial solutions and adds objective staged access, candidate-side duties, written delay notices, and expedited review.

Least-Complex Adequate Remedy

The least-complex adequate remedy is not a comprehensive federal takeover of presidential transition. It is a targeted amendment to the Presidential Transition Act that codifies narrow automatic defaults, transparency requirements, and enforcement mechanisms while preserving ordinary cooperative transition norms wherever they continue to function.

Proposed Legislation

- Presidential Transition Continuity and Automaticity Act

Relationship to Other Issues

- **ELEC-005** concerns false or unauthorized presidential result-transmission documents entering federal channels.
- **ELEC-006** concerns continuity of government and automatic transition access after a presidential election.
- **ELEC-009** concerns whether the Electoral College should be restructured or replaced.
- Judicial and congressional-enforcement issues may overlap where expedited review or oversight mechanisms are implicated.

Annotation

Norm-Preserving Design. The proposal should preserve the historical norm-based transition model and add statutory backstops only where recent manifestations show that norms can fail.

2022 Reform Baseline. The 2022 amendments should be treated as a partial reform, not ignored. ELEC-006 should identify residual vulnerabilities that remain after the 2022 changes.

No Legal Recognition of Victory. Transition access should be characterized as administrative preparedness, not legal determination of the election winner.

Bilateral Duties. The statute should address both government-side obstruction and transition-team noncompliance.

Congressional Nondependence. Congressional oversight should be preserved, but transition continuity should not depend on Congress being willing or able to oppose delay.

Source Development Pending. Further source development should review the Presidential Transition Act of 1963, the 2022 transition amendments, 2000 transition compression, 2020 GSA ascertainment delay, and 2024 transition-agreement and background-check issues.

ELEC-007 — Improper Federal-Force Presence in Election Administration

Issue Snapshot

Problem: Federal responders can become election participants.

Repair: Separate emergency response from election administration.

Vehicle: Federal-force noninterference statute (draft).

Institutional Anomaly

Election administration is a civilian state and local function. Federal personnel may have legitimate law-enforcement, emergency-response, protective, or technical roles in extraordinary circumstances, but federal agents, federalized military personnel, federally directed armed personnel, or federally commanded task forces should not administer, supervise, direct, control, monitor, inspect, count, recount, canvass, audit, certify, decertify, transport, seize, or otherwise participate in election administration.

The central distinction is that federal personnel may respond to a non-election emergency; they may not become part of the election. An emergency near a polling place, counting center, canvassing board, certification proceeding, election office, ballot-storage facility, or voting-equipment site should not convert federal responders into election administrators.

Existing law strongly disfavors troops at polling places and military participation in domestic law enforcement, but modern risks are broader than the classic image of soldiers at the polls. Contemporary risks include armed federal agents near counting facilities, federalized forces around election offices, federally directed seizure or inspection of election materials, federal personnel present at certification proceedings, or emergency response used as a pretext for election-administration influence.

Manifestations of the Failure

Federal-force presence near voting, counting, or certification sites

Federal personnel physically present near election sites may intimidate voters or election workers, create the appearance of federal supervision, or chill lawful election participation even if no overt order is given.

Emergency response becoming election participation

A bomb threat, active threat, violent incident, cyberattack, or other emergency may justify non-election law-enforcement response. But without clear statutory limits, emergency responders could remain in election spaces, observe election processes, question personnel, influence reopening decisions, access materials, or otherwise participate in election administration.

State-capacity failure as a narrow predicate for assistance

Federal assistance may be appropriate only where a state can demonstrably not handle a specific extraordinary emergency adequately without federal help. The state should identify the particular capacity gap, such as insufficient explosives response, cyber-forensics, multi-site security, interstate-threat coordination, specialized technical assistance, or disaster-continuity capacity.

Election-material custody and federal process

Federal law-enforcement process directed at ballots, voting equipment, pollbooks, tabulators, memory devices, election records, or result-transmission materials can disrupt chain of custody, statutory deadlines, recounts, audits, and certification. Election materials should not be accessed, imaged, copied, moved, or seized absent separate, narrow judicial authorization and election-specific safeguards.

Federal law enforcement as a pretext for election supervision

Investigations, threat response, federal-facility protection, or emergency assistance can be misused as a pretext to pressure state or local officials, influence election timing, create public doubt, or support claims that federal officials are validating or invalidating the election.

Underlying Weakness

Existing law may lack:

- a modern election-site definition extending beyond polling places;
- a clear prohibition on federal personnel participating in election administration;
- a strict distinction between non-election emergency response and election-related participation;
- a state-consent and state-capacity-inadequacy requirement for extraordinary emergency assistance;
- a narrow exigent-life-safety fallback;
- a good-faith incidental-contact safe harbor for federal personnel who inadvertently encounter election activity while performing lawful non-election duties;
- a voter-rights savings clause confirming that federal employment does not impair personal voting rights;
- election-material access, imaging, copying, transport, and seizure safeguards;

- written scope, duration, and termination limits for federal emergency assistance;
- notice and after-action reporting requirements; and
- expedited judicial review for unlawful federal-force presence or election-material interference.

Repair and Prevention

Congress should modernize federal election-protection statutes to provide that federal personnel have no operational role in election administration except where a separate and narrowly tailored court order authorizes limited election-material evidence preservation under statutory safeguards.

The emergency exception should authorize only otherwise lawful law-enforcement, emergency-response, protective, or technical-assistance functions directed at the non-election emergency. It should not authorize federal personnel to administer, supervise, direct, control, observe for election-integrity purposes, interrupt, delay, count, recount, canvass, certify, audit, transport, seize, inspect, access, image, copy, or take custody of election materials.

Federal emergency assistance at or near a covered election site should require:

1. a written request or consent from the Governor or other statewide official designated by state law;
2. an extraordinary emergency involving a concrete non-election emergency;
3. a written finding that state and local authorities cannot timely and adequately address the specific non-election emergency without federal assistance;
4. assistance limited to the specific state-capacity inadequacy identified;
5. written scope limits governing location, duration, personnel, mission, permitted actions, prohibited actions, and termination trigger;
6. prohibition on federal election-administration participation;
7. public notice and after-action reporting once safety permits; and
8. automatic withdrawal when the emergency ends or state capacity is restored.

Where prior written state consent is impossible because of an imminent threat to life or serious bodily harm, federal personnel may act only to stabilize the emergency and protect life. Federal personnel must withdraw unless state consent, a valid judicial order, or another lawful non-election emergency predicate is promptly obtained.

The statute should also make clear that inadvertent or unavoidable incidental contact with election activity does not create liability if the federal personnel act in good faith, do not intend to influence election administration, disengage from any election-administration issue as soon as practicable, and do not use federal authority to affect the election. Separately, the statute should not restrict federal employees, agents, or service members from voting, registering to vote, standing in line to vote, or otherwise acting in a lawful personal civic capacity subject to ordinary election law and ethics rules.

Proposal Survey

Existing law already disfavors military presence at polls and domestic military law enforcement. The troops-at-polls statute prohibits certain military presence at elections, while the Posse Comitatus Act limits use of the Army and Air Force to execute domestic law. See 18 U.S.C. § 592 and 18 U.S.C. § 1385.

Those models do not fully address modern federal agents, federalized forces, emergency response, cyber or technical assistance, and election-material custody. ELEC-007 modernizes the older troops-at-polls principle while preserving genuine non-election emergency response.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a targeted federal statute clarifying that federal personnel may respond to genuine non-election emergencies near election sites, but may not participate in election administration. The statute should modernize existing troops-at-polls principles without displacing state and local civilian election control.

Proposed Legislation

- Election Administration Federal-Force Noninterference Act

Relationship to Other Issues

- **ELEC-001** concerns federal executive interference with state and local election administration generally.
- **ELEC-003** concerns protection of election personnel from threats and operational disruption.
- **ELEC-004** concerns abuse of election litigation and investigatory mechanisms.
- **ELEC-007** concerns federal-force presence, emergency response, and election-material custody around election administration.

- Domestic-deployment and Insurrection Act issues belong primarily in the DOM-series area.

Annotation

Core Rule. Federal agents may respond to the emergency; they may not become part of the election.

State Capacity Requirement. State consent alone should not be sufficient. The state should also document why state and local capacity is inadequate for the specific extraordinary emergency.

Emergency Limitation. An emergency authorizes only non-election law enforcement, emergency response, protection, or technical assistance. It does not authorize federal election administration.

Incidental Contact Safe Harbor. Good-faith inadvertent or unavoidable incidental contact should not create liability where federal personnel do not intend to influence election administration, do not use federal authority, and disengage as soon as practicable.

Personal Voting Rights. Federal personnel retain the same personal right to vote, register, appear at a polling place, and engage in lawful personal civic activity as other citizens, subject to ordinary election law, ethics rules, and agency rules.

Election-Material Safeguards. Ballots, voting equipment, pollbooks, tabulators, memory devices, election records, and result-transmission materials require separate judicial safeguards before access, imaging, copying, transport, or seizure.

Source Development Pending. Further source development should review 18 U.S.C. § 592, the Posse Comitatus Act, National Guard authorities, federal election-crime enforcement guidance, emergency-response authorities, and state emergency-management law.

ELEC-008 — Accountability for Coordinated Federal Election-Subversion Schemes

Issue Snapshot

Problem: Coordinated subversion can evade scheme-level accountability.

Repair: Create narrow predicate-act accountability framework.

Vehicle: Federal election-subversion statute (draft).

Institutional Anomaly

Congress partially addressed post-2020 election-subversion vulnerabilities through the Electoral Count Reform and Presidential Transition Improvement Act of 2022. That statute amended the Electoral Count Act and the Presidential Transition Act, clarified that the Vice President's role in counting electoral votes is ministerial, raised the threshold for congressional objections, narrowed objection grounds, clarified state certificate procedures, provided expedited review for certain presidential-election disputes, and improved transition-resource rules where the apparent winner remains unclear.

Those reforms hardened specific pressure points in the presidential electoral-count and transition process, but they did not create a comprehensive accountability framework for coordinated schemes to overturn lawful federal-election results. Existing law may punish individual acts — false statements, obstruction, intimidation, fraud, forged documents, unlawful pressure, or abuse of process — but a modern election-subversion effort may operate through a coordinated pattern of individually narrower acts spread across states, courts, administrative bodies, Congress, media channels, and transition institutions.

The institutional anomaly is that federal law may lack a narrowly tailored framework for treating a coordinated federal election-subversion scheme as a scheme, rather than as disconnected predicate acts.

Scope

ELEC-008 should apply to covered federal elections, meaning elections for President, Vice President, United States Senator, and Representative in Congress. It should not generally federalize state and local elections.

For presidential and vice-presidential elections, the proposal should include special provisions for presidential-electoral appointment, presidential result-transmission documents, certificates of ascertainment, certificates of vote, electoral-vote transmission, congressional electoral-count proceedings, and presidential-transition access.

For Senate and House elections, the proposal should be drafted carefully to avoid interfering with each chamber's constitutional authority under Article I, Section 5 to judge the elections, returns, and qualifications of its own members. The proposal should target independently wrongful conduct affecting election administration, certification, canvassing, recounts, evidence integrity, intimidation, false documents, unauthorized access, bribery, coercion, obstruction, or corruption — not legitimate congressional adjudication of election contests.

State and local elections should be covered only where the predicate conduct independently violates federal law, such as voter intimidation, civil-rights violations, obstruction of federal proceedings, misuse of federal authority, or interference with federally protected voting rights.

Relationship to Existing Post-2020 Reform

The 2022 Electoral Count Reform and Presidential Transition Improvement Act should be treated as a partial reform, not ignored. ELEC-008 should proceed from the premise that Congress already addressed several core presidential-election vulnerabilities:

1. vice-presidential discretion during electoral-vote counting;
2. congressional objection thresholds;
3. permissible grounds for objections;
4. state certificate and elector-transmission procedures;
5. expedited review of certain candidate claims; and
6. transition-resource uncertainty.

ELEC-008 addresses a different residual problem: coordinated accountability for schemes that combine multiple wrongful acts to nullify, reverse, obstruct, delay, or procure official disregard of a lawful federal-election result.

RICO Analogy

The conceptual model is RICO-like, but the proposal should not simply import ordinary RICO.

RICO addresses organized patterns of racketeering activity. ELEC-008 would address organized patterns of federal election-subversion activity. The analogy is useful because election subversion may involve multiple actors, multiple forums, and multiple predicate acts that collectively produce an institutional harm larger than any single act.

Ordinary RICO is too broad and too controversial to use wholesale in the election context. Election disputes involve constitutionally protected speech, litigation, lobbying, recounts, contests, political advocacy, legal advice, reporting, and congressional activity. ELEC-008 should therefore be an election-specific RICO analogue with narrow elements, defined predicates, high mens rea, and robust safe harbors.

Core Thesis

Existing law punishes many discrete election-related offenses, and Congress has already hardened several specific post-2020 presidential-election vulnerabilities. But federal law may still lack a narrow, scheme-level accountability framework for coordinated efforts to overturn lawful federal-election results through independently wrongful predicate acts.

The target is not election denial, political speech, litigation, recounts, or lawful objections. The target is knowing participation in a coordinated scheme that uses independently wrongful conduct to corruptly procure official disregard, reversal, obstruction, delay, or nullification of a lawful federal-election result.

Specific Manifestation Demonstrating Need

The clearest manifestation is the alleged multi-channel effort after the 2020 presidential election to overturn, obstruct, delay, or procure official disregard of the lawful presidential-election result through several different mechanisms that existing law treated largely as separate incidents.

The relevant manifestation is not any single act alone. It is the alleged combination of state-official pressure, false or unauthorized presidential-electoral or result-transmission documents, attempted use of federal executive authority, pressure on the Vice President and Congress, and continuing efforts after courts and state officials rejected the asserted factual basis.

This manifestation exposed a pattern-level gap: existing law supplied tools for pieces of the conduct, but not a narrowly tailored federal statute that clearly treated the coordinated election-subversion pattern as such while preserving lawful litigation, recounts, advocacy, reporting, legal advice, journalism, and congressional procedures.

The proposal should therefore be justified by the following structural lesson: if a coordinated scheme uses independently wrongful predicate acts to corruptly interfere with the lawful result of a federal election, federal law should be able to address the scheme as a scheme, without converting ordinary political dispute, protected speech, or good-faith legal process into liability.

Manifestations of the Failure

Multi-channel pressure campaigns

A coordinated effort to overturn a lawful result may include pressure on state and local officials, pressure on certification bodies, pressure on federal actors, and public or private efforts to induce officials to disregard lawful results.

False or unauthorized result-transmission documents

False presidential-electoral documents or other false result-transmission documents may be used as one predicate act within a broader scheme. ELEC-005 addresses this specific mechanism; ELEC-008 addresses its role as part of a coordinated course of conduct.

Abusive litigation, subpoenas, audits, or investigatory demands

Litigation, audits, subpoenas, and investigatory demands may be lawful when pursued in good faith. They become relevant to ELEC-008 only when used as independently wrongful or sanctionable predicate conduct within a coordinated scheme to obstruct or nullify a lawful result.

Federal-count pressure

Congress addressed several presidential electoral-count vulnerabilities in 2022, including vice-presidential role clarification and objection-threshold reforms. ELEC-008 should not duplicate those reforms. It should instead address coordinated predicate conduct designed to corruptly influence or exploit federal count processes.

Transition obstruction

Transition obstruction may be one feature of a broader election-subversion scheme, but ELEC-006 addresses transition automaticity directly. ELEC-008 should treat transition obstruction only as a possible predicate or manifestation when connected to a larger coordinated scheme.

Manifestation-to-Remedy Mapping

Manifestation	Existing narrower issue or law	Residual gap	ELEC-008 response
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Pressure on state or local officials to disregard, alter, delay, or refuse lawful certification or canvassing duties	ELEC-002 addresses c		
False or unauthorized presidential-electoral, certificate, or result-transmission documents	ELEC-005 addresses false presidential result-tr		
Attempted use of federal executive authority, federal investigations, or official pressure to induce state or federal actors to disregard l			
Pressure on the Vice President or Congress to reject, delay, or alter electoral-vote counting	ECRA addressed vice-presidential role, obje		
Abusive litigation, subpoenas, audits, or investigatory demands used after factual and legal rejection	ELEC-004 addresses abusive electio		

| Unauthorized access to election systems or materials | ELEC-007 addresses election-material custody and federal-force safeguards; other law
| Transition obstruction or denial of practical effect to lawful result | ELEC-006 addresses transition automaticity and continuity | Transit
| Fundraising, financing, or material assistance based on knowing false representations tied to the scheme | Existing fraud and campaign-fina
| Presidential participation or claimed official-act immunity | IMM-001 addresses criminal immunity for presidential official acts | An elect

Proposed Accountability Model

Congress should consider a narrow federal election-subversion accountability statute that operates as a RICO analogue but is tailored to federal-election integrity.

The statute should require:

1. a coordinated course of conduct involving two or more persons;
2. knowing and corrupt participation;
3. a specific objective to nullify, reverse, obstruct, delay, or procure official disregard of a lawful federal-election result, certification, result-transmission process, transition process, or federal count proceeding;
4. at least two defined independently wrongful predicate acts; and
5. material connection between the predicate acts and the corrupt objective.

Predicate Acts

Predicate acts should be limited to independently wrongful conduct, such as:

- knowingly false federal-election result-transmission documents;
- coercive intimidation of election personnel;
- threats or retaliation against certification officials;
- corrupt use of official authority;
- bribery or extortion;
- evidence fabrication;
- knowingly false sworn statements;
- unauthorized access to election materials;
- obstruction of a federal electoral proceeding;
- knowing violation of election-material custody safeguards;
- knowing violation of transition-obstruction safeguards;
- abuse of judicial, subpoena, audit, or investigatory process after a court or tribunal finding of bad faith, material falsity, or improper purpose.

Safe Harbors

The statute should expressly preserve:

- good-faith litigation;
- recounts;
- election contests;
- public advocacy;
- lobbying;
- lawful congressional objections;
- legal advice;
- reporting suspected irregularities;
- whistleblowing;
- journalism;
- academic analysis;
- ordinary campaign activity;

- contingent preservation of legal claims;
- good-faith cooperation with investigations;
- lawful state or federal official duties.

No person should be liable merely for asserting that an election was unlawful, supporting a candidate, filing a losing lawsuit, advocating for a recount, criticizing election administration, or participating in ordinary political activity.

Remedies

A narrow statute could include:

1. criminal penalties for knowing corrupt schemes;
2. civil enforcement by the United States;
3. civil enforcement by affected states or election officials in narrow circumstances;
4. emergency injunctive relief before certification, transition, or federal count deadlines;
5. public-cost reimbursement;
6. disgorgement of funds raised through knowing false representations tied to the scheme;
7. disqualification from federal election-administration roles, presidential-electoral service, or specified transition roles where narrowly justified;
8. record-preservation duties;
9. expedited judicial review.

Proposal Survey

The closest legal analogue is RICO, which treats coordinated patterns of predicate misconduct as a distinct statutory wrong. See 18 U.S.C. §§ 1961-1968. Ordinary RICO is too broad for election disputes because protected speech, litigation, recounts, contests, journalism, and congressional activity must be preserved.

Congress also partially addressed presidential-election subversion through the Electoral Count Reform Act, but that reform hardened electoral-count procedures rather than creating scheme-level accountability. See Pub. L. No. 117-328, div. P. ELEC-008 therefore uses a narrow election-specific RICO analogue with defined predicates and safe harbors.

Least-Complex Adequate Remedy

The least-complex adequate remedy is not a general election-denial statute. It is a narrow scheme-level accountability framework that applies only when independently wrongful predicate acts are coordinated for the corrupt purpose of overturning or obstructing a lawful federal-election result.

Proposed Legislation

- Federal Election Subversion Accountability Act

Relationship to Other Issues

- **ELEC-002** addresses pressure on certification and canvassing officials.
- **ELEC-004** addresses abusive election litigation, investigatory demands, subpoenas, audits, and extraordinary proceedings.
- **ELEC-005** addresses false or unauthorized presidential result-transmission documents.
- **ELEC-006** addresses presidential-transition continuity and automaticity.
- **ELEC-007** addresses improper federal-force presence and election-material custody safeguards.
- **ELEC-008** is the capstone accountability framework for coordinated schemes using one or more of those narrower mechanisms.
- **IMM-001** addresses criminal immunity for presidential official acts. ELEC-008 and IMM-001 are complementary: ELEC-008 defines a scheme-level accountability framework for coordinated election subversion, while IMM-001 is necessary to preserve a meaningful avenue for applying such accountability when presidential conduct or claimed official-act immunity would otherwise prevent adjudication.

Annotation

Ambitious Scope. ELEC-008 is broader and more constitutionally sensitive than ELEC-002 through ELEC-007. It should proceed cautiously and should be developed with a comparative review of existing reform proposals, election-subversion scholarship, RICO doctrine, First Amendment limits, Petition Clause protections, and post-2020 federal reforms.

Federal-Election Scope. ELEC-008 should cover presidential, vice-presidential, Senate, and House elections. It should not generally federalize purely state or local elections, except where predicate conduct independently violates federal law.

ECRA Baseline. The 2022 Electoral Count Reform and Presidential Transition Improvement Act is a partial reform baseline. ELEC-008 should not duplicate or ignore it.

Presidential Accountability Complement. ELEC-008 should be developed in tandem with the presidential-immunity reform. An election-subversion accountability statute may define prohibited scheme-level conduct, but presidential accountability may still fail if immunity doctrine prevents prosecution, civil enforcement, evidentiary use, or adjudication of presidential conduct. The two reforms therefore complement each other: ELEC-008 supplies the accountability framework; the immunity reform preserves the pathway to hold a president accountable where the conduct falls outside legitimate constitutional functions or where Congress validly defines enforceable duties.

Conduct Not Belief. The statute should target corrupt coordinated conduct using independently wrongful predicate acts, not beliefs, public claims, or political advocacy.

Predicate-Act Requirement. Liability should require at least two defined predicate acts that are independently unlawful, sanctionable, or otherwise specifically prohibited.

Safe-Harbor Centrality. Robust safe harbors are essential to prevent the statute from chilling lawful election contests, recounts, litigation, advocacy, reporting, legal advice, journalism, or congressional activity.

Working Draft. Full statutory drafting has begun. The current draft should be treated as a first-pass framework subject to comparative review of existing proposals and related scholarship. The likely model is a narrow election-specific RICO analogue, not direct incorporation of ordinary RICO.

Source Development Pending. Further source development should review the 2022 Electoral Count Reform and Presidential Transition Improvement Act, existing election-crime statutes, obstruction statutes, RICO doctrine, state anti-subversion proposals, Protect Democracy and other reform proposals, post-2020 federal and state prosecutions, congressional election-contest procedures, Article I Section 5 doctrine, and ARRP's presidential-immunity reform.

ELEC-009 — Electoral College Structure and National Popular Vote

Issue Snapshot

Problem: Electoral College can override national vote.

Repair: Establish direct national presidential election.

Vehicle: Constitutional amendment (draft).

Institutional Anomaly

The constitutional system for selecting the President can award the office to a candidate who did not receive the greatest number of votes nationally, concentrates campaign attention and practical influence in a limited number of competitive states, and assigns presidential selection through state-based electoral votes rather than equal aggregation of individual votes nationwide. These features can weaken public confidence that presidential authority reflects the electorate's collective choice.

The Electoral College also creates elector-specific pressure points, including elector appointment, certificates of ascertainment, certificates of vote, electoral-vote transmission, and congressional electoral-count proceedings. These mechanisms can become focal points for false-document schemes, certification pressure, elector disputes, and federal-count pressure.

Manifestation of the Failure

The Electoral College winner did not receive the national popular-vote plurality in the presidential elections of 1876, 1888, 2000, and 2016. The 1824 election also produced a President who did not lead the initial popular vote, although the popular vote was incomplete and the election was ultimately decided by the House of Representatives under the Twelfth Amendment.

The issue is not dependent upon misconduct by any individual officeholder. The 2000 and 2016 elections are modern manifestations of a longstanding structural possibility: a candidate may assume the presidency despite receiving fewer votes nationwide than an opponent.

Resulting Damage

Divergence between the popular vote and the constitutional result may:

1. weaken perceived democratic legitimacy and institutional trust;
2. produce unequal practical weight among voters because electoral votes are allocated by state;
3. concentrate campaign resources and policy attention in a small number of competitive states;
4. render voters in predictably noncompetitive states less consequential to campaign strategy;
5. increase the possibility that a narrow shift in a few states overrides a substantial national vote margin;
6. create recurring disputes over whether the President possesses a national democratic mandate;
7. create elector-specific document and transmission vulnerabilities; and
8. create a separate congressional-count pressure point that direct election would largely eliminate.

These harms do not establish that every Electoral College outcome is illegitimate. They identify a structural mismatch between the constitutional selection mechanism and the modern expectation that the candidate receiving the most votes should ordinarily prevail.

Underlying Weakness

Article II and the Twelfth Amendment establish a state-based elector system. Each state receives electors equal to its total representation in Congress, and a candidate must obtain a majority of appointed electoral votes. If no candidate receives a majority, the House selects the President by state delegation, with each state casting one vote.

The Constitution does not require winner-take-all allocation, which is a product of state law in nearly every state. States therefore retain substantial authority over elector allocation, but complete abolition of electors and direct national election of the President requires a constitutional amendment.

The current system combines several distinct features that should not be treated as inseparable:

- the existence of presidential electors;
- allocation of electoral votes among states;
- winner-take-all state allocation;
- the electoral-vote majority requirement;
- contingent election by state delegation in the House; and
- decentralized state administration of the underlying popular vote.

Proposed Remedy

Congress and the States should adopt a constitutional amendment abolishing presidential electors and providing for direct national election of the President and Vice President by the people of the United States.

The amendment should:

1. abolish presidential electors;
2. provide for joint presidential and vice-presidential tickets;
3. provide that each voter casts one vote for a joint ticket;
4. establish the national popular vote as the default method of election;
5. allow Congress to enact a uniform national majority mechanism such as a runoff or ranked-choice tabulation;
6. authorize Congress to establish uniform rules for ballot access, counting, certification, recounts, contests, result transmission, candidate vacancies, ties, and unresolved contests;
7. preserve state administration subject to uniform federal standards;
8. supersede inconsistent constitutional provisions; and
9. provide a delayed effective date sufficient for implementation.

Proposal Survey

Prior reform models include constitutional amendments for direct popular election, state allocation reforms, proportional or district-based electoral-vote allocation, and the National Popular Vote Interstate Compact. The compact seeks to use state appointment power to award electoral votes to the national popular-vote winner once states totaling 270 electoral votes join. See National Popular Vote.

The Electoral Count Reform Act improved counting procedures but left the Electoral College structure intact. See Pub. L. No. 117-328, div. P. ELEC-009 treats compact and allocation reforms as possible interim models but selects constitutional replacement as the durable remedy.

Least-Complex Adequate Remedy

The most durable method of guaranteeing that the national popular-vote winner becomes President is a constitutional amendment establishing direct national popular election. That remedy is legally clear but politically difficult and requires detailed national rules governing recounts, ballot access, dispute resolution, certification, and election administration.

The National Popular Vote Interstate Compact is less procedurally difficult than amendment but does not abolish the Electoral College, depends on coordinated state enactments, and presents unresolved constitutional and operational risks. It should be evaluated as an interim or alternative mechanism rather than presumed equivalent to constitutional replacement.

Proposed Legislation

- Direct Election of the President and Vice President Amendment

Relationship to Other Issues

- **ELEC-005** concerns false or unauthorized presidential result-transmission documents within the existing constitutional system. Direct election would remove elector-specific document vulnerabilities but still require secure national result-transmission rules.
- **ELEC-006** concerns continuity and automatic operation of presidential transition procedures. Direct election would simplify some sources of uncertainty but would still require transition administration.
- **ELEC-008** concerns coordinated federal election-subversion schemes. Direct election would reduce elector-specific attack surfaces while preserving the need for scheme-level accountability.
- **ELEC-009** concerns the constitutional presidential-selection mechanism itself.

Annotation

Institutional-Trust Basis. This issue belongs in the project even though it is not principally prompted by the conduct of a particular President. The project addresses institutional structures that undermine legitimacy, accountability, resilience, or public confidence. Repeated divergence between the national popular vote and the presidential outcome presents such a structural concern.

Neutrality. The issue should not be framed around which political party has benefited from particular elections. Any reform must apply identically regardless of candidate, party, region, or expected electoral advantage.

Historical Qualification. Four elections—1876, 1888, 2000, and 2016—clearly produced an Electoral College winner who did not receive the national popular-vote plurality. The 1824 election is historically distinct because popular voting was not universal among

states and the House selected the President after no candidate obtained an electoral majority.

Constitutional Constraint. Direct abolition of the Electoral College requires constitutional amendment. State-law allocation reforms and the interstate compact may alter practical outcomes without formal abolition, but they raise different questions of durability, administration, and constitutional validity.

Implementation Required. The amendment must be paired with implementing legislation for national certification, recount thresholds, contest procedures, ballot access, candidate replacement, tie resolution, transition access, and emergency contingencies.

ELEC-010 — Mail-In Voting Access, Reliability, and Trust

Issue Snapshot

Problem: Mail-ballot rules are uneven and fragile.

Repair: Set mail-ballot and USPS election-mail standards.

Vehicle: Federal election and postal legislation.

Institutional Anomaly

Mail-in and absentee voting are lawful, widely used election-administration tools, but the safeguards governing access, ballot delivery, voter verification, cure, chain of custody, deadline design, and public explanation remain uneven across jurisdictions. That unevenness creates two linked institutional risks: lawful voters can lose ballots through avoidable administrative failure, and opponents of a lawful result can exploit ordinary mail-ballot processing complexity to delegitimize valid votes.

The issue is not whether every jurisdiction must conduct elections primarily by mail. The issue is that where mail-in or absentee voting is available, the legal framework should make the process reliable, reviewable, voter-correctable, secure, and publicly intelligible.

Manifestations of the Failure

Postal-service dependence and delivery uncertainty

Mail voting depends on a federal delivery system that state election officials do not control. In 2020, the USPS Office of Inspector General found that the Postal Service processed and delivered at least 135 million identifiable ballots going to and coming from voters, prioritized Election Mail, and used extraordinary measures such as extra transportation and overtime. The same report also found that many ballots were not measurable through service-performance tracking, that some facilities failed to follow all-clear and postmark procedures, and that local communication about Election Mail guidance was not always timely or effective. See USPS OIG, *Service Performance of Election and Political Mail During the November 2020 General Election* (Mar. 5, 2021).

The lesson is dual: large-scale mail voting can work, but it requires advance planning, tracking, clear postal procedures, realistic voter deadlines, and contingency channels. A system that relies on heroic last-week measures is too fragile.

Deadline design and the USPS advisory problem

USPS has operational expertise about how long mail delivery normally takes, and voters need clear advice about when a mailed ballot must enter the mailstream to arrive by a state deadline. In 2024, for example, USPS urged voters to mail ballots by October 29 to meet November 5 Election Day deadlines in states requiring receipt by Election Day. See Axios, *USPS: "Don't delay" in returning mail-in ballots* (Oct. 28, 2024).

But there is an important distinction between an evidence-based USPS mailing advisory and a USPS legal deadline. USPS should not decide voter eligibility or ballot validity. A postal deadline that automatically disqualifies ballots mailed after a USPS date would effectively let a delivery agency shorten the voting period, even for voters who receive ballots late, face emergency circumstances, or rely on lawful drop-off and cure options.

The better design is to require USPS to publish jurisdiction-specific mailing advisories, require states to align ballot-request and outbound-mailing deadlines with those advisories, and require states to provide nonpostal return options after the recommended mailing date. The legal rule should remain in election law, not postal administration.

Rejection for curable technical defects

Mail ballots can be rejected for missing signatures, signature mismatch, missing secrecy envelopes, dating errors, witness defects, identification-number mismatch, lateness, or other technical requirements. Some requirements protect real interests, including voter authentication and ballot integrity. But where voters receive no timely notice or meaningful cure opportunity, a technical defect can become disenfranchisement even when voter eligibility is not in doubt.

The Election Assistance Commission's canvass guidance treats cure as the process for fixing an error or providing information after a ballot has been rejected for counting, and it identifies voter verification, late-arriving mail ballots, rejected-ballot documentation, ballot reconciliation, chain-of-custody review, and drop-box custody procedures as part of the canvass process. See U.S. Election Assistance Commission, *Guide to the Canvass* (Mar. 2022).

Uneven signature verification and cure rules

Signature verification and cure rules vary widely by state and sometimes by county practice. That variation can create unequal practical voting rights among similarly situated mail voters. A voter in one jurisdiction may receive notice and a cure period; another voter with the same error may receive no practical opportunity to fix it.

In 2022, Texas rejected roughly 13 percent of mail ballots submitted in its March primary, far above ordinary rejection levels, after new voting rules took effect. An Associated Press analysis documented 22,898 rejected mail ballots based on available county data and final voting reports. See Axios, *Texas tossed out 13% of mail ballots in March primary election, AP finds* (Mar. 16, 2022).

Chain-of-custody and ballot-handling vulnerability

Mail voting necessarily introduces additional custody points: ballot printing, outbound mailing, voter receipt, voter return, postal handling, drop-box collection, election-office intake, signature or identity review, duplication if needed, storage, tabulation, reconciliation, and canvass. Weak documentation at any point can create real security risk or the appearance of risk.

The EAC canvass guide emphasizes that chain-of-custody documentation, ballot and voter reconciliation, late-arriving mail-ballot tracking, and drop-box pickup records support both integrity and public explanation. ELEC-010 should therefore treat chain of custody as a design requirement, not as an after-the-fact response to allegations.

Delegitimization of lawful mail ballots

Mail voting also creates an information problem. Valid mail ballots may be counted after election night because state law permits later processing, later receipt of timely postmarked ballots, cure periods, UOCAVA timing rules, or ordinary canvass procedures. Without clear public explanation, predictable counting timelines can be portrayed as suspicious.

Election misinformation often treats mail-ballot counting, cure, late-arriving lawful ballots, or party-skewed voting methods as evidence of fraud. AP reporting in 2024 summarized the broader evidentiary point: voter fraud can occur, but it is rare and election systems contain safeguards such as voter lists, signature checks, ballot tracking, audits, and decentralized administration. See Associated Press, *Yes, voter fraud happens. But it's rare and election offices have safeguards to catch it* (Oct. 3, 2024).

Resulting Damage

Mail-ballot failure can disenfranchise eligible voters, especially voters who are elderly, disabled, overseas, serving in the military, temporarily displaced, medically vulnerable, working inflexible schedules, lacking transportation, living in remote areas, or relying on mail because of caregiving, detention, weather, disaster, or public-health conditions.

The damage is not limited to access. Poorly designed mail-voting rules can also create inconsistent treatment, late litigation, disputed rejection rates, administrative overload, election-night misinformation, chain-of-custody suspicion, and public doubt about lawfully counted ballots.

Underlying Weakness

Mail voting crosses several institutional boundaries:

1. states set eligibility, request, return, receipt, cure, verification, canvass, and certification rules;
2. local officials administer intake, verification, cure, reconciliation, counting, and custody;
3. USPS controls most delivery infrastructure but does not control state election deadlines;
4. courts often resolve disputes close to election deadlines; and
5. voters must navigate complex instructions under time pressure.

Existing law often addresses pieces of the process but not the whole mail-ballot pathway. Common weaknesses include:

- request deadlines that do not account for realistic mailing time;
- receipt deadlines that shift postal delays onto voters;
- inconsistent or opaque signature-review standards;
- no mandatory notice and cure opportunity;
- cure deadlines that expire before notice can practically reach the voter;
- inadequate ballot tracking and voter-facing status tools;
- inconsistent drop-box custody and collection rules;
- insufficient public reporting of rejection categories;
- weak contingency rules for postal disruption, disaster, or administrative failure;
- inaccessible instructions for voters with disabilities or limited English proficiency; and
- partisan narratives that attack mail voting categorically rather than distinguishing security defects from lawful processing.

Repair and Prevention

Congress should enact a Mail-In Voting Reliability and Cure Act establishing minimum standards for mail and absentee ballots in federal elections where those voting methods are available. The Act should:

1. set request, outbound-mailing, and return deadlines that account for USPS delivery standards and local processing needs;

2. require prepaid return postage or an equally reliable no-cost return option;
3. require voter-facing ballot tracking for request, outbound mailing, receipt, acceptance, rejection, and cure status;
4. require uniform statewide signature or identity-verification standards for federal-election ballots where signature or identity review is used;
5. require prompt notice and a meaningful cure opportunity for missing signature, signature mismatch, ID-number mismatch, missing date, envelope defect, or comparable curable errors;
6. prohibit rejection for immaterial paperwork defects where voter eligibility, ballot timeliness, and ballot authenticity are otherwise established;
7. require USPS, in consultation with state election officials, to publish jurisdiction-specific recommended mailing dates for ballot return;
8. require states to provide reasonable nonpostal return options after the recommended mailing date where mail return is no longer reasonably reliable;
9. require uniform treatment of timely postmarked ballots and clear publication of receipt and counting deadlines;
10. require secure drop-box rules where drop boxes are used, including public locations, collection frequency, bipartisan or dual-control pickup, seal logs, and reconciliation;
11. require election offices to publish rejection statistics by category after each election;
12. require contingency plans for postal disruption, severe weather, disaster, cyber incident, printing failure, vendor failure, or administrative backlog;
13. require plain-language instructions, accessibility review, and language-access compliance; and
14. require public explanation of mail-ballot processing timelines before Election Day.

Congress should also enact federal postal standards for election mail, including tracking, communication, postmarking, all-clear procedures, delivery-performance reporting, election-official escalation channels, evidence-based mailing advisories, and a prohibition on operational changes that foreseeably degrade election-mail performance during defined election windows without notice and mitigation.

Debated Design Questions

Mail voting has been extensively debated, and ELEC-010 should not flatten those debates into a simple access-versus-suppression story. The proposal should account for at least six recurring disputes.

Receipt deadline versus postmark deadline. An Election Day receipt deadline produces faster finality and reduces the number of ballots arriving after election night, but it shifts postal delay risk onto voters. A postmark-by-Election-Day rule better protects voters who act by Election Day, but it delays final counts and depends on reliable postmarking and tracking.

USPS mailing advisory versus USPS disqualification deadline. A USPS advisory can improve voter notice and state planning. A USPS disqualification deadline would be more problematic because it would let postal delivery expectations override election-law voting periods. ELEC-010 should prefer advisory dates, mandatory public notice, earlier outbound ballot mailing, and nonpostal return options over USPS-controlled ballot validity.

Signature verification versus alternative authentication. Signature matching is familiar and can deter some abuse, but it can produce false mismatches and uneven treatment. Alternatives include ID-number matching, barcode tracking, attestation, voter-notification cure, or layered verification. The core requirement should be uniform standards plus cure, not any single verification technique.

Drop boxes versus mail-only return. Drop boxes reduce dependence on USPS near Election Day and help voters who receive or complete ballots late. They also require strong chain-of-custody rules, collection logs, seal procedures, surveillance or public-location standards where appropriate, and reconciliation.

Fast results versus complete canvass. Mail-ballot processing can slow unofficial results. That delay is not itself evidence of fraud, but it is politically exploitable. The remedy is earlier preprocessing where lawful, public timelines, and transparent canvass reporting.

Uniform federal floor versus state flexibility. Federal elections need minimum protections so federal voting rights do not depend on avoidable administrative failure. States still need room to administer different voting systems, especially where they combine federal, state, and local contests on the same ballot.

Proposal Survey

ELEC-010 should be drafted with the existing legislative field in view. Prior proposals have generally fallen into three groups: mail-access expansion, postal-reliability reform, and election-security restriction.

Election Mail Act. The closest federal model is the Election Mail Act, introduced by Senator Amy Klobuchar and described as requiring First-Class service standards for election mail, postmarks on ballots, and no voter or election-official postage payment for ballot return. See Axios, *First look: Klobuchar introduces election mail bill* (July 1, 2022). ELEC-010 should borrow the postal-reliability idea but go

beyond postage and postmarking to include tracking, election-official escalation channels, all-clear procedures, mailing advisories, and contingency planning.

For the People Act and Freedom to Vote Act. Broad Democratic election bills have included vote-by-mail access as part of larger voting-access packages. The For the People Act of 2021 passed the House and, according to the Congressional Research Service summary on Congress.gov, expanded voting access including vote-by-mail and early voting. See H.R. 1, 117th Cong.. The Freedom to Vote Act similarly addressed voter registration, voting access, election integrity, redistricting, and campaign finance, including vote-by-mail and early voting. See S. 2747, 117th Cong.. ELEC-010 should remain narrower than those omnibus bills: its focus is the reliability, cure, transparency, and custody design of mail-ballot systems, not a full national voting-rights code.

Universal Right to Vote by Mail Act and ballot-tracking proposals. Earlier mail-voting proposals, including the Universal Right to Vote by Mail Act of 2009, would have barred states from requiring a special excuse to vote by mail in federal elections, while related proposals such as the Absentee Ballot Track, Receive and Confirm Act focused on ballot tracking. See H.R. 1604, 111th Cong. and H.R. 2510, 111th Cong.. ELEC-010 need not require nationwide no-excuse mail voting as its central remedy, but it should adopt ballot-tracking and voter-notice concepts where mail voting is offered.

SAVE Act and SAVE America Act lineage. Republican proposals have concentrated on proof of citizenship, voter-list controls, voter identification, and mail-voting restrictions. The 2025 SAVE Act, H.R. 22, 119th Cong., passed the House and would require documentary proof of U.S. citizenship for federal voter registration, require states to remove noncitizens from voter lists, create a private right of action, and establish criminal penalties for certain registration offenses. Press reporting on the later SAVE America Act describes related requirements for in-person documentary proof, voter-ID rules, and mail-voting constraints. See The Guardian, *What does Trump's restrictive voting bill include - and does it have a chance of becoming law?* (Mar. 13, 2026). ELEC-010 should answer the underlying integrity concerns through targeted authentication, list-maintenance compatibility, cure records, transparent rejection data, and auditable custody rather than by making lawful mail voting categorically harder to use.

American Confidence in Elections Act and Make Elections Great Again Act. The American Confidence in Elections Act, H.R. 4563, 118th Cong., included election-administration and security provisions, including congressional election observers and restrictions tied to ballot collection. The Make Elections Great Again Act, H.R. 7300, 119th Cong., goes further on mail voting: its text would limit possession or return of other voters' mail ballots, require individual requests for mail ballots, require trackable election-mail barcodes, and require absentee and mail-in ballots for federal elections to be received by poll closing time, subject to UOCAVA exceptions. See also TIME, *The Sweeping Elections Changes House Republicans Are Proposing* (Jan. 29, 2026). ELEC-010 should engage these objections directly: chain-of-custody rules, drop-box controls, collection limits where needed, tracking, preprocessing, and finality rules are legitimate design subjects, but they should be calibrated to protect eligible voters from avoidable rejection.

State election-integrity statutes. State models also matter. Georgia's Election Integrity Act of 2021 replaced absentee signature matching with voter-identification requirements, limited drop boxes, barred officials from sending unsolicited absentee-ballot request forms, and narrowed the absentee request window. See Georgia General Assembly, S.B. 202, 2021-2022 Reg. Sess.. Texas S.B. 1 added mail-ballot identification-number requirements that contributed to high rejection rates in 2022 and continued litigation. See The Guardian, *Texas leans on new voting law to reject thousands of ballot applications* (Feb. 3, 2022), and Politico, *Appeals court upholds Texas law requiring ID numbers to cast mail-in ballots* (Aug. 4, 2025). Arizona's ballot-collection restriction was upheld by the Supreme Court in *Brnovich v. Democratic National Committee*, 594 U.S. 647 (2021), against Voting Rights Act and discriminatory-purpose challenges. See *Brnovich v. Democratic National Committee*, 594 U.S. 647 (2021).

The drafting lesson is that ELEC-010 should not be framed as a purely partisan access bill. It should preserve access to lawful mail voting while building a record-responsive integrity architecture: reliable postal handling, voter-facing tracking, uniform authentication standards, meaningful cure, drop-box and collection controls, transparent rejection reporting, clear receipt/counting rules, and public explanation of canvass timing.

Least-Complex Adequate Remedy

The least-complex adequate remedy is federal legislation for federal elections, paired with federal postal standards for election mail.

Congress can set a federal floor for congressional elections under the Elections Clause and can regulate postal handling of election mail through federal postal authority. For presidential elections, the statute should be drafted more carefully, tying requirements to federal result-transmission, elector-appointment timing, and any federal funding or administrative support rather than assuming unlimited federal control over state presidential-election administration.

The federal role should ensure that USPS and federal actors do not become hidden veto points over lawful mail-ballot channels, and that voters in federal elections receive minimum notice, cure, tracking, deadline, and transparency protections. States may extend the same standards to state and local contests to avoid dual-track administration, but ELEC-010 does not require a separate state legislative project as the primary remedy.

This approach is less complex than nationalizing mail-voting administration and more adequate than leaving federal-election cure, tracking, deadline realism, chain-of-custody documentation, USPS mailing advisories, and postal contingency planning to fragmented local practice.

Relationship to Other Election Issues

ELEC-001 covers federal executive interference with state and local election administration. ELEC-010 covers ordinary and extraordinary vulnerabilities in the mail-ballot pathway itself, including postal performance and voter cure.

ELEC-002 covers certification refusal and automatic substitution. ELEC-010 covers ballot receipt, verification, cure, and canvass before certification.

ELEC-003 covers protection of election workers and officials. ELEC-010 may reduce threats by making mail-ballot processing more transparent and less susceptible to bad-faith narratives.

ELEC-004 covers abusive election litigation and investigatory mechanisms. ELEC-010 should reduce litigation incentives by making mail-ballot rules clearer before voting begins.

ELEC-007 covers improper federal-force presence in election administration. ELEC-010 covers mail and custody procedures that may reduce pressure for pretextual federal intervention.

Annotation

Basis and Evidence. Mail voting can be administered securely, but it is operationally demanding. The USPS OIG's 2020 report supports both sides of that conclusion: the Postal Service prioritized and largely delivered election mail, but it also identified visibility, communication, all-clear, postmarking, and measurement gaps. EAC canvass guidance confirms that cure, chain of custody, ballot reconciliation, late-arriving mail ballots, and drop-box documentation are ordinary election-integrity tools rather than partisan inventions. USPS deadline advisories are useful evidence for voter guidance and statutory planning, but they should not themselves become legal disqualification rules.

Qualification. ELEC-010 should not be framed as a universal mandate for all-mail elections. States may reasonably choose different mixes of in-person, early, absentee, and mail voting. The institutional requirement is that any mail-voting channel the state creates must be reliable, nondiscriminatory, auditable, and supported by meaningful cure and public explanation.

Remedial Alternatives and Constraints. A federal statute requiring no-excuse mail voting nationwide would maximize uniform access but would create larger federalism and administrative questions. A model state act would be useful but slower and less uniform for federal-election vulnerabilities. A purely advisory best-practices guide would be simpler but inadequate where rejection, postal disruption, or cure disparities recur. The least-complex adequate approach is a federal floor for federal-election mail ballots plus federal postal-performance standards for election mail.

Source Notes

- U.S. Election Assistance Commission, *Guide to the Canvass* (Mar. 2022).
- USPS Office of Inspector General, *Service Performance of Election and Political Mail During the November 2020 General Election* (Mar. 5, 2021).
- Axios, *USPS: "Don't delay" in returning mail-in ballots* (Oct. 28, 2024).
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- Congress.gov, H.R. 2510, 111th Congress, Absentee Ballot Track, Receive, and Confirm Act.
- Congress.gov, H.R. 22, 119th Congress, SAVE Act.
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- Associated Press, *Yes, voter fraud happens. But it's rare and election offices have safeguards to catch it* (Oct. 3, 2024).
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- U.S. Supreme Court, *Brnovich v. Democratic National Committee*, 594 U.S. 647 (2021).

A-03 — War Powers and Military Force

Generalized Institutional Concern

The existing allocation of war powers allows presidents to initiate, expand, and prolong significant military operations without timely, specific, informed, and politically effective congressional authorization or continuing oversight.

Issues

- WAR-001 — Comprehensive War Powers and Use-of-Force Authorization Reform

Collapsed Subcomponents

WAR-001 incorporates the following former candidate issue tracks as subcomponents of a single comprehensive war-powers reform discussion:

- **WAR-002** — Ineffective automatic termination under the War Powers framework _(retired—merged into WAR-001)_
- **WAR-003** — Overbroad and indefinite authorizations for use of military force _(retired—merged into WAR-001)_
- **WAR-004** — Executive control over legal interpretations of war, hostilities, self-defense, and authorization _(retired—merged into WAR-001)_
- **WAR-005** — Partisan collapse of congressional oversight _(retired—merged into WAR-001)_
- **WAR-006** — Insufficient information before military commitment _(retired—merged into WAR-001)_
- **WAR-007** — Mission expansion beyond original authorization _(retired—merged into WAR-001)_
- **WAR-008** — Treatment of appropriations as implied authorization _(retired—merged into WAR-001)_

Issue Boundaries

- **WAR-001** concerns comprehensive statutory reform of war powers and use-of-force authorization, including unilateral initiation, offensive hostilities, emergency defense, automatic termination, AUMF specificity and sunsets, executive legal interpretation, congressional information access, oversight, mission expansion, appropriations-as-authorization, funding consequences, and presentment/veto-override posture.

Notes

A-03 is structured as a single comprehensive issue because the original WAR-001 through WAR-008 defects are proximate, interdependent, and primarily arise from the same War Powers Resolution, AUMF, appropriations, executive-interpretation, and congressional-enforcement architecture.

WAR-001 — Comprehensive War Powers and Use-of-Force Authorization Reform

Issue Snapshot

Problem: Presidents can initiate unauthorized hostilities.

Repair: Require authorization and automatic funding consequences.

Vehicle: War powers statute (draft).

Institutional Anomaly

The existing War Powers Resolution, AUMF practice, appropriations practice, executive legal interpretation, and congressional oversight framework fail to impose timely, specific, informed, and politically effective congressional authorization before, during, and after significant uses of military force.

The relevant defects are proximate and interdependent rather than meaningfully separable. A President can initiate force unilaterally because “hostilities,” emergency defense, and commander-in-chief authority are ambiguous; the operation can continue because termination mechanisms are weak; old authorizations may be stretched to new enemies, geographies, or missions; executive legal interpretations may remain controlling or opaque; Congress may lack adequate information before commitment; oversight may collapse along partisan lines; the mission may expand beyond its original premise; and appropriations may be characterized as implied authorization.

Accordingly, A-03 should proceed through one integrated discussion and one principal legislative vehicle rather than separate standalone issue tracks for WAR-001 through WAR-008.

Collapsed Scope

WAR-001 now incorporates the prior WAR-002 through WAR-008 candidate issues as subcomponents of a single comprehensive war-powers reform issue:

1. unilateral initiation of hostilities;
2. ineffective automatic termination under the War Powers framework;
3. overbroad and indefinite authorizations for use of military force;
4. executive control over legal interpretations of war, hostilities, self-defense, and authorization;
5. partisan collapse of congressional oversight;
6. insufficient information before military commitment;
7. mission expansion beyond original authorization; and
8. treatment of appropriations as implied authorization.

First Principle: Statutory Reform Before Constitutional Amendment

A constitutional amendment is not the least-complex first-line remedy. The constitutional allocation of war powers is contested, but Congress already possesses substantial legislative tools: the power to declare war, authorize force, regulate the armed forces, appropriate or withhold funds, require reporting, and establish statutory conditions for military operations.

The least-complex adequate remedy is therefore to strengthen the War Powers Resolution, AUMF framework, and related appropriations and reporting rules through ordinary federal legislation. Even if judicial enforcement remains uncertain or untested, clearer statutory commands can create legal, institutional, appropriations, and political pressure sufficient to constrain unilateral or unauthorized uses of force.

Substantive Principle: No Unilateral Offensive Action

The President should not be permitted to initiate offensive hostilities without specific statutory authorization. Unilateral presidential force should be limited to emergency defensive action: repelling an actual attack, preventing a specific and temporally urgent imminent attack, rescuing or protecting United States persons from imminent harm, evacuating United States persons from imminent danger, or protecting United States forces during withdrawal or immediate defense.

Offensive hostilities should include punitive retaliation, reprisal strikes, deterrent strikes, coercive diplomacy, preventive war, degradation campaigns, regime-change operations, occupation, seizure of territory, sustained targeting campaigns, and operations primarily intended to alter the conduct, capability, or political position of a foreign state, organization, or armed group.

An operation should not qualify as emergency defensive action merely because the executive branch labels it limited, targeted, defensive, preemptive, deterrent, counterterrorism, force protection, national security, humanitarian, or necessary to preserve credibility. Classification should turn on objective features: purpose, factual predicate, imminence, scope, duration, and reasonably foreseeable effects.

Presentment and Veto Override

A binding amendment to the War Powers Resolution or successor statute is ordinary legislation. It must pass both Houses and be presented to the President for signature or veto under Article I, Section 7. If vetoed, Congress may still enact the reform by overriding the veto with a two-thirds vote of both Houses.

A standalone concurrent resolution is not an adequate binding remedy. A concurrent resolution may express congressional judgment, but it cannot by itself create legally binding obligations or terminate hostilities without presentment where binding legal consequences are intended. WAR-001 should therefore focus on statutory rules enacted through bicameralism and presentment, with veto override as the constitutional backstop.

Mature Reform Field

War powers reform is a mature and heavily debated field. WAR-001 should not proceed as though ARRP is drafting on a blank slate. The project should begin with a comparative survey of prior proposed legislation, scholarship, and historical uses of force before selecting final legislative language.

Relevant models include reforms to the War Powers Resolution, repeal or narrowing of obsolete authorizations for use of military force, proposals to define “hostilities” more clearly, funding cutoffs for unauthorized operations, reporting reforms, expedited congressional procedures, and statutory rules preventing appropriations from being treated as implied authorization.

Proposal Survey

War Powers Resolution of 1973

The War Powers Resolution is the baseline statutory model. It sought to check unilateral presidential use of force by requiring consultation, requiring a report within 48 hours when forces are introduced into hostilities or imminent hostilities, and requiring termination after 60 days plus a 30-day withdrawal period absent congressional authorization. It was enacted over President Nixon's veto by two-thirds votes in both Houses.

Contribution to WAR-001: Establishes the core architecture of reporting, consultation, authorization, and termination.

Limitations: The meaning of “hostilities” has been contested, the concurrent-resolution mechanism is constitutionally doubtful after *INS v. Chadha*, presidents have often reported “consistent with” rather than “pursuant to” the Resolution, and judicial enforcement has been weak.

National Security Powers Act of 2021

The National Security Powers Act, introduced by Senators Chris Murphy, Mike Lee, and Bernie Sanders, proposed a broad rebalancing of national-security powers, including war powers, arms sales, and emergency authorities. It was a major bipartisan effort to reclaim congressional authority over national-security decisions.

Contribution to WAR-001: Provides a modern comprehensive model for congressional reassertion, especially in pairing war-powers reform with related national-security checks.

Limitations: Its breadth may make enactment more difficult. WAR-001 may need a narrower war-powers-and-AUMF reform vehicle if the project seeks the least-complex adequate remedy.

National Security Reforms and Accountability Act

The House companion reform effort, associated with Representative Jim McGovern, similarly sought to update congressional national-security controls. The House version is relevant because it reflects bicameral interest in a broader national-security-powers reform framework.

Contribution to WAR-001: Confirms that war-powers reform has serious House-side legislative models and should be studied before drafting.

Limitations: Like the Senate model, broader national-security reform may combine too many distinct topics for a narrow A-03 remedy.

No More Presidential Wars Act and similar authorization-first resolutions

The No More Presidential Wars Act and related resolutions emphasize the principle that the President should seek congressional authorization before engaging United States Armed Forces in hostilities against identified adversaries. These proposals are useful as clear statements of the authorization-first norm.

Contribution to WAR-001: Provides strong declaratory language that unilateral offensive war initiation is inconsistent with Congress's constitutional role.

Limitations: Sense-of-Congress or House-only resolutions are not by themselves adequate binding remedies. WAR-001 needs enforceable statutory mechanisms, not merely statements of principle.

AUMF repeal and narrowing proposals

Repeated efforts to repeal or narrow older authorizations for use of military force, including Iraq AUMF repeal efforts, address a core component of the A-03 defect: presidents can rely on stale, broad, or geographically/missions-shifted authorizations to justify new operations.

Contribution to WAR-001: Demonstrates the need for specificity, sunsets, renewal requirements, mission limits, geographic limits, and no implied successor-force or associated-force expansion without Congress.

Limitations: AUMF repeal alone does not solve unilateral initiation where no AUMF is invoked; it must be paired with initiation, termination, information, interpretation, mission-expansion, and appropriations rules.

Contemporary war-powers resolutions

Recent war-powers resolutions directed at specific conflicts demonstrate that Congress continues to use the War Powers framework, but they also reveal the weakness of relying on concurrent resolutions or politically fragile disapproval mechanisms. Some recent examples have been described as symbolic or legally uncertain because they do not necessarily go through presentment and veto override.

Contribution to WAR-001: Shows the continuing need for an enforceable mechanism that does not depend on constitutionally doubtful legislative veto structures.

Limitations: Conflict-specific resolutions are reactive and often occur only after hostilities have begun.

Survey Takeaways for ARRP

ARRP should not begin by drafting a wholly original war-powers code. The project should synthesize existing models around a narrow set of design principles:

1. prior statutory authorization for non-emergency hostilities;
2. prohibition on unilateral offensive hostilities;
3. narrow emergency defensive exception;
4. clearer definition of hostilities, offensive hostilities, emergency defensive action, and covered operations;
5. anti-relabeling rule preventing labels such as limited, targeted, deterrent, counterterrorism, or force protection from substituting for statutory criteria;
6. automatic termination and withdrawal rules where authorization is absent or expires;
7. AUMF specificity, sunsets, renewal, mission limits, geographic limits, and no implied successor-force expansion;
8. disclosure or certification of executive legal interpretations;
9. pre-authorization information requirements;
10. mission-expansion and material-change reauthorization triggers;
11. no implied authorization from appropriations unless Congress says so expressly;
12. funding consequences for unauthorized hostilities;
13. expedited congressional procedures;
14. presentment-compliant mechanisms rather than standalone concurrent-resolution termination; and
15. political and appropriations consequences even where courts decline review.

Manifestations of the Failure

Ambiguous threshold for “hostilities”

Presidents may characterize military actions as limited, defensive, advisory, support, logistical, intelligence, cyber, or below the threshold of hostilities. Ambiguity over the statutory trigger allows operations to proceed without clear prior authorization.

Emergency framing

The President may invoke emergency self-defense, protection of U.S. persons, counterterrorism, force protection, deterrence, national security necessity, or preemptive defense to initiate force before Congress can deliberate. Emergency authority may be necessary in genuine exigencies, but broad or indefinite use of that framing can swallow Congress’s authorization role.

Offensive-action relabeling

Presidents may characterize punitive, deterrent, coercive, degradation, or retaliatory strikes as defensive or limited. Without a statutory anti-relabeling rule, the executive can treat offensive policy objectives as emergency defensive action.

Ineffective automatic termination

A reporting-and-clock framework is insufficient if the clock is contested, if withdrawal obligations are vague, if funding remains available, or if Congress lacks an effective forced-vote mechanism.

Stale or overbroad AUMFs

Broad authorizations can be repurposed over time to cover new enemies, geographies, methods, or objectives not clearly contemplated by Congress.

Executive legal-interpretation control

If the executive branch controls the operative interpretation of hostilities, imminence, self-defense, emergency defense, associated forces, mission scope, and authorization, congressional constraints can be weakened without public statutory violation.

Insufficient information before commitment

Congress may be asked to authorize or tolerate force without adequate information about legal basis, intelligence, expected duration, escalation risk, civilian harm, cost, alternatives, allied participation, mission objectives, and exit criteria.

Mission expansion

Even where Congress authorizes one operation, the executive may expand the mission by changing the enemy, geography, objective, duration, method, or level of force beyond the original authorization.

Appropriations ambiguity

Funding military operations may be characterized by the executive as implied congressional support, even where Congress did not specifically authorize hostilities. This can convert general or emergency funding into practical authorization by implication.

Concrete Manifestations and Historical Examples

Libya, 2011 — contested “hostilities” and termination clock

During the 2011 Libya intervention, the executive branch argued that continued United States participation did not constitute “hostilities” under the War Powers Resolution, despite United States air, refueling, surveillance, and support roles and congressional objections. The 60-day War Powers deadline passed without specific congressional authorization while the executive maintained that the operation did not trigger the Resolution’s termination requirement.

Failure illustrated: Ambiguous hostilities threshold; executive control over legal interpretation; ineffective automatic termination.

Reform connection: Supports clearer statutory definitions of hostilities and covered military operations, legal-basis certification, automatic termination, withdrawal-plan requirements, funding limits, and legal-interpretation access.

INS v. Chadha — concurrent-resolution defect

INS v. Chadha held that Congress cannot impose binding legal consequences through a legislative veto outside bicameralism and presentment. That decision makes the War Powers Resolution’s concurrent-resolution termination mechanism constitutionally vulnerable as a binding legal device.

Failure illustrated: Reliance on a politically attractive but constitutionally defective congressional-control mechanism.

Reform connection: Supports presentment-compliant authorization, limitation, termination, and funding mechanisms; supports the rule that concurrent and simple resolutions may express congressional judgment but cannot themselves create binding legal consequences.

2001 AUMF — stale, broad, and associated-force expansion

The 2001 Authorization for Use of Military Force has been relied on across many years, countries, groups, and theaters beyond the immediate Afghanistan and al-Qaeda context. Executive practice has relied heavily on concepts such as associated forces, successor forces, and geographically dispersed operations even though those concepts were not expressly enumerated in the original authorization.

Failure illustrated: Stale and overbroad authorization; executive legal-interpretation control; mission and geography expansion.

Reform connection: Supports AUMF specificity, sunset, renewal, associated-force identification, geographic limits, mission limits, and no-drift rules.

1991 and 2002 Iraq AUMFs — obsolete authorization risk

Repeated bipartisan efforts to repeal the 1991 and 2002 Iraq AUMFs show the continuing concern that old authorizations may remain legally available after their original factual and strategic predicates have changed. Even if not actively relied on, obsolete authorizations create latent authority unless Congress repeals, sunsets, or narrows them.

Failure illustrated: Old authorizations can remain on the books and create ambiguity about available executive authority.

Reform connection: Supports default AUMF sunsets, renewal requirements, existing-AUMF reliance reporting, and limits on construing authorizations beyond enemy, geography, mission, and temporal scope.

Executive legal-interpretation control — Libya and AUMF practice

In Libya, executive legal analysis drove the conclusion that the operation did not constitute “hostilities” requiring termination. In AUMF practice, executive interpretations of covered groups, associated forces, geographic reach, and mission scope have shaped the practical reach of statutory authority.

Failure illustrated: Congress may not know or control the operative legal theory being used to initiate, continue, or expand military action.

Reform connection: Supports mandatory transmission of material legal interpretations, no secret expansion, legal-basis certification, and congressional access to classified or protected legal analysis.

Insufficient information before military commitment

War-powers debates frequently arise after force is already initiated or after the executive branch has framed the factual and legal basis. Libya, Syria, Iran-related disputes, and AUMF renewal or repeal debates illustrate recurring congressional complaints that information can be incomplete, classified, late, or filtered through executive legal conclusions.

Failure illustrated: Congress may be asked to authorize, tolerate, fund, or terminate force without adequate information about legal basis, intelligence, mission objectives, costs, escalation risk, civilian-harm risk, alternatives, allied participation, and exit criteria.

Reform connection: Supports pre-authorization information requirements and classified annex procedures.

Mission expansion beyond authorization — 2001 AUMF practice

The 2001 AUMF has been applied to groups and theaters far removed from the immediate perpetrators and harborers of the September 11 attacks. This illustrates how an authorization can be operationally extended through associated-force, successor-force, geographic, and mission interpretations.

Failure illustrated: An authorization for one enemy, geography, or objective can become the asserted basis for a different conflict.

Reform connection: Supports material mission-expansion definitions, notice, and reauthorization requirements.

Appropriations as implied authorization

Congress may continue funding military personnel, logistics, equipment, intelligence, evacuation, medical care, or withdrawal-related needs while disagreeing with the legality or wisdom of the operation. Executives may then argue that continued funding reflects congressional acquiescence or implied authorization.

Failure illustrated: Support-the-troops funding can be converted into practical authorization unless Congress must speak expressly.

Reform connection: Supports express-authorization language requirements and a rule that troop support, evacuation, medical care, force protection, intelligence, and withdrawal funding are not authorization for hostilities.

Partisan or institutional oversight collapse

War-powers enforcement often depends on whether congressional majorities are willing to confront a President, whether leadership allows votes, whether committees act, and whether members are willing to risk political responsibility for limiting or ending military action. Even when members object, oversight may fail if there is no mandatory vote, minority-triggered process, reporting obligation, or funding consequence.

Failure illustrated: Congressional inaction or leadership bottlenecks may function as practical acquiescence.

Reform connection: Supports expedited procedures, minority-triggered review, mandatory reporting, funding consequences, and presentment-compliant votes.

Proposed Remedy

Congress should consider a comprehensive statutory reform package that:

1. defines hostilities, offensive hostilities, emergency defensive action, introduction into hostilities, imminent hostilities, and covered military operations with greater specificity;
2. expressly prohibits the President from initiating offensive hostilities without specific statutory authorization;
3. requires prior statutory authorization for non-emergency offensive or discretionary hostilities;
4. permits narrow emergency defensive action only where necessary to repel or prevent an imminent attack, rescue or protect U.S. persons from imminent harm, evacuate U.S. persons from imminent danger, or respond to comparable immediate defensive exigency;
5. excludes punitive retaliation, reprisal strikes, deterrent strikes, coercive diplomacy, preventive war, degradation campaigns, regime-change operations, occupation, seizure of territory, sustained targeting campaigns, and conduct-altering operations from

- unilateral emergency authority;
- 6. includes an anti-relabeling rule preventing executive labels from controlling statutory classification;
- 7. requires rapid public and classified reporting to Congress after emergency action;
- 8. requires prompt congressional authorization for continuation beyond a short emergency window;
- 9. establishes automatic termination, withdrawal, and force-protection rules when authorization is absent or expires;
- 10. imposes AUMF specificity, sunset, renewal, mission-scope, geography, enemy-identification, and material-change requirements;
- 11. requires executive legal-basis certification and disclosure or controlled congressional access to material legal interpretations;
- 12. requires adequate pre-authorization information before Congress votes on new or renewed force authorization;
- 13. requires reauthorization for material mission expansion;
- 14. prohibits treating appropriations, procurement, logistics support, intelligence support, or general defense funding as authorization unless Congress expressly states that authorization;
- 15. creates automatic funding restrictions for unauthorized hostilities after the statutory deadline;
- 16. provides expedited congressional procedures for authorization or disapproval votes; and
- 17. preserves genuinely defensive commander-in-chief action while preventing open-ended unilateral offensive war initiation.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a binding statutory amendment to the War Powers Resolution, AUMF framework, and related appropriations and reporting rules, enacted through bicameralism and presentment and, if necessary, presidential veto override. A constitutional amendment may be theoretically available, but it is not the first-line remedy.

Proposed Legislation

- War Powers and Use-of-Force Authorization Reform Act

Relationship to Former A-03 Candidate Issues

WAR-002 through WAR-008 are collapsed into WAR-001 rather than developed as separate issue files or standalone legislative vehicles. They remain useful as subcomponents for source development, drafting checks, and section-by-section review.

Annotation

Collapsed A-03 Structure. WAR-001 is the comprehensive A-03 issue. WAR-002 through WAR-008 are retired as separate candidate issue tracks and merged into WAR-001.

Mature Reform Field. WAR-001 should include a proposal-survey phase before final legislative drafting. Prior war powers reform bills and scholarship should be compared rather than ignored.

No Unilateral Offensive Action. The central substantive principle is that the President may act alone to defend against immediate harm, but may not act alone to initiate, punish, deter, coerce, degrade, or reshape foreign actors through offensive military force.

Survey Status. Initial survey completed. Further source development should still review bill text and committee materials before drafting final legislation.

Source-Development Status. Initial examples have been incorporated into this issue. Further work should add precise citations, bill numbers, OLC opinion references, CRS report references, and committee materials.

Statutory First-Line Remedy. A constitutional amendment is not necessary as the initial remedy. Congress can create meaningful legal and political constraints by ordinary legislation.

Judicial Enforcement Uncertainty. Some war powers disputes may remain difficult to litigate. The statutory remedy should be designed to create political, appropriations, reporting, internal executive-branch, and congressional-process consequences even where courts decline review.

Presentment Required. Binding reform requires ordinary legislation subject to presidential signature or veto. Congress may override a veto by a two-thirds vote of both Houses.

Concurrent Resolution Insufficient. A standalone concurrent resolution should not be treated as a binding mechanism for imposing legal consequences.

Working Draft. A first working draft has been created and should be refined against prior reform models before being treated as mature legislative text.

Source Development Pending. Further source development should review the War Powers Resolution of 1973, *INS v. Chadha*, post-1973 uses of force, Office of Legal Counsel opinions, National Security Powers Act of 2021, National Security Reforms and Accountability Act, No More Presidential Wars Act, AUMF repeal proposals, funding-cutoff precedents, and congressional expedited-procedure models.

A-04 — Judicial Independence and Enforcement

Generalized Institutional Concern

The federal judiciary's authority to interpret and apply law is not matched by a sufficiently independent and reliable enforcement structure capable of ensuring timely executive compliance during interbranch conflict, nor by sufficiently determinate recusal rules for unusually legitimacy-sensitive presidential-party litigation.

Issues

- JUD-001 — Executive Dependence of Judicial Enforcement
- **JUD-002** — Inadequate remedies for executive noncompliance _(status: Candidate; priority: High)_
- **JUD-003** — Delay as functional defiance _(status: Candidate; priority: High)_
- **JUD-004** — Lack of an independent judicial enforcement officer or service _(status: Candidate; priority: High)_
- **JUD-005** — Weak or partisan congressional response to judicial defiance _(status: Candidate; priority: High)_
- **JUD-006** — Uncertainty regarding contempt and coercive sanctions against senior executive officials _(status: Candidate; priority: High)_
- **JUD-007** — Evasion through substitution, reorganization, or nominally revised directives _(status: Candidate; priority: High)_
- **JUD-008** — Insufficient transparency and verification regarding compliance _(status: Candidate; priority: High)_
- JUD-009 — Appointer-President Recusal

Notes

JUD-009 is developed. Remaining judicial-independence issues are provisional and require full source development.

JUD-001 — Executive Dependence of Judicial Enforcement

Issue Snapshot

Problem: Executive defiance can blunt court orders.

Repair: Impose named-official contempt accountability.

Vehicle: Civil contempt statute (draft).

Institutional Anomaly

Federal courts can issue binding judgments and orders against executive officials, but practical enforcement often depends on executive-branch compliance, executive-controlled personnel, or ordinary contempt tools that may be too slow, diffuse, or institutionally cautious during a separation-of-powers crisis.

The anomaly is not that every adverse executive-party order requires extraordinary enforcement. The problem is that, when executive officials resist, delay, narrow, or selectively implement judicial relief, the judiciary lacks a fast and reliable civil-enforcement structure that identifies accountable officials and imposes consequences that cannot be absorbed by the agency or taxpayers.

Manifestation of the Failure

Executive noncompliance may appear as refusal to act, delayed implementation, incomplete implementation, evasive interpretation of an order, failure to identify the official responsible for compliance, shifting responsibility among agencies or components, or continued reliance on a superseded directive while litigation continues.

Ordinary institutional sanctions may not create adequate pressure where no individual official is made answerable, where agency budgets absorb monetary consequences, where compliance information remains inside the executive branch, or where appellate delay allows the practical effect of noncompliance to become irreversible.

Concrete Manifestations and Examples

Alien Enemies Act removal flights - in-progress executive action after judicial intervention

In March 2025, litigation challenging removals under the Alien Enemies Act produced an immediate conflict over whether removal flights had to stop or turn around after a district-court order and oral direction. Public reporting described the government as arguing that the oral direction was not enforceable as an injunction and that the flights were outside the United States by the time the written order issued. The episode illustrates the risk that, during fast-moving executive action, no named responsible official is immediately accountable to certify receipt, transmit the court's order, pause implementation, preserve records, and report compliance facts to the court. See *The Guardian*, April 16, 2025; *Washington Post*, March 20, 2025.

The reform connection is responsible-official designation, immediate sworn compliance reporting, and expedited factual hearings focused on who received the order, who had authority to stop or alter implementation, what steps were taken, and whether noncompliance was willful, impossible, or the result of good-faith legal uncertainty.

Abrego Garcia - inability to identify and execute return obligations after wrongful removal

After Kilmar Abrego Garcia was removed to El Salvador despite protection against removal there, federal litigation required the government to facilitate his return. Public reporting described a Justice Department lawyer acknowledging in court that Abrego Garcia should not have been removed and that the lawyer lacked answers from government officials about why the government could not return him. Later proceedings involved expedited discovery, assertions of privilege, and disputes over whether the government was meaningfully complying. See *Politico*, April 5, 2025; *Associated Press*, April 2025.

The manifestation is not merely the underlying removal error. It is the post-order enforcement problem: the court had to seek information from within the executive branch while responsibility, authority, and implementation capacity were unclear. JUD-001's remedy would require the government to identify a responsible official, file a sworn plan, and expose noncompliance to prompt civil-contempt review.

Melgar-Salmeron - removal after appellate stay and later return order

In May 2025, Jordin Alexander Melgar-Salmeron was deported to El Salvador shortly after the Second Circuit had suspended his removal. Reporting on the later appellate order described the government's explanation as a confluence of administrative errors. The court ordered the government to facilitate his return and to report his location, custodial status, and the steps and timeline for return. See *Associated Press*, June 24, 2025; *The Guardian*, June 24, 2025.

This example illustrates how executive noncompliance may arise from operational fragmentation rather than an express public refusal. For institutional design purposes, the distinction matters less than the enforcement gap: a judicial stay must trigger an identifiable executive compliance chain, a named accountable official, and personal consequences if willful or reckless disregard prevents timely compliance.

New Jersey U.S. Attorney's Office leadership dispute - courtroom authority and chain-of-command confusion

In March 2026, a federal judge ejected Mark Coyne, the head of appeals in the New Jersey U.S. Attorney's Office, from a sentencing hearing after Coyne had not formally entered an appearance in the case. Reporting by the Defender Services Office described the hearing as escalating into questions about who was actually in charge of the office, including whether former interim U.S. Attorney Alina Habba, by then a senior adviser at the Department of Justice, continued to exert influence over the office. The court ordered three office leaders, who had reportedly been found to be occupying their positions unlawfully, to testify about the office's leadership structure. See Defender Services Office, March 17, 2026.

This example illustrates a narrower but important version of the same enforcement problem: the court must be able to identify which government lawyer has authority to appear, who supervises that lawyer, and which official is answerable when executive-branch leadership confusion affects representations to the court. It supports requiring clear appearance authority, identification of responsible supervising officials, and immediate court-management sanctions where government counsel disregards appearance rules or courtroom instructions.

Resulting Damage

Weak enforcement of judicial orders undermines the rule of law, encourages strategic delay, burdens prevailing parties with repeated enforcement litigation, and teaches future officials that court orders may be treated as negotiable. In high-stakes public-law cases, delayed or incomplete compliance can defeat the remedy even if the court's legal ruling remains formally intact.

Underlying Weakness

Existing contempt doctrine gives courts important authority, but it does not always supply a structured, predictable, and personally accountable path for executive-party noncompliance. In particular, the system may lack:

- mandatory identification of a senior official responsible for implementation;
- sworn compliance plans and status reports;
- expedited show-cause proceedings for alleged noncompliance;
- calibrated civil-contempt penalties tied to actual authority and practical ability to comply;
- a rule preventing contempt penalties for willful defiance from being shifted to the agency, Treasury, or taxpayers; and
- automatic notice to inspectors general and Congress when executive noncompliance becomes persistent or willful.

Repair and Prevention

Congress should strengthen civil contempt and compliance tools in cases involving federal executive officials, while preserving ordinary appeal, stay, due-process, privilege, and national-security safeguards.

The remedy should authorize a court entering coercive relief against the United States, a federal agency, or a federal officer to require designation of a named responsible official with practical authority over compliance. That official should file a sworn implementation plan and periodic compliance reports when ordered by the court.

Upon a credible allegation of noncompliance, the court should have authority to set an expedited show-cause hearing, require sworn declarations from responsible officials, make factual findings regarding practical ability to comply, and impose coercive civil-contempt remedies where noncompliance is willful or unjustified.

Civil-contempt monetary penalties for willful noncompliance should be borne personally by the named responsible official after notice, an opportunity to be heard, and a finding that the official had legal or practical authority to comply or to take materially necessary compliance steps. Such penalties should not be paid, reimbursed, indemnified, or otherwise shifted to agency funds, appropriated funds, the Judgment Fund, or other public money, except pursuant to a specific later act of Congress.

Persistent or willful noncompliance should trigger notice to the relevant inspector general, the Attorney General for civil-enforcement coordination, and the judiciary and oversight committees of Congress. This notice mechanism should be informational and remedial, not a substitute for judicial enforcement.

Proposal Survey

Courts already possess contempt authority, and federal rules permit enforcement of judgments and appointment of masters in appropriate cases. See 18 U.S.C. § 401, Federal Rule of Civil Procedure 53, and Federal Rule of Civil Procedure 70.

More complex proposals could create an independent judicial enforcement service or nonexecutive prosecution trigger. JUD-001 starts with the narrower model: strengthen civil contempt and compliance reporting, make responsible officials identifiable, and require personal payment where willful noncompliance is found.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a statutory executive-compliance and civil-contempt framework that makes existing judicial authority faster, clearer, and personally accountable.

This approach is narrower than creating an independent judicial enforcement service. It uses familiar tools: responsible-officer designation, sworn compliance plans, expedited hearings, civil-contempt sanctions, fee shifting, remedial-cost awards, and notice to oversight institutions. It also avoids making criminal prosecution initiation part of this issue. Non-executive initiation of contempt or related prosecutions belongs in the separate congressional and prosecution-independence issues, including CONG-005.

Proposed Legislation

- Executive Compliance and Civil Contempt Accountability Act

Annotation

Personal Payment. The personal-payment rule is central. A contempt fine that can be paid by an agency, reimbursed by the Treasury, or treated as a litigation cost will not reliably deter willful executive defiance. The rule should be limited to willful noncompliance after due process and a finding of practical ability to comply, so that officials are not punished personally for good-faith legal disputes, impossibility, ambiguity, privilege review, or compliance obligations outside their control.

Good-Faith Disputes. The framework should preserve ordinary mechanisms for seeking clarification, modification, stay, mandamus, or appeal. It should not punish officials for making timely, nonfrivolous legal arguments about the scope, legality, or feasibility of an order.

Relationship to JUD-004. JUD-004 concerns whether the judiciary needs an independent enforcement officer or service. JUD-001 starts with the less complex remedy of strengthening contempt and compliance tools. An independent enforcement service remains a fallback if personal civil contempt and compliance supervision prove inadequate.

Relationship to JUD-006. JUD-006 concerns uncertainty regarding contempt and coercive sanctions against senior executive officials. JUD-001 identifies executive dependence as the broader structural defect and treats contempt strengthening as the initial remedy.

Relationship to CONG-005. CONG-005 concerns contempt referrals dependent on DOJ. JUD-001 should cross-reference that issue rather than duplicate proposals for non-executive initiation of prosecution.

Source Development Pending. Further development should review 18 U.S.C. § 401, 28 U.S.C. § 1361, 28 U.S.C. § 566, Federal Rule of Civil Procedure 53, Federal Rule of Civil Procedure 70, civil-contempt doctrine, the Judgment Fund, federal indemnification practice, inspector-general notification duties, and constitutional limits on imposing personal financial liability on federal officers.

JUD-009 — Appointer-President Recusal

Issue Snapshot

Problem: Appointer-president cases create legitimacy risks.

Repair: Require tiered appointer-president recusal.

Vehicle: Recusal statute (draft).

Institutional Anomaly

Federal recusal law relies principally on general appearance-of-impartiality standards and judge-specific self-recusal decisions. It does not provide a categorical or tiered reassignment rule when a federal judge is assigned to a proceeding involving the president who appointed that judge.

The institutional problem is not proof of actual bias. The problem is the appearance and legitimacy risk created when a lifetime judicial appointee adjudicates the legal authority, obligations, liability, immunity, privilege, election-related status, or official conduct of the president who selected that judge for federal judicial office.

Manifestations of the Failure

Appointer-president as personal party

A federal judge may be assigned to a civil or criminal case where the president who appointed the judge is personally a party, personally exposed, or seeking personal legal relief. Existing law may permit recusal, but does not create a clear categorical reassignment rule.

Appointer-president as official-capacity party

A case may name the appointing president in official capacity while materially concerning that president's own constitutional or statutory authority, immunity, privilege, records duties, emergency powers, removal authority, election-related powers, or compliance with legal limits. These cases may be formally official-capacity suits but institutionally implicate the appointing president directly.

Broader official-capacity cases

Some official-capacity suits name the president even where relief may be available against the United States, an agency, or a subordinate officer. A broad recusal rule may be justified for public legitimacy, but it also creates judge-shopping risks if parties can trigger recusal merely by naming the president unnecessarily.

Concrete Manifestations and Examples

United States v. Trump classified-documents prosecution — appointer-president as criminal defendant

Judge Aileen Cannon, appointed to the federal bench by President Donald Trump, was assigned to preside over the federal classified-documents criminal case against Trump after his 2023 indictment. The assignment was reported as random. Public calls for recusal followed, based on the appearance-of-impartiality concern created by a Trump appointee presiding over a criminal prosecution of the president who appointed her and by her earlier rulings in a related Mar-a-Lago civil matter.

The point for JUD-009 is not to adjudicate whether Judge Cannon was actually biased or whether any particular ruling was correct. The point is that existing recusal law left a nationally consequential criminal prosecution of an appointing president to ordinary self-recusal standards rather than a categorical or tiered reassignment rule.

Failure illustrated: appointer-president as personal criminal defendant; appearance-of-impartiality controversy; discretionary self-recusal in a high-stakes presidential case.

Reform connection: supports Tier 1 mandatory recusal where the appointing president is a criminal defendant or personally exposed.

Trump v. United States / Mar-a-Lago special-master litigation — appointer-president seeking personal legal relief

Before the classified-documents indictment, Judge Cannon presided over civil litigation brought by Trump seeking appointment of a special master and restrictions on government use of materials seized at Mar-a-Lago. The Eleventh Circuit later reversed key orders and concluded that the district court had improperly exercised jurisdiction.

Again, the issue is not whether the appointing president's appointee was actually biased. The institutional example is that a judge appointed by the litigating former president was assigned to adjudicate personal relief sought by that former president in a matter closely connected to possible criminal exposure.

Failure illustrated: appointer-president as personal litigant seeking individualized relief; later legitimacy controversy amplified by appellate reversal.

Reform connection: supports Tier 1 mandatory recusal for cases where the appointing president is an individual-capacity party or seeks personal legal relief.

Special-counsel report litigation — appointer-president and post-dismissal accountability materials

After dismissal of the classified-documents prosecution, litigation continued over access to and release of special-counsel report materials concerning the classified-documents matter. Judge Cannon reportedly blocked release or sharing of the classified-documents volume outside the Department of Justice, producing further public controversy over whether a judge appointed by Trump should continue deciding matters connected to the investigation and prosecution of Trump.

This example illustrates that appointer-president recusal questions may persist after dismissal of a criminal case, including disputes over records, reports, transparency, congressional access, and post-case accountability materials.

Failure illustrated: continuing appointer-president-adjacent proceedings after dismissal; public legitimacy concern over records and accountability materials.

Reform connection: supports extending Tier 1 or Tier 2 recusal to proceedings materially connected to the appointing president's personal criminal exposure, records obligations, or post-case accountability disputes.

Official-capacity presidential power litigation — president as named official-capacity party

Presidents are often named in suits challenging executive orders, emergency powers, removal decisions, records obligations, privilege assertions, immigration directives, national-security measures, or other exercises of presidential authority. Where the assigned judge was appointed by that same president, the case may formally be an official-capacity matter while substantively requiring adjudication of the appointing president's own legal authority or compliance with legal limits.

Failure illustrated: formal official-capacity posture may obscure direct institutional stakes for the appointing president.

Reform connection: supports Tier 2 mandatory recusal for official-capacity cases materially concerning the appointing president's own constitutional or statutory powers, immunity, privilege, records duties, emergency authority, removal authority, election-related status, or compliance with judicial or statutory limits.

Routine agency litigation with president named unnecessarily — judge-shopping risk

Some cases name the president as a defendant even though complete relief may be available against the United States, an agency, or a subordinate officer. A broad automatic recusal rule could allow parties to trigger reassignment simply by naming the president unnecessarily.

Failure illustrated: overbroad recusal rules can invite strategic pleading and judge-shopping.

Reform connection: supports Tier 3 presumptive, rebuttable recusal for broader official-capacity cases and an anti-gamesmanship provision.

Resulting Damage

Absence of a clear rule can undermine public confidence, encourage strategic recusal motions, leave high-stakes presidential cases dependent on discretionary self-recusal, and cause later legitimacy disputes even where the judge acts in good faith and applies law correctly.

Underlying Weakness

Existing law may lack:

- categorical mandatory recusal where the appointing president is a personal party;
- mandatory recusal for official-capacity cases materially involving the appointing president's own powers, duties, immunity, privilege, records obligations, emergency authority, removal authority, election-related status, or compliance with legal limits;
- a rebuttable presumption for broader official-capacity cases;
- an anti-gamesmanship rule preventing strategic naming of the president solely to force reassignment;
- a neutral reassignment procedure; and
- a severability structure preserving narrower recusal tiers if broader tiers are held invalid.

Repair and Prevention

Congress should amend 28 U.S.C. § 455 or enact a related federal recusal provision establishing a tiered appointer-president recusal rule:

1. **Tier 1 — mandatory recusal for personal-interest cases.** A judge must recuse where the president who nominated the judge is a party in an individual capacity, a criminal defendant, or has a direct personal, financial, electoral, reputational, civil, or criminal legal interest.
2. **Tier 2 — mandatory recusal for core official-authority cases.** A judge must recuse where the appointing president is a party in official capacity and the proceeding materially concerns that president's own constitutional or statutory powers, duties, immunity, privilege, records obligations, emergency authority, removal authority, election-related status, or compliance with judicial or statutory

limits.

3. **Tier 3 — presumptive recusal for broader official-capacity cases.** A judge is presumptively recused where the appointing president is a named official-capacity party, subject to rebuttal where the case is routine, agency-focused, does not materially implicate the president's own legal authority or interests, and complete relief is available without the president as a necessary party.

The legislation should include anti-gamesmanship language and a robust severability clause so that if broader official-capacity coverage is held invalid or overbroad, narrower personal-interest and core-authority recusal rules remain enforceable.

Proposal Survey

Federal recusal law already requires disqualification where impartiality might reasonably be questioned or where specified personal interests exist. See 28 U.S.C. § 455. Existing law, however, relies heavily on judge-specific assessment and does not create an appointer-president category.

Other models include random assignment, reassignment after appellate reversal, and specialized recusal rules for financial or familial interests. JUD-009 extends the categorical-recusal model to the appointer-president relationship while including anti-gamesmanship limits for routine official-capacity cases.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a targeted amendment to federal recusal law. The remedy should not attempt to adjudicate whether any particular judge acted improperly in any past case. It should create prospective, neutral, administrable reassignment rules for future cases.

Proposed Legislation

- Appointer-President Recusal Act

Relationship to Other Issues

- **JUD-001** concerns executive dependence of judicial enforcement.
- **JUD-002** concerns inadequate remedies for executive noncompliance.
- **JUD-003** concerns delay as functional defiance.
- **JUD-009** concerns judicial recusal and reassignment where the appointing president is a party or has a direct institutional or personal stake.

Annotation

Neutrality. The rule applies regardless of party, president, appointing administration, ideology, judge, litigant, or expected outcome.

No Finding of Actual Bias. The issue is institutional legitimacy and administrability, not proof that an appointee judge is actually biased.

Examples Not Findings. Concrete examples, including Judge Cannon's assignment in Trump-related matters, are included as manifestations of appearance and legitimacy concerns, not as findings of misconduct, bias, or legal error beyond what was determined by reviewing courts.

Severability. The tiered structure is intentional. If a court rejects broad official-capacity coverage, narrower personal-party and core-authority coverage should remain in force.

Source Development Pending. Further source development should review 28 U.S.C. § 455, federal judicial recusal doctrine, Code of Conduct guidance, assignment and reassignment procedures, constitutional limits on congressional regulation of judicial procedure, and examples of presidential-party litigation before appointee judges.

A-05 — Presidential Clemency and Pardon Power

Generalized Institutional Concern

The pardon power lacks adequate safeguards against use for personal protection, political reward, obstruction, corruption, self-enrichment, or circumvention of ordinary justice processes, while the professional review process remains advisory and avoidable.

Issues

- **PAR-001** — Personal or political benefit _(status: Candidate; priority: Medium)_
- **PAR-002** — Obstruction or witness inducement _(status: Candidate; priority: Medium)_
- **PAR-003** — Sale, brokerage, or monetization of pardons _(status: Candidate; priority: Medium)_
- **PAR-004** — Pardons benefiting the president or presidential interests _(status: Candidate; priority: Medium)_
- **PAR-005** — Self-pardon uncertainty _(status: Candidate; priority: Medium)_
- **PAR-006** — Bypass of professional clemency review _(status: Candidate; priority: Medium)_
- **PAR-007** — Inadequate transparency _(status: Candidate; priority: Medium)_
- **PAR-008** — Blanket or categorical pardons _(status: Candidate; priority: Medium)_
- **PAR-009** — Transition-period pardons _(status: Candidate; priority: Medium)_
- **PAR-010** — Weak remedies after corrupt use _(status: Candidate; priority: Medium)_

Notes

Provisional inventory; full source development pending.

A-06 — Presidential Conflicts of Interest and Emoluments

Generalized Institutional Concern

The constitutional and statutory framework does not adequately prevent a president from retaining financial interests that may receive benefits from foreign, federal, state, or private actors seeking influence.

Issues

- **EMOL-001** — Lack of mandatory divestment _(status: Candidate; priority: Medium)_
- **EMOL-002** — Presidential exemption from ordinary conflict-of-interest law _(status: Candidate; priority: Medium)_
- **EMOL-003** — Absence of a designated enforcement institution _(status: Candidate; priority: Medium)_
- **EMOL-004** — Standing barriers _(status: Candidate; priority: Medium)_
- **EMOL-005** — Uncertainty over the meaning of emolument _(status: Candidate; priority: Medium)_
- **EMOL-006** — Benefits routed through business entities _(status: Candidate; priority: Medium)_
- **EMOL-007** — Foreign-government patronage _(status: Candidate; priority: Medium)_
- **EMOL-008** — Domestic-government spending at presidential businesses _(status: Candidate; priority: Medium)_
- **EMOL-009** — Inadequate financial disclosure _(status: Candidate; priority: Medium)_
- **EMOL-010** — Lack of an operational congressional-consent process _(status: Candidate; priority: Medium)_
- **EMOL-011** — Remedies that arrive too late _(status: Candidate; priority: Medium)_
- **EMOL-012** — Lack of effective disgorgement _(status: Candidate; priority: Medium)_
- **EMOL-013** — Circumvention through family or affiliated entities _(status: Candidate; priority: Medium)_
- **EMOL-014** — Dependence on impeachment or political restraint _(status: Candidate; priority: Medium)_

Notes

Provisional inventory; full source development pending.

A-07 — Classification, Declassification, and National-Security Information

Generalized Institutional Concern

The classification system concentrates broad authority within the executive branch while lacking sufficiently clear, enforceable, and independently reviewable procedures governing presidential classification and declassification decisions, documentation, disclosure, retention, and misuse.

Issues

- **CLASS-001** — Undocumented presidential declassification _(status: Candidate; priority: Medium)_
- **CLASS-002** — Confusion between declassification and lawful possession _(status: Candidate; priority: Medium)_
- **CLASS-003** — Unclear statutory exceptions such as Restricted Data _(status: Candidate; priority: Medium)_
- **CLASS-004** — Classification used to conceal misconduct or embarrassment _(status: Candidate; priority: Medium)_
- **CLASS-005** — Politically selective declassification _(status: Candidate; priority: Medium)_
- **CLASS-006** — Inadequate protection against exposure of intelligence sources and methods _(status: Candidate; priority: Medium)_
- **CLASS-007** — Weak archival and agency implementation procedures _(status: Candidate; priority: Medium)_
- **CLASS-008** — Overclassification and excessive secrecy _(status: Candidate; priority: Medium)_
- **CLASS-009** — Insufficient congressional access and oversight _(status: Candidate; priority: Medium)_
- **CLASS-010** — Limited external review and judicial remedies _(status: Candidate; priority: Medium)_
- **CLASS-011** — Politicized security-clearance authority _(status: Candidate; priority: Medium)_
- **CLASS-012** — Inconsistent accountability for unauthorized retention or disclosure _(status: Candidate; priority: Medium)_

Notes

Provisional inventory; full source development pending.

A-08 — Civil Service and Professional Administration

Generalized Institutional Concern

The executive branch retains excessive practical capacity to convert career administration into a loyalty-based workforce through reclassification, removal, reassignment, hiring control, intimidation, and erosion of merit protections.

Issues

- CIV-001 — Political reclassification of career positions _(status: Candidate; priority: High)_
- CIV-002 — Removal or reassignment for disfavored professional judgments _(status: Candidate; priority: High)_
- CIV-003 — Loyalty tests and partisan hiring _(status: Candidate; priority: High)_
- CIV-004 — Weak protection for refusal of unlawful directives _(status: Candidate; priority: High)_
- CIV-005 — Loss of technical and institutional capacity _(status: Candidate; priority: High)_
- CIV-006 — Inadequate and delayed personnel remedies _(status: Candidate; priority: High)_
- CIV-007 — Politicized promotion and performance systems _(status: Candidate; priority: High)_
- CIV-008 — Mass reduction or hollowing of agency capacity _(status: Candidate; priority: High)_
- CIV-009 — Repurposed technical units as cross-agency operational control mechanisms _(status: Candidate; priority: High)_

Issue Boundaries

- CIV-009 concerns the use of an existing technical, digital-service, temporary, advisory, or White House-linked unit to exercise practical cross-agency control over personnel, data systems, software access, contracts, grants, payments, reductions in force, or agency operations without ordinary appointment, delegation, transparency, privacy, records, procurement, appropriations, and oversight safeguards. The DOGE repurposing of the United States Digital Service is the principal source-development example: Executive Order 14158 renamed the United States Digital Service as the United States DOGE Service, created a temporary DOGE organization, directed agency DOGE teams, and called for access to unclassified agency records, software systems, and IT systems. See Executive Order 14158, 90 Fed. Reg. 8441 (Jan. 29, 2025).

Notes

Provisional inventory; full source development pending.

A-09 — Inspectors General, Whistleblowers, and Internal Oversight

Generalized Institutional Concern

Internal watchdogs lack sufficient independence, access, tenure protection, remedial authority, and enforcement capacity to investigate executive misconduct when agency leadership or the president resists.

Issues

- **OVS-001** — Removal or intimidation of inspectors general _(status: Candidate; priority: High)_
- **OVS-002** — Use of acting officials to weaken independence _(status: Candidate; priority: High)_
- **OVS-003** — Denial of records, access, or testimony _(status: Candidate; priority: High)_
- **OVS-004** — Retaliation against whistleblowers _(status: Candidate; priority: High)_
- **OVS-005** — Suppression or delay of reports _(status: Candidate; priority: High)_
- **OVS-006** — Inability to enforce recommendations _(status: Candidate; priority: High)_
- **OVS-007** — Weak congressional notification and follow-up _(status: Candidate; priority: High)_
- **OVS-008** — Insufficient independence of internal ethics offices _(status: Candidate; priority: High)_

Notes

Provisional inventory; full source development pending.

A-10 — Emergency Powers and Domestic Executive Authority

Generalized Institutional Concern

Presidents can invoke broadly worded emergency statutes to unlock extraordinary powers without sufficiently demanding findings, narrow scope, firm time limits, recurring legislative approval, or prompt judicial review.

Issues

- **EMERG-001** — Open-ended national-emergency declarations _(status: Candidate; priority: High)_
- **EMERG-002** — Use of emergency authority to redirect appropriated funds _(status: Candidate; priority: High)_
- **EMERG-003** — Emergency economic powers used beyond immediate crises _(status: Candidate; priority: High)_
- **EMERG-004** — Border or immigration emergency declarations _(status: Candidate; priority: High)_
- **EMERG-005** — Weak congressional termination procedures _(status: Candidate; priority: High)_
- **EMERG-006** — Indefinite renewal of emergencies _(status: Candidate; priority: High)_
- **EMERG-007** — Insufficiently specific factual findings _(status: Candidate; priority: High)_
- **EMERG-008** — Delayed or deferential judicial review _(status: Candidate; priority: High)_

Notes

Provisional inventory; full source development pending.

A-11 — Congressional Power of the Purse and Impoundment

Generalized Institutional Concern

The executive branch can delay, condition, redirect, or refuse congressionally appropriated spending while available enforcement mechanisms remain too slow, uncertain, or politically dependent.

Issues

- **FUND-001** — Unlawful impoundment _(status: Candidate; priority: Medium)_
- **FUND-002** — Pocket rescissions and strategic delay _(status: Candidate; priority: Medium)_
- **FUND-003** — Agency closure or program nullification through nonspending _(status: Candidate; priority: Medium)_
- **FUND-004** — Politically selective withholding of grants or aid _(status: Candidate; priority: Medium)_
- **FUND-005** — Reprogramming beyond congressional intent _(status: Candidate; priority: Medium)_
- **FUND-006** — Weak standing and remedies _(status: Candidate; priority: Medium)_
- **FUND-007** — Insufficient personal accountability _(status: Candidate; priority: Medium)_
- **FUND-008** — Inadequate real-time reporting to Congress and GAO _(status: Candidate; priority: Medium)_

Notes

Provisional inventory; full source development pending.

A-12 — Appointments, Acting Officials, and Senate Confirmation

Generalized Institutional Concern

The executive can bypass or substantially weaken Senate confirmation through extended acting service, delegation of authority, vacancy manipulation, recess appointments, and reorganization of statutory duties.

Issues

- **APPT-001** — Excessive reliance on acting officials _(status: Candidate; priority: Medium)_
- **APPT-002** — Evasion of the Federal Vacancies Reform Act _(status: Candidate; priority: Medium)_
- **APPT-003** — Delegation around expired acting service _(status: Candidate; priority: Medium)_
- **APPT-004** — Installation of insufficiently vetted loyalists _(status: Candidate; priority: Medium)_
- **APPT-005** — Removal and replacement of confirmed officers _(status: Candidate; priority: Medium)_
- **APPT-006** — Manipulation of office titles and duties _(status: Candidate; priority: Medium)_
- **APPT-007** — Weak consequences for unlawful service _(status: Candidate; priority: Medium)_
- **APPT-008** — Inadequate transparency concerning succession and authority _(status: Candidate; priority: Medium)_

Issue Boundaries

- **APPT-006** concerns executive manipulation of statutory office, department, component, or officer titles, duties, and public-facing labels in ways that may blur Congress's enacted office structure, Senate-confirmed role definitions, reporting lines, or legal accountability. A principal source-development example is Executive Order 14347, which authorized use of "Department of War" and "Secretary of War" as secondary titles while acknowledging that statutory references to the Department of Defense and Secretary of Defense remain controlling until changed by law. See Executive Order 14347, 90 Fed. Reg. 43893 (Sept. 10, 2025); 10 U.S.C. § 111.

Notes

Provisional inventory; full source development pending.

A-13 — Presidential Records, Archives, and Government Information

Generalized Institutional Concern

Record-preservation rules depend too heavily on executive compliance and lack sufficiently rapid and independent enforcement when records are removed, destroyed, concealed, privatized, or transmitted through unofficial systems.

Issues

- **REC-001** — Removal or concealment of presidential records _(status: Candidate; priority: Medium)_
- **REC-002** — Destruction or deletion of records _(status: Candidate; priority: Medium)_
- **REC-003** — Use of private messaging or unofficial systems _(status: Candidate; priority: Medium)_
- **REC-004** — Weak National Archives enforcement authority _(status: Candidate; priority: Medium)_
- **REC-005** — Delayed litigation and recovery _(status: Candidate; priority: Medium)_
- **REC-006** — Preservation of websites, datasets, and digital records _(status: Candidate; priority: Medium)_
- **REC-007** — Ambiguous separation of personal and presidential records _(status: Candidate; priority: Medium)_
- **REC-008** — Insufficient transition-period custody controls _(status: Candidate; priority: Medium)_

Notes

Provisional inventory; full source development pending.

A-14 — Federal Law-Enforcement and Military Use Inside the United States

Generalized Institutional Concern

The president retains broad and partially ambiguous authority to deploy federal law-enforcement personnel, the National Guard, or military resources domestically while legal limits and legislative controls may be too weak during political conflict.

Issues

- **DOM-001** — Overbroad Insurrection Act authority _(status: Candidate; priority: Medium)_
- **DOM-002** — Ambiguity in Posse Comitatus limitations _(status: Candidate; priority: Medium)_
- **DOM-003** — Federalization of the National Guard over state objection _(status: Candidate; priority: Medium)_
- **DOM-004** — Deployment around protests or elections _(status: Candidate; priority: Medium)_
- **DOM-005** — Unidentified or inadequately accountable federal forces _(status: Candidate; priority: Medium)_
- **DOM-006** — Federal-property authority used as a pretext for broader operations _(status: Candidate; priority: Medium)_
- **DOM-007** — Domestic military intelligence activity _(status: Candidate; priority: Medium)_
- **DOM-008** — Insufficient expedited judicial review _(status: Candidate; priority: Medium)_

Notes

Provisional inventory; full source development pending.

A-15 — Congressional Oversight and Executive Accountability

Generalized Institutional Concern

Congressional oversight becomes ineffective when subpoenas, testimony demands, document requests, appropriations controls, and contempt mechanisms depend on voluntary executive compliance or partisan congressional will.

Issues

- **CONG-001** — Weak enforcement of congressional subpoenas _(status: Candidate; priority: High)_
- **CONG-002** — Overbroad executive-privilege claims _(status: Candidate; priority: High)_
- **CONG-003** — Claims of testimonial immunity _(status: Candidate; priority: High)_
- **CONG-004** — Delay through litigation _(status: Candidate; priority: High)_
- **CONG-005** — Contempt referrals dependent on DOJ _(status: Candidate; priority: High)_
- **CONG-006** — Lack of expedited judicial review _(status: Candidate; priority: High)_
- **CONG-007** — Weak committee investigative capacity _(status: Candidate; priority: High)_
- **CONG-008** — Partisan collapse of oversight under unified government _(status: Candidate; priority: High)_

Notes

Provisional inventory; full source development pending.

A-16 — Presidential Immunity and Accountability for Official Misconduct

Generalized Institutional Concern

The legal system lacks a sufficiently clear, timely, and enforceable framework for holding presidents accountable for criminal, civil, or constitutional misconduct committed while in office or under the asserted mantle of official authority.

Issues

- IMM-001 — Criminal Immunity for Presidential Official Acts
- **IMM-002** — Civil immunity and remedial gaps _(status: Candidate; priority: High)_
- **IMM-003** — Statutes of limitation during presidential tenure _(status: Candidate; priority: High)_
- **IMM-004** — Restrictions on evidentiary use of official conduct _(status: Candidate; priority: High)_
- **IMM-005** — Delay as de facto immunity _(status: Candidate; priority: High)_
- **IMM-006** — Relationship between impeachment and criminal liability _(status: Candidate; priority: High)_
- **IMM-007** — Self-protective use of presidential powers _(status: Candidate; priority: High)_
- **IMM-008** — Independent investigation and prosecution mechanisms _(status: Candidate; priority: High)_

Ownership and Cross-Reference

IMM-001 is the primary home for substantive reform of presidential criminal immunity, including core powers, presumptive official-act immunity, motive evidence, admissibility of official conduct, impeachment prerequisites, and temporary sitting-President protections.

DOJ-007 owns the independent institutional mechanism for investigation, evidence preservation, prosecution of other persons, and reporting to Congress. The two proposals are independently operable and mutually reinforcing.

IMM-003, IMM-004, IMM-006, and IMM-008 may require later consolidation or narrowing because IMM-001 and DOJ-007 now address portions of their present candidate descriptions. The issue-admission test should be reapplied before separate development.

Notes

IMM-001 is developed. Remaining issues are provisional and require full source development and overlap review.

IMM-001 — Criminal Immunity for Presidential Official Acts

Issue Snapshot

Problem: Official-act immunity can bar accountability.

Repair: Abolish presidential criminal immunity.

Vehicle: Constitutional amendment (draft).

Institutional Anomaly

Current doctrine grants a former President absolute immunity from criminal prosecution for conduct within the President's conclusive and preclusive constitutional authority and at least presumptive immunity for other official acts. It also restricts examination of motive, imposes a prosecution burden tied to institutional intrusion, and limits the evidentiary use of protected official conduct. The result may prevent otherwise valid criminal law from reaching conduct undertaken through official authority.

Manifestation of the Failure

In *Trump v. United States*, 603 U.S. 593 (2024), the Supreme Court held that presidential communications with DOJ concerning investigation and prosecution fall within the President's exclusive constitutional authority and therefore receive absolute criminal immunity. The Court further held that a former President receives at least presumptive immunity for other official acts, generally prohibited inquiry into motive when classifying conduct, and required the prosecution to overcome immunity by showing that criminal adjudication would not intrude on executive authority.

The Court also restricted evidentiary use of immune official acts, including testimony and records used to probe presidential conduct or motive. The decision therefore affected not only whether official conduct could be charged, but also whether that conduct could be used to prove criminal intent or contextualize otherwise prosecutable acts.

The decision insulated alleged efforts to use DOJ authority to promote sham or pretextual investigations from criminal adjudication, even though the same factual conduct may remain relevant to impeachment, congressional oversight, institutional reform, and the liability of other participants.

Resulting Damage

The doctrine can place criminal use of official power beyond ordinary judicial accountability, exclude highly probative evidence, reward the use of governmental machinery rather than private means, delay adjudication, and create uncertainty over whether generally applicable or President-specific criminal statutes constrain presidential conduct.

Underlying Weakness

The Constitution contains no express presidential criminal-immunity clause. The Court derived immunity from separation-of-powers concerns and the need to avoid chilling lawful presidential decisionmaking. Those concerns are legitimate but need not require categorical immunity, presumptive immunity, a prosecutorial burden to prove the absence of institutional intrusion, exclusion of official-act evidence, or a bar on examining motive where criminal intent is an element.

The principal problem is not that every mistaken or abusive policy decision should become criminal. Criminal liability must still depend on a valid criminal statute, all offense elements, proof beyond a reasonable doubt, and ordinary constitutional protections.

Repair and Prevention

The Constitution should expressly abolish both absolute immunity for conclusive or preclusive presidential powers and presumptive immunity for other official acts. Official status, official classification, or the use of a core presidential power should not independently bar criminal investigation, prosecution, adjudication, or punishment.

The amendment should permit examination of motive where intent is legally relevant and should provide that presidential immunity creates no independent evidentiary exclusion rule. Official communications, testimony, records, and surrounding circumstances should remain admissible when otherwise relevant and lawful, subject to executive privilege, classification protections, fair-trial rights, and ordinary evidentiary rules.

Separation-of-powers concerns may justify tailored scheduling, privilege, process, venue, screening, or remedial protections. They should not create immunity or require the prosecution to prove that adjudication presents no danger of institutional intrusion.

The amendment should apply to any valid federal criminal law, whether generally applicable or specifically applicable to federal officers or the President. It should preserve lawful discretion by requiring proof of every element and should not criminalize policy disagreement, good-faith constitutional interpretation, or the lawful exercise of presidential authority standing alone.

Proposal Survey

Ordinary legislation can define federal crimes, procedures, and limitations periods, but it cannot reliably supersede a constitutional immunity rule announced by the Supreme Court. The controlling modern baseline is *Trump v. United States*, 603 U.S. 593 (2024).

Possible reform models include narrower statutory clarification, impeachment-first accountability, independent screening, or a constitutional amendment. IMM-001 selects amendment because the defect is constitutional doctrine, while preserving procedural safeguards against partisan or legally deficient prosecutions.

Least-Complex Adequate Remedy

Adopt a constitutional amendment providing that:

1. neither absolute immunity for conclusive or preclusive presidential authority nor presumptive immunity for other official acts bars criminal accountability;
2. use of a core presidential power may constitute conduct, evidence, or an element of a valid federal offense where all constitutional and statutory requirements are satisfied;
3. criminal liability may arise under either a generally applicable law or a law specifically applicable to federal officers or the President;
4. motive may be considered where intent is an offense element;
5. presidential immunity creates no evidentiary exclusion rule for official communications, testimony, records, or surrounding circumstances;
6. separation-of-powers concerns may support tailored procedural protections but not immunity or a requirement that prosecutors prove the complete absence of institutional intrusion;
7. impeachment and Senate conviction are not prerequisites to criminal prosecution;
8. a sitting President may remain temporarily protected from indictment or trial while in office, with limitations periods tolled; and
9. independent screening and expedited review protect against partisan or legally deficient prosecutions.

Proposed Constitutional Amendment

The proposed text is maintained separately as the Presidential Criminal Accountability Amendment.

Relationship to DOJ-007

DOJ-007 owns the institutional mechanism for independent investigation, evidence preservation, prosecution of other persons, and reporting to Congress when ordinary executive investigation is unreliable.

IMM-001 owns the substantive rule governing whether a President or former President may claim criminal immunity. The two proposals are independently operable but mutually reinforcing.

Annotation

Basis and Evidence. *Trump v. United States* recognized absolute immunity for core presidential powers, presumptive immunity for other official acts, and no immunity for unofficial acts. It also limited motive inquiry, placed an institutional-intrusion burden on prosecution of official acts, and restricted the evidentiary use of immune official conduct.

Qualification. The amendment should not authorize prosecution based solely on controversial policy, lawful use of a constitutional power, or disagreement with a predecessor administration. All offense elements, burdens of proof, privileges, classification rules, and defendant protections remain applicable.

Remedial Alternatives and Constraints. Ordinary legislation may clarify statutory coverage but cannot reliably supersede a constitutional immunity rule announced by the Supreme Court. A constitutional amendment is therefore the least-complex durable remedy.

A-17 — Independent Agencies and Regulatory Neutrality

Generalized Institutional Concern

The constitutional and statutory position of independent agencies is increasingly unstable, while presidential control over removal, enforcement, adjudication, funding, and rulemaking may compromise functions intended to operate with some insulation from immediate partisan command.

Issues

- **REG-001** — Erosion of removal protections _(status: Candidate; priority: Medium)_
- **REG-002** — Politicized enforcement or nonenforcement _(status: Candidate; priority: Medium)_
- **REG-003** — Control of administrative adjudication _(status: Candidate; priority: Medium)_
- **REG-004** — Suspension or dismantling of agency operations _(status: Candidate; priority: Medium)_
- **REG-005** — Manipulation of commissions through vacancies _(status: Candidate; priority: Medium)_
- **REG-006** — Presidential control of rulemaking and legal positions _(status: Candidate; priority: Medium)_
- **REG-007** — Threats to independent funding _(status: Candidate; priority: Medium)_
- **REG-008** — Unclear constitutional design options after recent doctrine _(status: Candidate; priority: Medium)_

Notes

Provisional inventory; full source development pending.

A-18 — Government Scientific, Statistical, and Factual Integrity

Generalized Institutional Concern

Official data, scientific findings, public-health guidance, economic statistics, historical information, and technical assessments remain vulnerable to suppression, alteration, delay, selective publication, or political reinterpretation.

Issues

- **FACT-001** — Political review or alteration of scientific reports _(status: Candidate; priority: High)_
- **FACT-002** — Removal or suppression of datasets _(status: Candidate; priority: High)_
- **FACT-003** — Manipulation of publication schedules _(status: Candidate; priority: High)_
- **FACT-004** — Interference with statistical agencies _(status: Candidate; priority: High)_
- **FACT-005** — Censorship of agency terminology _(status: Candidate; priority: High)_
- **FACT-006** — Suppression of unfavorable findings _(status: Candidate; priority: High)_
- **FACT-007** — Political alteration of historical presentation _(status: Candidate; priority: High)_
- **FACT-008** — Insufficient independent archival preservation and methodology protection _(status: Candidate; priority: High)_

Notes

Provisional inventory; full source development pending.

A-19 — Federal Contracting, Grants, Licensing, and Regulatory Retaliation

Generalized Institutional Concern

Presidents and political appointees possess sufficient influence over contracts, grants, licenses, investigations, approvals, and regulatory burdens to reward allies or punish critics without adequately independent review and rapid remedies.

Issues

- **RET-001** — Politically motivated grant cancellation or withholding _(status: Candidate; priority: Medium)_
- **RET-002** — Contracting favoritism or retaliation _(status: Candidate; priority: Medium)_
- **RET-003** — Selective regulatory scrutiny _(status: Candidate; priority: Medium)_
- **RET-004** — Licensing or approval pressure _(status: Candidate; priority: Medium)_
- **RET-005** — Antitrust, tax, or enforcement coercion _(status: Candidate; priority: Medium)_
- **RET-006** — Retaliation against universities, law firms, media, or businesses _(status: Candidate; priority: Medium)_
- **RET-007** — Security-clearance or access retaliation _(status: Candidate; priority: Medium)_
- **RET-008** — Weak emergency remedies and evidentiary transparency _(status: Candidate; priority: Medium)_

Notes

Provisional inventory; full source development pending.

A-20 — Federalism and Presidential Coercion of States

Generalized Institutional Concern

The federal government can use funding, enforcement discretion, emergency authority, deployment powers, waivers, and regulatory pressure to coerce state or local governments for partisan or personal purposes.

Issues

- **FED-001** — Conditioning disaster or infrastructure aid _(status: Candidate; priority: Medium)_
- **FED-002** — Selective enforcement against disfavored states _(status: Candidate; priority: Medium)_
- **FED-003** — Coercive grant conditions _(status: Candidate; priority: Medium)_
- **FED-004** — Federal takeover or displacement of state functions _(status: Candidate; priority: Medium)_
- **FED-005** — Deployment of federal forces over state objection _(status: Candidate; priority: Medium)_
- **FED-006** — Interference with state election systems _(status: Candidate; priority: Medium)_
- **FED-007** — Retaliatory investigations or audits _(status: Candidate; priority: Medium)_
- **FED-008** — Abuse of waiver and approval authority _(status: Candidate; priority: Medium)_

Notes

Provisional inventory; full source development pending.

A-21 — Federal Reserve Independence and Monetary Policy

Generalized Institutional Concern

The Federal Reserve’s operational independence remains vulnerable to presidential pressure, partisan retaliation, appointment manipulation, removal threats, financing pressure, and efforts to subordinate monetary-policy decisions to short-term electoral interests.

Issues

- **FRB-001** — Presidential pressure on interest-rate and monetary-policy decisions _(status: Candidate; priority: Critical)_
- **FRB-002** — Uncertain removal protection for Federal Reserve governors and leadership _(status: Candidate; priority: High)_
- **FRB-003** — Politicized appointments and confirmations _(status: Candidate; priority: High)_
- **FRB-004** — Manipulation through vacancies _(status: Candidate; priority: Medium)_
- **FRB-005** — Threats to financing and operational independence _(status: Candidate; priority: High)_
- **FRB-006** — Political retaliation against Federal Reserve officials _(status: Candidate; priority: High)_
- **FRB-007** — Pre-election monetary manipulation _(status: Candidate; priority: Critical)_
- **FRB-008** — Preservation of accountability alongside instrument independence _(status: Candidate; priority: High)_

Notes

High-priority systemic-risk area. Full source development and annotation pending.

A-22 — Freedom and Independence of the Press

Generalized Institutional Concern

Existing constitutional and statutory safeguards do not adequately prevent presidents and executive officials from using access, investigations, licensing, contracting, regulatory authority, funding, or public intimidation to punish disfavored news organizations, reward favorable coverage, or distort the public factual environment.

Issues

- **PRESS-001** — Retaliatory denial of access _(status: Candidate; priority: High)_
- **PRESS-002** — Selective exclusion from government events and information _(status: Candidate; priority: High)_
- **PRESS-003** — Misuse of investigations, subpoenas, surveillance, or source demands _(status: Candidate; priority: Critical)_
- **PRESS-004** — Regulatory retaliation _(status: Candidate; priority: Critical)_
- **PRESS-005** — Contracting and commercial pressure _(status: Candidate; priority: High)_
- **PRESS-006** — Misuse of official power to threaten or punish reporting _(status: Candidate; priority: High)_
- **PRESS-007** — Manipulation of the factual record _(status: Candidate; priority: Critical)_
- **PRESS-008** — Delegitimization combined with governmental coercive power _(status: Candidate; priority: High)_
- **PRESS-009** — Weak protection for confidential sources _(status: Candidate; priority: High)_
- **PRESS-010** — Public-broadcasting and funding retaliation _(status: Candidate; priority: High)_
- **PRESS-011** — Discriminatory taxation or financial burdens _(status: Candidate; priority: High)_
- **PRESS-012** — Lack of rapid remedies for time-sensitive press disputes _(status: Candidate; priority: High)_

Notes

Distinguish protected criticism from governmental coercive or distributive action.

A-23 — Federal Historic Property and Civic Heritage

Generalized Institutional Concern

Federal historic buildings, monuments, landscapes, civic spaces, museum-like interiors, and commemorative features remain vulnerable to unilateral executive alteration, demolition, privatized redesign, donor influence, expedited construction, opaque security claims, and weak remedies after irreversible physical change.

Issues

- **HER-001** — Unilateral alteration or demolition of the White House and other nationally significant federal historic property _(status: Candidate; priority: High)_
- **HER-002** — Bypass of historic-preservation, planning, arts-commission, environmental, or public-comment review _(status: Candidate; priority: High)_
- **HER-003** — Privately funded or donor-influenced alteration of federal civic property _(status: Candidate; priority: High)_
- **HER-004** — Manipulation of planning, preservation, or fine-arts review bodies _(status: Candidate; priority: Medium)_
- **HER-005** — Security, emergency, or operational-necessity claims used to evade ordinary civic-heritage safeguards _(status: Candidate; priority: Medium)_
- **HER-006** — Removal or alteration of commemorative landscapes, trees, interiors, fixtures, and interpretive features _(status: Candidate; priority: Medium)_
- **HER-007** — Insufficient notice, documentation, public review, and congressional consultation before irreversible work _(status: Candidate; priority: High)_
- **HER-008** — Weak remedies after demolition, construction, donor expenditure, or physical alteration is substantially complete _(status: Candidate; priority: High)_

Issue Boundaries

- **HER-001** should own the structural question whether a President may unilaterally demolish, substantially alter, or replace nationally significant federal historic property, including the White House, without a more durable approval, review, documentation, and congressional-notice regime.
- **HER-003** should own donor-funded or privately financed alteration of federal civic property and should cross-reference EMOL-series issues where donors have business before the federal government.
- **HER-005** should own security or emergency rationales used to avoid preservation and planning review; broader emergency-powers questions remain in A-10.
- **HER-008** should own timing and remedy design where physical destruction or construction can outrun judicial, congressional, or administrative review.

Source-Development Notes

The principal source-development example is the 2025 demolition of the White House East Wing for the White House ballroom project. AP reported that photos showed the East Wing demolished in October 2025. See Associated Press, *White House East Wing demolished as Trump moves forward with ballroom construction, AP photos show* (Oct. 23, 2025). Preservation litigation alleged that the project bypassed legal review requirements and congressional approval. See The Guardian, *Trump sued by preservation group over \$300m White House ballroom project* (Dec. 12, 2025).

Source development should review the White House preservation statutes and executive orders, including 3 U.S.C. § 110 and the statutory notes concerning White House preservation and museum character, National Capital Planning Commission authority, Commission of Fine Arts authority, the National Environmental Policy Act, the National Historic Preservation Act, appropriations controls, donor ethics, and any court orders in litigation concerning the ballroom project.

Notes

Provisional inventory; full source development pending.

Appendix A - Proposed Federal Legislation and Constitutional Amendments

DOJ-001 — Seven-Year Cooling-Off Rule for Attorney General Eligibility

Framework Cross-Reference

Issue DOJ-001: Appointment of recent presidential personal counsel to senior Department of Justice leadership. Least-Complex Adequate Remedy: amend 28 U.S.C. § 503 to impose a seven-year eligibility restriction following covered personal legal representation of the sitting President.

Statutory Analogue

The proposal uses the office-specific cooling-off structure found in 10 U.S.C. § 113(a)(2), which restricts appointment of certain recently retired commissioned officers as Secretary of Defense. That provision is a legislative analogue and historical practice, not a controlling judicial holding on the constitutionality of the proposed Attorney General qualification.

Proposed Amendment

Section 503 of title 28, United States Code, is amended by designating the existing text as subsection (a) and adding at the end the following:

(b)(1) A person may not be appointed to, or serve in, the office of Attorney General during the seven-year period following the termination of covered legal representation of the sitting President.

(2) In this subsection, the term “covered legal representation” means personal legal representation, advice, or advocacy provided directly to—

(A) the President;

(B) the President-elect; or

(C) a candidate for President who subsequently becomes the sitting President, in connection with a criminal investigation or proceeding, civil-enforcement matter, impeachment or removal proceeding, election or campaign matter, personal financial or business interest, claim of personal immunity, or any other matter in which the represented individual’s interests were distinct from, or could reasonably diverge from, the interests of the United States.

(3) Covered legal representation does not include legal service performed solely in an official capacity on behalf of the United States, an agency of the United States, or the Executive Office of the President.

(4) A nominee for Attorney General shall disclose to the Senate and to the designated federal ethics authority all facts reasonably necessary to determine compliance with this subsection.

(5) A civil action challenging an appointment or continued service under this subsection shall receive expedited consideration.

(6) If any provision of this subsection, or its application to any person or circumstance, is held invalid, the remainder of the subsection and its application to other persons or circumstances shall not be affected.

Drafting Notes

- The seven-year period tracks the general lower-grade cooling-off period currently used in 10 U.S.C. § 113(a)(2)(A).
- The rule excludes official government representation so that service as White House Counsel, agency counsel, or another government lawyer is not automatically disqualifying merely because the lawyer represented the institutional presidency or the United States.
- The phrase “could reasonably diverge” is intended to capture personal or political representation presenting a foreseeable institutional conflict while avoiding a prohibition covering every legal service associated with a President.
- No standing waiver is included. Congress could enact an individual waiver by later legislation if an extraordinary case justified it.
- Further refinement should address standing, the identity of the designated ethics authority, timing of disclosure, and whether the rule should extend to the Deputy Attorney General or other specified senior DOJ offices.

Authority Notes

28 U.S.C. § 503 creates the office of Attorney General, prescribes presidential appointment with Senate advice and consent, and designates the Attorney General as head of the Department of Justice.

10 U.S.C. § 113(a)(2) imposes a seven-year or ten-year cooling-off period, depending on grade, for certain former regular commissioned officers before appointment as Secretary of Defense.

DOJ-002 — Proposed Justice Manual § 9-85.115

9-85.115 — Politically Sensitive Criminal Matters

A. Purpose

Federal criminal authority shall not be initiated, directed, timed, or used to coerce, retaliate against, disadvantage, or confer political benefit upon any person, organization, governmental entity, candidate, party, news organization, or protected expressive association. This section does not confer immunity. It establishes heightened procedures to ensure adequate criminal predication, political neutrality, proportionality, and protection against actual or apparent misuse.

B. Covered Matters

A politically sensitive criminal matter includes an investigation, preliminary inquiry, grand-jury matter, charging decision, declination, dismissal, plea agreement, sentencing position, or other prosecutorial action in which a subject, target, proposed recipient of compulsory process, or materially affected person is:

1. a federal, state, Tribal, territorial, or local elected official;
2. a candidate, campaign, political committee, political party, presidential transition, or inaugural committee;
3. a person publicly identified by the President, Vice President, Attorney General, or another senior political appointee as an ally, opponent, adversary, or desired investigative target;
4. a state, Tribal, territorial, or local government or senior official acting for it;
5. a news organization, journalist, publisher, broadcaster, documentary producer, or person engaged in newsgathering;
6. a nonprofit, advocacy, religious, academic, labor, civic, or membership organization substantially engaged in protected speech, association, petitioning, protest, or political activity; or
7. a person or entity whose selection could reasonably appear retaliatory, coercive, selective, or politically motivated.

The section also applies where the matter substantially concerns protected political expression, disagreement with federal policy, refusal by a state or locality to provide assistance not required by law, campaign or election activity, journalism, or conduct in which the White House or a political appointee has expressed particular investigative or prosecutorial interest.

C. Political Neutrality Memorandum

Before opening a preliminary or full investigation, the responsible component shall prepare a written memorandum stating:

1. the potential federal offenses;
2. the factual basis and reliability of the information;
3. the legitimate federal law-enforcement interest;
4. protected speech, association, journalism, petitioning, or federalism concerns;
5. materially comparable matters and the standard applied to them;
6. all White House, political-appointee, campaign, party, transition, or inaugural contacts;
7. whether the proposed action could reasonably appear retaliatory, coercive, selective, or politically motivated;
8. less intrusive alternatives considered; and
9. why the matter is necessary and proportionate.

D. Consultation and Approval

Consultation with the Public Integrity Section is required before opening or materially expanding a covered investigation, presenting evidence to a grand jury, taking an overt public step, materially changing the theory, or declining, closing, dismissing, or narrowing a matter after political contact.

Prior written Public Integrity approval is required before:

1. issuing compulsory process to a covered person or entity;
2. seeking a search warrant, tracking authority, communications data, surveillance, or delayed-notice authority;
3. directing an undercover employee, source, or cooperator to contact a covered person;
4. compelling associational, donor, membership, newsgathering, or source-identifying records;
5. filing or materially altering charges;
6. entering a deferred-prosecution, non-prosecution, plea, dismissal, or material sentencing decision; or

7. taking action reasonably likely to affect an election, legislative proceeding, governmental policy dispute, or protected public debate.

Approval requires written findings of adequate predication, legitimate purpose, necessity, proportionality, inadequate less-intrusive alternatives, neutrality toward protected activity, consistent treatment of comparable matters, and disclosure of political contacts.

E. Political Contacts

All communications concerning a covered matter with the White House, Executive Office of the President, political appointees outside the ordinary supervisory chain, campaigns, parties, transitions, inaugural committees, or persons acting for them shall be logged contemporaneously. The record shall identify participants, time, subject, requests or suggested outcomes, responsive action, and the legal and policy basis for that action.

A covered action may not proceed until Public Integrity has reviewed any such contact and found an independent and sufficient law-enforcement basis. Attempted improper direction, retaliation, coercion, or circumvention shall be reported to OPR and, where appropriate, OIG.

F. Judicial Process

When seeking judicial authorization or enforcement in a covered matter, DOJ shall disclose under seal that the section applies, that required review occurred, whether political contact occurred, whether review was waived or modified, and any material fact necessary to avoid misleading the court concerning predication, purpose, necessity, proportionality, or political influence. Disclosure remains subject to grand-jury, classification, privilege, privacy, and other lawful restrictions.

G. Emergency Exception

An otherwise covered action may proceed without prior review only when delay creates a substantial and imminent risk of death, serious bodily harm, flight, evidence destruction, operational compromise, national-security harm, or expiration of a nonextendable legal deadline. The responsible United States Attorney or Assistant Attorney General shall document the emergency and notify Public Integrity within 24 hours. Disagreement, inconvenience, or expected denial is not an emergency.

H. Continuing Review

Open covered matters shall be reviewed at least every 90 days for continuing predication, necessity, proportionality, political contacts, burden on protected activity, narrowing, closure, and possible corrective or disciplinary action.

I. Record Preservation

All memoranda, approvals, consultations, contact logs, dissents, emergency determinations, periodic reviews, and closure records shall be preserved in the official file and a protected central repository. A change in leadership, policy, theory, or disposition does not authorize alteration or destruction.

J. Amendment, Suspension, and Waiver

This section may not be generally suspended, waived, or materially amended except by a written Attorney General directive identifying the affected provisions, explaining the legal and policy basis, addressing risks of retaliation and selective enforcement, and providing advance notice to OIG, OPR, and the House and Senate Judiciary Committees. The directive shall be public except for lawfully protected portions.

A weakening may operate only prospectively and may not govern a matter already opened unless it affords greater protection. A case-specific waiver may not be approved by an official who participated in political contact concerning the matter.

K. Noncompliance

Noncompliance shall be reported to Public Integrity, OPR, and, where appropriate, OIG. Corrective action may include reassignment, disqualification, withdrawal or reconsideration of process, corrective disclosure to a court, reconsideration of disposition, discipline, and congressional notice. This section creates no private right of action except as otherwise provided by law.

L. Equal Application

This section shall apply without regard to party, ideology, viewpoint, office, relationship to the President, or whether the proposed action benefits or burdens the current Administration. Its purpose is not to shield politically connected persons, but to ensure adequately predicated, neutral, consistent, and lawful use of federal criminal authority.

Drafting Notes

- The proposal extends an existing Public Integrity review model rather than creating a new institution.
- Consultation governs lower-risk steps; prior approval is reserved for coercive or disposition-determinative actions.
- Transparency and prospective-only amendment increase political and institutional cost without falsely claiming that an internal manual provision can legally bind future Attorneys General.
- Statutory codification remains a fallback if experience shows the internal rule can be suspended, evaded, or ignored.

Source Notes

- Baseline source review should include the Justice Manual's current Protection of Government Integrity provisions, including existing Public Integrity consultation and approval models.

DOJ-003 — Prosecutorial Neutrality Monitoring and Congressional Oversight Act

A BILL

To require comprehensive collection and independent analysis of federal charging-decision data, identify threshold-specific anomalies potentially indicating politically selective enforcement or favoritism, provide protected reports to Congress, and preserve executive responsibility for individual prosecutions.

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Prosecutorial Neutrality Monitoring and Congressional Oversight Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to preserve lawful prosecutorial discretion; require uniform documentation of federal charging and disposition decisions; establish independent OIG statistical and contextual monitoring; require congressional notice of qualifying anomalies; and enable legislative and oversight correction without authorizing OIG or Congress to control individual prosecutions.

SEC. 3. DEFINITIONS.

(a) Charging-decision lifecycle.

1. **Proposed decision** means a documented recommendation concerning a charge or disposition before final supervisory authorization.
2. **Authorized decision** means a decision approved by the official or officials whose approval is required by law or Department policy.
3. **Final operative decision** means the decision actually filed, communicated, implemented, or used to resolve the matter.

(b) Charging or disposition decision.

The term includes a final operative decision to initiate a prosecution; seek, add, remove, reduce, substitute, supersede, or dismiss a charge; decline prosecution after formal presentation; close a substantially investigated criminal matter without charge; enter or materially modify a plea, deferred-prosecution, or non-prosecution agreement; adopt a material sentencing position; depart materially from generally applicable charging policy; or take a substantially equivalent action designated by regulation.

(c) Anomaly.

An anomaly is a statistically or contextually material departure from an appropriate comparison group that may indicate inconsistent severity, leniency, retaliation, favoritism, selective enforcement, or political influence and is not adequately explained by legitimate case-specific factors.

(d) Judiciary Committees.

The term means the House and Senate Committees on the Judiciary.

SEC. 4. UNIVERSAL CHARGING-DECISION RECORD.

(a) Universal coverage.

Every United States Attorney’s Office and every DOJ component participating in federal criminal charging or disposition shall create and transmit a standardized electronic record for every final operative decision. Proposed and authorized stages shall be preserved for audit and transmitted where required by regulation.

(b) Automated extraction.

To the maximum extent practicable, routine fields shall be extracted automatically from existing case-management, court-filing, sentencing, and financial systems. The Act shall not require duplicative manual entry of information reliably available in an authoritative system.

(c) Required data.

The record shall include, as applicable:

1. component, district, date, procedural stage, and decision type;
2. offenses considered and charges proposed, authorized, and finally implemented;
3. applicable charging policies and material departures;
4. offense conduct, evidence strength and admissibility, culpability, criminal history, harm, cooperation, obstruction, venue, jurisdiction, limitations, and resource considerations;

5. plea, dismissal, deferred-prosecution, non-prosecution, and sentencing terms;
6. approving officials and outside consultation;
7. known White House, political-appointee, campaign, party, transition, or inaugural contacts;
8. publicly documented political status or relationship only when case-relevant and analytically necessary; and
9. a contemporaneous neutral explanation for specified declinations, dismissals, policy departures, politically sensitive matters, and other decisions designated by regulation.

Political status may not be inferred solely from race, religion, sex, national origin, residence, occupation, or private belief.

(d) Timeliness.

Records shall be transmitted within 30 days, subject to narrowly tailored temporary delay for substantial operational risk.

SEC. 5. OFFICE OF PROSECUTORIAL NEUTRALITY ANALYSIS.

There is established within DOJ OIG an Office of Prosecutorial Neutrality Analysis. It shall maintain the database; validate completeness; conduct continuous and periodic analysis; compare outcomes across districts, components, administrations, offenses, and materially similar matters; conduct contextual review; investigate qualifying anomalies; audit source files; and issue required reports.

The Inspector General shall have timely access to records reasonably necessary for these duties, including prosecutorial memoranda and political-contact records, subject to lawful safeguards for grand-jury, classified, sealed, privileged, privacy, and law-enforcement-sensitive information.

SEC. 6. ANALYTICAL METHODOLOGY.

OIG shall establish a transparent and periodically revised methodology developed with statisticians, prosecutors, defense practitioners, civil-rights specialists, privacy experts, and GAO. The methodology shall account for legitimate case differences, data completeness, sample size, multiple comparisons, and practical effect size.

No anomaly may be reported solely because an automated model generated a flag. A qualified OIG employee shall conduct and document contextual human review.

GAO shall review the methodology at least every three years for validity, neutrality, accuracy, manipulation risk, and disparate error.

SEC. 7. ANOMALY THRESHOLDS.

(a) Level One — Internal Review Anomaly.

A Level One anomaly exists when a decision or pattern materially departs from an appropriate comparison range and available data reveal no immediate neutral explanation. It requires preliminary OIG review but not congressional notice.

(b) Level Two — Reportable Anomaly.

A Level Two anomaly exists when contextual review confirms a statistically significant and practically material disparity; the disparity involves political contact, political status, repeated policy departure, or differential treatment capable of conferring political advantage or disadvantage; reliable data support the comparison; legitimate factors do not adequately explain it; and it affects multiple matters, a recurring class, a senior official or candidate, or a matter of substantial national importance.

(c) Level Three — Urgent Oversight Anomaly.

A Level Three anomaly exists when reasonable grounds indicate intentional political retaliation, favoritism, selective enforcement, or interference; senior DOJ or White House participation; concealment or data manipulation; a continuing substantial threat to neutral administration; or a risk that delayed notification would impair oversight.

(d) Standards.

OIG shall establish numerical and contextual thresholds requiring both statistical significance and meaningful effect size, appropriate multiple-comparison correction, minimum data quality, methods for rare but consequential decisions, and anti-evasion rules.

An anomaly is an oversight trigger. It does not by itself establish illegality, misconduct, discrimination, criminal conduct, or an impeachable offense.

SEC. 8. MANDATORY CONGRESSIONAL REPORTING.

A Level Two anomaly shall be reported confidentially within 30 days to the chair and ranking minority member of each Judiciary Committee. A Level Three anomaly shall be noticed confidentially within 7 days, followed by a fuller report when lawful and operationally safe.

Reports shall describe the methodology, comparison group, magnitude and persistence, neutral explanations considered, data limitations, political contacts or policy departures, investigative status, leadership interference, and recommendations.

OIG may anonymize, classify, delay details, or use secure channels to protect active matters, grand juries, fair-trial rights, witnesses, confidential sources, classified information, and uncharged persons. It may not withhold the existence of a Level Three anomaly solely because a matter remains active.

Unresolved Level Two and Level Three anomalies shall receive confidential status reports at least every 90 days and a final report upon completion.

SEC. 9. PUBLIC REPORTING.

OIG shall publish annual aggregate data, national and component trends, anomaly counts, generalized systemic findings, reporting-compliance rates, methodological changes, corrective actions, and recommendations. Public reports shall protect uncharged persons and information barred from disclosure.

SEC. 10. DATA INTEGRITY AND RANDOM AUDIT.

OIG shall conduct risk-based and random source-file audits comparing submitted records against case-management systems, court records, decision memoranda, and other authoritative sources.

Knowing or repeated failure to report, concealment of a decision, falsification, manipulation of categories or comparison groups, omission of political contacts, threshold evasion, or retaliation shall be investigated and referred for appropriate discipline or prosecution.

Each component head shall certify annual material compliance. OIG shall report materially deficient components quarterly to the Attorney General and Judiciary Committees.

SEC. 11. INSPECTOR GENERAL JURISDICTION.

OIG shall have express authority to audit, inspect, review, and investigate charging decisions and related attorney conduct for purposes of this Act notwithstanding assignment of professional-responsibility matters to another DOJ office. OPR may exercise coordinated or concurrent jurisdiction.

No DOJ officer may prevent OIG from initiating, carrying out, or completing a duty required by this Act.

SEC. 12. PROTECTION AGAINST INTERFERENCE.

A request by DOJ leadership to delay, limit, modify, or terminate an anomaly review shall be written and preserved. OIG shall notify the Judiciary Committees within 7 days of a material attempt to obstruct, suppress, delay, or interfere. Removal or replacement of the Inspector General shall not terminate an existing review, and all files shall remain preserved for continuation by career personnel.

SEC. 13. LIMITATION ON AUTHORITY.

Nothing in this Act authorizes OIG, GAO, or Congress to initiate or terminate an investigation; direct strategy; approve, disapprove, delay, or veto a charge; require prosecution or declination; dictate a plea, dismissal, or sentencing position; or otherwise exercise prosecutorial authority.

Individual criminal matters remain with officers otherwise authorized by law. Monitoring and reporting serve oversight, accountability, administration, discipline, legislation, and institutional correction only.

This Act creates no private right of action and does not independently require dismissal, suppression, or vacation of a conviction.

SEC. 14. INFORMATION SAFEGUARDS.

OIG shall establish access, retention, cybersecurity, disclosure, and audit-log safeguards for grand-jury information, classified and sealed material, privilege, personal data, confidential sources, investigative methods, fair-trial rights, and uncharged persons.

SEC. 15. IMPLEMENTATION.

Proposed regulations shall issue within 180 days; a DOJ-wide reporting system shall be established within one year; complete submissions shall begin within 18 months; formal anomaly reporting shall begin within two years; and, where practicable, DOJ shall supply at least five years of historical data for baseline analysis.

SEC. 16. AUTHORIZATION AND SEVERABILITY.

Such sums as necessary are authorized for secure infrastructure and qualified legal, statistical, audit, investigative, privacy, and cybersecurity staff. If any provision or application is held invalid, the remainder shall not be affected.

Drafting Notes

- The statute creates universal visibility, not universal preclearance.
- Final operative decisions supply the principal analytical dataset; earlier stages remain available to detect political alteration within the decision chain.

- Automated extraction limits administrative burden; manual narratives are targeted to decisions where neutral explanation matters most.
- Political data are restricted to public, case-relevant, analytically necessary facts.
- Random source-file audits address concealment and category manipulation.
- Bipartisan confidential reporting reduces, but cannot eliminate, politicization of congressional oversight.
- The Act is intentionally corrective and deterrent. It does not promise prevention of every first abuse; it creates an institutional avenue for detection, exposure, correction, discipline, and legislative response.

Source Notes

- Source review should include the Inspector General Act, now classified in 5 U.S.C. chapter 4, and GAO evaluation authority under 31 U.S.C. § 717.

DOJ-005 — Senior DOJ Recusal Review and Transparency Act

A BILL

To improve documentation, independent review, transparency, and compliance for Department of Justice recusal decisions involving senior officials.

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Senior DOJ Recusal Review and Transparency Act.**”

SEC. 2. COVERED OFFICIALS.

This Act applies to the Attorney General, Deputy Attorney General, Solicitor General, Associate Attorney General, Assistant Attorneys General, United States Attorneys, the Director and Deputy Director of the Federal Bureau of Investigation, and acting officials exercising substantially equivalent authority.

SEC. 3. WRITTEN DISCLOSURE.

A covered official shall disclose in writing any relationship or interest that may require disqualification under applicable conflict, ethics, impartiality, or professional-responsibility rules. The disclosure shall identify the matter, relevant facts, governing standard, proposed scope of participation, and any requested authorization.

SEC. 4. SENIOR DOJ RECUSAL REVIEW PANEL.

A decision involving recusal, nonrecusal, partial recusal, authorization to participate, or termination of recusal shall be made by a panel consisting of qualified career representatives of DOJ’s ethics office, DOJ OIG, and the Office of Government Ethics.

The affected official may provide information but may not select, remove, supervise, or direct panel members regarding the determination.

SEC. 5. TEMPORARY TRANSFER OF AUTHORITY.

When a substantial and nonfrivolous recusal question is presented, the covered official shall temporarily cease participation and authority shall pass to the lawful successor until the panel issues a decision. The panel shall act promptly and ordinarily within seven days.

SEC. 6. WRITTEN DETERMINATION.

Each determination shall state the governing authority, material facts, scope, duration, successor official, access restrictions, permitted contacts, and procedure for reconsideration.

A public version shall be released to the maximum extent consistent with lawful secrecy, privilege, investigative integrity, fair-trial rights, and legitimate privacy. An unredacted version shall be preserved and, for nationally significant matters, transmitted confidentially to the House and Senate Judiciary Committees.

SEC. 7. EFFECT OF RECUSAL.

A recused official may not directly or indirectly supervise the matter; influence staffing, funding, jurisdiction, access, or case strategy; communicate a preferred outcome; receive nonpublic briefings except as specifically authorized; or cause another person to exercise authority on the official’s behalf.

SEC. 8. AUTHORIZATION TO PARTICIPATE.

Any authorization shall be narrowly tailored, written, supported by specific findings, and limited in duration. Generalized claims of convenience, policy control, or personal confidence are insufficient.

SEC. 9. MODIFICATION OR TERMINATION.

A recusal may be modified or terminated only through a new written panel determination based on materially changed facts or law. The affected official may not resume participation unilaterally.

SEC. 10. COMPLIANCE AND CORRECTIVE ACTION.

Material nondisclosure, misrepresentation, participation contrary to a binding determination, retaliation against reviewing officials, or indirect evasion shall be referred to OIG and OPR. Corrective action may include removal from the matter, reassignment of authority, reconsideration of affected decisions, and appropriate personnel action under existing law.

The panel may not direct investigative or prosecutorial merits. Its authority is limited to deciding who may participate.

SEC. 11. REPORTING.

DOJ shall publish annual aggregate information concerning covered determinations, authorizations, violations, corrective actions, and average resolution times. OIG shall report material interference with panel operations to the Judiciary Committees.

SEC. 12. RELATION TO EXISTING LAW.

This Act supplements and does not narrow existing conflict-of-interest, recusal, ethics, professional-responsibility, whistleblower, civil-service, or Inspector General authorities.

SEC. 13. SEVERABILITY.

If any provision or application is held invalid, the remainder shall not be affected.

Drafting Notes

- The proposal strengthens administration of existing duties rather than replacing them.
- Independent review is limited to participation and succession, not case merits.
- Temporary transfer prevents disputed participation while review is pending.
- Anti-evasion language addresses indirect supervision after formal recusal.

Source Notes

- Source review should include DOJ's attorney disqualification rule, 28 C.F.R. § 45.2, the executive-branch impartiality standard in 5 C.F.R. § 2635.502, and Inspector General authorities in 5 U.S.C. chapter 4.

DOJ-007 — Independent Investigative Counsel Appointment and Accountability Act

Framework Cross-Reference

This proposal implements the constitutional amendment developed under DOJ-007 — Independent Investigation of Presidential and Senior Executive Misconduct. It takes effect only after ratification of an amendment expressly authorizing judicial initiation and appointment of independent investigative counsel in extraordinary executive conflicts. Substantive presidential immunity is addressed separately under IMM-001.

A BILL

To establish procedures for judicial appointment, authority, independence, accountability, and termination of independent investigative counsel in extraordinary cases of executive conflict.

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Independent Investigative Counsel Appointment and Accountability Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to ensure that credible allegations involving the President or senior executive officials cannot be suppressed because the subjects control the ordinary investigative chain; preserve evidence and congressional access during presidential tenure; protect investigation from presidential interference; permit lawful prosecution of other persons within assigned jurisdiction; investigate serious misuse of federal investigative or prosecutorial authority even where presidential immunity may bar prosecution; and preserve impeachment as the constitutional mechanism for removal of a sitting President.

SEC. 3. DEFINITIONS.

A **covered official** includes the President, Vice President, Attorney General, Deputy Attorney General, Solicitor General, FBI Director or Deputy Director, White House Counsel, Cabinet officers, senior Executive Office personnel, senior DOJ political appointees, and persons whose investigation presents a substantial conflict for executive leadership.

Credible information means specific and articulable information providing a reasonable basis to believe that a federal offense, obstruction, retaliation, evidence destruction, concealment, unlawful interference with federal law enforcement, or serious abuse of investigative or prosecutorial authority may have occurred.

An **extraordinary executive conflict** is an actual or objectively reasonable conflict materially impairing DOJ’s capacity or perceived capacity to investigate impartially.

The **Special Division** is the judicial panel established by section 4. The **Independent Investigative Counsel** is the inferior officer appointed under this Act.

SEC. 4. SPECIAL DIVISION.

A three-judge panel of United States courts of appeals shall be selected through a random and publicly prescribed Judicial Conference procedure, with no two judges from the same circuit and staggered terms. Judges shall be disqualified from any resulting criminal case.

The Special Division may decide whether appointment conditions exist, appoint counsel, define or modify jurisdiction, receive required notices, adjudicate removal, and determine completion. It may not direct investigative steps, charging decisions concerning other persons, plea negotiations, litigation strategy, sentencing positions, or good-faith departures from nonbinding DOJ policy.

SEC. 5. AUTHORIZED APPLICATIONS AND REFERRALS.

A verified sealed application may be submitted by the Attorney General or Deputy Attorney General; an Inspector General with related jurisdiction; the Office of Government Ethics Director; either House by resolution; either Judiciary Committee by majority vote; a bipartisan one-third minority of either Judiciary Committee; or an Article III court making a qualifying referral.

A court may refer a matter when it has found executive conduct unlawful, the record contains substantial and credible information of a possible federal offense, related obstruction, retaliation, or serious misuse of federal investigative authority, and an extraordinary executive conflict may impair ordinary investigation. Such a referral is not a finding of guilt, probable cause, corrupt intent, or impeachability and is not admissible to prove an offense.

Private persons may submit information to an authorized applicant but may not petition the Special Division directly.

SEC. 6. APPOINTMENT STANDARD.

The Special Division shall appoint counsel only upon written findings that credible information indicates a possible federal offense, related obstruction, retaliation, evidence destruction, or serious abuse of investigative or prosecutorial authority; the matter concerns a covered official or presents extraordinary conflict; ordinary recusal or reassignment is inadequate; and appointment is necessary and proportionate.

The order shall identify the subject matter, jurisdiction, institutional conflict, powers conferred, reporting requirements, and reasons lesser measures are inadequate. Public and sealed versions shall be issued consistent with investigative integrity, grand-jury secrecy, classification, and individual rights.

SEC. 7. QUALIFICATIONS, APPOINTMENT, AND TERM.

Counsel shall be a United States citizen and attorney in good standing with substantial federal criminal, judicial, or complex-litigation experience; demonstrated independence and integrity; no material conflict; and no recent representation or senior political service for a principal subject.

Selection shall be merit-based. Counsel shall take the constitutional oath and serve until completion or lawful termination. Appointment under this Act is an alternative to, not a replacement for, lawful executive appointment of special counsel.

SEC. 8. JURISDICTION.

Jurisdiction includes the matters identified in the order; federal offenses arising from the same course of conduct; obstruction, retaliation, false statements, witness tampering, evidence destruction, and concealment affecting the investigation; persons who aid or conspire in such conduct; and serious use or attempted use of federal investigative or prosecutorial authority for a sham, pretextual, retaliatory, protective, personal, electoral, or partisan case-specific purpose.

Covered misuse may include seeking investigation or prosecution of an opponent for an improper purpose; seeking protection, dismissal, leniency, or nonenforcement for an ally; obtaining confidential investigative information for personal or political use; manipulating staffing, jurisdiction, resources, or timing to obtain a desired result; directing materially false representations; or retaliating against resistance to such conduct.

Material expansion requires Special Division approval limited to connectedness and continuing necessity arising from the executive conflict. The panel shall not review investigative merits.

SEC. 9. POWERS AND DUTIES.

(a) Investigative authority.

Within jurisdiction, counsel may conduct grand-jury proceedings; seek subpoenas, warrants, immunity orders, and other lawful process; interview witnesses and subjects; litigate privilege, classification, immunity, and access disputes; preserve evidence; appoint and supervise staff; request agency assistance; and exercise authority necessary to complete the investigation.

(b) Other persons.

Counsel may initiate, decline, dismiss, negotiate, try, and appeal criminal cases against persons other than a sitting President when those persons fall within assigned jurisdiction.

(c) Sitting President.

Counsel may investigate a sitting President, collect and preserve evidence, use grand-jury process, investigate obstruction or retaliation, and transmit substantial and credible information to Congress. No officer, including the President or Attorney General, may terminate, limit, delay, or interfere because the subject is the sitting President.

A sitting President may not be indicted or tried under this Act while holding office. This prohibition does not prevent investigation, evidence preservation, lawful process appropriately tailored to official duties, reporting to Congress, or prosecution after the President leaves office if otherwise lawful.

(d) Immune official conduct.

Counsel may investigate conduct protected from criminal prosecution by presidential immunity when necessary to establish facts, preserve evidence, identify the acts of nonimmune participants, inform impeachment or legislative oversight, or recommend institutional safeguards. Counsel shall clearly distinguish factual findings from criminal conclusions and shall not characterize immunity itself as evidence of wrongdoing.

(e) DOJ rules and policies.

Counsel shall ordinarily comply with generally applicable DOJ rules and policies. Counsel may depart from a nonstatutory rule for specified good cause when compliance would impair independence, reflect the underlying conflict, frustrate the appointment, or be materially unsuitable. Counsel shall provide sealed written notice before departure or as soon afterward as practicable. Notice does not require approval; the Special Division may preserve it and consider knowing material abuse in removal proceedings but may not countermand the policy judgment.

SEC. 10. PERSONNEL, RECORDS, AND ASSISTANCE.

Counsel may employ sufficient independent personnel to avoid effective dependence on an agency controlled by a subject. Federal agencies shall provide reasonably necessary personnel, records, facilities, and technical assistance subject to lawful privilege and judicial process.

Detailed personnel may not be removed, reassigned, disciplined, denied access, or adversely treated because of lawful service. Access disputes shall receive expedited adjudication by a judge not serving on the Special Division. Classification alone does not authorize denial of access, though lawful security procedures remain applicable.

SEC. 11. INDEPENDENCE AND ANTI-EVASION.

No federal officer or employee may knowingly obstruct or materially impede counsel; conceal, destroy, alter, or withhold evidence; deny lawful assistance; retaliate against witnesses or personnel; or use classification, funding, reassignment, removal, privilege, or administrative control to frustrate the investigation.

Counsel shall notify the Special Division and appropriate congressional committees of substantial interference, subject to lawful delay protecting an active investigation, grand jury, national security, or individual rights.

SEC. 12. REMOVAL AND DISCIPLINE.

The President and executive officers may not remove, suspend, demote, reassign, or materially restrict counsel. A sealed removal petition may be filed by the Attorney General, DOJ Inspector General, Chief Judge of the D.C. Circuit, either Judiciary Committee by majority vote, or the Special Division based on substantial and credible information.

Removal requires incapacity, serious misconduct, knowing material jurisdictional violation, substantial dereliction, disqualifying conviction, knowing material abuse of policy-departure authority, or another condition incompatible with office integrity. Disagreement with investigative judgment, reporting, lawful prosecution of another person, or a good-faith policy departure is not cause.

Counsel shall receive notice, an opportunity to respond, and an evidentiary hearing where facts are disputed. Supreme Court review shall be expedited.

SEC. 13. FUNDING.

Protected appropriations shall be available in amounts reasonably necessary, subject to a statutory annual ceiling adjustable for inflation and Special Division approval of additional expenditures. Executive officers may not impound or condition funds. GAO shall audit expenditures without examining investigative merits.

SEC. 14. REPORTING AND IMPEACHMENT INFORMATION.

Counsel shall provide periodic administrative reports that protect grand-jury secrecy, classified information, fair-trial rights, and uncharged persons.

When substantial and credible information indicates presidential conduct potentially relevant to impeachment, counsel shall transmit a confidential report and supporting material to the House Judiciary Committee. The report shall distinguish judicial findings, possible criminal evidence, immune official conduct, evidence bearing on intent or abuse, conduct of other participants, and unresolved questions.

When an investigation reveals a serious institutional weakness without necessarily establishing criminal liability, counsel may transmit a confidential legislative-oversight report to the appropriate committees. Such a report may identify factual findings, legal constraints, recurring vulnerabilities, and recommended statutory or constitutional safeguards.

The House retains exclusive authority to determine whether impeachment is warranted. Appointment and investigation do not remove, suspend, disqualify, or alter tenure; do not authorize counsel or courts to decide impeachment; do not bypass or replace impeachment; and do not require Congress to await completion.

A supervising district court may authorize disclosure of grand-jury material to the House Judiciary Committee when legally permissible and necessary to its constitutional function.

At completion, counsel shall issue a report with a public version subject to lawful redaction and judicial resolution of disputes by a judge outside the Special Division.

SEC. 15. LIMITATIONS PERIODS.

For an offense within assigned jurisdiction allegedly committed by a sitting President, any otherwise applicable limitation period shall be suspended during presidential tenure and for 180 days thereafter, to the maximum extent permitted by the Constitution. Tolling preserves later accountability and does not authorize indictment or trial while the President remains in office.

SEC. 16. COMPLETION AND TERMINATION.

Counsel shall notify the Special Division when assigned matters are complete or lawfully transferred. The Division may terminate only when no substantial work remains, continued appointment is unnecessary to address the conflict, or no lawful jurisdiction remains. It may not terminate because it disagrees with pace, theory, investigative judgment, prosecution of another person, reporting, or policy departure.

Records shall be transferred to the National Archives under secure procedures preserving secrecy, classification, lawful congressional access, and future judicial process.

SEC. 17. JUDICIAL REVIEW.

Courts shall expedite actions concerning constitutionality, authority, access, removal, and enforcement. A mere subject or target may not ordinarily obtain interlocutory review before a judicially reviewable action. A criminal defendant retains all constitutional and statutory challenges in the resulting proceeding.

SEC. 18. RULES OF CONSTRUCTION.

Nothing in this Act authorizes judicial prosecution; permits Congress or a court to direct a particular case; alters impeachment powers; establishes that unlawful or immune conduct is automatically criminal or impeachable; makes investigation a substitute for impeachment; prevents lawful executive appointment of other special counsel; diminishes defendants' rights; authorizes unlawful disclosure; expands or abolishes substantive presidential immunity; or restricts the pardon power.

The central rule is that this Act protects investigation and reporting from presidential control; it does not authorize prosecution of a sitting President or decide the substantive scope of immunity.

SEC. 19. SEVERABILITY AND EFFECTIVE DATE.

Invalidity of one provision does not affect the remainder. The Act takes effect upon certification of ratification of the authorizing constitutional amendment and shall not impose retroactive substantive criminal liability.

Drafting Notes

- The statute separates protected investigation from prosecution of a sitting President.
- It authorizes factual investigation and congressional reporting even where official-act immunity bars criminal prosecution.
- Other persons may be prosecuted within jurisdiction.
- Evidence preservation, House reporting, legislative oversight, and tolling prevent presidential tenure or immunity from making misconduct institutionally undiscoverable.
- IMM-001 separately addresses substantive immunity.
- The Special Division appoints and protects counsel but does not manage investigative or prosecutorial merits.

Source Notes

- Source review should include *Morrison v. Olson*, *Trump v. United States*, and the Department of Justice archive of the Mueller Report.

DOJ-009 — Senior Department of Justice Professional Qualification and Good Standing Act

A BILL

To establish professional-qualification, good-standing, disciplinary-disclosure, continuing-notification, and temporary-delegation requirements for the Attorney General and selected senior Department of Justice legal officers, while recognizing bar membership and professional licensure as external checks on legal ethics and preventing pending or politically motivated complaints from becoming automatic disqualification tools.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Senior Department of Justice Professional Qualification and Good Standing Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. preserve the professional legitimacy of the Department of Justice;
2. ensure that senior Department legal officers possess baseline professional qualifications to supervise the legal work of the United States;
3. recognize that attorney licensure and bar membership provide an external professional-conduct check on lawyers exercising legal authority;
4. preserve the role of bar authorities, courts, and disciplinary bodies as regulators of professional conduct independent of the Department's internal hierarchy;
5. require admission to practice law and good standing for covered senior legal offices;
6. require disclosure of bar memberships, disciplinary history, and pending formal disciplinary charges;
7. require continuing notice of final professional discipline while serving;
8. establish temporary delegation procedures where a covered officer loses professional good standing or receives final discipline materially inconsistent with senior Department legal service;
9. preserve presidential nomination authority and Senate advice-and-consent authority subject to statutory qualifications for offices Congress creates; and
10. prevent pending, unadjudicated, frivolous, or politically motivated ethics complaints from automatically disqualifying nominees or officers.

SEC. 3. DEFINITIONS.

In this Act:

(a) Covered office.

The term “**covered office**” means—

1. Attorney General;
2. Acting Attorney General;
3. Deputy Attorney General;
4. Acting Deputy Attorney General;
5. Associate Attorney General;
6. Acting Associate Attorney General;
7. Solicitor General;
8. Acting Solicitor General;
9. Assistant Attorney General;
10. Acting Assistant Attorney General; and

11. any other Department of Justice office designated by the Attorney General by regulation as a senior legal-supervisory office for purposes of this Act.

(b) Covered officer.

The term “**covered officer**” means any person nominated, appointed, designated, or serving in a covered office.

(c) United States jurisdiction.

The term “**United States jurisdiction**” means any State, the District of Columbia, Puerto Rico, Guam, the Northern Mariana Islands, the Virgin Islands, American Samoa, any federally recognized tribal court jurisdiction that licenses attorneys, or any federal court that admits attorneys to practice.

(d) Good standing.

The term “**good standing**” means that the covered officer is currently admitted to practice law in at least one United States jurisdiction and is not suspended, disbarred, resigned in lieu of discipline, administratively ineligible for disciplinary reasons, or otherwise finally determined by a licensing authority to be ineligible to practice law in that jurisdiction.

(e) Final professional discipline.

The term “**final professional discipline**” means a final, non-interlocutory order, judgment, decision, or disposition by a court, bar authority, disciplinary authority, or licensing authority imposing disbarment, suspension, public censure, public reprimand, resignation in lieu of discipline, reciprocal discipline, or comparable public professional discipline.

(f) Pending formal disciplinary charge.

The term “**pending formal disciplinary charge**” means a formally filed public disciplinary complaint, charge, petition, or equivalent adjudicatory proceeding initiated by a court, bar authority, disciplinary authority, or licensing authority after preliminary screening or investigation.

The term does not include a grievance, informal complaint, request for investigation, private complaint, media allegation, congressional complaint, political complaint, or preliminary inquiry that has not resulted in a formally filed disciplinary charge by an authorized disciplinary body.

(g) Materially inconsistent discipline.

The term “**materially inconsistent discipline**” means final professional discipline that, considering the nature of the covered office, materially bears on the covered officer’s ability to exercise legal supervision, prosecutorial judgment, candor to tribunals, professional independence, fiduciary duties, confidentiality obligations, or ethical duties owed to the United States.

SEC. 4. PROFESSIONAL QUALIFICATION REQUIREMENT.

(a) Requirement.

A person may not be nominated, appointed, designated, or continue serving in a covered office unless the person is admitted to practice law and in good standing in at least one United States jurisdiction.

(b) Applicability to acting service.

The requirement in subsection (a) applies to any acting designation under the Federal Vacancies Reform Act of 1998, 5 U.S.C. §§ 3345 through 3349d, or any other statute authorizing acting service in a covered office.

(c) No effect on non-legal offices.

This Act does not impose a bar-admission requirement on Department of Justice offices that are not covered offices.

SEC. 5. PRE-NOMINATION, APPOINTMENT, AND DESIGNATION DISCLOSURE.

(a) Disclosure required.

Before nomination, appointment, or acting designation to a covered office, the covered officer shall provide to the President, the Department of Justice Designated Agency Ethics Official, and, for Senate-confirmed offices, the Senate Judiciary Committee—

1. all current and former bar memberships;
2. all jurisdictions in which the officer is currently admitted to practice law;
3. current good-standing status in each jurisdiction where admitted;
4. all final professional discipline;
5. any resignation in lieu of discipline;
6. any reciprocal discipline;

7. any pending formal disciplinary charge;
8. any administrative ineligibility based on professional-discipline reasons; and
9. any material limitation on the officer's eligibility to practice law.

(b) Certification.

The covered officer shall certify under penalty of perjury that the disclosure is true, complete, and correct to the best of the officer's knowledge after reasonable inquiry.

(c) Supplementation.

The covered officer shall supplement the disclosure promptly if information materially changes before confirmation, appointment, or designation.

SEC. 6. CONTINUING DUTY TO NOTIFY.

(a) Notice required.

A covered officer serving in a covered office shall notify the President, the Deputy Attorney General or next highest non-conflicted Department official, the Department of Justice Inspector General, the Office of Professional Responsibility, the Designated Agency Ethics Official, the Office of Government Ethics, and, for Senate-confirmed offices, the Senate Judiciary Committee, not later than 7 days after—

1. loss of good standing in any jurisdiction;
2. imposition of final professional discipline;
3. resignation in lieu of discipline;
4. initiation of a pending formal disciplinary charge;
5. reciprocal discipline;
6. suspension, disbarment, or administrative ineligibility for disciplinary reasons; or
7. any material limitation on eligibility to practice law.

(b) Contents.

The notice shall identify the jurisdiction, disciplinary body, nature of the action, effective date, current procedural posture, and any limitation on the covered officer's ability to practice law.

(c) Public reporting.

For Senate-confirmed covered offices, the Department shall publish a public notice of final professional discipline, suspension, disbarment, resignation in lieu of discipline, or loss of all good-standing status, except that information may be redacted to protect privacy, national security, law-enforcement sensitivity, or legally protected information.

SEC. 7. EFFECT OF PENDING COMPLAINTS AND PENDING FORMAL CHARGES.

(a) No automatic disqualification.

A pending complaint, grievance, allegation, request for investigation, media allegation, congressional complaint, political complaint, or pending formal disciplinary charge shall not automatically disqualify a person from nomination, appointment, designation, or service in a covered office.

(b) Disclosure and evaluation.

A pending formal disciplinary charge shall be disclosed and may be considered by the President, the Senate, the Department of Justice, the Office of Government Ethics, and appropriate ethics officials in evaluating professional fitness, conflicts, or temporary recusal needs.

(c) Protection against weaponization.

No legal consequence under this Act may be based solely on a complaint or allegation that has not resulted in a pending formal disciplinary charge or final professional discipline.

SEC. 8. TEMPORARY DELEGATION UPON LOSS OF GOOD STANDING OR FINAL DISCIPLINE.

(a) Automatic temporary delegation.

If a covered officer loses good standing in all United States jurisdictions in which the officer is admitted, is suspended or disbarred in all such jurisdictions, resigns in lieu of discipline, or receives final professional discipline materially inconsistent with service in the covered office, the legal-supervisory duties of that office shall temporarily devolve to the next eligible covered officer or other officer authorized by law.

(b) Scope.

Temporary delegation under this section applies to legal-supervisory duties, litigation authority, prosecutorial supervision, professional-responsibility supervision, approval of legal positions, and other duties materially requiring professional legal judgment.

(c) Presidential and Senate authority preserved.

Nothing in this section prevents the President from nominating, appointing, or designating an eligible replacement, or prevents the Senate from confirming an eligible nominee.

(d) Restoration.

A covered officer whose duties are temporarily delegated may resume those duties only after regaining good standing in at least one United States jurisdiction and after the Designated Agency Ethics Official, in consultation with the Office of Professional Responsibility and the Office of Government Ethics, determines that no unresolved final professional discipline remains materially inconsistent with service.

(e) Written determination.

Any restoration determination shall be transmitted to the President, the Department of Justice Inspector General, the Office of Professional Responsibility, the Office of Government Ethics, and, for Senate-confirmed offices, the Senate Judiciary Committee.

SEC. 9. MATERIAL-INCONSISTENCY REVIEW.

(a) Review required.

If a covered officer receives final professional discipline other than disbarment, suspension, or resignation in lieu of discipline, the Designated Agency Ethics Official, in consultation with the Office of Professional Responsibility and the Office of Government Ethics, shall determine whether the discipline is materially inconsistent with service in the covered office.

(b) Factors.

The determination shall consider—

1. the nature and seriousness of the misconduct;
2. whether the misconduct involved dishonesty, fraud, deceit, misrepresentation, obstruction, abuse of legal process, misuse of client information, breach of fiduciary duty, or lack of candor to a tribunal;
3. whether the misconduct relates to public office, government service, prosecutorial judgment, law-enforcement authority, professional supervision, or litigation conduct;
4. whether the misconduct resulted in action by an external bar authority, court, licensing authority, or disciplinary body charged with regulating professional conduct;
5. whether the discipline is final;
6. whether the officer remains in good standing in at least one United States jurisdiction;
7. whether temporary recusal, screening, or delegation can adequately protect the Department's interests; and
8. the public interest in the Department's integrity and professional independence.

(c) Written determination.

The determination shall be written and transmitted to the President, the Department of Justice Inspector General, the Office of Professional Responsibility, the Office of Government Ethics, and, for Senate-confirmed offices, the Senate Judiciary Committee.

SEC. 10. RECUSAL, SCREENING, AND LIMITED DELEGATION.

If final professional discipline or a pending formal disciplinary charge presents a specific conflict, appearance concern, or professional-responsibility issue short of automatic temporary delegation, the covered officer shall consult with the Designated Agency Ethics Official and Office of Professional Responsibility regarding recusal, screening, limited delegation, or other protective measures.

SEC. 11. OFFICE OF PROFESSIONAL RESPONSIBILITY AND INSPECTOR GENERAL REVIEW.

(a) OPR review.

The Office of Professional Responsibility shall review any final professional discipline, loss of good standing, or pending formal disciplinary charge involving a covered officer where the matter may affect the officer's legal-supervisory duties.

(b) Inspector General review.

The Department of Justice Inspector General may review Department compliance with this Act, including disclosure, notification, delegation, and restoration procedures.

(c) Reports.

The Inspector General may report findings and recommendations to the Attorney General, the President, Congress, or the public, consistent with law and appropriate protections for confidential or protected information.

SEC. 12. REGULATIONS.

Not later than 180 days after enactment, the Attorney General shall promulgate regulations implementing this Act, including procedures for disclosure, verification of good standing, notice, temporary delegation, restoration, recusal, screening, and material-inconsistency review.

If the Attorney General is unavailable, conflicted, ineligible, or subject to review under this Act, the Deputy Attorney General or next eligible non-conflicted covered officer shall promulgate the regulations.

SEC. 13. RULES OF CONSTRUCTION.

Nothing in this Act shall be construed to—

1. require disqualification based solely on a pending complaint, grievance, allegation, request for investigation, media allegation, congressional complaint, political complaint, or pending formal disciplinary charge;
2. limit the President's nomination authority except by establishing statutory qualifications for offices created by law;
3. limit the Senate's advice-and-consent authority;
4. create a private right of action;
5. authorize collateral attack on otherwise valid Department actions solely because of a covered officer's later-discovered disclosure violation, unless otherwise provided by law;
6. limit any stricter ethics, recusal, disciplinary, or professional-responsibility requirement otherwise applicable to a covered officer;
7. alter the authority of any State, court, bar authority, disciplinary authority, or licensing authority to regulate the professional conduct of attorneys; or
8. prevent Congress from requesting or considering information about pending complaints, professional fitness, or disciplinary matters during confirmation or oversight.

SEC. 14. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Drafting Notes

- This is a first working draft.
- The bill rests on the premise that bar membership and attorney good standing are not merely credentials, but external professional-conduct checks administered by courts, bar authorities, and disciplinary bodies outside DOJ's internal hierarchy.
- The draft deliberately distinguishes pending complaints and pending formal charges from final professional discipline.
- Pending complaints are not automatic disqualifiers.
- Pending formal disciplinary charges trigger disclosure and may support ethics review, recusal, screening, or Senate evaluation, but not automatic disqualification.
- Automatic temporary delegation is reserved for loss of good standing in all admitted jurisdictions, suspension or disbarment in all such jurisdictions, resignation in lieu of discipline, or final professional discipline materially inconsistent with senior DOJ legal service.
- Appointments Clause and separation-of-powers review remains necessary.

- Source development should review statutory qualifications for other federal offices, DOJ office statutes, OPR rules, OIG authority, OGE rules, Senate confirmation practice, and professional licensing law.
- Source development should also review the Federal Vacancies Reform Act, including 5 U.S.C. § 3345 and 5 U.S.C. § 3349d.

ELEC-001 — Federal Executive Election Noninterference Act

A BILL

To amend the Hatch Act to prohibit the President, Vice President, and other federal executive officials from using official authority or influence to interfere with state or local election administration for a preferred electoral outcome; to provide expedited civil remedies, record-preservation requirements, administrative enforcement, and criminal penalties for knowing and coercive violations; and for other purposes.

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Federal Executive Election Noninterference Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are—

1. to preserve the lawful authority of States and their political subdivisions to administer elections under State law, subject to the Constitution and valid Acts of Congress;
2. to prohibit the use of federal executive office, authority, resources, or influence to obtain, prevent, alter, or secure a preferred electoral outcome through a State or local election function;
3. to preserve lawful federal enforcement of voting-rights, civil-rights, election-security, campaign-finance, foreign-interference, and election-crime laws;
4. to provide rapid judicial protection before unlawful federal executive interference produces irreversible consequences; and
5. to ensure documentation, independent investigation, and accountability when senior executive officials are implicated.

TITLE I — HATCH ACT AMENDMENTS

SEC. 101. FEDERAL EXECUTIVE ELECTION NONINTERFERENCE.

Chapter 73 of title 5, United States Code, is amended by inserting after section 7323 the following:

§ 7323A. Federal executive interference with State and local election administration

(a) General prohibition.—A covered federal executive official may not knowingly use, direct, threaten, authorize, request, or cause the use of official authority or influence derived from federal office to interfere with a State or local election function for the purpose of effectuating, preventing, altering, or securing a preferred electoral outcome.

(b) Specifically prohibited conduct.—A violation of subsection (a) occurs when a covered federal executive official, acting with the purpose specified in subsection (a), knowingly seeks, directs, pressures, threatens, authorizes, requests, or materially assists another person to—

1. add, manufacture, alter, destroy, suppress, exclude, count, or refuse to count a ballot or vote contrary to applicable law;
2. state, record, transmit, canvass, recount, or certify a vote total or election result the official knows to be materially false;
3. alter, withhold, falsify, delay, or refuse an election return, canvass, recount result, certification, or certificate of ascertainment contrary to applicable law;
4. depart from an applicable election statute, final judicial order, or lawfully completed administrative determination;
5. initiate, continue, expand, narrow, terminate, or publicly characterize a federal investigation, prosecution, audit, intelligence activity, regulatory action, funding action, or administrative process without a good-faith lawful basis;
6. surrender, seize, transfer, alter, destroy, disclose, or provide federal access to ballots, voting equipment, voter records, election data, or election materials without lawful authority;
7. make, procure, adopt, or transmit a materially false official representation concerning vote totals, election fraud, canvassing, recount, certification, or the lawful result of an election;
8. take or refrain from an election-related action because of the actual or threatened use of federal investigation, prosecution, funding, contracting, regulatory, intelligence, employment, or other governmental authority;
9. retaliate against a State or local officer or employee for refusing an unlawful or unauthorized election-related request; or
10. use another officer, employee, agency, campaign representative, personal attorney, or private intermediary to perform conduct prohibited by this section.

(c) No completed alteration required.—A violation does not require that the requested action occur or that an election result be changed.

(d) Lawful federal functions.—This section does not prohibit—

1. good-faith enforcement of the Constitution or a valid Act of Congress;
2. an investigation or prosecution supported by an articulable factual and legal basis;
3. enforcement of federal voting-rights, civil-rights, campaign-finance, cybersecurity, foreign-interference, or election-crime law;
4. compliance with federal judicial process;
5. performance of a duty expressly assigned to a federal official by law;
6. voluntary cybersecurity, technical, logistical, or emergency assistance requested by a lawful State or local authority;

7. protection of federal personnel or property;
8. a communication reasonably necessary to obtain information for a lawful federal purpose; or
9. political speech, advocacy, criticism, campaign activity, or lawful litigation unaccompanied by prohibited use or threatened use of federal governmental authority.

(e) Identifiable authority and factual basis.—A federal official relying on subsection (d) shall identify the constitutional or statutory authority and factual basis for the federal action when reasonably requested by the affected State or local election authority. Political preference, standing alone, neither establishes nor defeats a lawful federal function.

(f) Definitions.—In this section:

1. Covered federal executive official.—The term means—

- the President and Vice President, solely for purposes of this section and the related reporting, civil-enforcement, and record-preservation provisions of this Act;
- an officer or employee of the Executive Office of the President;
- an officer or employee of an executive department, military department, agency, Government corporation, or independent establishment in the executive branch;
- an individual exercising authority delegated by such an official; and
- an individual acting under color of federal executive authority.

2. Federal governmental authority.—The term includes actual or apparent authority arising from federal office and the use or threatened use of federal personnel, funds, investigations, prosecutions, subpoenas, audits, grants, contracts, appropriations, benefits, waivers, licenses, regulatory authority, intelligence, cybersecurity, national-security authority, classified or nonpublic information, law-enforcement or security personnel, official communications, governmental findings, reports, or any other federal power, process, resource, or influence.

3. Preferred electoral outcome.—The term means the election, defeat, qualification, disqualification, advancement, exclusion, certification, or noncertification of an identified candidate, political party, slate of electors, ballot position, or stated election result.

4. State or local election function.—The term includes voter registration; ballot preparation or distribution; voting-system administration; polling operations; receipt, custody, counting, tabulation, canvassing, auditing, or recounting of ballots; determination or reporting of vote totals; certification; preparation or transmission of certificates of ascertainment; selection or appointment of presidential electors; and preservation or disclosure of election records, equipment, or data.

(g) Rule concerning official influence.—A communication need not be expressed as a formal order. Official authority or influence is used when, under the circumstances, a reasonable recipient would understand that compliance or refusal could affect the exercise of federal governmental authority.

SEC. 102. LIMITED APPLICATION TO THE PRESIDENT AND VICE PRESIDENT.

Section 7322(1) of title 5, United States Code, is amended to provide that the exclusion of the President and Vice President from the term “employee” does not apply to section 7323A or to provisions expressly enforcing section 7323A.

Nothing in this Act subjects the President or Vice President to Hatch Act restrictions unrelated to federal executive interference with State or local election administration.

SEC. 103. RECORDS OF COVERED ELECTION CONTACTS.

Chapter 73 of title 5, United States Code, is further amended by adding:

§ 7323B. Records of covered election contacts

(a) Record required.—A covered federal executive official who communicates with a State or local election official concerning a specific pending election function shall create or cause the creation of a contemporaneous record identifying—

1. the participants;
2. the date, time, and means of communication;
3. the election and function discussed;
4. each material request, directive, warning, representation, or commitment;
5. the federal legal authority relied upon; and
6. any resulting or contemplated federal action.

(b) Preservation.—The record and all materially related federal records shall be preserved in accordance with applicable federal records law and may not be destroyed, altered, concealed, or removed.

(c) Recording by State participant.—A State or local officer or employee participating in an official communication covered by this section may record the communication. No federal officer may prohibit or retaliate against such recording. This authorization supersedes inconsistent law only with respect to a communication covered by this section.

(d) Emergency communication.—An oral communication made during an emergency may be documented promptly after the emergency, but not later than 24 hours after the communication unless extraordinary circumstances make compliance impossible.

(e) Separate violation.—Knowing concealment, destruction, alteration, falsification, or material omission of a record required by this section constitutes a separate violation.

SEC. 104. OFFICE OF SPECIAL COUNSEL AND INSPECTOR GENERAL ENFORCEMENT.

The Office of Special Counsel may investigate an alleged violation of sections 7323A and 7323B by any covered official within its constitutional and statutory jurisdiction and may prosecute an administrative complaint before the Merit Systems Protection Board.

An Inspector General may investigate conduct within the Inspector General's jurisdiction and shall report substantial interference with the investigation to Congress.

For a covered official other than the President or Vice President, available administrative consequences may include removal from the affected matter, suspension, reduction in grade, removal, reprimand, a civil penalty, debarment from federal employment, and disqualification from statutorily delegated election-related functions, consistent with constitutional requirements.

SEC. 105. ANTI-RETALIATION.

No covered federal executive official may take or threaten a personnel, funding, contracting, regulatory, investigative, prosecutorial, security-clearance, access, or other adverse action against a State or local officer or employee because that person—

1. refused a request reasonably believed to violate section 7323A;
2. created, preserved, or disclosed a record required or protected by this Act;
3. sought judicial or administrative relief under this Act; or
4. provided information to Congress, an Inspector General, the Office of Special Counsel, a court, or a lawful investigator.

TITLE II — EXPEDITED CIVIL ENFORCEMENT

SEC. 201. CIVIL ACTION BY AFFECTED GOVERNMENTAL AUTHORITIES.

A State, State attorney general, chief State election official, local election authority, or other governmental entity directly responsible for an affected election function may bring a civil action against a responsible federal officer, agency, or subordinate implementing official to prevent or remedy a violation of section 7323A or 7323B of title 5, United States Code.

SEC. 202. RELIEF.

A court may—

1. declare the rights and duties of the parties;
2. temporarily or permanently enjoin implementation or continuation of prohibited conduct;
3. prohibit further contact except through designated lawful channels;
4. order preservation and production of records;
5. restore the lawful administrative position existing before the interference;
6. prohibit expenditure of federal funds for the prohibited purpose;
7. order reimbursement of reasonable State or local expenses caused by the violation; and
8. award costs and reasonable attorney's fees.

Relief against an agency or subordinate implementing official shall remain available notwithstanding uncertainty concerning direct coercive relief against the President.

SEC. 203. EXPEDITED THREE-JUDGE REVIEW.

An action under this title shall be heard by a three-judge district court convened under section 2284 of title 28, United States Code, and shall receive priority over nonemergency civil matters.

A single judge may issue an emergency temporary restraining order upon specific findings of imminent and irreparable harm. Any appeal shall be expedited in the manner provided by law.

SEC. 204. LIMITS ON JUDICIAL AUTHORITY.

No court acting under this title may determine the winner of an election, substitute its policy judgment for that of a lawful State election authority, or order the counting or exclusion of a particular ballot except as necessary to restore compliance with governing law.

SEC. 205. CIVIL PENALTIES.

A covered official who knowingly violates section 7323A may be assessed a civil penalty not exceeding \$100,000 for each material course of conduct.

The United States may not reimburse a personal civil penalty imposed for a knowing violation.

This Act creates no general private damages action for individual voters.

TITLE III — CRIMINAL ENFORCEMENT

SEC. 301. FEDERAL EXECUTIVE INTERFERENCE WITH ELECTION ADMINISTRATION.

Chapter 29 of title 18, United States Code, is amended by inserting after section 595 the following:

§ 595A. Federal executive interference with State or local election administration

(a) Base offense.—Whoever, being a covered federal executive official or acting under color of federal executive authority, knowingly and for the purpose of effectuating, preventing, altering, or securing a preferred electoral outcome uses, directs, threatens, authorizes, requests, or causes the use of federal governmental authority to obtain conduct described in section 7323A(b) of title 5 shall be fined under this title, imprisoned not more than 3 years, or both.

(b) Aggravated offense.—The maximum term of imprisonment shall be 5 years if the violation involves the actual or threatened use of—

1. criminal investigation or prosecution;
2. intelligence, national-security, or classified-information authority;
3. federal funding, contracting, licensing, waiver, or regulatory authority;
4. armed, military, law-enforcement, or security personnel; or
5. retaliation against a State or local officer or employee.

(c) Resulting alteration or falsification.—The maximum term of imprisonment shall be 10 years if the violation results in the material falsification, alteration, destruction, suppression, manufacture, or unlawful certification of a ballot, vote, return, certificate, election record, or election result.

(d) Attempt, conspiracy, direction, and assistance.—Attempting, conspiring, directing, authorizing, or knowingly providing material assistance to a violation is punishable to the same extent as the completed base offense, except that an enhanced penalty requiring a resulting harm applies only if the required harm occurs.

(e) Definitions.—The definitions in section 7323A of title 5 apply to this section.

(f) Lawful-function defense.—No offense is committed where the conduct falls within section 7323A(d) of title 5 and rests on an identifiable constitutional or statutory authority and a good-faith factual basis.

SEC. 302. RECORD OBSTRUCTION.

Knowing destruction, alteration, concealment, falsification, or removal of a material record required by section 7323B of title 5, undertaken with intent to impede investigation, civil enforcement, congressional oversight, or adjudication, shall be punishable under applicable federal obstruction and records laws and may be charged as a separate offense.

SEC. 303. RELATION TO PRESIDENTIAL IMMUNITY.

Section 595A of title 18 creates substantive criminal liability to the maximum extent permitted by the Constitution. Nothing in this Act shall be construed to narrow any constitutional amendment or later-enacted law governing presidential criminal immunity.

Investigation, evidence preservation, prosecution of nonimmune participants, and reporting to Congress may continue to the extent permitted by law notwithstanding a temporary or substantive bar to prosecution of a President.

TITLE IV — INDEPENDENT REFERRAL AND CONGRESSIONAL REPORTING

SEC. 401. INDEPENDENT REFERRAL.

Substantial and credible information indicating a violation shall be referred promptly to—

1. the relevant Inspector General;
2. the Office of Special Counsel, where administrative jurisdiction exists;
3. the Department of Justice Public Integrity Section, absent a disabling conflict; and
4. any independent investigative-counsel mechanism established by law where a conflict involving the President, Vice President, Attorney General, or another senior executive official materially impairs ordinary investigation.

SEC. 402. CONGRESSIONAL REPORTING.

A substantiated violation involving the President, Vice President, a Cabinet officer, White House personnel, or a Senate-confirmed federal law-enforcement official shall be reported to the House and Senate Committees on the Judiciary, the congressional committees with jurisdiction over elections, and any other appropriate oversight committee.

The report shall distinguish established facts, disputed facts, the federal authority invoked, the State or local action requested, the preferred electoral outcome, possible statutory violations, applicable immunity or privilege, action taken against subordinate participants, and recommended corrective measures.

SEC. 403. CONSTITUTIONAL SERIOUSNESS.

Congress finds that the knowing use of presidential or vice-presidential authority to procure an unlawful or materially false determination of an election result is a grave abuse of federal executive authority and conduct of the character historically understood as a high Crime or Misdemeanor.

Nothing in this section limits the sole constitutional authority of the House of Representatives to determine whether to impeach or of the Senate to determine whether to convict.

TITLE V — GENERAL PROVISIONS

SEC. 501. RELATION TO EXISTING LAW.

This Act supplements and does not narrow—

1. sections 7321 through 7326 of title 5, United States Code;
2. sections 241, 242, 595, and other applicable provisions of title 18;
3. federal voting-rights, civil-rights, campaign-finance, records, and obstruction laws;
4. Inspector General and Office of Special Counsel authority;
5. lawful State criminal or civil authority not preempted by federal law; or
6. any more protective federal restriction.

Conduct may be addressed under this Act and another applicable law, subject to constitutional protections against duplicative punishment.

SEC. 502. RULES OF CONSTRUCTION.

Nothing in this Act shall be construed—

1. to authorize federal supervision of State or local election administration beyond authority otherwise provided by the Constitution or an Act of Congress;
2. to authorize a federal official, court, or investigator to determine the winner of an election;
3. to prohibit good-faith federal voting-rights or election-law enforcement;
4. to prohibit political speech or advocacy unaccompanied by use or threatened use of federal governmental authority; or
5. to create a general private right of action for individual voters.

SEC. 503. SEVERABILITY.

If any provision of this Act, an amendment made by this Act, or the application thereof is held invalid, the remainder and its application to other persons and circumstances shall not be affected.

Drafting Notes

- The bill amends the Hatch Act only for the narrow official-authority prohibition and does not subject the President or Vice President to every restriction applicable to federal employees.
- The administrative standard is broader than the criminal offense; criminal liability requires knowing conduct, a specified electoral purpose, use of federal governmental authority, and an enumerated prohibited act.
- The three-year base penalty distinguishes attempted result-directed pressure from aggravated coercion and completed alteration or falsification.
- Civil enforcement is assigned principally to States and responsible election authorities rather than individual voters.
- Relief against agencies and implementing subordinates remains available even where direct relief against the President raises remedial concerns.

- Section 403 is a congressional declaration of constitutional seriousness, not a binding impeachment determination.
- Full criminal enforceability against presidential official acts may depend upon the Presidential Criminal Accountability Amendment developed under IMM-001.
- The independent-referral provision is designed to coordinate with DOJ-007 without making this bill dependent upon adoption of that proposal.

Source Notes

- Source review should include the Hatch Act subchapter, 5 U.S.C. §§ 7321-7326, and Trump v. United States.

ELEC-003 — Election Personnel Protection Amendments to the Help America Vote Act of 2002

A BILL

To amend the Help America Vote Act of 2002 to establish voluntary formula payments to States that enact and maintain politically neutral election-personnel protection laws, to restrict Federal administration of those payments to ministerial and fiscal functions, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Personnel Protection Amendments to the Help America Vote Act of 2002.**”

SEC. 2. ELECTION PERSONNEL PROTECTION PAYMENTS.

The Help America Vote Act of 2002 is amended by adding at the end the following new title:

TITLE X—ELECTION PERSONNEL PROTECTION PAYMENTS

SEC. 1001. PURPOSES.

The purposes of this title are—

1. to support State protection of election personnel and qualifying family or household members from threats, violence, coercive intimidation, unlawful disclosure of personal information, retaliation, and operational disruption arising from election duties;
2. to preserve continuity of polling, counting, tabulation, canvassing, recount, certification, records administration, and related election functions;
3. to encourage enactment of politically neutral State protection regimes without directing the manner in which States administer elections;
4. to provide a voluntary and dedicated Federal financial backstop through automatic formula payments; and
5. to prohibit use of those payments as leverage over any other election law, policy, procedure, decision, outcome, or dispute.

SEC. 1002. DEFINITIONS.

In this title:

1. **Commission** means the Election Assistance Commission.
2. **Covered election personnel** means a current, former, prospective, permanent, or temporary State or local election official, employee, poll worker, canvasser, contractor, vendor employee, volunteer, or other person performing an authorized election function.
3. **Covered family or household member** means a spouse, domestic partner, child, parent, sibling, dependent, household member, or other person targeted because of the election duties of covered election personnel.
4. **Election function** includes voter registration, ballot preparation, polling-place operation, ballot custody, counting, tabulation, auditing, recounting, canvassing, certification, records administration, equipment support, election-security support, and adjudicative or ministerial duties assigned by State law.
5. **Protection-purpose expenditure** means an expenditure authorized under section 1006.
6. **Qualifying State law** means a State statute satisfying section 1004.
7. **Reserve threshold** means the amount determined under section 1006(d).
8. **State** has the meaning given that term under section 901 of the Help America Vote Act of 2002.
9. **Unobligated Federal balance** means the amount of payments received by a State under this title, including interest credited under section 1006(c), that has not been obligated for a protection-purpose expenditure as of the close of a fiscal year.

SEC. 1003. VOLUNTARY FORMULA PAYMENTS.

(a) Payments required.

For each fiscal year for which amounts are appropriated under section 1014, the Commission shall make a payment to each eligible State in the amount determined under section 1005 and adjusted, if applicable, under section 1006(e).

(b) Voluntary participation.

A State is not required to enact or maintain a qualifying State law. A State that does not do so is ineligible only for payments under this title.

(c) No effect on other assistance.

Eligibility or ineligibility under this title may not affect the eligibility of a State or political subdivision for any payment, grant, reimbursement, cooperative agreement, or other assistance under any other provision of this Act or any other Federal law.

(d) No matching requirement.

A State may not be required to provide matching funds as a condition of receiving a payment under this title.

(e) Voluntary State and local supplementation preserved.

Nothing in subsection (d) or any other provision of this title prohibits a State or political subdivision from voluntarily appropriating, matching, supplementing, or expending non-Federal funds for purposes consistent with this title and the qualifying State law.

SEC. 1004. SOLE SUBSTANTIVE ELIGIBILITY CONDITION; QUALIFYING STATE LAW.

(a) Sole condition.

The enactment and continued maintenance of a qualifying State law is the sole substantive condition of eligibility for a payment under this title.

(b) Required protections.

A State law qualifies under this section only if it—

1. protects covered election personnel when targeted because of an election function;
2. extends appropriate protection to covered family or household members targeted for the same reason;
3. requires politically neutral administration without regard to party, candidate, viewpoint, ideology, election outcome, or the perceived political effect of an official act;
4. establishes a statewide mechanism for prompt reporting, threat assessment, referral, and coordination using one or more existing State offices;
5. authorizes emergency protective assistance, which may include residential or workplace security, law-enforcement patrol or escort, temporary relocation, legal assistance, and counseling;
6. provides an expedited judicial process for protective relief consistent with due process and the First Amendment;
7. protects residential and other sensitive personal information through address confidentiality, redaction, access control, data minimization, or comparable measures, to the maximum extent permitted by law;
8. provides civil or criminal remedies for true threats, coercive intimidation, retaliation, targeted family harm, unlawful disclosure of protected personal information, false emergency reports, bomb threats, swatting, or comparable misconduct, while preserving constitutionally protected speech;
9. requires continuity-of-operations planning for polling places, election offices, ballot-storage facilities, counting and tabulation centers, canvassing and certification bodies, and other election facilities proportionate to State and local risk;
10. authorizes workforce support reasonably related to threat-driven attrition, including training, counseling, temporary staffing, security-related leave, accommodations, recruitment, retention, or reimbursement of necessary security costs;
11. provides for aggregate public reporting that protects personal, investigative, and security-sensitive information;
12. applies equally to State and local election personnel without regard to partisan affiliation or the identity of the alleged offender; and
13. remains legally operative regardless of whether the State receives Federal funds under this title.

(c) State control of methods.

Except for the minimum protections expressly stated in subsection (b), the form, institutional placement, procedures, enforcement mechanisms, offense grading, remedies, and methods of compliance shall be determined exclusively by the State.

(d) No prospective incorporation of Federal guidance.

A qualifying State law may not be required to incorporate, comply with, or remain consistent with a regulation, guidance document, policy statement, executive order, model practice, or other administrative material issued after enactment of this title.

SEC. 1005. ALLOTMENT FORMULA.

(a) Base allotment.

From the amount appropriated for a fiscal year, the Commission shall first allot to each eligible State a base amount equal to 0.5 percent of the total amount available.

(b) Population allotment.

The remainder shall be allotted among eligible States in proportion to each State's voting-age population, as determined by the most recent decennial census or annual Census Bureau estimate selected by Congress in appropriations law.

(c) Territories and minimum allotment adjustments.

Congress may specify by law a minimum allotment or territorial adjustment, provided that the formula is objective, uniform, and not dependent on discretionary scoring or policy review by the Commission.

(d) No discretionary adjustment.

Except for the automatic carryover adjustment required by section 1006(e), the Commission may not increase, decrease, withhold, accelerate, delay, or redirect an allotment based on—

1. the Commission's evaluation of the merits or effectiveness of a State election policy;
2. an election outcome;
3. a dispute concerning voter eligibility, registration, voting methods, ballot access, counting, canvassing, recounts, certification, elector appointment, or election litigation;
4. the political affiliation of any State or local official; or
5. any factor not expressly stated in this section.

SEC. 1006. PERMITTED USES; CARRYOVER; BALANCE ADJUSTMENT.

(a) Permitted uses.

A State may use payments under this title only for—

1. emergency protection, temporary relocation, residential or workplace security, law-enforcement support, legal assistance, counseling, and related aid for covered persons;
2. address-confidentiality systems, records redaction, data minimization, secure communications, and digital-privacy measures;
3. facility hardening and security for polling places, election offices, ballot-storage facilities, counting and tabulation centers, canvassing and certification locations, and related sites;
4. continuity planning, backup facilities, emergency staffing, secure relocation of operations, communications, equipment, ballot and record transfer, and public notification during disruption;
5. threat-reporting, assessment, triage, referral, and coordination systems;
6. training on threat recognition, reporting, de-escalation, digital privacy, records protection, and continuity procedures;
7. temporary staffing, security-related leave, accommodations, recruitment, retention, and reimbursement of necessary out-of-pocket security costs in jurisdictions experiencing documented threat-related disruption or attrition;
8. grants or reimbursements to local governments for the purposes stated in this section; and
9. reasonable administrative costs directly attributable to this title, subject to a percentage cap fixed by Congress.

(b) State election-personnel protection fund.

A State receiving a payment under this title shall hold such amounts in a State election-personnel protection fund or a separately accounted subaccount of an existing State election fund. Amounts in the fund, including interest credited under subsection (c), shall be used only for protection-purpose expenditures.

(c) Availability until expended; interest.

Amounts paid to a State under this title shall remain available until expended for protection-purpose expenditures, subject to this title. Interest earned on such amounts shall be credited to the fund described in subsection (b) and used only for protection-purpose expenditures.

(d) Reserve threshold.

For each eligible State and fiscal year, the reserve threshold shall equal the greater of—

1. 25 percent of the State's allotment for the fiscal year before application of subsection (e); or
2. 18 months of the State's average monthly protection-purpose expenditures under this title during the preceding 24 months.

For a State that has received payments under this title for fewer than 24 months, the reserve threshold shall equal 25 percent of the State's allotment for the fiscal year before application of subsection (e).

(e) Automatic carryover adjustment.

If, as of the close of a fiscal year, a State's unobligated Federal balance exceeds the reserve threshold, the State's next payment under section 1003 shall be reduced by the amount of the excess. The Commission shall apply this subsection ministerially and may not waive, increase, decrease, suspend, accelerate, delay, or otherwise modify the reserve threshold or adjustment for any State.

(f) No forfeiture while State remains eligible.

Except as provided in subsection (e) and sections 1007(d) and 1011, a State that continues to maintain a qualifying State law shall not be required to return an unobligated Federal balance solely because the balance remains unexpended at the close of a fiscal year.

SEC. 1007. STATE CERTIFICATION.

(a) Submission.

To receive a payment, the chief State election official and the attorney general of the State, or equivalent State legal officer, shall jointly submit to the Commission—

1. a certification that a qualifying State law is in force;
2. the full text and citation of that law;
3. a provision-by-provision crosswalk identifying the State provision corresponding to each requirement of section 1004(b); and
4. a certification that amounts received will be used only for protection-purpose expenditures.

(b) No State plan.

The Commission may not require a State plan, implementation narrative, needs assessment, public-comment process, performance benchmark, or substantive program approval as a condition of payment.

(c) Continuing certification.

A State shall notify the Commission of any repeal or material amendment of the qualifying State law. Eligibility for future payments ends when the law no longer satisfies section 1004.

(d) No retroactive recoupment for legal change.

Repeal or amendment of a qualifying State law does not authorize recovery of amounts lawfully obligated before the change, except in cases of fraud, false certification, or expenditure outside section 1006.

(e) Unobligated balances after loss of eligibility.

If a State ceases to maintain a qualifying State law, the State may liquidate amounts lawfully obligated before the date of ineligibility for a period of 180 days after that date. Any remaining unobligated Federal balance after that period shall be returned to the United States. This subsection does not authorize withholding or offset of unrelated Federal assistance.

SEC. 1008. MINISTERIAL REVIEW AND AUTOMATIC QUALIFICATION.

(a) Limited review.

The Commission may determine only whether the submission facially identifies a State statutory provision corresponding to each requirement of section 1004(b).

(b) Automatic qualification.

A State shall be deemed eligible 30 days after a complete submission unless, before that date, the Commission issues a written determination identifying each specific requirement of section 1004(b) for which no corresponding State statutory provision has been identified.

(c) No policy judgment.

The Commission may not deny eligibility because it would have selected a different institutional structure, remedy, procedure, penalty, enforcement priority, or method of compliance.

(d) Cure.

A State may cure an identified deficiency by submitting an amended citation, crosswalk, or State enactment. Eligibility shall attach upon cure without loss of eligibility for future fiscal years.

(e) No deference.

In any judicial proceeding under section 1012, no deference shall be afforded to the Commission's interpretation of this title.

SEC. 1009. PROHIBITION ON ADDITIONAL CONDITIONS, WAIVERS, AND DISCRETIONARY SCORING.

The Commission, the President, and every other Federal officer or entity are prohibited from—

1. imposing a condition of eligibility not expressly stated in this title;
2. establishing a competitive application process;
3. scoring or ranking States;
4. requiring adherence to Federal best practices, model policies, guidance, or recommendations;
5. waiving an express statutory requirement for a particular State;
6. conditioning payment on cooperation with an unrelated Federal election initiative;
7. conditioning payment on a State's position in litigation or an election dispute;
8. using payment timing or administration to reward, punish, pressure, or influence a State or political subdivision; or
9. delegating to another Federal entity authority prohibited by this section.

SEC. 1010. FEDERAL NONINTERFERENCE AND JURISDICTIONAL FIREWALL.

(a) Rule of construction.

Nothing in this title authorizes the Commission or any other Federal officer or entity to direct, supervise, regulate, approve, disapprove, investigate, or otherwise influence—

1. voter qualifications or eligibility;
2. voter registration;
3. ballot access or ballot design;
4. voting methods or voting equipment;
5. polling-place procedures;
6. ballot custody, counting, tabulation, or auditing;
7. canvassing, recounts, or certification;
8. appointment of presidential electors;
9. adjudication of an election contest or dispute;
10. a State or local enforcement priority unrelated to expenditure of funds under this title; or
11. an election outcome.

(b) No enlargement of Commission authority.

Authority provided by this title is limited to receipt of certifications, objective eligibility review, calculation and payment of formula allotments, fiscal reporting, audit, and recovery for fraud or unauthorized expenditure. This title may not be construed to enlarge the Commission's jurisdiction, regulatory authority, investigatory authority, or supervisory authority under any other law.

(c) No individual case files.

A State may not be required to disclose to the Commission the identity, address, threat file, security plan, protected personal information, or case-specific investigative information of any covered person, except to the minimum extent necessary to investigate suspected fraud in the expenditure of Federal funds and subject to appropriate confidentiality protections.

SEC. 1011. FISCAL REPORTING, AUDIT, AND RECOVERY.

(a) Limited reporting.

A State receiving a payment shall report annually only—

1. amounts received, obligated, expended, and unobligated;
2. the State's unobligated Federal balance and reserve threshold;

3. any automatic carryover adjustment applied or anticipated under section 1006(e);
4. amounts distributed to local governments;
5. expenditures by the categories listed in section 1006; and
6. material findings of fraud or misuse.

(b) Audit scope.

An audit under this title shall be limited to whether funds were expended for a purpose authorized by section 1006, whether a certification under section 1007 was materially false, and whether the unobligated Federal balance and reserve threshold were calculated according to section 1006.

(c) Recovery.

The United States may recover only amounts obtained by material fraud, expended outside section 1006, or required to be returned under section 1007(e). Recovery may not be based on disagreement with a State's election policy, protective judgment, enforcement priority, or method of compliance.

(d) No cross-program offset.

Amounts recoverable under this section may not be collected by withholding or offsetting unrelated Federal assistance.

SEC. 1012. EXPEDITED JUDICIAL REVIEW.

(a) Cause of action.

A State aggrieved by a denial, withholding, delay, reduction, or recovery action under this title may bring a civil action in the United States Court of Appeals for the District of Columbia Circuit or the circuit in which the State capital is located.

(b) Expedited consideration.

The court shall expedite the action to the greatest practicable extent.

(c) Standard of review.

The court shall review de novo all questions of law and statutory eligibility. The Commission bears the burden of identifying the specific unmet statutory requirement or unauthorized expenditure.

(d) Relief.

The court may order payment, prohibit an unlawful condition, set aside an unlawful withholding or recovery, and grant other appropriate declaratory or injunctive relief.

SEC. 1013. RELATION TO FEDERAL CRIMINAL LAW.

Nothing in this title expands or limits Federal criminal jurisdiction. Federal investigation and prosecution of independently defined Federal offenses shall remain separate from payment administration under this title and may not be used to supervise State election administration.

SEC. 1014. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated such sums as may be necessary for fiscal year 2027 and each succeeding fiscal year to carry out this title.

No amount appropriated under this section may be transferred to another Federal election program or used for a purpose other than this title.

SEC. 1015. SEVERABILITY.

If any provision of this title or its application is held invalid, the remainder of the title and its application to other persons or circumstances shall not be affected.

SEC. 3. CLERICAL AMENDMENTS.

The table of contents of the Help America Vote Act of 2002 is amended by adding at the end the following:

"TITLE X—ELECTION PERSONNEL PROTECTION PAYMENTS
"Sec. 1001. Purposes.
"Sec. 1002. Definitions.
"Sec. 1003. Voluntary formula payments.
"Sec. 1004. Sole substantive eligibility condition; qualifying State law.
"Sec. 1005. Allotment formula.

“Sec. 1006. Permitted uses; carryover; balance adjustment.
“Sec. 1007. State certification.
“Sec. 1008. Ministerial review and automatic qualification.
“Sec. 1009. Prohibition on additional conditions, waivers, and discretionary scoring.
“Sec. 1010. Federal noninterference and jurisdictional firewall.
“Sec. 1011. Fiscal reporting, audit, and recovery.
“Sec. 1012. Expedited judicial review.
“Sec. 1013. Relation to Federal criminal law.
“Sec. 1014. Authorization of appropriations.
“Sec. 1015. Severability.”

Drafting Notes

- This is a first working draft. Final codification placement and section numbering should be conformed to the current structure of HAVA and the Office of the Law Revision Counsel’s classification practices.
- HAVA presently contains Titles I through IX; this draft therefore adds a new Title X rather than conflicting with the existing Title IV enforcement provisions.
- The title is intentionally self-contained and does not amend existing HAVA voting-system requirements, State-plan provisions, or complaint procedures.
- The draft creates a new dedicated funding stream; no existing HAVA, highway, justice, homeland-security, or other funds are placed at risk.
- The formula is objective and noncompetitive. The specific base percentage, population methodology, reserve threshold, and balance-adjustment mechanics remain provisional and require fiscal modeling.
- The draft prohibits a federally required State match while preserving voluntary State and local supplementation.
- Unobligated Federal balances remain available until expended while the State remains eligible, subject to a nondiscretionary soft cap that reduces future payments when balances exceed the statutory reserve threshold.
- The EAC’s role is ministerial and fiscal. The bill denies substantive rulemaking, discretionary scoring, waiver, plan-approval, and election-policy authority.
- Section 1004 is designed to correspond to the Model State Election Personnel Protection and Continuity Act. The federal minimums should be rechecked against every later revision of the model State act.
- The judicial-review provision should be reviewed for sovereign-standing, venue, timing, and Administrative Procedure Act interaction.
- The authorization level, administrative-cost cap, territorial formula, and treatment of the District of Columbia and Commonwealths require separate fiscal and statutory review.
- The bill should be reviewed for Appointments Clause, nondelegation, Spending Clause, anti-commandeering, First Amendment, due-process, and federalism concerns before being treated as final legislative text.

Source Notes

- Source review should include the Help America Vote Act of 2002, classified in 52 U.S.C. chapter 209, and the Election Assistance Commission's HAVA overview.

ELEC-004 — Federal Election Proceedings Integrity Act

A BILL

To establish an Anti-SLAPP-style special screening mechanism, discovery control, sensitive-material protection, and later-discovered improper-purpose sanctions for certain election proceedings in federal court, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Federal Election Proceedings Integrity Act.**”

SEC. 2. PURPOSES.

(a) Anti-SLAPP-style adaptation.

This Act adapts the procedural logic of Anti-SLAPP laws to election proceedings in federal court. Anti-SLAPP laws recognize that litigation process can itself be used abusively to impose cost, delay, discovery burdens, reputational harm, or coercive pressure before a court reaches the merits. This Act applies that logic to election proceedings that seek election-disruptive relief or access to sensitive election material without an early particularized showing.

(b) Purposes.

The purposes of this Act are to—

1. preserve access to good-faith election challenges and lawful election review;
2. prevent federal courts from being used to delay certification, manufacture uncertainty, harass election personnel, or obtain unauthorized access to sensitive election materials without an early particularized showing;
3. protect statutory election deadlines, ballot secrecy, voter privacy, chain of custody, voting-system security, and election finality;
4. distinguish ordinary citizen reporting and authorized recount or contest procedures from election proceedings seeking coercive or disruptive relief; and
5. provide sanctions where later-discovered evidence shows that an election proceeding was materially connected to a coordinated improper scheme.

SEC. 3. DEFINITIONS.

In this Act:

1. **Covered election proceeding** means a civil action, motion, petition, application, subpoena, discovery demand, inspection demand, audit demand, or request for emergency relief filed in or issued by a federal court in relation to an election involving a federal office, if the proceeding seeks or would foreseeably cause election-disruptive relief.
2. **Election-disruptive relief** means relief that would delay, enjoin, alter, decertify, nullify, or otherwise disturb voter eligibility lists, ballot preparation, voting procedures, counting, tabulation, auditing, recounting, canvassing, certification, appointment of presidential electors, transmission of election returns, or another statutory election deadline.
3. **Sensitive election material** means ballots, ballot images, voter-identifiable data, election-management-system data, voting-system source code, tabulator or scanner data, security logs, chain-of-custody records, passwords, keys, security procedures, facility plans, or other election material whose disclosure, inspection, copying, or transfer may impair ballot secrecy, voter privacy, election security, or chain of custody.
4. **Special screening motion** means a motion under section 5 to dismiss, narrow, stay, condition, or otherwise control a covered election proceeding.
5. **Improper purpose** includes delay, harassment, knowingly false factual presentation, reckless disregard of contrary evidence, unauthorized access to sensitive election material, creation of a false predicate for disrupting certification or elector appointment, or other bad-faith use of federal judicial process.
6. **Good-faith report** means a report of suspected election irregularity made to an election official, law-enforcement agency, prosecutor, candidate, political party, court, or other body authorized by law to receive such information, where the report does not itself seek election-disruptive relief or access to sensitive election material.

SEC. 4. SCOPE; PRESERVED PROCEEDINGS.

(a) Scope.

This Act applies only to covered election proceedings in federal court.

(b) Preserved proceedings and activity.

Nothing in this Act limits—

1. a good-faith report;
2. a ballot-specific voter remedy;
3. a recount, audit, or contest conducted under state law without a request for federal election-disruptive relief;
4. ordinary public-records requests subject to applicable privacy, security, and election-material protections;
5. federal criminal investigation or prosecution; or
6. the authority of a court to provide relief for a proven constitutional or statutory violation.

(c) Relief-based trigger.

This Act applies according to the relief sought or reasonably foreseeable procedural effect of the proceeding, not solely according to the identity of the filer.

SEC. 5. SPECIAL MOTION TO SCREEN COVERED ELECTION PROCEEDING.

(a) Motion authorized.

A party, election official, governmental entity, affected candidate, affected voter, or custodian of sensitive election material may file a special screening motion in a covered election proceeding.

(b) Pre-election timing limitation.

A special screening motion may not be filed with respect to a future election scheduled to occur more than 180 days after the date of the motion, unless the motion is directed to a request for immediate access to sensitive election material or another present risk to ballot secrecy, voter privacy, chain of custody, or election security.

(c) No post-election cutoff.

No fixed post-election time limit applies to a special screening motion. After the election occurs, a special screening motion may be filed in any covered election proceeding that seeks or materially relates to election-disruptive relief, counting, tabulation, auditing, recounting, canvassing, certification, elector appointment, election contest, validity of the election result, or access to sensitive election material.

(d) Time for filing.

Subject to subsections (b) and (c), a special screening motion shall be filed as soon as practicable. A court may permit later filing for good cause or where the election-disruptive character of the proceeding becomes apparent after filing.

(e) Required early showing.

Upon filing of a special screening motion, the party seeking election-disruptive relief or access to sensitive election material shall make a prima facie showing of legal authority, timeliness, particularized material facts, admissible evidence or a verified factual proffer, materiality, remedy fit, necessity of any intrusive process or sensitive-material access, and absence of improper purpose.

(f) Court action.

If the required showing is not made, the court shall dismiss, deny, narrow, stay, condition, or otherwise control the proceeding or request to the extent necessary to prevent election-disruptive relief, unauthorized access to sensitive election material, or abuse of judicial process.

SEC. 6. AUTOMATIC STAY OF INTRUSIVE PROCESS.

(a) Stay.

Upon filing of a special screening motion, discovery, subpoenas, inspections, audits, forensic access, equipment access, ballot access, source-code access, and access to sensitive election material shall be stayed until the court resolves the motion.

(b) Narrow exception.

The court may authorize limited discovery or inspection before resolving the motion only upon a finding that the discovery or inspection is narrowly tailored, necessary to test a specific colorable and material claim, and subject to adequate protection for ballot secrecy, voter privacy, chain of custody, and election security.

SEC. 7. EMERGENCY RELIEF FINDINGS.

A court may not issue a temporary restraining order, preliminary injunction, stay, impoundment order, certification delay, elector-appointment delay, extraordinary audit order, or other election-disruptive relief unless the court makes written findings that the movant is substantially likely to succeed on a legally authorized claim, the alleged defect is material, irreparable injury is not primarily caused by the movant's delay, no narrower lawful remedy is adequate, the relief is compatible with applicable federal election deadlines or necessary to remedy a proven violation of federal law, and the relief will not unnecessarily impair voters, election personnel, ballot secrecy, voter privacy, chain of custody, or election security.

SEC. 8. SENSITIVE ELECTION MATERIAL PROTECTION.

A court authorizing access to sensitive election material shall enter a protective order that limits access to persons with a demonstrated need, prohibits unauthorized disclosure, preserves ballot secrecy and chain of custody, prevents disclosure of source code, credentials, security logs, keys, facility plans, or exploitable security information except under secure conditions, requires secure storage and return or destruction of copies, and imposes sanctions for violation.

SEC. 9. FEES, COSTS, AND SANCTIONS AT SCREENING OR DISPOSITION.

(a) No automatic penalty for losing.

A party may not be sanctioned under this Act solely because an election claim, motion, petition, or request is denied.

(b) Sanctions authorized.

The court may award reasonable attorney's fees, costs, public costs, or other appropriate sanctions if it finds that a filing, request, subpoena, discovery demand, or emergency-relief request was frivolous, knowingly unsupported, presented for improper purpose, materially based on false factual allegations, legally foreclosed by binding authority, maintained after a defect was identified, or used to harass, delay, or obtain unauthorized access to sensitive election material.

(c) Additional authority preserved.

This Act supplements and does not limit Rule 11 of the Federal Rules of Civil Procedure, 28 U.S.C. § 1927, contempt authority, disciplinary referrals, inherent judicial power, or any other sanction authority.

SEC. 10. LATER-DISCOVERED IMPROPER-PURPOSE SANCTIONS.

(a) Independent post-disposition motion.

A motion under this section is an independent post-disposition motion for sanctions and ancillary relief. The motion may be filed whether or not a special screening motion under section 5 was previously filed, granted, denied, withdrawn, or resolved on other grounds.

(b) Ancillary jurisdiction after termination.

The court retains ancillary jurisdiction to resolve a motion under this section after dismissal, remand, voluntary dismissal, settlement, denial of emergency relief, final judgment, or other termination of the covered election proceeding.

(c) Time for motion.

Within one year after final disposition of a covered election proceeding, or within 180 days after discovery of material evidence of improper purpose, whichever is later, a party, governmental entity, election official, affected candidate, affected voter, or custodian of sensitive election material may move for sanctions under this section.

(d) Standard.

The court may impose sanctions if clear and convincing evidence shows that the proceeding, filing, subpoena, discovery request, inspection demand, audit demand, or request for emergency relief was materially presented, maintained, coordinated, or used for an improper purpose.

(e) Relevant evidence.

Relevant evidence may include communications, funding arrangements, concealed coordination, inconsistent public and court representations, knowingly false factual assertions, fundraising representations, links to certification delay, links to elector-appointment disruption, or efforts to create a false predicate for governmental action.

(f) Relief.

Sanctions may include attorney's fees, public costs, restitution for election-administration expenses, referral to disciplinary authorities, civil penalties where authorized by law, restrictions on future emergency election filings absent leave of court, protective orders, and referral to prosecuting authorities where criminal conduct may be implicated.

(g) Due process.

No sanctions may be imposed under this section without notice, an opportunity to respond, and an evidentiary hearing where material facts are disputed.

SEC. 11. EXPEDITED APPEAL.

An appeal from an order granting or denying election-disruptive relief, denying a special screening motion, authorizing access to sensitive election material, or imposing sanctions under this Act shall be expedited to the greatest practicable extent.

SEC. 12. RULES OF CONSTRUCTION.

Nothing in this Act shall be construed to prohibit a good-faith election challenge, alter the substantive elements of a federal claim, create federal jurisdiction where jurisdiction is otherwise absent, require a state court to adopt this Act, prevent a state from enacting a parallel or more protective state procedure, or limit lawful criminal investigation or prosecution.

SEC. 13. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Federal-State Mirror Crosswalk

This federal bill is mirrored by ELEC-004-state, adapted for state courts, state election tribunals, state subpoenas, administrative or legislative demands, and state-law election contests. Future revisions should check the corresponding state section before materially revising definitions, timing, special-motion procedure, stay, emergency-relief findings, sensitive-material protection, sanctions, later-discovered sanctions, expedited review, savings clauses, or severability.

Manifestation-to-Remedy Crosswalk

This bill addresses abusive pre-election challenges through the 180-day timing bar, relief-based trigger, special screening motion, stay, and emergency-relief findings; unsupported public fraud narratives through evidentiary, materiality, remedy-fit, and sanctions requirements; post-election disruption through no fixed post-election cutoff and emergency-relief findings; sensitive-material demands through stay and protective-order requirements; broad subpoenas, audits, inspections, or forensic demands through screening, narrowing, quashing, conditioning, and sanctions; later-discovered coordination through section 10; and good-faith-report chilling through preserved-activity provisions.

Drafting Notes

- This draft regulates federal-court procedure and relief in election proceedings; it does not attempt to commandeer state courts.
- The proposal is Anti-SLAPP-style: it adapts early screening, discovery stay, burden clarification, fee-shifting, and sanctions to election-disruptive proceedings.
- The special motion is motion-invoked, not automatic.
- A pre-election timing bar prevents the motion from being filed for elections more than 180 days away, except where immediate sensitive-material access or a present security/privacy risk is at issue.
- The draft imposes no fixed post-election cutoff; post-election availability depends on functional relation to the election result, election administration, or sensitive election material.
- Section 10 is expressly independent of the special screening motion and survives termination of the underlying proceeding.
- The draft should be reviewed for Rules Enabling Act, Article III, First Amendment, Petition Clause, Elections Clause, Article II, Electoral Count Reform Act, federal jurisdiction, and separation-of-powers issues.
- Source review should include Federal Rule of Civil Procedure 11 and 28 U.S.C. § 1927.

ELEC-005 — Presidential Result Transmission Integrity Amendments

A BILL

To amend chapter 1 of title 3, United States Code, to protect the integrity of official presidential-election result-transmission documents submitted to federal recipients and used in the recognition, preservation, or counting of presidential-election results, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Presidential Result Transmission Integrity Amendments.**”

SEC. 2. FALSE OR UNAUTHORIZED PRESIDENTIAL RESULT-TRANSMISSION DOCUMENTS.

Chapter 1 of title 3, United States Code, is amended by inserting after section 12 the following:

§ 12A. False or unauthorized presidential result-transmission documents

(a) *Definitions.*

In this section:

1. **Federal recipient** means Congress, either House of Congress, the President of the Senate, the Vice President acting in the capacity of President of the Senate, the Archivist of the United States, the National Archives and Records Administration, a federal court, a federal officer, a federal employee, or any person officially receiving, preserving, opening, tabulating, adjudicating, counting, recognizing, or transmitting presidential-election result documents under federal law.
2. **Presidential result-transmission document** means a certificate of ascertainment, certificate of vote, elector appointment document, elector-vote document, presidential-election return, official presidential result certificate, transmittal document, or any paper, record, or electronic communication that purports to identify, appoint, certify, transmit, cast, record, authenticate, or report official presidential-election results, presidential-electors status, or presidential-electors votes for federal receipt, preservation, recognition, or counting.
3. **Presidential-electors document** means a presidential result-transmission document that purports to identify, appoint, certify, transmit, cast, record, or authenticate the votes or status of presidential electors under the Electoral College system.
4. **Unauthorized presidential result-transmission document** means a presidential result-transmission document that falsely purports to have been issued, authorized, certified, transmitted, or approved by a state official, state entity, court, elector, result-certifying authority, or federal recipient; falsely represents presidential-election results, presidential-electors appointment, or presidential-electors votes; bears or simulates a state seal, official attestation, certification, signature, authorization, or legal status without lawful authority; is transmitted or presented as operative when no lawful certificate, court order, or state or federal process has made it operative; or is materially misleading as to its legal effect, source, authority, or operative status.
5. **Contingent or disputed-result document** means a presidential result-transmission document prepared solely to preserve a claim in a pending recount, contest, litigation, or other lawful proceeding, and that conspicuously states that it is conditional, nonoperative, and without legal effect unless and until a court or lawful authority determines that the results, electors, or votes identified in the document are legally operative.
6. **Knowingly** means that the person is aware of the factual circumstances making the document unauthorized, false, fabricated, materially misleading, or nonoperative. Knowledge may be proved by circumstantial evidence.
7. **Material** means capable of influencing, obstructing, delaying, confusing, or impairing the receipt, preservation, authentication, opening, tabulation, adjudication, counting, recognition, or public understanding of presidential result-transmission documents in a federal channel.

(b) *Federal offense.*

It shall be unlawful for any person knowingly to transmit, submit, file, present, deliver, cause to be delivered, or use an unauthorized presidential result-transmission document—

1. to or before a federal recipient;
2. for inclusion in, consideration by, or preservation for a federal presidential-result recognition or electoral-count process;
3. for the purpose of influencing, obstructing, delaying, confusing, or impairing a proceeding under this chapter;
4. for the purpose of causing Congress, either House of Congress, the President of the Senate, the Archivist, a federal court, or any federal officer or employee to treat the document as legally operative; or

5. in a matter within the jurisdiction of the legislative, executive, or judicial branch of the Government of the United States.

(c) Aggravated offense.

A person commits an aggravated offense if the person violates subsection (b) and acts as an organizer, director, funder, legal architect, or principal coordinator; uses or causes use of a counterfeit, simulated, unauthorized, or materially misleading state seal, official signature, attestation, or certification; transmits the document to more than one federal recipient; coordinates the document's use with an effort to delay certification, obstruct recognition or counting of presidential-election results, pressure a federal official, or induce Congress to recognize or count results, electors, or votes not authorized by law; conceals material communications, funding, legal instructions, or coordination concerning the document; causes material public cost, security cost, delay, or administrative disruption; or acts after receiving notice from a state or federal official that the document is unauthorized or nonoperative.

(d) Attempt and conspiracy.

Any person who attempts or conspires to commit an offense under this section shall be punished in the same manner as a completed offense.

(e) Safe harbor for lawful contingent or disputed-result activity.

Subsection (b) does not prohibit preparation of a contingent or disputed-result document if a recount, election contest, judicial proceeding, or other lawful proceeding concerning presidential-election results, appointment of presidential electors, or presidential-electoral votes is pending or reasonably imminent; the document is conspicuously labeled on each page as **“CONTINGENT — NOT OPERATIVE UNLESS AUTHORIZED BY FINAL COURT ORDER OR LAWFUL CERTIFICATION”** or substantially equivalent language; the document does not state or imply that the identified results, electors, or votes are presently operative; the document does not bear or simulate a state seal, official certification, official attestation, or public-office approval unless lawfully authorized; the document is not transmitted to a federal recipient as an operative certificate or result; and any transmission to a court, state official, federal recipient, party, candidate, or counsel includes a cover notice stating that the document is conditional, nonoperative, and submitted only to preserve a legal position pending final lawful determination.

(f) Loss of safe harbor.

The safe harbor under subsection (e) does not apply if a person knowingly transmits, uses, or describes the document as presently operative; conceals the contingent or disputed-result character of the document; submits the document to a federal recipient without the required cover notice; uses the document to induce delay, obstruction, or rejection of the lawful presidential result-recognition process; falsely represents that a court, state official, state entity, result-certifying authority, or federal authority has authorized the document; or continues to use or transmit the document after the relevant contest, recount, litigation, or proceeding has been finally resolved against the claimed result, slate, or vote.

(g) Federal recipient duties.

A federal recipient who receives a presidential result-transmission document that appears unauthorized, conflicting, nonoperative, or materially misleading shall, consistent with applicable law, preserve the document, mark or log the document as disputed or unauthorized pending verification, avoid treating the document as legally operative unless authorized under this chapter or other applicable federal law, refer apparent criminal conduct to the Department of Justice or other appropriate authority, and notify the Archivist and any other federal recipient reasonably likely to receive or rely upon the document.

(h) Civil enforcement by the United States.

The Attorney General may bring a civil action in the United States District Court for the District of Columbia, or in the federal district where the document was transmitted, received, created, or used, to obtain declaratory relief, injunctive relief, corrective notice to federal recipients, preservation of documents and communications, restitution or reimbursement of public costs, civil penalties authorized by this section, and other equitable relief necessary to protect the federal presidential result-transmission process.

(i) Expedited review.

Any action under subsection (h) shall be advanced on the docket and expedited to the greatest practicable extent, consistent with the deadlines established by this chapter or other applicable federal presidential-election law.

(j) Penalties.

A person who violates subsection (b) shall be fined under title 18, imprisoned for not more than five years, or both. A person who violates subsection (c) shall be fined under title 18, imprisoned for not more than ten years, or both.

(k) Civil penalties and disqualification.

In a civil action brought by the United States, a court may impose a civil penalty proportionate to the seriousness of the violation, the person's role, the degree of knowing falsity, the number of recipients, public costs caused, and risk posed to the federal presidential result-transmission process. Upon conviction under this section, or upon clear and convincing evidence in a civil action under subsection (h), a court may disqualify the person from serving in a federal presidential result-transmission role created by federal law, including service as a presidential elector while the Electoral College remains in force, for a period not exceeding ten years if such relief is necessary to protect the integrity of the federal presidential result-transmission process.

(l) Relation to existing law.

This section supplements and does not limit sections 371, 1001, or 1512 of title 18, or any other federal or state criminal, civil, disciplinary, or election-law remedy.

(m) No preemption of state process.

Nothing in this section shall be construed to regulate the manner in which a state appoints presidential electors, determines presidential-election results, conducts a recount or contest, canvasses returns, certifies results, or resolves state-law presidential-election disputes before transmission to a federal recipient; prohibit a state from imposing additional civil, criminal, administrative, or election-law remedies; limit a court-ordered revised certificate or result determination; prohibit lawful advocacy, litigation, petitioning, or political speech; or authorize any federal official to choose among competing results, slates, or votes except as provided by this chapter or other applicable federal law.

(n) First Amendment rule of construction.

This section shall not be construed to criminalize political advocacy, public argument, litigation positions, lobbying, petitioning, commentary, legal analysis, or reporting unless the conduct includes knowing transmission, submission, filing, presentation, delivery, or use of an unauthorized presidential result-transmission document in a federal channel as prohibited by subsection (b).

SEC. 3. CLERICAL AMENDMENT.

The table of sections for chapter 1 of title 3, United States Code, is amended by inserting after the item relating to section 12 the following:

“12A. False or unauthorized presidential result-transmission documents.”

SEC. 4. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Drafting Notes

- This draft is a targeted amendment to Title 3 and is drafted broadly enough to preserve the document-integrity principle if the Electoral College is replaced by another federal presidential result-transmission mechanism.
- The statute attaches when a presidential result-transmission document enters, or is used for, a federal receipt, preservation, recognition, or counting channel.
- Presidential-electoral certificates remain covered as the current Electoral College implementation, but the statute is not limited to electoral certificates as a conceptual matter.
- The safe harbor is essential to distinguish lawful contingent legal-preservation activity from false present-tense certification.
- The statute should be reviewed against Article II, the Twelfth Amendment, the Necessary and Proper Clause, the First Amendment, due process vagueness limits, federalism limits, 18 U.S.C. § 371, 18 U.S.C. § 1001, 18 U.S.C. § 1512, 3 U.S.C. § 5, 3 U.S.C. § 11, 3 U.S.C. § 12, 3 U.S.C. § 15, the Electoral Count Reform Act, and any proposed Electoral College replacement mechanism.

ELEC-006 — Presidential Transition Continuity and Automaticity Act

A BILL

To amend the Presidential Transition Act of 1963 to preserve ordinary cooperative presidential-transition norms while establishing automatic continuity backstops, transition-agreement deadlines, agency-cooperation requirements, public delay notices, and expedited remedies for missed statutory transition duties, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Presidential Transition Continuity and Automaticity Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. preserve the historically successful norm-based model of cooperative presidential transition;
2. prevent transition readiness from depending solely on concession, discretionary recognition, congressional pressure, or political forbearance;
3. provide narrow statutory backstops for known transition failure points;
4. ensure timely nonclassified transition planning, agency coordination, ethics compliance, security-vetting arrangements, and continuity preparation;
5. distinguish administrative transition preparedness from legal recognition of election victory;
6. preserve the ability of multiple apparent successful candidates to receive appropriate transition support when the presidential election remains genuinely unresolved;
7. impose reciprocal duties on federal agencies and transition entities; and
8. provide expedited remedies for concrete missed statutory duties without judicializing ordinary cooperative transition practice.

SEC. 3. DEFINITIONS.

The Presidential Transition Act of 1963 is amended by adding the following definitions:

(a) Apparent successful candidate.

The term “**apparent successful candidate**” means a candidate for President or Vice President who is entitled to transition support under the Presidential Transition Act of 1963, as amended, including where transition support is provided to more than one candidate because the result remains genuinely unresolved.

(b) Covered transition entity.

The term “**covered transition entity**” means a presidential or vice-presidential transition organization, committee, nonprofit entity, campaign-related transition entity, or other entity authorized by a candidate to receive transition services, access, information, funding, or agency cooperation under federal transition law.

(c) Required transition agreement.

The term “**required transition agreement**” means a memorandum of understanding, ethics plan, information-security agreement, donor-disclosure agreement, funding agreement, agency-access agreement, background-check agreement, security-clearance agreement, or other agreement required by law, regulation, or written transition guidance as a condition of receiving a particular category of transition access, information, service, funding, or agency cooperation.

(d) Transition readiness access.

The term “**transition readiness access**” means nonclassified transition planning support, agency points of contact, public and nonpublic briefing materials that do not contain classified or restricted sensitive information, office and logistical support, ethics guidance, personnel-vetting coordination, security-clearance process coordination, and other support necessary to prepare for a lawful transfer of executive power.

(e) Sensitive transition access.

The term “**sensitive transition access**” means access to classified information, controlled unclassified information, law-enforcement-sensitive information, intelligence information, protected personnel information, cybersecurity-sensitive information, national-security operational information, or other material that by law or agency rule requires a security, ethics, confidentiality, or information-protection agreement.

(f) Missed statutory transition duty.

The term “**missed statutory transition duty**” means failure by the Administrator of General Services, a federal agency, an agency head, or a covered transition entity to perform a nondiscretionary duty imposed by this Act or by the Presidential Transition Act of 1963, as amended.

SEC. 4. NORM-PRESERVING RULE OF CONSTRUCTION.

Nothing in this Act shall be construed to prevent, delay, narrow, or discourage ordinary cooperative transition practices occurring earlier, more flexibly, or more smoothly than the minimum statutory requirements established by this Act.

The statutory defaults established by this Act are backstops. They apply where ordinary transition cooperation, timely agreement execution, or agency coordination fails.

SEC. 5. NO LEGAL RECOGNITION OF ELECTION VICTORY.

Provision of transition readiness access, preliminary transition support, multiple-candidate transition support, agency coordination, or briefing materials under this Act does not constitute—

1. legal recognition that a candidate has won the presidential election;
2. certification of election results;
3. concession by any candidate;
4. adjudication of any election contest;
5. resolution of any recount, certification, elector, or result-transmission dispute; or
6. authority to impair any lawful election contest, recount, certification process, or judicial proceeding.

SEC. 6. AUTOMATIC PRE-ELECTION PLANNING ACCESS.

(a) Access required.

Beginning not later than the first business day after the date on which a candidate becomes a major-party nominee for President, or otherwise satisfies objective eligibility criteria established by the Administrator by rule, the Administrator and each federal agency shall provide transition readiness access sufficient to permit basic continuity planning.

(b) Content.

Pre-election planning access shall include—

1. agency transition points of contact;
2. general organizational charts;
3. descriptions of statutory missions;
4. lists of Senate-confirmed positions and principal noncareer positions;
5. unclassified continuity and management materials;
6. ethics and financial-disclosure guidance;
7. security-clearance process guidance;
8. deadlines for required transition agreements; and
9. standard forms necessary to execute required transition agreements.

(c) No classified access absent compliance.

Nothing in this section requires access to classified or sensitive transition information before execution of required agreements and satisfaction of applicable law.

SEC. 7. AUTOMATIC POST-ELECTION INTERIM ACCESS.

(a) Interim access.

Beginning on the fifth day after the general election for President and Vice President, each apparent successful candidate, and each candidate who remains eligible for multiple-candidate support under existing transition law, shall receive transition readiness access.

(b) Multiple-candidate access.

Where the result remains genuinely unresolved, the Administrator shall provide appropriate transition readiness access to each qualifying candidate without requiring concession by another candidate and without treating such access as recognition of victory.

(c) No discretionary withholding.

The Administrator may not withhold transition readiness access because of political pressure, lack of concession, pending litigation, pending recounts, public controversy, or the Administrator's subjective view of election legitimacy, except as expressly provided by statute.

SEC. 8. EXPANDED ACCESS UPON OBJECTIVE TRIGGERS.

(a) Expanded access.

Expanded transition access shall attach automatically upon the earliest occurrence of any objective trigger specified in subsection (b), subject to required transition agreements and applicable security restrictions.

(b) Objective triggers.

Objective triggers include—

1. state certification or equivalent lawful result-transmission milestones sufficient to make the apparent outcome reasonably certain;
2. expiration of a statutory deadline materially relevant to the presidential result;
3. a final or controlling court order resolving a material dispute;
4. mathematical elimination of any realistic competing candidate based on certified or legally operative results;
5. a concession by all materially competing candidates; or
6. any other objective trigger established by statute or rule that does not require discretionary adjudication of election legitimacy by the Administrator.

(c) Written rule required.

The Administrator shall publish and maintain objective access-trigger rules not later than January 1 of each presidential election year.

SEC. 9. MINISTERIAL ROLE OF THE ADMINISTRATOR.

The Administrator shall administer transition resources, facilities, payments, services, communications, and agency coordination in a ministerial manner.

The Administrator may not adjudicate the legal validity of election claims, determine election legitimacy, resolve disputes over certification, decide contests between competing slates or result documents, or delay transition readiness access based on factors not expressly authorized by statute.

SEC. 10. REQUIRED TRANSITION AGREEMENTS.

(a) Standard agreements.

Not later than January 1 of each presidential election year, the Administrator, in coordination with the Office of Government Ethics, the Department of Justice, the Federal Bureau of Investigation, the Office of the Director of National Intelligence, the Office of Personnel Management, and the White House, shall publish standard required transition agreements.

(b) Deadline for execution.

A covered transition entity shall execute all required transition agreements necessary for the level of access sought not later than—

1. the date established by existing transition law or published transition guidance; or
2. if no date is otherwise specified, 10 days after becoming eligible for the corresponding category of access.

(c) No disabling consequence.

Failure to execute a required transition agreement may not prevent all transition readiness access, prevent ordinary nonclassified planning, or impair the lawful assumption of office by the successful candidate.

(d) Limited consequences.

Failure to execute a required transition agreement may result only in consequences tailored to the missing agreement, including—

1. temporary limitation of sensitive transition access;
2. limitation of classified briefings;
3. limitation of access to protected personnel, intelligence, cybersecurity, law-enforcement, or national-security information;
4. public notice under section 13;
5. notification to relevant congressional committees;

6. notation in agency transition records; and
7. default statutory confidentiality, ethics, and information-security conditions where legally sufficient.

SEC. 11. BACKGROUND CHECK AND SECURITY-CLEARANCE COORDINATION.

(a) Agreement required.

The Department of Justice and the Federal Bureau of Investigation shall make available a standard background-check and security-clearance transition agreement not later than January 1 of each presidential election year.

(b) Transition-entity duty.

A covered transition entity seeking access to classified information, sensitive national-security information, or agency landing-team access requiring vetting shall execute the agreement and submit necessary names and forms by the applicable statutory or published deadline.

(c) Agency duty.

Upon execution of the agreement and receipt of required submissions, the Department of Justice, Federal Bureau of Investigation, Office of Personnel Management, Office of the Director of National Intelligence, and affected agencies shall process transition-related background checks and clearance requests according to published expedited transition procedures.

(d) Consequence of delay.

If a covered transition entity does not timely execute the agreement or provide required submissions, the responsible federal office shall issue a written notice identifying the missing item, access category affected, cure procedure, and expected consequence.

SEC. 12. AGENCY COOPERATION DEADLINES.

(a) Transition points of contact.

Each agency shall designate a senior transition official and transition points of contact not later than September 1 of each presidential election year.

(b) Briefing materials.

Each agency shall prepare nonclassified briefing materials not later than October 1 of each presidential election year.

(c) Access after eligibility.

Once a candidate or covered transition entity becomes eligible for transition readiness access, each agency shall provide initial contact within two business days and schedule an initial transition briefing within five business days, unless a written delay notice is issued under section 13.

(d) Sensitive information.

Sensitive transition access shall be provided only after satisfaction of applicable law, clearance requirements, and required transition agreements.

SEC. 13. WRITTEN DELAY OR DENIAL NOTICES.

(a) Notice required.

Any federal official, agency, or covered transition entity that materially delays, denies, limits, or fails to perform a required transition duty shall issue a written notice.

(b) Contents.

The notice shall identify—

1. the duty at issue;
2. the responsible official or entity;
3. the factual basis for the delay or denial;
4. the legal basis for the delay or denial;
5. the access category affected;
6. the steps required to cure the delay or denial;
7. the deadline for cure; and
8. whether expedited judicial review is available.

(c) Public availability.

Notices under this section shall be publicly available, except that classified, law-enforcement-sensitive, personal-privacy, cybersecurity-sensitive, or national-security-sensitive information shall be redacted or summarized in unclassified form.

SEC. 14. EXPEDITED JUDICIAL REVIEW.

(a) Cause of action.

An apparent successful candidate, covered transition entity, affected agency, agency head, or other person or entity expressly authorized by statute may bring a civil action to compel performance of a missed statutory transition duty.

(b) Venue.

An action under this section may be brought in the United States District Court for the District of Columbia.

(c) Expedition.

The court shall expedite the action to the greatest practicable extent.

(d) Scope of review.

The court may determine whether a nondiscretionary transition duty exists, whether the duty was missed, and what ministerial or declaratory relief is necessary. The court may not adjudicate the ultimate winner of the presidential election except to the extent otherwise authorized by law.

(e) Relief.

The court may order performance of a nondiscretionary duty, require issuance of a written notice, require access consistent with statutory eligibility and security requirements, preserve records, or grant other narrow relief necessary to enforce this Act.

SEC. 15. CONGRESSIONAL OVERSIGHT PRESERVED BUT NOT REQUIRED.

Nothing in this Act limits congressional oversight, subpoenas, hearings, appropriations authority, reporting requirements, or other lawful congressional powers.

Transition access and continuity remedies under this Act do not depend on congressional oversight, committee action, subpoena issuance, appropriations pressure, or public objection by Congress.

SEC. 16. RECORDKEEPING AND REPORTING.

(a) Records.

The Administrator and each agency shall preserve records sufficient to document compliance with this Act, including access determinations, delay notices, executed agreements, agency contacts, briefing dates, and security-vetting submissions.

(b) Post-transition report.

Not later than 180 days after inauguration, the Administrator shall submit to Congress and publish a report describing compliance with this Act, including missed statutory duties, delay notices, cured deficiencies, and recommendations for technical improvements.

(c) Protection of sensitive information.

The report shall not disclose classified, law-enforcement-sensitive, personal-privacy, cybersecurity-sensitive, or national-security-sensitive information.

SEC. 17. RELATION TO OTHER LAW.

Nothing in this Act shall be construed to—

1. alter the date of inauguration;
2. alter presidential-election certification or counting procedures;
3. alter the Electoral Count Reform Act or title 3 procedures except as expressly provided;
4. authorize a federal official to adjudicate the winner of the presidential election;
5. require disclosure of classified information to a person not legally entitled to receive it;
6. waive ethics, financial-disclosure, donor-disclosure, background-check, clearance, or information-security requirements;
7. limit ordinary cooperative transition practices; or
8. impair lawful election contests, recounts, certifications, or judicial proceedings.

SEC. 18. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Drafting Notes

- This draft is designed as a targeted amendment to the Presidential Transition Act of 1963.
- The proposal preserves ordinary cooperative transition norms and uses statutory defaults only as backstops.
- Transition access is framed as administrative preparedness, not legal recognition of election victory.
- The draft addresses both government-side obstruction and transition-entity noncompliance.
- The expedited-review provision is limited to concrete missed statutory transition duties and should not invite courts to adjudicate the election winner.
- The draft should be reviewed against the Presidential Transition Act of 1963, the 2022 transition amendments, appropriations law, classified-information rules, background-check authorities, ethics laws, and agency transition-practice guidance.

Source Notes

- Source review should include the Presidential Transition Act of 1963, as amended, in the GPO statutory compilation, and the Electoral Count Reform and Presidential Transition Improvement Act of 2022 provisions reflected in 3 U.S.C. § 5.

ELEC-007 — Election Administration Federal-Force Noninterference Act

A BILL

To prohibit federal personnel from participating in election administration, to preserve state and local civilian control over election operations, to permit narrowly limited non-election emergency response near election sites, to protect election materials from federal interference absent specific judicial safeguards, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Administration Federal-Force Noninterference Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. preserve civilian state and local control over election administration;
2. modernize the principle that federal troops, armed federal personnel, and federally directed forces should not be present in a manner that affects elections;
3. distinguish lawful non-election emergency response from prohibited election participation;
4. prevent federal emergency authority, law-enforcement authority, investigative authority, protective authority, or technical-assistance authority from being used as a pretext for federal election supervision;
5. protect voters, election workers, ballots, voting equipment, election records, and result-transmission materials from intimidation or unlawful interference;
6. permit narrowly limited federal assistance only in extraordinary non-election emergencies where state and local capacity is demonstrably inadequate; and
7. require notice, documentation, withdrawal, and judicial safeguards where federal presence or process intersects with election sites or election materials.

SEC. 3. DEFINITIONS.

In this Act:

1. **Covered election site** means a polling place, ballot drop site, voter-registration processing site during an election period, counting center, tabulation center, canvassing site, recount site, audit site, certification site, election office, ballot-storage facility, voting-equipment storage facility, result-transmission site, or any place where ballots, voting equipment, pollbooks, tabulators, memory devices, election records, or presidential result-transmission documents are located, processed, counted, stored, reviewed, certified, or transmitted.
2. **Covered election material** means ballots, ballot images, voting equipment, tabulators, scanners, pollbooks, voter check-in devices, memory devices, removable media, election-management systems, chain-of-custody records, canvass records, certification records, recount records, audit records, election returns, presidential result-transmission documents, and any other record or item necessary to vote, count, tabulate, canvass, recount, audit, certify, preserve, or transmit election results.
3. **Federal personnel** means any officer, employee, agent, contractor, task-force member, military member, National Guard member in federal status, deputized federal officer, or other person acting under federal command, control, direction, funding, or operational authority.
4. **Election-administration function** means any act of administering, supervising, directing, controlling, observing for election-integrity purposes, interrupting, delaying, counting, recounting, canvassing, auditing, certifying, decertifying, validating, invalidating, transporting, seizing, inspecting, accessing, imaging, copying, retaining, or taking custody of any voting process, election proceeding, election decision, or covered election material.
5. **Non-election emergency function** means an otherwise lawful law-enforcement, emergency-response, protective, medical, fire, explosives, cybersecurity, disaster-response, or technical-assistance function directed at an extraordinary emergency and not directed at administering, supervising, influencing, or participating in the election.
6. **Extraordinary emergency** means a specific, imminent, and objectively documented non-election emergency involving an active threat to life, serious bodily harm, active violence, credible explosive threat, fire, flood, structural collapse, hazardous-material incident, catastrophic infrastructure failure, or comparable physical emergency that state and local authorities cannot timely and adequately address without narrowly limited federal assistance. The term does not include alleged election fraud, suspected election irregularities, disputes over voter eligibility, disputes over ballot validity, delays in counting or reporting, certification disputes, poll-watcher or observer disputes, generalized public unrest, generalized concern about election integrity, or a request to inspect, verify, audit, secure, transport, preserve, or take custody of election materials.

7. **State consent** means a written request or written consent from the Governor or another statewide official expressly designated by state law to request federal emergency assistance for election-site safety or election-continuity purposes.

SEC. 4. GENERAL PROHIBITION ON FEDERAL ELECTION-ADMINISTRATION PARTICIPATION.

(a) Prohibition.

Except as expressly provided in this Act, federal personnel may not perform, direct, supervise, control, influence, or participate in any election-administration function.

(b) No emergency conversion.

The existence of an emergency, threat, investigation, protective mission, federal-facility concern, or technical-assistance request shall not convert federal personnel into election administrators and shall not authorize federal personnel to make, influence, delay, or control any election-administration decision.

(c) Appearance of supervision.

Federal personnel may not be deployed, positioned, identified, or used in a manner that reasonably creates the appearance that the federal government is supervising, validating, invalidating, policing, or controlling voting, counting, canvassing, recounting, auditing, certification, or custody of election materials.

SEC. 5. NON-ELECTION EMERGENCY ASSISTANCE EXCEPTION.

(a) Exception.

Federal personnel may perform a non-election emergency function at or near a covered election site only if all requirements of this section are satisfied.

(b) Required predicates.

Before federal personnel may be deployed under this section, there must be—

1. state consent;
2. an extraordinary emergency;
3. a written finding that state and local authorities cannot timely and adequately address the specific emergency without federal assistance;
4. identification of the specific state or local capacity inadequacy requiring federal assistance;
5. a written scope order limiting the location, duration, personnel, mission, permitted actions, prohibited actions, command structure, reporting requirements, and termination trigger; and
6. confirmation that federal personnel will not perform any election-administration function.

(c) Scope limitation.

Federal assistance under this section shall be limited to the least intrusive non-election emergency function necessary to address the specific state-capacity inadequacy identified under subsection (b).

(d) Supportive role only.

Federal personnel deployed under this section may protect life, stabilize the emergency, provide technical assistance, assist in neutral emergency response, or perform other non-election functions within the written scope order. They may not administer, supervise, direct, observe for election-integrity purposes, interrupt, delay, count, recount, canvass, certify, audit, transport, seize, inspect, access, image, copy, retain, or take custody of covered election material or any election process.

(e) Automatic withdrawal.

Federal personnel deployed under this section shall withdraw from the covered election site when the emergency ends, state or local capacity is restored, the written scope order expires, state consent is withdrawn, or a court orders withdrawal, whichever occurs first.

SEC. 6. EXIGENT LIFE-SAFETY FALLBACK.

(a) Limited immediate action.

If prior state consent is impossible because of an imminent threat to life or serious bodily harm, federal personnel may enter or act near a covered election site only to stabilize the emergency and protect life.

(b) No election participation.

Action under this section does not authorize any election-administration function.

(c) Notice and withdrawal.

Within six hours after action under this section begins, the responsible federal official shall provide written notice to the Governor, chief state election official, state attorney general, chief local election official, and United States district court for the district in which the action occurred. Federal personnel shall withdraw unless state consent, a judicial order, or another lawful non-election emergency predicate is obtained.

SEC. 7. ELECTION-MATERIAL ACCESS AND JUDICIAL SAFEGUARDS.

(a) Separate judicial process required.

Federal personnel may not access, inspect, image, copy, transport, seize, retain, or take custody of covered election material unless authorized by a lawful court-issued writ, warrant, subpoena-enforcement order, or other judicial order satisfying this section, except for incidental physical movement necessary to protect life during an exigent emergency under section 6.

(b) Required findings.

A court may authorize access to covered election material only upon specific findings that—

1. there is probable cause or other applicable legal basis for the process sought;
2. the covered election material is specifically identified;
3. the request is not a pretext for election supervision or interference;
4. the action is necessary and cannot be accomplished through a less intrusive alternative;
5. the action will not materially disrupt voting, counting, canvassing, recounting, auditing, certification, or statutory election deadlines unless no alternative is adequate;
6. chain of custody, ballot secrecy, voter privacy, voting-system security, and election-record integrity will be preserved;
7. copying, imaging, inspection, or supervised access is insufficient before physical seizure or removal; and
8. notice has been provided to the chief state election official and chief local election official unless delayed notice is specifically justified by exigent circumstances.

(c) Protective conditions.

Any order under this section shall include conditions governing chain of custody, sealing, copying, imaging, physical custody, access logs, storage, return, nondisclosure of sensitive election-security information, and expedited return or substitution where election administration requires continued use of the material.

(d) No supervisory authority.

A court order under this section authorizes only the specific evidence-preservation or law-enforcement action ordered. It does not authorize federal personnel to supervise, direct, pause, resume, validate, invalidate, count, recount, canvass, audit, certify, or decertify any election process.

(e) Court-process savings clause.

Nothing in this Act prohibits federal personnel from executing a lawful court-issued writ, warrant, subpoena-enforcement order, or other judicial order, provided that execution of the order does not authorize federal personnel to perform an election-administration function except to the limited extent expressly required by the order and consistent with any chain-of-custody, voter-privacy, ballot-secrecy, and election-security safeguards imposed by the issuing court or applicable law.

SEC. 8. PROHIBITED CONDUCT; INCIDENTAL-CONTACT SAFE HARBOR.

(a) Prohibited conduct.

It shall be unlawful for federal personnel or any person acting under color of federal authority to—

1. enter a covered election site for the purpose of supervising, monitoring, influencing, or controlling election administration;
2. visibly patrol, station, or deploy at a covered election site in a manner not authorized by this Act;
3. question voters, poll workers, election officials, observers, or canvassers about election choices, eligibility, vote counting, ballot handling, or certification decisions except pursuant to lawful process and outside active election administration where feasible;
4. direct any election official to stop, start, pause, resume, alter, certify, decertify, count, recount, reject, accept, transport, disclose, or withhold any vote, ballot, record, material, canvass, or certification;
5. use a non-election emergency or investigation as a pretext to observe election administration, access election materials, or influence election decisions;
6. take custody of covered election material except under section 7; or

7. represent, expressly or implicitly, that federal personnel are supervising, validating, invalidating, certifying, decertifying, or controlling the election.

(b) Incidental-contact safe harbor.

No person shall be liable under this Act solely because federal personnel, while acting in good faith and performing an otherwise lawful non-election function, inadvertently or unavoidably encounter, overhear, observe, or have incidental contact with an election process, election personnel, voters, observers, or covered election material, provided that the federal personnel—

1. did not intend to influence, supervise, control, delay, or participate in election administration;
2. did not invoke federal authority to affect an election-administration decision;
3. disengaged from any election-administration matter as soon as practicable;
4. did not access, inspect, image, copy, transport, seize, retain, or take custody of covered election material except as authorized by section 6 or 7;
5. did not disclose or use nonpublic election information obtained through the incidental contact except as required by lawful process or necessary to address the non-election emergency; and
6. documented and reported any material incidental contact to the responsible federal supervisor and, where feasible, the chief state or local election official.

(c) Safe harbor limitations.

The safe harbor in subsection (b) does not apply to intentional, reckless, repeated, pretextual, or avoidable conduct; conduct undertaken to observe or investigate election administration without lawful authority; or conduct that materially affects voting, counting, canvassing, auditing, certification, custody of election materials, or any other election-administration function.

SEC. 9. NOTICE, REPORTING, AND RECORDKEEPING.

(a) Public notice.

Whenever federal personnel are deployed under section 5 or act under section 6, the responsible federal official shall issue public notice as soon as doing so will not materially endanger life, safety, or a legitimate non-election law-enforcement operation.

(b) Contents.

The notice shall identify the covered election site or general location, nature of the emergency, state consent or exigent predicate, state-capacity inadequacy identified, mission scope, participating federal entities, start time, expected duration, and whether any covered election material was affected.

(c) After-action report.

Within 14 days after federal personnel withdraw, the responsible federal official shall provide an after-action report to the Governor, chief state election official, state attorney general, chief local election official, relevant congressional committees, and the public.

(d) Sensitive information.

Classified, law-enforcement-sensitive, cybersecurity-sensitive, personal-privacy, or election-security-sensitive information may be redacted or summarized in unclassified form.

(e) Records preserved.

Federal entities shall preserve deployment orders, scope orders, communications, access logs, body-camera footage where available, incident reports, chain-of-custody records, notices, and after-action reports.

SEC. 10. EXPEDITED JUDICIAL REVIEW.

(a) Cause of action.

A state, Governor, chief state election official, state attorney general, local election official, affected candidate, political party, affected voter, or custodian of covered election material may bring a civil action for declaratory or injunctive relief against violation of this Act.

(b) Venue.

An action under this section may be brought in the United States district court for the district where the covered election site or covered election material is located, or in the United States District Court for the District of Columbia.

(c) Expedition.

The court shall expedite the action to the greatest practicable extent.

(d) Relief.

The court may order withdrawal of federal personnel, prohibit election-administration participation, enforce chain-of-custody safeguards, require return or preservation of covered election material, require notice or reporting, or grant other narrow relief necessary to enforce this Act.

SEC. 11. RELATION TO OTHER LAW.

Nothing in this Act shall be construed to—

1. prohibit otherwise lawful non-election emergency response consistent with this Act;
2. prohibit ordinary state or local law-enforcement election-site safety functions;
3. authorize federal personnel to participate in election administration;
4. limit stricter protections under state law;
5. impair lawful civil-rights enforcement conducted without federal election-administration participation;
6. impair lawful criminal investigation conducted outside active election administration or under the safeguards of this Act;
7. prohibit execution of a lawful court-issued writ, warrant, subpoena-enforcement order, or other judicial order, subject to section 7;
8. prohibit federal personnel from registering to vote, voting, standing in line to vote, assisting family or household members as permitted by ordinary election law, appearing at a polling place in a personal capacity, or engaging in lawful civic activity in the same manner as other citizens, provided that they do not invoke federal authority, act under color of federal office, or perform official duties while doing so;
9. authorize any action prohibited by the Posse Comitatus Act or other federal law;
10. limit 18 U.S.C. § 592 except to provide additional protections; or
11. authorize federal personnel to direct, supervise, or control a state or local election official.

SEC. 12. PERSONAL-CAPACITY VOTING APPEARANCE.

(a) Civilian attire where reasonably practicable.

Federal personnel appearing at a polling place, ballot drop site, voter-registration site, or other voting location solely in a personal capacity shall, where reasonably practicable, appear in civilian attire.

(b) No indicia of federal authority.

Federal personnel appearing in a personal capacity shall not display official insignia, tactical gear, official credentials, marked federal vehicles, visible weapons, or other indicia of federal authority in a manner that would reasonably create the appearance of federal election supervision, intimidation, or official presence.

(c) No denial or invalidation of vote.

Nothing in this section shall be construed to deny, burden, condition, or abridge the right of federal personnel to vote. A violation of this section shall not invalidate the individual's ballot.

SEC. 13. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Drafting Notes

- The controlling rule is that federal agents may respond to a non-election emergency; they may not become part of the election.
- The emergency exception is not an election-participation exception.
- The extraordinary emergency definition is intentionally limited to concrete non-election emergencies and excludes election-administration disputes, generalized election-integrity concerns, and requests to inspect or secure election materials.
- The incidental-contact safe harbor protects good-faith inadvertent or unavoidable contact, but not intentional, reckless, pretextual, repeated, or election-affecting conduct.
- Federal personnel retain ordinary personal voting rights and lawful personal civic rights, subject to ordinary election law, ethics rules, agency rules, and the prohibition on invoking federal authority.
- Federal personnel should appear in civilian attire when voting in person where reasonably practicable and must not display official indicia in a manner suggesting federal election supervision or intimidation; this rule does not deny the right to vote or invalidate any ballot.

- Lawful court-issued writs, warrants, subpoena-enforcement orders, and other judicial orders remain executable, but they do not authorize election-administration participation beyond the order's express terms and required safeguards.
- State consent is necessary but not sufficient; there must also be a documented state-capacity inadequacy.
- Election-material access requires separate judicial safeguards.
- This draft should be reviewed against 18 U.S.C. § 592, the Posse Comitatus Act, National Guard authorities, federal civil-rights enforcement, election-crime enforcement, emergency-response law, federalism principles, state emergency-management law, Hatch Act principles, and federal employee voting-rights protections.

ELEC-008 — Federal Election Subversion Accountability Act

A BILL

To establish narrowly tailored criminal and civil accountability for coordinated schemes that use independently wrongful predicate acts to corruptly nullify, reverse, obstruct, delay, or procure official disregard of lawful federal-election results, while preserving lawful litigation, recounts, contests, advocacy, reporting, legal advice, journalism, congressional activity, and good-faith official duties, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Federal Election Subversion Accountability Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. protect the lawful determination, certification, transmission, counting, recognition, and practical legal effect of federal-election results;
2. create a narrow accountability framework for coordinated federal election-subversion schemes composed of independently wrongful predicate acts;
3. supplement, not replace, existing federal and state criminal, civil, election, professional-responsibility, contempt, and election-contest remedies;
4. preserve lawful litigation, recounts, election contests, congressional procedures, legal advocacy, good-faith official duties, public advocacy, journalism, reporting, whistleblowing, and ordinary campaign activity;
5. recognize that Congress has addressed certain presidential electoral-count and transition vulnerabilities through prior reforms, while preserving accountability for coordinated schemes that exploit multiple channels of federal-election administration;
6. protect federal elections without generally federalizing state and local elections;
7. avoid interference with each House of Congress's constitutional authority to judge the elections, returns, and qualifications of its own Members;
8. provide a limited state-attorney-general backstop where federal enforcement may be conflicted, delayed, or unavailable because the alleged scheme involves the President, White House, Department of Justice leadership, federal agencies, or persons politically aligned with federal executive actors; and
9. ensure that liability attaches only where the statute's coordination, corrupt-purpose, predicate-act, material-connection, safe-harbor, and limiting-instruction requirements are satisfied.

SEC. 3. DEFINITIONS.

In this Act:

(a) Covered federal election.

The term “**covered federal election**” means an election for President, Vice President, United States Senator, or Representative in Congress, including any primary, general, runoff, special, recount, contest, canvass, certification, result-transmission, presidential-electoral, electoral-count, or transition process connected to such election.

(b) Covered federal-election process.

The term “**covered federal-election process**” means any process relating to a covered federal election, including voting, counting, tabulation, canvassing, recounts, audits, election contests, certification, result transmission, federal-election document transmission, congressional receipt or counting of electoral votes, and presidential-transition access.

(c) Presidential-election process.

For an election for President or Vice President, the term “**covered federal-election process**” includes presidential-electoral appointment, certificates of ascertainment, certificates of vote, presidential result-transmission documents, electoral-vote transmission, congressional electoral-count proceedings, and presidential-transition access and continuity.

(d) Congressional-election caution.

For an election for Senator or Representative in Congress, this Act does not regulate, control, or displace either House's constitutional authority to judge the elections, returns, and qualifications of its Members. This Act applies only to independently wrongful predicate conduct materially connected to a coordinated federal election-subversion scheme.

(e) Lawful federal-election result.

The term “**lawful federal-election result**” means a federal-election result, canvass, certification, appointment, certificate, return, recount determination, contest determination, result-transmission document, or related legal determination made, issued, recognized, or required under applicable federal or state law, subject to lawful recounts, contests, judicial proceedings, and statutory review.

(f) Coordinated federal election-subversion scheme.

The term “**coordinated federal election-subversion scheme**” means a course of conduct involving two or more persons who knowingly coordinate, agree, direct, finance, materially assist, or otherwise participate in conduct using independently wrongful predicate acts to corruptly nullify, reverse, obstruct, delay, alter, or procure official disregard of a lawful federal-election result or covered federal-election process.

(g) Predicate act.

The term “**predicate act**” means an act listed in section 5 and committed with the mental state required by this Act and by the law, rule, order, or duty establishing the wrongful character of the act.

(h) Independently wrongful.

The term “**independently wrongful**” means unlawful, fraudulent, coercive, corrupt, knowingly false, contemptuous, sanctionable after judicial or tribunal finding, or specifically prohibited by federal law, state law, court order, professional rule, election law, or another legally binding duty.

(i) Corruptly.

The term “**corruptly**” means acting with a wrongful purpose to obtain an unlawful benefit, secure official action known to be unauthorized, impair a lawful governmental function, procure official disregard of a lawful federal-election result, or obstruct the lawful effect of a covered federal-election process.

The term does not include good-faith legal advocacy, good-faith factual error, public political advocacy, lawful lobbying, ordinary campaign activity, or pursuit of relief through lawful election procedures.

(j) Material connection.

The term “**material connection**” means a connection capable of furthering, enabling, concealing, financing, legitimizing, pressuring, delaying, obstructing, or giving practical effect to the coordinated federal election-subversion scheme.

(k) Federal channel.

The term “**federal channel**” means a federal proceeding, federal official function, federal agency, federal court, congressional proceeding, presidential result-transmission process, federal-election result-transmission process, federal transition process, or other federal mechanism for receiving, preserving, counting, recognizing, litigating, or giving effect to a covered federal-election result.

(l) Person.

The term “**person**” includes an individual, campaign committee, political committee, organization, corporation, partnership, association, legal entity, public official, former public official, officer, employee, agent, attorney, contractor, or other participant.

(m) Official.

The term “**official**” includes any federal, state, territorial, tribal, or local officer, employee, election official, canvassing official, certification official, law-enforcement official, legislative officer, elector, or person acting under color of law.

SEC. 4. OFFENSE OF COORDINATED FEDERAL ELECTION SUBVERSION.

(a) Offense.

It shall be unlawful for any person knowingly and corruptly to participate in a coordinated federal election-subversion scheme that—

1. has the specific objective of nullifying, reversing, obstructing, delaying, corruptly altering, or procuring official disregard of a lawful federal-election result or covered federal-election process;
2. involves at least two predicate acts;
3. includes at least one predicate act occurring in or affecting a federal channel, covered federal-election process, or official duty relating to a covered federal election; and
4. has a material connection between the predicate acts and the corrupt objective.

(b) Required mental state.

No person may be liable under this section unless the government proves beyond a reasonable doubt that the person—

1. knew of the coordinated scheme's corrupt objective;

2. knowingly joined, directed, financed, materially assisted, or participated in the scheme;
3. knew, or was willfully blind to the fact, that the predicate acts were independently wrongful; and
4. intended that the conduct materially further, conceal, legitimize, finance, or give practical effect to the corrupt objective.

(c) No liability for association alone.

Mere association with a candidate, campaign, political party, attorney, public official, organization, or participant is insufficient to establish liability.

(d) No liability for speech or belief alone.

No person may be liable under this Act solely for political speech, public claims, election denial, criticism of election administration, support for a candidate, public advocacy, commentary, legal theory, opinion, lobbying, journalism, academic analysis, or other expressive activity.

SEC. 5. PREDICATE ACTS.

For purposes of this Act, predicate acts are limited to the following independently wrongful acts:

(a) False federal-election result-transmission documents.

Knowingly creating, executing, transmitting, submitting, filing, presenting, delivering, or using a false or unauthorized federal-election result-transmission document, presidential-electoral document, certificate, return, or related official document in violation of federal or state law.

(b) Coercive intimidation of election personnel.

Knowingly threatening, intimidating, coercing, retaliating against, or attempting to coerce an election official, canvassing official, certification official, electoral, election worker, or covered family member for the purpose of altering, delaying, obstructing, refusing, or procuring official disregard of a lawful election duty.

(c) Corrupt pressure under color of office.

Knowingly using official authority, apparent official authority, governmental position, or access to governmental power to pressure, threaten, induce, or coerce another official to disregard, alter, delay, nullify, decertify, reverse, or refuse to give effect to a lawful federal-election result or duty.

(d) Bribery, extortion, or unlawful inducement.

Offering, soliciting, accepting, promising, or providing anything of value, official action, employment, pardon-related benefit, governmental favor, threat, or other unlawful inducement to affect a covered federal-election process.

(e) Evidence fabrication, alteration, concealment, or destruction.

Knowingly fabricating, altering, concealing, destroying, corruptly withholding, or falsifying evidence, records, ballots, election materials, electronic records, chain-of-custody materials, official returns, certifications, or official communications material to a covered federal-election process.

(f) Knowingly false sworn or official statements.

Knowingly making, causing, procuring, or using a materially false sworn statement, declaration, certification, affidavit, official statement, or submission to a court, legislative body, election official, federal agency, state agency, or other governmental body in furtherance of the coordinated scheme.

(g) Unauthorized access to election materials or systems.

Knowingly accessing, copying, imaging, transmitting, altering, taking custody of, disclosing, or using ballots, voting equipment, tabulators, pollbooks, memory devices, election-management systems, election records, returns, certifications, or result-transmission materials without lawful authority and in furtherance of the coordinated scheme.

(h) Obstruction of a federal electoral proceeding or function.

Knowingly obstructing, corruptly influencing, impeding, or attempting to obstruct or impede a federal proceeding, federal channel, or federal duty concerning a covered federal-election result, result-transmission process, presidential transition, or counting of electoral votes, where such obstruction is independently unlawful under federal law.

(i) Knowing violation of election-material custody safeguards.

Knowingly violating a federal court order, state court order, statutory custody rule, chain-of-custody rule, protective order, or lawful preservation requirement governing covered election material in furtherance of the coordinated scheme.

(j) Knowing violation of transition-obstruction safeguards.

Knowingly violating a statutory duty or court order governing presidential-transition access, agency cooperation, transition agreements, or transition continuity where the violation is materially connected to a coordinated effort to deny practical effect to a lawful presidential-election result.

(k) Abuse of judicial, subpoena, audit, or investigatory process after finding.

Using litigation, subpoena, audit, inspection, investigation, discovery, or administrative process as a predicate act only where a court, tribunal, disciplinary authority, or authorized adjudicative body has found bad faith, material falsity, improper purpose, frivolousness, abuse of process, contempt, sanctionable conduct, or knowing misuse materially connected to the coordinated scheme.

(l) Scheme financing through knowing material falsehood.

Knowingly raising, soliciting, transferring, spending, or retaining funds through materially false representations made in furtherance of the coordinated federal election-subversion scheme.

(m) Conspiracy, attempt, or aiding and abetting.

Attempting, conspiring, aiding, abetting, counseling, commanding, inducing, procuring, financing, or willfully causing any predicate act listed in this section.

SEC. 6. SAFE HARBORS AND PROTECTED ACTIVITY.

(a) Protected activity.

Nothing in this Act shall be construed to prohibit, punish, chill, or create liability for—

1. good-faith litigation;
2. lawful recounts;
3. lawful election contests;
4. good-faith requests for audits or investigations;
5. public advocacy;
6. lobbying;
7. lawful congressional objections, debate, or proceedings;
8. legal advice;
9. reporting suspected irregularities;
10. whistleblowing;
11. journalism;
12. academic analysis;
13. ordinary campaign activity;
14. contingent preservation of legal claims;
15. good-faith cooperation with investigations;
16. lawful official duties;
17. criticism of election administration;
18. filing a lawsuit that is ultimately unsuccessful;
19. making a legal argument that is rejected; or
20. advocating statutory or constitutional reform.

(b) Good-faith legal representation.

An attorney may not be liable under this Act solely for representing a client, advancing a nonfrivolous legal claim, preserving a legal argument, advising on lawful options, filing a pleading, communicating with officials, or pursuing lawful recount, contest, appellate, administrative, or congressional procedures.

This subsection does not protect knowingly false evidence, fraudulent documents, bribery, threats, coercion, obstruction, contempt, or conduct found by a court or tribunal to be independently wrongful and materially connected to the coordinated scheme.

(c) Good-faith official duties.

A public official may not be liable under this Act solely for performing lawful official duties, seeking legal advice, requesting lawful review, voting on an objection, participating in lawful legislative proceedings, or taking a legal position within the scope of lawful authority.

This subsection does not protect corrupt use of official authority, coercion, bribery, threats, fabrication, knowing falsehoods, or official acts undertaken with knowledge that they are unauthorized and materially connected to a coordinated federal election-subversion scheme.

(d) Congressional proceedings.

Nothing in this Act shall be construed to impose liability solely for a Member of Congress's vote, debate, objection, legislative act, or participation in proceedings protected by the Constitution. This subsection does not protect independently wrongful conduct outside constitutionally protected legislative activity.

(e) Speech and advocacy.

No expressive activity may serve as a predicate act unless it is integral to independently wrongful conduct, including fraud, threat, bribery, coercion, obstruction, or knowing use of false official documents.

(f) Burden.

The government bears the burden of proving beyond a reasonable doubt that the safe harbor does not apply in a criminal prosecution.

SEC. 7. REQUIRED JURY INSTRUCTIONS AND LIMITING PRINCIPLES.

(a) Required limiting instructions.

In any criminal prosecution under this Act, the court shall instruct the jury that liability may not be based solely on—

1. political speech;
2. public advocacy;
3. election denial;
4. criticism of election administration;
5. legal theory;
6. lobbying;
7. journalism;
8. academic analysis;
9. association with a candidate, campaign, political party, attorney, public official, organization, or participant;
10. lawful legal representation;
11. official position or official status;
12. a lawsuit, recount request, contest, audit request, or investigation request that is unsuccessful or rejected;
13. a factual claim that is mistaken but made in good faith; or
14. a legal argument that is rejected by a court, election official, legislative body, or other decisionmaker.

(b) Required elements instruction.

The court shall instruct the jury that the government must prove beyond a reasonable doubt each of the following:

1. the existence of a coordinated federal election-subversion scheme;
2. the defendant's knowing and corrupt participation in that scheme;
3. the scheme's specific corrupt objective to nullify, reverse, obstruct, delay, corruptly alter, or procure official disregard of a lawful federal-election result or covered federal-election process;
4. at least two independently wrongful predicate acts;
5. the defendant's knowledge, or willful blindness, that the predicate acts were independently wrongful;
6. a material connection between the predicate acts and the corrupt objective; and
7. that no safe harbor under section 6 precludes liability.

(c) Pressure communications.

The court shall instruct the jury that a communication with an election official, public official, court, legislative body, agency, or other decisionmaker is not unlawful under this Act merely because it is forceful, persistent, political, mistaken, adversarial, or requests investigation, review, recount, audit, litigation, legislative consideration, or other lawful process.

A pressure communication may support liability only if the government proves beyond a reasonable doubt that the communication was independently wrongful, knowingly and corruptly undertaken, and materially connected to a coordinated federal election-subversion scheme satisfying section 4.

(d) Safe-harbor sequencing.

The court shall instruct the jury that it must consider the safe harbors and protected-activity provisions of section 6 before finding criminal liability.

(e) Attorney and official limitations.

The court shall instruct the jury that attorney status, client representation, public office, campaign status, political affiliation, or access to official channels is insufficient by itself to establish liability.

SEC. 8. CRIMINAL PENALTIES.

(a) Basic offense.

A person who violates section 4 shall be fined under title 18, United States Code, imprisoned for not more than ten years, or both.

(b) Aggravated offense.

A person shall be fined under title 18, United States Code, imprisoned for not more than twenty years, or both, if the person violates section 4 and—

1. acts as an organizer, director, principal funder, legal architect, or principal coordinator of the coordinated scheme;
2. uses official authority or apparent official authority;
3. causes material disruption of a federal electoral-count proceeding, presidential transition, federal-election result-transmission process, or state certification process for a covered federal election;
4. uses threats, violence, bribery, extortion, or evidence fabrication;
5. causes substantial public expense, security expense, delay, or emergency governmental response;
6. knowingly targets election personnel or their family members;
7. knowingly causes unauthorized access to voting systems or election materials; or
8. continues the scheme after final judicial or statutory rejection of the asserted legal basis.

(c) No incarceration for protected activity.

No sentence may be imposed for conduct protected under section 6.

SEC. 9. CIVIL ENFORCEMENT BY THE UNITED STATES.

(a) Civil action.

The Attorney General may bring a civil action in the United States District Court for the District of Columbia or in any district where a substantial part of the coordinated scheme occurred.

(b) Relief.

The court may grant—

1. declaratory relief;
2. injunctive relief;
3. preservation orders;
4. corrective notice to federal or state recipients of false documents;
5. public-cost reimbursement;
6. disgorgement of funds knowingly raised through materially false representations in furtherance of the coordinated scheme;
7. civil penalties;
8. protective orders for election personnel and records; and

9. other equitable relief necessary to prevent or remedy the coordinated scheme.

(c) Standard.

Civil relief under this section requires clear and convincing evidence of a violation of section 4.

(d) No partisan private damages action.

This Act does not create a general private right of action for candidates, campaigns, parties, political committees, or voters to obtain damages.

SEC. 10. STATE ATTORNEY GENERAL AND ELECTION-OFFICIAL BACKSTOP ACTIONS.

(a) Independent backstop action.

A state attorney general, chief state election official, or state officer expressly authorized by state law may bring a civil action for declaratory, injunctive, preservation, corrective-notice, or other equitable relief to prevent or remedy an imminent, ongoing, or recently completed violation of this Act that materially threatens, impairs, or corrupts that State's administration, canvassing, recount, certification, result transmission, custody of election materials, protection of election personnel, voters, or performance of lawful duties in a covered federal election.

(b) State nexus required.

A plaintiff under subsection (a) must plead and prove a material nexus between the alleged coordinated federal election-subversion scheme and that State's federal-election administration, certification, canvassing, recount, result-transmission process, election materials, election personnel, voters, or lawful duties.

(c) Relief available.

Relief under this section may include—

1. declaratory relief;
2. temporary, preliminary, or permanent injunctive relief;
3. preservation orders;
4. corrective notice to federal or state recipients of false or unauthorized election documents;
5. election-material custody safeguards;
6. orders preventing or remedying ongoing interference with certification, canvassing, recount, result transmission, or protected election personnel; and
7. other equitable relief narrowly necessary to prevent or remedy the violation.

(d) No damages or partisan relief.

A civil action under this section may not seek damages, punitive damages, candidate-specific damages, party-specific damages, or relief whose primary purpose is to benefit or burden a candidate, campaign, party, or political committee.

(e) Anti-weaponization pleading requirement.

A complaint under this section must plead with particularity—

1. the alleged coordinated federal election-subversion scheme;
2. the specific predicate acts alleged;
3. the corrupt objective;
4. the material connection between the predicate acts and the corrupt objective;
5. the State nexus required by subsection (b); and
6. why the safe harbors in section 6 do not bar the requested relief.

(f) Protected activity limitation.

Relief may not be granted under this section based solely on political disagreement, public advocacy, election denial, ordinary litigation, good-faith recounts, lawful election contests, protected congressional activity, legal advice, journalism, lobbying, or a rejected legal theory.

(g) Notice to the United States; no veto.

A plaintiff under this section shall provide contemporaneous notice of the action to the Attorney General of the United States. The failure or refusal of the Attorney General to authorize, join, approve, or support the action shall not bar the action.

(h) Consolidation and coordination.

If multiple actions under this section concern substantially overlapping alleged schemes or requested relief, a court may coordinate, consolidate, transfer, or otherwise manage the actions to reduce inconsistent obligations, duplicative litigation, or conflicting injunctions, consistent with due process and the need for expedited election-related review.

(i) Expedition.

The court shall expedite an action under this section to the greatest practicable extent.

SEC. 11. DISGORGEMENT AND PUBLIC-COST REIMBURSEMENT.

(a) Disgorgement.

Where the United States proves by clear and convincing evidence that a person knowingly raised, solicited, transferred, spent, or retained funds through materially false representations made in furtherance of a coordinated federal election-subversion scheme, the court may order disgorgement of such funds.

(b) Public costs.

The court may order reimbursement of reasonable public costs directly caused by the coordinated scheme, including emergency security costs, election-administration costs, corrective notice costs, document-preservation costs, or litigation costs incurred by public entities.

SEC. 12. DISQUALIFICATION.

(a) Disqualification authorized.

Upon conviction under section 4, or upon clear and convincing evidence in a civil action brought by the United States, a court may disqualify a person from serving for a period not exceeding ten years as—

1. a presidential elector;
2. a federal election administrator;
3. a federal transition official;
4. a federal officer or employee with authority over federal-election certification, result transmission, presidential-transition access, or electoral-count procedures; or
5. a person exercising federal statutory authority over covered federal-election materials or processes.

(b) Narrow tailoring.

Disqualification shall be imposed only if necessary to protect the integrity of covered federal-election processes and shall be no broader than necessary.

(c) Constitutional offices.

Nothing in this section shall be construed to add qualifications for President, Vice President, Senator, or Representative beyond those established by the Constitution.

SEC. 13. RECORD PRESERVATION.

(a) Preservation duty.

Upon notice of a civil or criminal investigation under this Act, a person subject to the investigation shall preserve records materially related to the alleged coordinated federal election-subversion scheme.

(b) Scope.

Records include communications, funding records, legal memoranda, drafts of result-transmission documents, pressure communications, litigation materials, subpoena materials, audit materials, transition communications, communications with public officials, and records relating to covered election materials.

(c) Privilege.

Nothing in this section abrogates attorney-client privilege, work-product protection, constitutional privilege, Speech or Debate Clause protection, executive privilege, or other lawful privilege. Claims of privilege shall be resolved by the court.

SEC. 14. RELATION TO EXISTING LAW.

Nothing in this Act shall be construed to—

1. limit any federal or state criminal, civil, disciplinary, contempt, election, or professional-responsibility law;
2. limit the Electoral Count Reform and Presidential Transition Improvement Act of 2022;
3. limit lawful recounts, contests, litigation, audits, or investigations;
4. criminalize protected speech, advocacy, reporting, or political activity;
5. authorize federal supervision of state election administration;
6. displace state authority over election administration except as expressly provided by federal law;
7. create liability based solely on belief, viewpoint, association, political affiliation, or legal argument;
8. expand ordinary RICO by implication;
9. regulate either House of Congress's constitutional authority to judge the elections, returns, and qualifications of its Members; or
10. apply to state or local elections except where predicate conduct independently violates federal law.

SEC. 15. PRESIDENTIAL ACCOUNTABILITY AND IMMUNITY.

(a) No immunity expansion.

Nothing in this Act shall be construed to create, expand, recognize, or imply immunity from criminal, civil, evidentiary, or equitable accountability for any person.

(b) Relationship to official authority.

A person holding federal office, including the President or Vice President, is subject to this Act to the maximum extent permitted by the Constitution and laws of the United States.

(c) No displacement of immunity reform.

This section does not displace any statute, constitutional amendment, or rule governing criminal immunity, civil immunity, official-act evidence, tolling, impeachment, removal, or prosecution of a President, former President, Vice President, or former Vice President.

(d) Severability of presidential applications.

If application of this Act to a President, former President, Vice President, or former Vice President is held invalid in any circumstance, the remainder of this Act and all valid applications shall remain in force.

SEC. 16. EXPEDITED REVIEW.

A court hearing an action seeking emergency relief under this Act shall expedite the action to the greatest practicable extent, consistent with due process, the First Amendment, the Petition Clause, the Speech or Debate Clause, constitutional separation of powers, and the lawful completion of covered federal-election processes.

SEC. 17. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Drafting Notes

- This draft is intentionally ambitious and should be treated as a first-pass framework.
- It is RICO-like but not ordinary RICO.
- Liability requires a coordinated scheme, corrupt objective, at least two independently wrongful predicate acts, and material connection.
- Required jury instructions are included because overbreadth, speech, association, legal-representation, and official-duty risks are central design concerns.
- A pressure communication is not unlawful merely because it is forceful, political, mistaken, adversarial, or requests lawful review. It becomes relevant only if independently wrongful, knowingly and corruptly undertaken, and materially connected to a coordinated federal election-subversion scheme.
- The state-attorney-general backstop is included because exclusive federal enforcement may be inadequate where the alleged scheme involves the President, White House, DOJ leadership, federal agencies, or politically aligned federal executive actors.
- State backstop actions are limited to state-nexus equitable relief; they do not authorize damages, punitive damages, partisan proxy suits, or generalized election-dispute litigation.

- The statute should not punish election denial, political speech, litigation, recounts, contests, legal advice, journalism, lobbying, lawful congressional activity, or ordinary campaign activity.
- Safe harbors are central and should be strengthened during review.
- The bill applies to federal elections, with presidential-specific coverage where the federal result-transmission, electoral-count, and transition processes require it.
- It does not generally federalize state or local elections.
- It should be reviewed carefully for Article I, Section 5 and Speech or Debate Clause concerns in congressional-election applications.
- Section 15 is designed to complement ARRP's presidential-immunity reform, not to solve immunity by itself.
- Further review should compare existing reform proposals, election-crime statutes, obstruction statutes, RICO doctrine, First Amendment doctrine, Petition Clause doctrine, Speech or Debate Clause doctrine, ECRA, federalism limits, Article I Section 5 doctrine, and presidential-immunity doctrine.

Source Notes

- Source review should include federal RICO definitions and remedies in 18 U.S.C. chapter 96, Electoral Count Reform Act provisions including 3 U.S.C. § 15, the Constitution's Speech or Debate Clause, and *Trump v. United States*.

ELEC-009 — Direct Election of the President and Vice President Amendment

JOINT RESOLUTION

Proposing an amendment to the Constitution of the United States to abolish presidential electors and provide for the direct election of the President and Vice President by the people of the United States.

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, two-thirds of each House concurring therein, that the following article is proposed as an amendment to the Constitution of the United States:

ARTICLE — DIRECT ELECTION OF THE PRESIDENT AND VICE PRESIDENT

Section 1. Direct election.

The President and Vice President shall be elected directly by the people of the United States. Presidential electors are abolished.

Section 2. Joint candidacy and voter choice.

Each candidate for President shall run jointly with a candidate for Vice President. Each voter shall cast a single vote for one joint ticket for President and Vice President.

Section 3. National popular vote winner.

The joint ticket receiving the greatest number of lawful votes cast nationwide shall be elected President and Vice President, except as Congress may by law provide for a national runoff, ranked-choice tabulation, or other uniform majority mechanism.

Section 4. Uniform national administration.

Congress shall by law provide uniform rules for ballot access, vote counting, national certification, recounts, contests, result transmission, vacancies in candidacy, and resolution of ties or unresolved contests. States shall administer elections for President and Vice President subject to this Constitution and laws enacted under this article.

Section 5. Existing terms and succession.

This article does not alter the commencement or duration of presidential or vice-presidential terms, the Twenty-Fifth Amendment, or the law of presidential succession, except to the extent necessary to implement direct election.

Section 6. Repeal of inconsistent provisions.

The provisions of Article II, Section 1; the Twelfth Amendment; the Twentieth Amendment; and the Twenty-Third Amendment that are inconsistent with this article are superseded to the extent of the inconsistency.

Section 7. Enforcement and implementation.

Congress shall have power to enforce and implement this article by appropriate legislation.

Section 8. Effective date.

This article shall take effect for the first presidential election occurring more than two years after ratification, unless Congress by law provides a later effective date.

Drafting Notes

- This is a first working draft of a constitutional amendment.
- The draft abolishes presidential electors and creates direct national election of the President and Vice President.
- The default rule is national plurality, but Congress may provide a uniform majority mechanism such as a runoff or ranked-choice tabulation.
- Implementing legislation will be required for ballot access, national certification, recounts, contests, result transmission, candidate vacancy, tie, and transition procedures.
- The draft preserves state administration subject to uniform federal rules enacted under the amendment.
- The draft supersedes inconsistent parts of Article II, the Twelfth Amendment, the Twentieth Amendment, and the Twenty-Third Amendment rather than attempting to rewrite each clause inline.

Source Notes

- Source review should include Article II, Section 1, the Twelfth Amendment, the Twentieth Amendment, and the Twenty-Third Amendment.

IMM-001 — Presidential Criminal Accountability Amendment

Proposed Constitutional Amendment

Section 1. Neither the President nor any former President shall possess absolute immunity for conduct within conclusive or preclusive presidential authority, presumptive immunity for other official acts, or any other criminal immunity arising solely from the official character of an act, the use of presidential power, or the separation of powers.

Section 2. The exercise or attempted exercise of a power vested in the President may constitute conduct, evidence, or an element of a valid federal criminal offense, whether the offense is generally applicable or specifically applicable to federal officers or the President, when the prosecution proves every element beyond a reasonable doubt. Lawful exercise of presidential authority, standing alone, shall not constitute a criminal offense.

Section 3. Separation-of-powers concerns may justify tailored rules concerning timing, process, privilege, venue, screening, disclosure, or remedy, but shall not create criminal immunity and shall not require the prosecution to prove the complete absence of danger, burden, or institutional intrusion before official conduct may be investigated, charged, adjudicated, or punished.

Section 4. In determining criminal intent, purpose, knowledge, or corrupt motive, a court and jury may consider otherwise admissible evidence of official conduct. Presidential immunity shall create no rule of evidentiary exclusion. Official communications, testimony, records, and surrounding circumstances may be admitted when otherwise relevant and admissible, subject to executive privilege, classification law, fair-trial protections, and other generally applicable evidentiary rules.

Section 5. Impeachment by the House of Representatives or conviction by the Senate shall not be a prerequisite to criminal investigation or prosecution. Nothing in this article shall alter the respective impeachment powers of the House and Senate.

Section 6. Congress may provide that a sitting President shall not be indicted or tried while holding office, provided that any otherwise applicable limitation period is suspended during presidential tenure and for a reasonable period thereafter. Investigation, preservation of evidence, judicial process consistent with official duties, and reporting to Congress may continue.

Section 7. Congress may establish independent screening, appointment, venue, disclosure, privilege, and expedited-review procedures to protect both the fair administration of criminal law and the lawful functioning of the Presidency.

Section 8. This article applies equally to every President and former President without regard to political party, administration, or the identity of the prosecuting authority.

Section 9. Congress shall have power to enforce and implement this article by appropriate legislation.

Implementation Principles

Implementing legislation should require:

- a prosecutor with lawful and institutionally reliable authority;
- written certification that the charge rests on a valid federal criminal statute, whether generally applicable or specifically applicable to federal officers or the President;
- identification of the alleged official and unofficial conduct;
- expedited pretrial review of privilege, classification, statutory coverage, and tailored separation-of-powers protections without recreating official-act immunity;
- protection against prosecution based solely on policy disagreement, good-faith constitutional interpretation, or lawful discretionary action;
- ordinary proof requirements and defendant rights;
- no immunity-derived exclusion of otherwise admissible official-act evidence;
- limitations-period tolling during any period in which indictment or trial is barred; and
- coordination with the independent-investigation mechanism developed under DOJ-007 without making either proposal dependent on adoption of the other.

Drafting Notes

- Section 1 expressly supersedes both absolute immunity for conclusive or preclusive powers and presumptive immunity for other official acts.
- Section 3 eliminates the requirement that prosecution prove the complete absence of institutional intrusion while preserving tailored procedural accommodations.
- Section 2 reaches both generally applicable and President-specific criminal statutes.
- Section 4 rejects immunity-based evidentiary exclusion while preserving ordinary privilege, classification, and evidentiary protections.
- The amendment does not create new substantive crimes.
- Impeachment and criminal accountability remain distinct.

- A temporary sitting-President rule may coexist with investigation, evidence preservation, congressional reporting, and later prosecution.
- The amendment and DOJ-007 are modular: either may operate without the other, while adoption of both supplies independent investigation and meaningful criminal accountability.

Source Notes

- Source review should include Trump v. United States, Article II, and the Constitution's impeachment provisions in Article I, Section 2 and Article I, Section 3.

JUD-001 — Executive Compliance and Civil Contempt Accountability Act

A BILL

To amend section 401 of title 18, United States Code, to strengthen civil contempt tools for willful executive-branch noncompliance with federal court orders; to amend section 1304 of title 31, United States Code, to prohibit payment of personally imposed contempt penalties from the Judgment Fund; and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Executive Compliance and Civil Contempt Accountability Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. strengthen enforcement of lawful federal court orders directed to the United States, federal agencies, federal officers, and persons acting under color of federal executive authority;
2. require identification of an executive-branch official with legal or practical authority over compliance where executive implementation is disputed;
3. provide courts with prompt, sworn compliance information before noncompliance becomes irreversible;
4. preserve ordinary appeal, stay, clarification, modification, privilege, due-process, and national-security safeguards;
5. authorize calibrated civil-contempt remedies for willful executive noncompliance; and
6. ensure that civil-contempt monetary penalties imposed personally for willful noncompliance are not shifted to taxpayers, agency funds, appropriated funds, reimbursement mechanisms, indemnification mechanisms, or the Judgment Fund.

SEC. 3. EXECUTIVE COMPLIANCE CIVIL CONTEMPT.

Section 401 of title 18, United States Code, is amended—

1. by striking “A court of the United States shall have power” and inserting “(a) In general.—A court of the United States shall have power”;
2. by adding at the end the following:

“(b) Executive compliance civil contempt.

“(1) Definitions.

“In this subsection:

“(A) **Covered executive order** means a lawful writ, process, order, rule, decree, injunction, stay, mandamus order, habeas-related order, discovery order, sanctions order, or other command issued by a court of the United States that requires or prohibits action by the United States, an executive agency, an officer or employee of the United States, or any person acting under color of federal executive authority.

“(B) **Executive agency** has the meaning given in section 105 of title 5.

“(C) **Responsible official** means an officer or employee of the United States who has legal authority, supervisory authority, operational control, custody of relevant records or persons, or practical ability to take materially necessary steps to comply with a covered executive order.

“(D) **Willful noncompliance** means intentional, knowing, reckless, or bad-faith disobedience of or resistance to a covered executive order by a responsible official who had notice of the order and legal or practical ability to comply, to cause compliance, or to take materially necessary compliance steps.

“(E) **Public funds** means appropriated funds, agency funds, settlement funds, representational funds, reimbursement authority, indemnification authority, insurance purchased or funded by the United States or an executive agency, the Judgment Fund established under section 1304 of title 31, or any other money provided by the United States or an executive agency.

“(2) Responsible-official designation.

“In a proceeding involving alleged, threatened, or reasonably foreseeable noncompliance with a covered executive order, the court may, on motion or on its own initiative, require the United States, the relevant executive agency, or the relevant federal officer to designate one or more responsible officials.

“A designation under this paragraph shall—

- “(A) identify each responsible official by name, title, agency, component, and official contact information;
- “(B) describe the official's authority and practical role in implementing the covered executive order;
- “(C) identify any other agency, component, contractor, custodian, or officer whose cooperation is materially necessary for compliance;
- “(D) be signed under penalty of perjury by the designated official and by counsel of record for the United States or relevant agency; and
- “(E) be filed within the time set by the court.

“If the United States or relevant agency fails to make a timely and adequate designation, the court may identify a presumptive responsible official based on the record and may require that official, the official's supervisor, or agency counsel to show cause why the official should not be treated as a responsible official for purposes of this subsection.

“(3) *Compliance plan.*

“The court may require a responsible official to file a sworn compliance plan.

“A compliance plan shall state, to the extent applicable—

- “(A) the steps taken to comply;
- “(B) the steps remaining to achieve compliance;
- “(C) the officials, agencies, components, contractors, custodians, or other persons whose action is necessary for compliance;
- “(D) the timeline for each remaining compliance step;
- “(E) any claimed legal, practical, privilege, security, foreign-affairs, custody, logistical, or impossibility obstacle to compliance;
- “(F) the records, communications, notices, directives, holds, or instructions issued to preserve compliance capacity; and
- “(G) whether the responsible official contends that clarification, modification, stay, mandamus, or appellate relief is necessary.

“(4) *Compliance reports.*

“The court may require periodic sworn compliance reports from a responsible official until the covered executive order is satisfied, stayed, modified, dissolved, or otherwise terminated.

“Each report shall identify material compliance steps, remaining obstacles, any change in responsible officials or implementation authority, and any material risk that compliance will not occur within the time required by the court.

“(5) *Expedited show-cause proceedings.*

“Upon a credible allegation of noncompliance with a covered executive order, the court may issue an expedited order to show cause.

“In a proceeding under this paragraph, the court may—

- “(A) require testimony, declarations, records, privilege logs, custody information, agency directives, implementation notices, or other evidence relevant to compliance;
- “(B) require the responsible official, agency counsel, or supervising officials to appear personally or remotely;
- “(C) set an expedited evidentiary hearing;
- “(D) make findings regarding notice, authority, practical ability to comply, good-faith efforts, impossibility, ambiguity, privilege, and willfulness; and
- “(E) issue coercive, compensatory, remedial, or compliance-preserving orders consistent with law.

“(6) *Civil-contempt sanctions for willful noncompliance.*

“If the court finds by clear and convincing evidence that a responsible official engaged in willful noncompliance, the court may impose civil-contempt sanctions necessary to coerce compliance, compensate injured parties, remedy delay, preserve the court's authority, or prevent further evasion.

“Sanctions under this paragraph may include—

- “(A) coercive monetary penalties;
- “(B) compensatory monetary relief for costs, fees, and expenses caused by noncompliance;
- “(C) remedial orders preserving records, persons, funds, custody, operational capacity, or agency action necessary for compliance;
- “(D) adverse factual findings where permitted by law;
- “(E) fee shifting and public-cost awards;
- “(F) referral to an inspector general, disciplinary authority, or congressional committee with jurisdiction; and

“(G) any other civil-contempt remedy authorized by law.

“(7) *Personal payment of coercive monetary penalties.*

“A coercive monetary penalty imposed against a responsible official under paragraph (6) for willful noncompliance shall be payable personally by that responsible official.

“No public funds may be used, directly or indirectly, to pay, reimburse, indemnify, satisfy, compromise, offset, or insure against a monetary penalty described in this paragraph, unless a later Act of Congress specifically authorizes payment of the identified penalty or class of penalties.

“No officer or employee of the United States may authorize, approve, facilitate, or conceal payment prohibited by this paragraph.

“Nothing in this paragraph prohibits the United States from providing representation, ordinary litigation support, or indemnification for claims other than a personally payable monetary penalty imposed for willful noncompliance under this subsection, to the extent otherwise authorized by law.

“(8) *Due process and protected good-faith conduct.*

“No responsible official may be sanctioned under this subsection without notice and an opportunity to be heard.

“The court shall not impose a personally payable monetary penalty under paragraph (7) for—

“(A) timely seeking clarification, modification, stay, mandamus, or appellate relief;

“(B) making a nonfrivolous legal argument concerning the scope, validity, or application of a covered executive order;

“(C) asserting a privilege, classification, national-security, foreign-affairs, custody, or impossibility claim in good faith and with sufficient information for judicial review;

“(D) failing to perform an act outside the official's legal authority or practical ability; or

“(E) noncompliance caused by ambiguity, impossibility, lack of notice, good-faith mistake, or another circumstance inconsistent with willful noncompliance.

“(9) *Stays and appeals.*

“This subsection does not alter any right to seek a stay, appeal, mandamus, certification, or other review.

“The filing of an appeal, mandamus petition, stay motion, clarification motion, or modification motion does not by itself suspend a covered executive order unless a court so orders.

“An appeal from an order imposing a personally payable monetary penalty under paragraph (7) shall be expedited to the greatest practicable extent.

“(10) *Notice to oversight institutions.*

“If the court finds willful noncompliance by a responsible official, the clerk shall transmit the order and findings to—

“(A) the inspector general of the relevant agency;

“(B) the Attorney General;

“(C) the head of the relevant agency;

“(D) the Committee on the Judiciary of the House of Representatives;

“(E) the Committee on the Judiciary of the Senate; and

“(F) any other congressional committee identified by the court as having jurisdiction over the agency, program, appropriation, or subject matter.

“Notice under this paragraph is informational and remedial. It does not limit the court's enforcement authority or require criminal prosecution.

“(11) *Relationship to other authority.*

“This subsection supplements and does not limit—

“(A) subsection (a);

“(B) section 1361 of title 28;

“(C) section 1651 of title 28;

“(D) section 566 of title 28;

“(E) the Federal Rules of Civil Procedure;

“(F) habeas corpus authority;

“(G) inherent judicial authority;

“(H) any other contempt, sanctions, fee-shifting, disciplinary, remedial, or enforcement authority; or

“(I) any lawful authority of Congress, inspectors general, or agency heads.

“Nothing in this subsection authorizes criminal prosecution by a person not otherwise authorized by law to conduct such prosecution.

“(12) Rules of construction.

“Nothing in this subsection shall be construed to—

“(A) authorize a court to direct policy discretion committed by law to the executive branch beyond the relief otherwise lawfully available;

“(B) require disclosure of privileged, classified, national-security, law-enforcement-sensitive, foreign-affairs, or protected information except under procedures authorized by law;

“(C) impair lawful emergency action where compliance is impossible and the responsible official promptly informs the court;

“(D) alter sovereign immunity except to the extent necessary to enforce a covered executive order otherwise within the court's jurisdiction;

“(E) limit substitution, official-capacity litigation, or representation rules otherwise provided by law; or

“(F) authorize payment from public funds of a personally payable monetary penalty imposed under paragraph (7).”.

SEC. 4. JUDGMENT FUND LIMITATION.

Section 1304(a) of title 31, United States Code, is amended by adding at the end the following:

“No amount may be paid under this section to pay, reimburse, indemnify, satisfy, compromise, offset, or insure against a personally payable monetary penalty imposed on a responsible official for willful noncompliance under section 401(b)(7) of title 18, unless a later Act of Congress specifically authorizes payment of the identified penalty or class of penalties.”.

SEC. 5. EFFECTIVE DATE; APPLICATION.

This Act shall take effect 30 days after the date of enactment.

This Act applies to covered executive orders issued on or after the effective date of this Act and to continuing noncompliance occurring on or after the effective date of this Act, regardless of when the underlying proceeding commenced.

SEC. 6. SEVERABILITY.

If any provision of this Act, any amendment made by this Act, or any application of such provision or amendment is held invalid, the remainder shall not be affected.

If the personal-payment rule in section 401(b)(7) of title 18, United States Code, or the Judgment Fund limitation in section 1304(a) of title 31, United States Code, is held invalid in any application, the remaining responsible-official designation, compliance-plan, reporting, show-cause, contempt, fee-shifting, remedial, notice, and oversight provisions shall remain enforceable to the maximum extent permitted by law.

Manifestation-to-Remedy Crosswalk

This bill addresses fast-moving executive action after judicial intervention through responsible-official designation, immediate compliance plans, preservation duties, and expedited show-cause proceedings.

It addresses unclear executive responsibility by requiring named officials to identify their authority, supervisors, necessary cooperating components, and practical compliance steps.

It addresses agency-funded contempt weakness by requiring personally payable monetary penalties for willful noncompliance and prohibiting payment, reimbursement, indemnification, offset, or insurance from public funds absent a later specific Act of Congress.

It addresses operational fragmentation by requiring sworn reporting from officials with practical control and by preserving court authority to obtain evidence about custody, records, directives, and implementation chains.

It addresses overlap with prosecution-independence proposals by preserving existing criminal-contempt and prosecution law without creating a new non-executive prosecution mechanism.

Drafting Notes

- This draft amends existing contempt authority in 18 U.S.C. § 401 rather than creating a new freestanding Title 28 enforcement section.

- The draft preserves related existing authorities, including mandamus jurisdiction under 28 U.S.C. § 1361, the All Writs Act under 28 U.S.C. § 1651, and the Marshals Service duty to execute federal court orders under 28 U.S.C. § 566.
- The Judgment Fund amendment to 31 U.S.C. § 1304 is included to prevent public payment of personally imposed contempt penalties.
- The draft should be reviewed for Article II, Article III, due process, sovereign immunity, appropriations, indemnification practice, federal-officer representation, classified-information procedures, privilege, habeas practice, and appellate jurisdiction.
- The proposal intentionally leaves non-executive initiation of criminal contempt or related prosecution to separate congressional and prosecution-independence issues, including CONG-005.

JUD-009 — Appointer-President Recusal Act

A BILL

To amend section 455 of title 28, United States Code, to require or presume recusal of federal judges in proceedings involving the President who nominated the judge to judicial office, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Appointer-President Recusal Act.**”

SEC. 2. APPOINTER-PRESIDENT RECUSAL.

Section 455 of title 28, United States Code, is amended by adding at the end the following:

§ 455(g). Appointer-President Recusal

(1) Definitions.

For purposes of this subsection:

(A) **Appointing President** means the President who nominated the judge to the judicial office in which the judge is serving.

(B) **Covered judge** means a justice, judge, magistrate judge, or bankruptcy judge subject to this section.

(C) **Personal-interest proceeding** means a proceeding in which the appointing President is a named party in an individual capacity, a criminal defendant, a civil litigant asserting or defending personal rights, or a person with a direct and substantial personal, financial, electoral, reputational, civil, or criminal legal interest.

(D) **Core presidential-authority proceeding** means a proceeding in which the appointing President is a named party in an official capacity and the proceeding materially concerns that President's own constitutional or statutory powers, duties, immunity, privilege, records obligations, emergency authority, removal authority, appointment authority, election-related status, or compliance with judicial or statutory limits.

(E) **Broader official-capacity proceeding** means a proceeding in which the appointing President is named as an official-capacity party but the proceeding is not a personal-interest proceeding or core presidential-authority proceeding.

(2) Tier 1 — mandatory recusal for personal-interest proceedings.

A covered judge shall disqualify himself or herself from any personal-interest proceeding involving the appointing President.

(3) Tier 2 — mandatory recusal for core presidential-authority proceedings.

A covered judge shall disqualify himself or herself from any core presidential-authority proceeding involving the appointing President.

(4) Tier 3 — presumptive recusal for broader official-capacity proceedings.

A covered judge is presumptively disqualified from any broader official-capacity proceeding involving the appointing President.

The presumption may be rebutted only upon written findings that—

1. the proceeding is routine, agency-focused, or programmatic;
2. the proceeding does not materially implicate the appointing President's own legal authority, legal obligations, immunity, privilege, records duties, election-related status, personal exposure, or compliance with legal limits;
3. complete relief is available against the United States, an agency, or a subordinate officer without the appointing President as a necessary party; and
4. the naming of the appointing President appears unnecessary to the availability of relief and does not create a reasonable appearance that the appointing President's own legal interests are being adjudicated by the appointing President's judicial appointee.

(5) Anti-gamesmanship.

A party may not create disqualification under paragraph (4) by naming the President solely for the purpose of judge selection where complete relief is available against the United States, an agency, or a subordinate officer and the proceeding does not materially concern the appointing President's own legal authority, obligations, immunity, privilege, records duties, election-related status, personal exposure, or compliance with legal limits.

(6) Reassignment.

A proceeding from which a covered judge is disqualified under this subsection shall be reassigned according to the ordinary neutral assignment procedures of the court, except that the reassignment procedure shall exclude judges for whom the same President is the appointing President if recusal would be required or presumed under this subsection.

(7) Waiver prohibited for mandatory tiers.

Disqualification under paragraphs (2) and (3) may not be waived by the parties. A presumption under paragraph (4) may be resolved only by the written findings required by that paragraph.

(8) No inference of bias.

Disqualification under this subsection does not constitute a finding that the judge is actually biased, has acted improperly, or lacks integrity. The subsection establishes a prospective appearance and administrability rule.

(9) Relationship to other recusal law.

This subsection supplements and does not limit any other ground for disqualification under this section or any other law, rule, canon, or inherent authority.

SEC. 3. SEVERABILITY.

If any provision of this Act, any amendment made by this Act, or any application of such provision or amendment is held invalid, the remainder shall not be affected.

If paragraph (4) of subsection 455(g) of title 28, United States Code, or any application of that paragraph is held invalid, paragraphs (2) and (3) shall remain enforceable. If paragraph (3) or any application of that paragraph is held invalid, paragraph (2) shall remain enforceable. The tiers of coverage are intended to be severable and independently enforceable to the maximum extent permitted by law.

Drafting Notes

- The tiered structure is deliberate: Tier 1 is the most legally conservative; Tier 2 addresses core official-authority cases; Tier 3 is broader and protected by severability.
- The statute is prospective and does not adjudicate whether any judge acted improperly in any prior case.
- The anti-gamesmanship clause is essential to prevent strategic naming of the President solely to force reassignment.
- The bill should be reviewed for Article III, separation of powers, due process, case-assignment administration, judicial conference authority, 28 U.S.C. § 455 doctrine, and potential interaction with district and circuit local rules.

WAR-001 — War Powers and Use-of-Force Authorization Reform Act

A BILL

To amend and strengthen the War Powers Resolution, the framework governing authorizations for use of military force, and related appropriations and reporting rules by clarifying when congressional authorization is required before the introduction of United States Armed Forces into hostilities, defining covered hostilities, offensive hostilities, and emergency defensive action, requiring legal-basis certification and reporting, preventing appropriations from being treated as implied authorization, establishing funding consequences for unauthorized hostilities, requiring specificity and sunset rules for authorizations for use of military force, requiring information and legal-interpretation access for Congress, preventing mission expansion beyond authorization, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**War Powers and Use-of-Force Authorization Reform Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. preserve Congress's constitutional role in authorizing war and significant military hostilities;
2. preserve the President's ability to repel sudden attacks, protect United States persons from imminent harm, and respond to genuine exigencies;
3. prohibit the President from initiating offensive hostilities without specific statutory authorization;
4. require prior statutory authorization for non-emergency offensive or discretionary hostilities;
5. clarify the meaning of hostilities, offensive hostilities, emergency defensive action, and covered military operations;
6. strengthen the standards governing authorizations for use of military force;
7. prevent stale, overbroad, indefinite, or mission-shifted authorizations from serving as open-ended authority for new hostilities;
8. ensure rapid reporting and legal-basis certification when emergency defensive action is taken;
9. ensure that Congress receives sufficient information before voting on, renewing, expanding, or funding significant uses of force;
10. require disclosure or controlled congressional access to material executive-branch legal interpretations supporting hostilities;
11. prevent mission expansion beyond the enemy, geography, mission, duration, and operational scope authorized by Congress;
12. prevent appropriations, procurement, logistics support, or general defense funding from being treated as implied authorization for hostilities unless Congress expressly so provides;
13. create clear termination, withdrawal, and funding consequences for unauthorized hostilities;
14. provide Congress with expedited procedures for authorizing, disapproving, limiting, or terminating covered operations; and
15. create statutory consequences capable of operating even where judicial enforcement is uncertain.

SEC. 3. DEFINITIONS.

In this Act:

(a) Armed Forces.

The term “**United States Armed Forces**” includes any member, unit, component, command, contractor-operated military force under operational military control, or other armed force acting under the command, operational control, or direction of the United States.

(b) Hostilities.

The term “**hostilities**” means any situation in which United States Armed Forces are engaged in, authorized to engage in, or exposed to a substantial risk of armed conflict, including kinetic strikes, exchange of fire, targeting operations, combat patrols, offensive cyber operations with reasonably foreseeable destructive effects, detention or capture operations, deployment into an active combat zone, or mission support integral to ongoing combat.

(c) Offensive hostilities.

The term “**offensive hostilities**” means any use of United States Armed Forces to initiate, escalate, punish, retaliate, deter, coerce, degrade, disrupt, destroy, occupy, seize, capture, compel, prevent a speculative future threat, alter another state or non-state actor's conduct, or achieve strategic, political, or military objectives beyond emergency defensive action.

Offensive hostilities include punitive retaliation, reprisal strikes, deterrent strikes, coercive diplomacy, preventive war, regime-change operations, degradation campaigns, extended interdiction campaigns, occupation, seizure of territory, sustained targeting campaigns, and operations primarily intended to alter the conduct or capacity of a foreign state, organization, or armed group.

(d) Emergency defensive action.

The term “**emergency defensive action**” means a use of force that is necessary and limited to—

1. repel an actual armed attack against the United States, United States Armed Forces, or United States persons;
2. prevent an imminent armed attack where the threat is specific, concrete, and temporally urgent;
3. rescue or protect United States persons from imminent serious bodily harm or hostage-taking; or
4. evacuate United States persons from an imminent threat environment where the use of force is limited to protection of the evacuation.

Emergency defensive action does not include punitive retaliation, reprisal, deterrence, coercion, preventive war, degradation of an adversary's general capabilities, regime change, occupation, seizure of territory, extended interdiction, or any broader military campaign unless Congress has enacted specific statutory authorization.

(e) Anti-relabeling rule.

A use of force is not emergency defensive action merely because the executive branch describes it as limited, targeted, defensive, preemptive, deterrent, counterterrorism, force protection, national security, stability, humanitarian, or necessary to preserve credibility.

The classification of an operation depends on the operation's objective, factual predicate, scope, duration, and reasonably foreseeable effects, not on the label assigned by the executive branch.

(f) Introduction into hostilities.

The term “**introduction into hostilities**” includes the deployment, assignment, authorization, operational control, or use of United States Armed Forces in hostilities, imminent hostilities, offensive hostilities, emergency defensive action, or a covered military operation.

(g) Imminent hostilities.

The term “**imminent hostilities**” means circumstances in which armed conflict involving United States Armed Forces is clearly likely within a short and identifiable time period based on specific operational facts, not merely generalized geopolitical risk, speculative threat assessment, long-term strategic risk, deterrence rationale, or desire to preserve future military advantage.

(h) Covered military operation.

The term “**covered military operation**” means any use of United States Armed Forces that involves hostilities, imminent hostilities, offensive hostilities, emergency defensive action, combat support integral to hostilities, or introduction into a foreign state's territory, airspace, waters, or cyber infrastructure in a manner reasonably likely to produce armed conflict.

(i) Specific statutory authorization.

The term “**specific statutory authorization**” means an Act of Congress, joint resolution, or other law enacted through bicameralism and presentment that expressly authorizes the covered military operation and satisfies the specificity requirements of section 10.

(j) Unauthorized hostilities.

The term “**unauthorized hostilities**” means hostilities, offensive hostilities, or a covered military operation not authorized by specific statutory authorization and not justified as emergency defensive action within the period permitted by this Act.

(k) Material mission expansion.

The term “**material mission expansion**” means any material change in the enemy, target, associated force, geography, mission objective, duration, operational method, level of force, or legal theory for a covered military operation beyond the scope expressly authorized by Congress.

(l) Material legal interpretation.

The term “**material legal interpretation**” means any executive-branch legal opinion, memorandum, directive, finding, or formal legal analysis that substantially supports, expands, narrows, or reclassifies the asserted legal authority for hostilities, emergency defensive action, an authorization for use of military force, mission expansion, or continued operations.

SEC. 4. PRIOR AUTHORIZATION REQUIREMENT.

(a) Rule.

Except for emergency defensive action under section 5, the President may not introduce United States Armed Forces into hostilities, imminent hostilities, offensive hostilities, or a covered military operation unless Congress has enacted specific statutory authorization.

(b) Express prohibition on unilateral offensive hostilities.

The President may not initiate offensive hostilities without specific statutory authorization.

(c) No authorization by implication.

No treaty, appropriations measure, procurement authorization, intelligence authorization, logistical support authorization, general defense authorization, or statement of policy shall constitute specific statutory authorization unless Congress expressly states that the provision authorizes hostilities for purposes of the War Powers Resolution and this Act.

(d) Existing constitutional authority preserved only for emergency defense.

Nothing in this section prevents the President from taking emergency defensive action under section 5.

SEC. 5. EMERGENCY DEFENSIVE ACTION.

(a) Authority.

The President may undertake emergency defensive action without prior specific statutory authorization only where the action satisfies the definition in section 3(d) and is limited in scope, duration, and geography to the exigency requiring immediate action.

(b) No offensive conversion.

Emergency defensive action may not be converted into offensive hostilities, punitive retaliation, coercive diplomacy, preventive war, prolonged detention operations, occupation, degradation of general adversary capability, regime change, or a broader military campaign without specific statutory authorization.

(c) Burden of classification.

In any report, certification, or request under this Act, the President shall identify whether an operation is emergency defensive action, offensive hostilities, or specifically authorized hostilities, and shall state the facts supporting that classification.

(d) Duration.

Emergency defensive action may continue without specific statutory authorization for no more than 7 days unless Congress authorizes continuation by law.

(e) Withdrawal and limitation.

If Congress does not enact specific statutory authorization within the period specified in subsection (d), the President shall terminate offensive activity and withdraw or limit forces to the minimum defensive posture necessary to protect United States personnel during withdrawal.

SEC. 6. LEGAL-BASIS CERTIFICATION AND REPORTING.

(a) Certification before action where practicable.

Before introducing United States Armed Forces into hostilities, imminent hostilities, offensive hostilities, or a covered military operation, the President shall transmit to Congress a written legal-basis certification.

(b) Emergency certification.

If prior certification is not practicable because of emergency defensive action, the President shall transmit the certification not later than 24 hours after initiation of the action.

(c) Contents.

The certification shall include—

1. the factual basis for the operation;
2. the legal basis asserted;
3. whether the action is based on specific statutory authorization, emergency defensive action, or another asserted authority;
4. whether the operation involves offensive hostilities;
5. the enemy, target, or threat addressed;
6. the geographic scope;
7. the mission objective;
8. the expected duration;
9. the expected scope of hostilities;

10. the anticipated risk to United States Armed Forces and civilians;
11. the appropriations account or funding source to be used;
12. whether Congress has been asked to enact specific statutory authorization; and
13. the planned termination or withdrawal schedule absent authorization.

(d) Public and classified versions.

The President shall transmit a classified version where necessary and shall also make public an unclassified version containing as much information as can be disclosed consistent with national security.

SEC. 7. REPORTING DURING HOSTILITIES.

For any hostilities, imminent hostilities, offensive hostilities, covered military operation, or emergency defensive action, the President shall provide updated reports to Congress at least every 7 days until the operation is terminated or specifically authorized by Congress.

Each report shall state whether the operation remains within its original legal basis, whether mission scope has changed, whether additional authorization is requested, whether the operation involves offensive hostilities, and whether termination or withdrawal is planned.

SEC. 8. AUTOMATIC TERMINATION AND WITHDRAWAL.

(a) Termination rule.

Hostilities, emergency defensive action, or a covered military operation not supported by specific statutory authorization shall terminate upon the earliest of—

1. expiration of the emergency defensive action period under section 5(d);
2. expiration of any time limitation contained in a specific statutory authorization;
3. enactment of a law terminating, prohibiting, or limiting the operation;
4. a determination by the President that the operation no longer falls within its certified legal basis; or
5. a material mission expansion not authorized under section 13.

(b) Meaning of termination.

Termination requires cessation of offensive activity, targeting, combat patrols, strikes, detention or capture operations, and combat support integral to hostilities, except as necessary for safe and orderly withdrawal, emergency rescue, medical evacuation, or force protection during withdrawal.

(c) Withdrawal plan.

Upon a termination trigger, the President shall transmit to Congress, not later than 24 hours after the trigger, a withdrawal or limitation plan stating the steps, timeline, force-protection measures, and legal basis for any continued presence.

(d) No slow-walking.

The withdrawal or limitation plan shall be executed as expeditiously as safely practicable. Force protection may not be used as a pretext to continue offensive hostilities or sustain the unauthorized mission.

SEC. 9. FUNDING LIMITATION FOR UNAUTHORIZED HOSTILITIES.

(a) Prohibition.

No funds appropriated or otherwise made available by any Act of Congress may be obligated or expended for unauthorized hostilities after the applicable authorization period expires or a termination trigger occurs.

(b) Permitted uses.

After the authorization period expires or a termination trigger occurs, funds may be used only for—

1. safe and orderly withdrawal;
2. protection of United States personnel during withdrawal;
3. rescue of United States persons;
4. medical evacuation;
5. force protection necessary to end the unauthorized operation; and
6. activities expressly authorized by subsequent law.

(c) No waiver.

The funding limitation in this section may not be waived by the President.

(d) Agency compliance.

No officer or employee of the United States may knowingly obligate or expend funds in violation of this section.

SEC. 10. SPECIFICITY AND SUNSET REQUIREMENTS FOR AUTHORIZATIONS FOR USE OF MILITARY FORCE.

(a) Required elements.

No authorization for use of military force enacted after the date of enactment of this Act shall constitute specific statutory authorization unless it expressly states—

1. the enemy, target, or covered opposing force;
2. any associated force covered by the authorization;
3. the geographic scope;
4. the authorized mission objective;
5. the forms of force authorized;
6. the reporting obligations applicable to the operation;
7. the sunset date;
8. the conditions for renewal; and
9. that the authorization constitutes specific statutory authorization for purposes of the War Powers Resolution and this Act.

(b) Sunset.

An authorization for use of military force enacted after the date of enactment of this Act shall expire not later than 2 years after enactment unless Congress expressly provides for an earlier expiration or renews the authorization by law.

(c) Renewal.

Renewal requires an Act of Congress enacted through bicameralism and presentment and shall not occur by implication, appropriation, or continuing resolution unless the renewal language expressly satisfies subsection (a).

(d) Associated forces.

No associated force, successor force, splinter force, or affiliated organization may be treated as covered unless Congress expressly identifies the force or establishes a specific process for identifying such force and receives notice and an opportunity for expedited disapproval.

(e) No geographic or mission drift.

An authorization may not be construed to cover operations in a country, theater, mission, or method of force not within the express geographic and mission scope of the authorization.

SEC. 11. PRE-AUTHORIZATION INFORMATION REQUIREMENTS.

(a) Information required before authorization vote.

Before either House votes on a bill or joint resolution providing, renewing, or materially expanding specific statutory authorization, the President shall transmit to Congress, to the extent practicable and consistent with national security, a report containing—

1. the legal basis for the proposed authorization;
2. the factual and intelligence basis for the proposed use of force;
3. the identified enemy, target, or associated force;
4. the proposed geographic scope;
5. the proposed mission objective;
6. the expected duration;
7. the expected forms and intensity of force;
8. the anticipated escalation risks;

9. the anticipated civilian-harm risks;
10. the anticipated cost and funding source;
11. alternatives to force considered;
12. allied or coalition participation;
13. expected criteria for success;
14. expected exit or transition criteria; and
15. material legal interpretations supporting the proposed authorization.

(b) Classified annex.

Information that cannot be publicly disclosed shall be provided in a classified annex to the appropriate committees and congressional leadership, with procedures sufficient to permit meaningful review before a vote.

(c) Emergency exception.

This section does not prevent emergency defensive action under section 5, but any subsequent request for authorization shall comply with this section.

SEC. 12. EXECUTIVE LEGAL INTERPRETATION ACCESS.

(a) Submission of material legal interpretations.

The President shall transmit to the congressional intelligence, armed services, foreign affairs, and appropriations committees, and to the congressional leadership, any material legal interpretation supporting—

1. the introduction of United States Armed Forces into hostilities;
2. classification of an operation as emergency defensive action;
3. continued hostilities after an emergency period;
4. reliance on an authorization for use of military force;
5. identification of an associated or successor force;
6. material mission expansion; or
7. the conclusion that appropriations or related legislation authorizes hostilities.

(b) Timing.

Material legal interpretations shall be transmitted before action where practicable and, in any event, not later than 7 days after the relevant operation, classification, or legal determination.

(c) Classified or privileged material.

The President may provide classified or appropriately protected versions where necessary, but shall provide sufficient detail to permit Congress to understand the operative legal theory.

(d) No secret expansion.

No undisclosed material legal interpretation may be relied on to expand the enemy, geography, mission, duration, or scope of a covered military operation beyond the public or classified authorization provided to Congress.

SEC. 13. MISSION EXPANSION AND MATERIAL CHANGE.

(a) Reauthorization required.

The President may not undertake a material mission expansion without specific statutory authorization for that expansion.

(b) Notice.

If the President determines that a material mission expansion may be necessary, the President shall notify Congress not later than 48 hours after the determination and shall state the factual, legal, operational, and funding basis for the proposed expansion.

(c) No expansion by operational necessity.

Operational convenience, strategic advantage, deterrence, coalition preference, or force protection may not by itself authorize a material mission expansion.

(d) Emergency defense preserved.

Nothing in this section prevents emergency defensive action under section 5, provided that such action does not become a broader unauthorized mission.

SEC. 14. EXPRESS AUTHORIZATION REQUIREMENT FOR APPROPRIATIONS.

An appropriation, authorization of appropriations, procurement law, logistical support law, intelligence authorization, continuing resolution, supplemental appropriation, or defense authorization shall not constitute authorization for hostilities unless it expressly states:

“Congress specifically authorizes hostilities for purposes of the War Powers Resolution and the War Powers and Use-of-Force Authorization Reform Act.”

General support for members of the Armed Forces, equipment, logistics, pay, benefits, evacuation, medical care, force protection, intelligence, or withdrawal shall not be construed as authorization for hostilities.

SEC. 15. EXPEDITED CONGRESSIONAL PROCEDURES.

(a) Authorization request.

If the President requests specific statutory authorization for a covered military operation, each House shall have procedures for expedited consideration, debate, and vote.

(b) Disapproval or limitation measure.

A bill or joint resolution to prohibit, limit, terminate, or condition a covered military operation shall receive expedited consideration under procedures established by each House.

(c) Minority-triggered review.

Each House may establish procedures allowing a qualifying minority of members, or a qualifying minority of members of a relevant committee, to require a hearing, report, or privileged motion concerning hostilities, emergency defensive action, authorization renewal, termination, mission expansion, or funding limits under this Act.

(d) Presentment.

Any bill or joint resolution creating binding legal consequences under this Act shall be presented to the President under Article I, Section 7 of the Constitution.

(e) Veto override preserved.

If the President vetoes a bill or joint resolution under this section, Congress may enact the measure by overriding the veto with a two-thirds vote of both Houses.

SEC. 16. RULE AGAINST CONCURRENT-RESOLUTION TERMINATION.

No concurrent resolution or simple resolution shall be treated as creating binding legal consequences under this Act. Congress may express its judgment by concurrent or simple resolution, but binding authorization, prohibition, limitation, or termination of hostilities shall proceed through constitutionally required legislative procedures.

SEC. 17. RELATION TO EXISTING AUTHORIZATIONS.

Nothing in this Act repeals an existing authorization for use of military force. However, no existing authorization may be construed to authorize a covered military operation unless the operation falls within the enemy, target, mission, geography, and temporal scope of that authorization.

Not later than 180 days after enactment, the President shall transmit to Congress a report identifying each existing authorization for use of military force on which the executive branch relies, the operations conducted under each authorization, the enemy or associated force covered, the geographic scope, the mission objective, and any material legal interpretation supporting the scope of reliance.

SEC. 18. RULE OF CONSTRUCTION.

Nothing in this Act shall be construed to—

1. authorize hostilities not otherwise authorized by law;
2. limit Congress's constitutional power to declare war or authorize force;
3. limit Congress's power of the purse;
4. prevent emergency defensive action satisfying section 5;
5. authorize unilateral offensive hostilities;
6. permit hostilities based solely on appropriations by implication;

7. impair laws governing covert action, intelligence oversight, or classified reporting, except that such laws shall not be treated as implied authorization for hostilities; or
8. affect the authority of Congress to enact more restrictive limits on the use of military force.

SEC. 19. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Drafting Notes

- This is the first working draft for the collapsed A-03 issue.
- WAR-002 through WAR-008 have been collapsed into WAR-001 as component defects rather than standalone legislative vehicles.
- The draft now contains operative provisions addressing initiation, emergency defense, anti-relabeling, automatic termination and withdrawal, funding consequences, AUMF specificity and sunsets, pre-authorization information, executive legal-interpretation access, mission expansion, appropriations-as-implied-authorization, expedited procedures, presentment, and concurrent-resolution limits.
- The emergency defensive window is set at 7 days as a provisional drafting choice and requires policy review.
- The two-year default AUMF sunset is provisional and requires policy review.
- The definitions of hostilities, offensive hostilities, emergency defensive action, and covered military operation require comparison against prior reform bills, OLC opinions, and operational categories.
- Binding legal consequences require bicameralism and presentment. Veto override remains constitutionally available.
- The central principle is that the President may act alone to defend against immediate harm but may not act alone to initiate, punish, deter, coerce, degrade, or reshape foreign actors through offensive military force.
- This draft is designed to create legal, political, appropriations, reporting, and internal executive-branch consequences even where courts decline to adjudicate war-powers disputes.

Source Notes

- Source review should include the War Powers Resolution, classified in 50 U.S.C. chapter 33, Article I and Article II war-powers allocations, and prior authorizations for use of military force such as Public Law 107-40 and Public Law 107-243.

Appendix B - Model State Legislation

ELEC-002 — Model State Election Certification and Automatic Substitution Act

A MODEL STATE BILL

To define election certification as a ministerial duty, provide automatic substitution and expedited judicial enforcement when a certifying official refuses or fails to act, preserve lawful investigation and contest procedures, and establish consequences for knowing nonperformance or falsification.

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Certification and Automatic Substitution Act.**”

SEC. 2. DEFINITIONS.

In this Act:

1. **Certification** means the final official act by which a canvassing or certification authority confirms and transmits the result produced by the tabulation, canvass, recount, audit, and adjudicative procedures prescribed by law.
2. **Certification authority** means any state, county, municipal, district, or other officer, board, commission, or body assigned by law to canvass, certify, attest, approve, or transmit an election result.
3. **Specific certification defect** means an identifiable arithmetic, documentary, procedural, or statutory defect that—
 - appears in the official canvass or certification record;
 - falls within the express authority of the certification authority to correct; and
 - is capable of correction without adjudicating an election contest, investigating generalized allegations, or revisiting a matter assigned by law to another official or tribunal.
4. **Substitute certifier** means the officer, court, or body designated by section 6 to perform a certification duty upon refusal, deadlock, incapacity, disqualification, or failure to act.

SEC. 3. CERTIFICATION AS A MINISTERIAL DUTY.

After completion of the counting, tabulation, reconciliation, audit, recount, and adjudicative procedures required by law, a certification authority shall certify the resulting lawful totals by the statutory deadline.

Certification is ministerial and does not confer authority to—

1. investigate generalized allegations of fraud or misconduct;
2. reconsider ballot-validity questions assigned to another official or tribunal;
3. impose conditions not authorized by statute;
4. withhold certification because of disagreement with election law, policy, procedure, or result;
5. demand an audit, recount, investigation, or prosecution not otherwise authorized by law; or
6. alter or delay a result for the purpose of favoring or disadvantaging a candidate, party, ballot measure, or electoral outcome.

SEC. 4. LIMITED IDENTIFICATION OF DEFECTS.

A certification authority may temporarily defer certification only upon a written finding identifying a specific certification defect.

The written finding shall state—

1. the precise defect;
2. the statutory authority permitting the certification authority to address it;
3. the records supporting the finding;
4. the corrective action required; and
5. the time by which correction must occur.

A deferral under this section may not exceed 48 hours or the remaining time before the statutory deadline, whichever is shorter, unless a court orders otherwise.

Generalized suspicion, personal belief, unsupported allegation, or a matter committed to an election contest, recount, law-enforcement investigation, or other separate process is not a specific certification defect.

SEC. 5. DUTY TO REFER WITHOUT WITHHOLDING CERTIFICATION.

A certification authority that possesses substantial and credible information concerning fraud, crime, or material irregularity outside its certification authority shall refer the information promptly to the appropriate election official, prosecutor, law-enforcement agency, or court.

Unless a specific certification defect exists under section 4, such a referral does not suspend or excuse certification.

SEC. 6. AUTOMATIC SUBSTITUTION.

If a certification authority—

1. refuses to certify;
2. fails to obtain the vote required for certification;
3. does not act by the statutory deadline;
4. is unable to act because of incapacity, vacancy, disqualification, or loss of quorum; or
5. exceeds the maximum deferral period under section 4,

the certification duty transfers automatically and by operation of law to the substitute certifier.

Each state adopting this Act shall designate by statute a substitute sequence appropriate to its governmental structure. The sequence should ordinarily include—

1. the chief state election official or a deputy not involved in the underlying dispute;
2. a designated state canvassing authority; and
3. a court of competent jurisdiction authorized to enter the certification directly if no executive substitute acts promptly.

The transfer of authority does not require removal of the original official from office and does not depend upon a prior finding of misconduct.

SEC. 7. EXPEDITED JUDICIAL ENFORCEMENT.

The chief state election official, attorney general, affected local election authority, candidate, or voter residing in the affected jurisdiction may seek mandamus, declaratory relief, or an injunction to enforce this Act.

The court shall—

1. exercise original or specially assigned expedited jurisdiction;
2. hold a hearing as soon as practicable and ordinarily within 24 hours;
3. decide the matter before any downstream statutory deadline where reasonably possible;
4. compel performance of a ministerial duty;
5. authorize or confirm automatic substitution; and
6. preserve all downstream certification, recount, contest, elector, ballot-access, and transition deadlines.

A court may enter the certification directly where necessary to prevent disenfranchisement or failure of the election process.

SEC. 8. NO EFFECT ON LAWFUL RECOUNTS OR ELECTION CONTESTS.

Certification does not extinguish a recount, election contest, judicial challenge, criminal investigation, or other post-certification remedy authorized by law.

A later lawful determination may amend or supersede the certification as provided by state law.

SEC. 9. REMOVAL FROM THE CERTIFICATION MATTER.

A person who refuses or fails to perform a certification duty without lawful basis may be removed immediately from further participation in that certification matter by the substitute certifier or a court.

Removal from the matter does not itself constitute removal from office and does not preclude separate disciplinary, civil, or criminal proceedings.

SEC. 10. CIVIL AND ADMINISTRATIVE CONSEQUENCES.

A certification official who knowingly refuses, delays, conditions, or obstructs certification without lawful basis may be subject to—

1. a civil penalty;

2. reimbursement of reasonable public costs caused by the refusal or delay;
3. disqualification from serving on a canvassing or certification authority for a defined period;
4. removal, suspension, censure, or other discipline authorized by state law; and
5. attorney's fees and costs awarded to a prevailing governmental plaintiff.

No public funds shall reimburse a personal civil penalty imposed for a knowing violation.

SEC. 11. CRIMINAL OFFENSES.

A person commits a misdemeanor if, while serving as a certification official, the person knowingly and without lawful basis refuses or fails to perform a mandatory certification duty after written notice of the duty and a reasonable opportunity to comply.

A person commits a felony if the person knowingly—

1. falsifies, alters, destroys, conceals, or manufactures a certification record;
2. certifies a result known to be materially false;
3. accepts or solicits a benefit in exchange for certification or noncertification;
4. obstructs certification for the purpose of changing or preventing a lawful electoral outcome; or
5. conspires with another person to commit conduct described in this section.

Penalty levels shall be calibrated by each adopting state consistently with comparable public-corruption, records, and election offenses.

SEC. 12. ANTI-COERCION AND ANTI-RETALIATION.

No person may threaten, intimidate, coerce, bribe, or retaliate against a certification official for performing, attempting to perform, or refusing to violate a duty under this Act.

Nothing in this section narrows any more protective state or federal law.

SEC. 13. PUBLIC RECORD AND TRANSPARENCY.

All votes, written defect findings, referrals, substitution notices, judicial filings, and final certification documents under this Act are public records, subject only to lawful protections for ballots, voter information, investigative material, privilege, and security-sensitive information.

SEC. 14. UNIFORM APPLICATION.

This Act applies without regard to the identity, party, affiliation, office, candidate, ballot measure, or anticipated outcome involved.

SEC. 15. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Drafting Notes

- The model separates certification from investigation and election-contest adjudication.
- Automatic substitution prevents a single official, board minority, or deadlocked body from becoming an electoral veto point.
- The proposal preserves lawful correction of specific defects while rejecting generalized suspicion as a basis for noncertification.
- The standing provision should be conformed to each state's constitutional rules governing taxpayer, voter, candidate, and governmental standing.
- States should adapt the substitute sequence, deadlines, and penalties to existing offices and court structures.
- A federal minimum rule may separately be considered for elections containing a federal office, but this model is designed for state adoption.

Source Notes

- Source review for federal-election interactions should include the Electoral Count Reform Act amendments to 3 U.S.C. § 5, 3 U.S.C. § 12, and 3 U.S.C. § 15, plus each adopting state's election-certification statutes.

ELEC-003-state — Model State Election Personnel Protection and Continuity Act

A MODEL STATE BILL

To protect election personnel and their families from threats, violence, coercive intimidation, unlawful disclosure of personal information, retaliation, and operational disruption; to provide rapid protective and continuity measures; to preserve constitutionally protected speech; and to establish a politically neutral state protection regime eligible for federal support under a corresponding amendment to the Help America Vote Act of 2002.

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Personnel Protection and Continuity Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. reduce the likelihood that election personnel or their families will be threatened, attacked, displaced, harassed, doxxed, or retaliated against because of election duties;
2. provide protection before harm occurs rather than relying exclusively on punishment afterward;
3. preserve continuity of polling, tabulation, canvassing, recount, certification, records, and related election operations during a threat or disruption;
4. retain experienced election personnel and reduce threat-driven resignation and recruitment loss;
5. apply protection without regard to political affiliation, candidate preference, viewpoint, election outcome, or the perceived political effect of an official act; and
6. preserve lawful criticism, protest, advocacy, reporting, and other speech protected by the United States and State Constitutions.

SEC. 3. DEFINITIONS.

In this Act:

1. **Covered election personnel** means a current, former, prospective, or temporary state or local election official, employee, poll worker, canvasser, contractor, vendor employee, volunteer, or other person performing an authorized election function.
2. **Covered family or household member** means a spouse, domestic partner, child, parent, sibling, dependent, household member, or other person targeted because of the election duties of covered election personnel.
3. **Election function** includes voter registration, ballot preparation, polling-place operation, ballot custody, counting, tabulation, auditing, recounting, canvassing, certification, records administration, equipment support, election-security support, and adjudicative or ministerial duties assigned by law.
4. **Protected personal information** means a residential address, personal telephone number, personal email address, Social Security number, financial-account information, precise geolocation, school or childcare location, family-member identity, vehicle information, or other information designated by rule because disclosure creates a material safety risk.
5. **Targeted harassment** means a course of conduct directed at a covered person because of an election function that would cause a reasonable person substantial fear, substantial emotional distress, or material interference with employment or public service, and that is not constitutionally protected speech or petitioning activity.
6. **Coercive intimidation** means conduct undertaken with the purpose of causing a covered person, through fear of injury, unlawful exposure, economic retaliation, or harm to another, to perform, refrain from performing, alter, delay, or abandon a lawful election duty.
7. **Credible threat** means information that, under the totality of circumstances, provides a reasonable basis to believe that violence, unlawful entry, stalking, targeted harassment, doxxing, retaliation, or material operational disruption may occur.
8. **Protection coordinator** means the existing state officer or office designated under section 5. No new agency is created by this Act.

SEC. 4. POLITICALLY NEUTRAL AND UNIFORM PROTECTION.

Protection, assessment, assistance, enforcement, and remedies under this Act shall be provided without regard to—

1. political party or affiliation;
2. candidate preference or ideological viewpoint;
3. the identity of the person making an allegation;

4. the identity of the person allegedly responsible;
5. whether the protected person's lawful conduct benefited or burdened a candidate, party, ballot measure, or electoral outcome; or
6. whether the protected person certified, declined to certify pending lawful review, referred a matter for investigation, testified, or otherwise performed a lawful election duty.

Risk-based distinctions may be made only on neutral factors including credibility, imminence, severity, capability, vulnerability, prior conduct, location, and likely operational impact.

SEC. 5. DESIGNATION OF EXISTING STATE RESPONSIBILITY.

The Governor shall designate an existing state office, which may include the office of the attorney general, chief state election official, state police, or emergency-management agency, to serve as protection coordinator.

The protection coordinator shall—

1. maintain a single statewide reporting channel available at all times during designated election periods;
2. coordinate election officials, law enforcement, prosecutors, courts, emergency management, and local government;
3. establish written triage and referral protocols;
4. arrange emergency protection and continuity support authorized by this Act;
5. maintain aggregate records sufficient for oversight while protecting personal and security-sensitive information; and
6. distribute state and federal funds to local jurisdictions according to objective need and risk criteria.

The protection coordinator has no authority under this Act to direct or alter voter eligibility, registration, voting methods, ballot access, counting, canvassing, recounts, certification, elector appointment, or adjudication of an election dispute.

SEC. 6. RAPID REPORTING, ASSESSMENT, AND RESPONSE.

A covered person, election office, law-enforcement agency, or household member may report a threat or covered incident through the statewide channel.

Upon receipt of a report indicating a credible threat, the protection coordinator shall ensure that—

1. an initial safety assessment begins promptly and, when practicable, within two hours;
2. an imminent threat is referred immediately to emergency law enforcement;
3. protected personal information is reviewed for exposure and removal or suppression options;
4. affected family or household members are included in the assessment;
5. the relevant election office receives continuity guidance without disclosure of unnecessary personal information; and
6. the reporting person receives a case identifier and a point of contact.

A report may not be rejected solely because the communication does not yet satisfy every element of a criminal offense.

SEC. 7. EMERGENCY PROTECTIVE ASSISTANCE.

Upon a finding of a credible threat, the protection coordinator may authorize, directly or through an existing state or local agency—

1. temporary residential or workplace security;
2. law-enforcement patrol or escort;
3. security-system installation or reimbursement;
4. temporary relocation, lodging, transportation, or dependent-care assistance;
5. replacement of compromised communication devices or accounts;
6. safety planning for family or household members;
7. emergency legal assistance for protective orders, records suppression, or related proceedings;
8. trauma-informed counseling and employee assistance; and
9. other narrowly tailored measures reasonably necessary to reduce an identified risk.

Assistance shall be based on risk and need, not rank, publicity, party affiliation, or election outcome.

SEC. 8. EXPEDITED PROTECTIVE ORDERS.

A covered person, covered family or household member, protection coordinator, attorney general, or prosecutor may petition a court for an election-personnel protective order upon a showing of a credible threat, stalking, unlawful disclosure of protected personal information, coercive intimidation, targeted harassment, or retaliation connected to an election function.

The court may—

1. issue temporary ex parte relief when immediate and irreparable injury is likely;
2. prohibit contact, surveillance, stalking, unlawful disclosure, or approach to a residence, workplace, polling place, tabulation center, or other protected location;
3. order removal of unlawfully posted protected personal information where consistent with constitutional requirements;
4. protect family or household members exposed through the same conduct; and
5. order other narrowly tailored relief necessary to prevent recurrence.

A prompt adversarial hearing and all procedural protections required by state and federal law shall be provided.

SEC. 9. ADDRESS CONFIDENTIALITY AND DATA MINIMIZATION.

A covered person facing a credible threat may enroll in an existing address-confidentiality program or, if none applies, in a program administered by an existing state office.

State and local agencies shall, to the maximum extent permitted by law—

1. substitute a designated service address for a residential address in public records;
2. redact protected personal information before public release;
3. restrict internal access to personnel with a demonstrated operational need;
4. avoid collecting or retaining protected personal information not necessary to an election function; and
5. establish an expedited process for correcting or suppressing accidental disclosure.

This section does not authorize concealment of information that is constitutionally required to be public, but requires use of the least personally exposing lawful alternative.

SEC. 10. UNLAWFUL DISCLOSURE OF PROTECTED PERSONAL INFORMATION.

A person is civilly liable if the person knowingly and without lawful purpose publicly discloses protected personal information of covered election personnel or a covered family or household member—

1. because of the person's election function;
2. with intent to threaten, intimidate, facilitate unlawful contact, or cause material fear or disruption; or
3. with reckless disregard of a substantial and unjustifiable risk that the disclosure will facilitate violence, stalking, unlawful entry, or targeted harassment.

Available relief may include actual damages, statutory damages, injunctive relief, reasonable attorney's fees, costs of security or relocation, and other appropriate relief.

This section does not apply to protected newsgathering, reporting on a matter of public concern, lawful service of process, good-faith disclosure to law enforcement, or other constitutionally protected activity.

SEC. 11. THREATS, COERCIVE INTIMIDATION, AND RETALIATION.

A person commits an offense if the person, because of a covered person's election function—

1. communicates a true threat of violence while consciously disregarding a substantial risk that the communication will be understood as threatening violence;
2. uses force, threatened force, stalking, or coercive intimidation to influence, punish, delay, or prevent performance of a lawful election duty;
3. threatens or harms a covered family or household member for that purpose;
4. knowingly retaliates through unlawful employment, contracting, licensing, property, or economic action; or
5. conspires with another person to commit conduct described in this section.

Penalty levels shall be calibrated to comparable state offenses and enhanced where conduct involves a weapon, explosive device, repeated targeting, family targeting, substantial bodily injury, or material disruption of an election function.

This section shall be construed consistently with *Counterman v. Colorado*, 600 U.S. 66 (2023), and shall not criminalize protected criticism, advocacy, protest, parody, rhetorical hyperbole, or other speech protected by the First Amendment.

SEC. 12. FALSE REPORTS, BOMB THREATS, SWATTING, AND FACILITY DISRUPTION.

A person commits an aggravated offense if the person knowingly makes or causes a false report of a bomb, hazardous substance, armed attack, hostage event, or other emergency concerning—

1. a polling place;
2. an election office;
3. a ballot-storage, counting, tabulation, audit, recount, canvassing, or certification facility;
4. the residence or workplace of covered election personnel; or
5. another location with intent to disrupt an election function or cause an armed emergency response against a covered person.

In addition to other penalties, a court may order restitution for emergency response, evacuation, replacement polling operations, extended operating hours, security measures, and other direct public costs.

SEC. 13. CONTINUITY OF ELECTION OPERATIONS.

Each state and local election authority shall maintain a continuity plan proportionate to its size and risk. The plan shall address—

1. evacuation and relocation of polling, counting, tabulation, canvassing, recount, and certification functions;
2. backup facilities, communications, equipment, records, and staffing;
3. emergency succession and delegation of duties;
4. preservation and secure transfer of ballots and election records;
5. rapid public notice of a temporary closure or relocation;
6. lawful extension of hours or other remedial action when authorized by state law or court order;
7. protection of workers and voters during a threat; and
8. after-action review without public disclosure of exploitable security vulnerabilities.

The chief state election official shall establish model continuity templates but may not use this section to control local election policy beyond the requirements stated here.

SEC. 14. WORKFORCE RETENTION AND SUPPORT.

The state shall permit protection funds to be used for—

1. training on threat recognition, reporting, de-escalation, digital privacy, and records protection;
2. counseling and trauma support;
3. temporary staffing and replacement personnel following a threat or evacuation;
4. reasonable security-related leave and accommodations;
5. recruitment and retention measures in jurisdictions experiencing documented threat-related attrition; and
6. reimbursement of necessary out-of-pocket security costs.

An election worker may not be disciplined, demoted, or dismissed for making a good-faith report, seeking protection, participating in an investigation, or refusing an unlawful directive.

SEC. 15. CIVIL ACTION AND EQUITABLE RELIEF.

A covered person or covered family or household member injured by a violation of sections 10, 11, 12, or 14 may bring a civil action for appropriate relief, including damages, injunctive relief, security and relocation costs, attorney's fees, and costs.

A court shall prioritize a request for emergency relief where delay would materially increase personal danger or threaten continuity of an election function.

This section does not create liability for a government employee's good-faith exercise of protected prosecutorial, judicial, or emergency-response discretion.

SEC. 16. AGGREGATE REPORTING AND OVERSIGHT.

The protection coordinator shall publish an annual aggregate report stating—

1. the number and general category of reports received;
2. response times and dispositions;
3. forms of assistance provided;
4. funds distributed and expended;
5. operational disruptions and continuity measures used;
6. workforce effects reasonably attributable to threats or harassment;
7. federal amounts received, obligated, expended, unobligated, and carried forward; and
8. any automatic federal payment reduction resulting from an unobligated-balance threshold.

The report may not identify a protected person, disclose a residential address, reveal an active investigative fact, expose a security vulnerability, or disclose information reasonably likely to facilitate further targeting.

SEC. 17. FUNDING, MATCHING, CARRYOVER, AND LOCAL DISTRIBUTION.

The legislature shall appropriate funds sufficient to administer this Act. Federal funds received for election-personnel protection may be used only for purposes authorized by this Act and the governing federal statute.

The State and any political subdivision may voluntarily appropriate, match, supplement, or expend non-Federal funds for purposes consistent with this Act. No State or local matching contribution is required as a condition of eligibility for federal funds unless separately enacted by the State.

Federal funds received under the corresponding federal election-personnel protection program shall be held in a State election-personnel protection fund or separately accounted subaccount of an existing State election fund. Interest earned on federal amounts shall be credited to that fund or subaccount and used only for purposes authorized by this Act and the governing federal statute.

Unobligated federal balances may be carried forward into succeeding fiscal years while this Act, or substitute provisions satisfying the federal minimum requirements, remains in force. Future federal payments may be reduced pursuant to the nondiscretionary balance-adjustment formula established by federal law if the State's unobligated federal balance exceeds the federal reserve threshold.

Funds distributed to local jurisdictions shall be allocated under objective criteria that consider population, number of election facilities, documented risk, resource capacity, and demonstrated security need. Political affiliation, election outcome, and disagreement with state or local election policy may not be considered.

Acceptance of federal funds does not authorize a federal officer or entity to supervise or influence any election law, policy, procedure, decision, or dispute beyond verifying eligibility and lawful expenditure under the governing federal statute.

SEC. 18. FEDERAL ELIGIBILITY CERTIFICATION AND CONTINUING MAINTENANCE.

This Act is intended to constitute a qualifying State law for purposes of the Election Personnel Protection Payments title of the Help America Vote Act of 2002, as amended.

The chief state election official and the attorney general, or equivalent state legal officer, shall jointly prepare and submit any certification, citation table, statutory crosswalk, expenditure certification, unobligated-balance report, reserve-threshold calculation, or related fiscal report required to establish or maintain eligibility for federal election-personnel protection payments.

The State shall maintain the protections required by this Act as a condition of future eligibility for such payments. Repeal or material narrowing of this Act terminates eligibility for future federal payments unless the State enacts substitute provisions satisfying the federal minimum requirements.

Nothing in this section incorporates future federal guidance, regulation, policy statement, executive order, model practice, or administrative condition into state law. Eligibility shall be determined only by the federal statute enacted by Congress and the state statutory provisions in force.

SEC. 19. RELATION TO OTHER LAW.

This Act supplements and does not narrow any other criminal offense, civil remedy, public-employment protection, address-confidentiality provision, victims' right, emergency authority, or election-continuity procedure.

Where another law provides greater protection consistent with constitutional requirements, the greater protection controls.

SEC. 20. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Federal Eligibility Crosswalk

Federal HAVA Title X requirement	State act provision satisfying requirement
Protect covered election personnel when targeted because of an election function	Sections 3, 6, 7, 8, 10, 11, 12, 14, and 15.
Extend appropriate protection to covered family or household members	Sections 3, 6, 7, 8, 10, 11, and 15.
Require politically neutral administration	Sections 2, 4, 7, and 17.
Establish statewide prompt reporting, threat assessment, referral, and coordination through existing state offices	Sections 3, 5, and 6.
Authorize emergency protective assistance	Section 7.
Provide expedited judicial process for protective relief consistent with due process and the First Amendment	Sections 8 and 15.
Protect residential and sensitive personal information	Sections 3, 8, 9, 10, and 16.
Provide civil or criminal remedies for threats, coercion, retaliation, family harm, doxxing, false emergency reports, bomb threats, swatting	Sections 3, 6, 12, and 13.
Require continuity-of-operations planning for election facilities and functions	Sections 5, 6, 12, and 13.
Authorize workforce support related to threat-driven attrition	Sections 14, 16, and 17.
Provide aggregate public reporting while protecting personal, investigative, and security-sensitive information	Section 16.
Apply equally to state and local election personnel without regard to partisan affiliation or identity of alleged offender	Sections 3, 4, and 16.
Remain legally operative regardless of whether the State receives federal funds	Sections 2, 17, and 18.

Manifestation-to-Remedy Crosswalk

Documented manifestation	Statutory response
Freeman and Moss: sustained threats, family targeting, forced displacement, and career loss	Sections 6–11 and 14 provide early reporting, and 15 provides for remedies.
Arizona threats: bomb threat, home-address research, evacuation, and post hoc prosecution	Sections 6–8 and 11–13 require rapid assessment and response.
2024 Election Day bomb threats and polling-place closures	Sections 12 and 13 create aggravated liability and restitution for false emergency reports.
Raffensperger and family: doxxing, sexualized threats, and intrusion directed at relatives	Sections 7–11 expressly protect family and household members.
Nationwide workforce attrition and recruitment loss	Sections 14, 16, and 17 authorize counseling, protected leave, replacement staffing, and 15 provides for remedies.

Drafting Notes

- The Act intentionally uses existing state institutions rather than creating a new election-security agency.
- Criminal threat provisions must require at least recklessness as to the threatening character of the communication under *Counterman v. Colorado*, 600 U.S. 66 (2023).
- Doxxing provisions are limited by intent, recklessness, causation, exceptions, and tailored remedies to reduce First Amendment and overbreadth risk.
- The model distinguishes personal protection from election administration: the protection coordinator may secure people and operations but may not direct election outcomes or procedures beyond continuity requirements stated by law.
- States should conform protective-order procedure, offense grading, public-record exemptions, labor protections, standing, and appropriations to their constitutions and existing codes.
- The federal eligibility crosswalk is mandatory for future revision: no federal minimum condition should be added or revised without identifying the corresponding state-law provision.
- The manifestation-to-remedy crosswalk is mandatory for future revision: no documented manifestation should remain without a corresponding preventive, protective, continuity, remedial, or workforce mechanism.

Source Notes

- Threat-offense review should include *Counterman v. Colorado*.

ELEC-004-state — Model State Election Proceedings Integrity Act

A MODEL STATE BILL

To establish an Anti-SLAPP-style special screening mechanism for election proceedings, subpoenas, audits, investigations, and inspection demands; to preserve good-faith election challenges; to prevent legal process from being used to delay certification, manufacture uncertainty, harass election personnel, obtain unauthorized access to sensitive election materials, or create a false predicate for extra-legal pressure; and for other purposes.

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Proceedings Integrity Act.**”

SEC. 2. PURPOSES.

(a) Anti-SLAPP-style adaptation.

This Act adapts the procedural logic of Anti-SLAPP laws to state election proceedings. Anti-SLAPP laws recognize that legal process can itself be used abusively to impose cost, delay, discovery burdens, reputational harm, or coercive pressure before a court or tribunal reaches the merits. This Act applies that logic to election litigation, subpoenas, audits, investigations, and inspection demands that seek election-disruptive relief or access to sensitive election material without an early particularized showing.

(b) Purposes.

The purposes of this Act are to preserve access to lawful recounts, contests, audits, investigations, and judicial review; distinguish ordinary citizen reporting from coercive or disruptive election proceedings; require early particularized showings before a proceeding may delay certification, alter results, compel nonstatutory audits, burden election personnel, or access sensitive election materials; protect ballots, voter privacy, voting systems, chain of custody, and election-security information; reduce abuse of subpoenas, discovery, investigations, and public-law proceedings; and provide sanctions where later-discovered evidence proves that a proceeding was materially connected to a coordinated improper scheme.

SEC. 3. DEFINITIONS.

In this Act:

1. **Covered election proceeding** means a civil action, election contest, petition, motion, subpoena, discovery demand, inspection demand, audit demand, legislative demand, administrative demand, or request for emergency relief filed, issued, or pursued in relation to an election if the proceeding seeks or would foreseeably cause election-disruptive relief.
2. **Election-disruptive relief** means relief or action that would delay, enjoin, alter, decertify, nullify, or otherwise disturb voter eligibility lists, ballot preparation, voting procedures, counting, tabulation, auditing, recounting, canvassing, certification, appointment of presidential electors, transmission of election returns, or another statutory election deadline.
3. **Sensitive election material** means ballots, ballot images, voter-identifiable data, election-management-system data, voting-system source code, tabulator or scanner data, security logs, chain-of-custody records, passwords, keys, security procedures, facility plans, or other election material whose disclosure, inspection, copying, or transfer may impair ballot secrecy, voter privacy, election security, or chain of custody.
4. **Special screening motion** means a motion under section 5 to dismiss, narrow, stay, condition, or otherwise control a covered election proceeding.
5. **Improper purpose** includes delay, harassment, knowingly false factual presentation, reckless disregard of contrary evidence, unauthorized access to sensitive election material, creation of a false predicate for disrupting certification or elector appointment, or other bad-faith use of legal, investigative, administrative, legislative, or judicial process.
6. **Good-faith report** means a report of suspected election irregularity made to an election official, law-enforcement agency, prosecutor, candidate, political party, court, or other body authorized by law to receive such information, where the report does not itself seek election-disruptive relief or access to sensitive election material.

SEC. 4. SCOPE; PRESERVED ACTIVITY.

(a) Scope.

This Act applies to covered election proceedings under state law, including proceedings in state courts, before state or local election bodies, and before state or local entities authorized to issue subpoenas, audit demands, inspection demands, or investigative requests relating to an election.

(b) Preserved activity.

Nothing in this Act limits a good-faith report, ballot-specific voter remedy, recount, audit, contest, public-records request, criminal investigation or prosecution, or the authority of a court or election tribunal to provide relief for a proven violation of law.

(c) Relief-based trigger.

This Act applies according to the relief sought or reasonably foreseeable procedural effect of the proceeding, not solely according to the identity of the filer.

SEC. 5. SPECIAL MOTION TO SCREEN COVERED ELECTION PROCEEDING.

(a) Motion authorized.

A party, election official, governmental entity, affected candidate, affected voter, or custodian of sensitive election material may file a special screening motion in a covered election proceeding.

(b) Pre-election timing limitation.

A special screening motion may not be filed with respect to a future election scheduled to occur more than 180 days after the date of the motion, unless the motion is directed to a request for immediate access to sensitive election material or another present risk to ballot secrecy, voter privacy, chain of custody, or election security.

(c) No post-election cutoff.

No fixed post-election time limit applies to a special screening motion. After the election occurs, a special screening motion may be filed in any covered election proceeding that seeks or materially relates to election-disruptive relief, counting, tabulation, auditing, recounting, canvassing, certification, elector appointment, election contest, validity of the election result, or access to sensitive election material.

(d) Time for filing.

Subject to subsections (b) and (c), a special screening motion shall be filed as soon as practicable. A court or tribunal may permit later filing for good cause or where the election-disruptive character of the proceeding becomes apparent after filing.

(e) Required early showing.

Upon filing of a special screening motion, the person seeking election-disruptive relief or access to sensitive election material shall make a prima facie showing of legal authority, timeliness, particularized material facts, admissible evidence or a verified factual proffer, materiality, remedy fit, necessity of any intrusive process or sensitive-material access, and absence of improper purpose.

(f) Court or tribunal action.

If the required showing is not made, the court or tribunal shall dismiss, deny, narrow, stay, condition, quash, modify, or otherwise control the proceeding, demand, subpoena, inspection, audit, or request to the extent necessary to prevent election-disruptive relief, unauthorized access to sensitive election material, or abuse of process.

SEC. 6. AUTOMATIC STAY OF INTRUSIVE PROCESS.

(a) Stay.

Upon filing of a special screening motion, discovery, subpoenas, inspections, audits, forensic access, equipment access, ballot access, source-code access, and access to sensitive election material shall be stayed until the court or tribunal resolves the motion.

(b) Narrow exception.

The court or tribunal may authorize limited discovery or inspection before resolving the motion only upon a finding that the discovery or inspection is narrowly tailored, necessary to test a specific colorable and material claim, and subject to adequate protection for ballot secrecy, voter privacy, chain of custody, and election security.

SEC. 7. EMERGENCY RELIEF FINDINGS.

A court or tribunal may not issue a temporary restraining order, preliminary injunction, stay, impoundment order, certification delay, elector-appointment delay, extraordinary audit order, or other election-disruptive relief unless it makes written findings that the movant is substantially likely to succeed on a legally authorized claim, the alleged defect is material, irreparable injury is not primarily caused by the movant's delay, no narrower lawful remedy is adequate, the relief is compatible with applicable election deadlines or necessary to remedy a proven violation of law, and the relief will not unnecessarily impair voters, election personnel, ballot secrecy, voter privacy, chain of custody, or election security.

SEC. 8. SENSITIVE ELECTION MATERIAL PROTECTION.

A court or tribunal authorizing access to sensitive election material shall enter a protective order or equivalent directive that limits access to persons with a demonstrated need, prohibits unauthorized disclosure, preserves ballot secrecy and chain of custody, prevents disclosure of source code, credentials, security logs, keys, facility plans, or exploitable security information except under secure conditions, requires secure storage and return or destruction of copies, and imposes sanctions for violation.

SEC. 9. FEES, COSTS, AND SANCTIONS AT SCREENING OR DISPOSITION.

(a) No automatic penalty for losing.

A person may not be sanctioned under this Act solely because an election claim, motion, petition, demand, or request is denied.

(b) Sanctions authorized.

The court or tribunal may award reasonable attorney's fees, costs, public costs, or other appropriate sanctions if it finds that a filing, request, subpoena, audit demand, discovery demand, or emergency-relief request was frivolous, knowingly unsupported, presented for improper purpose, materially based on false factual allegations, legally foreclosed by binding authority, maintained after a defect was identified, or used to harass, delay, or obtain unauthorized access to sensitive election material.

(c) Additional authority preserved.

This Act supplements and does not limit state rules of civil procedure, attorney-discipline rules, contempt authority, public-records protections, election-code remedies, or inherent judicial or tribunal authority.

SEC. 10. LATER-DISCOVERED IMPROPER-PURPOSE SANCTIONS.

(a) Independent post-disposition motion.

A motion under this section is an independent post-disposition motion for sanctions and ancillary relief. The motion may be filed whether or not a special screening motion under section 5 was previously filed, granted, denied, withdrawn, or resolved on other grounds.

(b) Ancillary jurisdiction after termination.

The court or tribunal retains ancillary jurisdiction to resolve a motion under this section after dismissal, remand, voluntary dismissal, settlement, denial of emergency relief, final judgment, or other termination of the covered election proceeding.

(c) Time for motion.

Within one year after final disposition of a covered election proceeding, or within 180 days after discovery of material evidence of improper purpose, whichever is later, a party, governmental entity, election official, affected candidate, affected voter, or custodian of sensitive election material may move for sanctions under this section.

(d) Standard.

The court or tribunal may impose sanctions if clear and convincing evidence shows that the proceeding, filing, subpoena, discovery request, inspection demand, audit demand, investigation demand, or request for emergency relief was materially presented, maintained, coordinated, or used for an improper purpose.

(e) Relevant evidence.

Relevant evidence may include communications, funding arrangements, concealed coordination, inconsistent public and tribunal representations, knowingly false factual assertions, fundraising representations, links to certification delay, links to elector-appointment disruption, or efforts to create a false predicate for governmental action.

(f) Relief.

Sanctions may include attorney's fees, public costs, restitution for election-administration expenses, referral to disciplinary authorities, civil penalties where authorized by law, restrictions on future emergency election filings absent leave of court, protective orders, and referral to prosecuting authorities where criminal conduct may be implicated.

(g) Due process.

No sanctions may be imposed under this section without notice, an opportunity to respond, and an evidentiary hearing where material facts are disputed.

SEC. 11. EXPEDITED REVIEW.

A court or appellate court shall expedite to the greatest practicable extent any proceeding involving election-disruptive relief, access to sensitive election material, a special screening motion, or sanctions under this Act.

SEC. 12. UNIFORM APPLICATION.

This Act applies without regard to the party, candidate, office, ballot measure, viewpoint, ideology, or anticipated electoral outcome involved.

SEC. 13. RELATION TO OTHER LAW.

This Act supplements and does not narrow any lawful recount, contest, audit, investigation, public-records, voter-remedy, criminal, disciplinary, or judicial procedure. Where a more specific election statute provides greater protection against abuse, delay, unauthorized access, or improper disclosure, the more protective provision controls.

SEC. 14. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Federal-State Mirror Crosswalk

This model state bill mirrors ELEC-004, adapted for state courts, state election tribunals, state subpoenas, administrative or legislative demands, and state-law election contests. Future revisions should check the corresponding federal section before materially revising definitions, timing, special-motion procedure, stay, emergency-relief findings, sensitive-material protection, sanctions, later-discovered sanctions, expedited review, savings clauses, uniform application, relation to other law, or severability.

Manifestation-to-Remedy Crosswalk

This bill addresses abusive pre-election challenges through the 180-day timing bar, relief-based trigger, special screening motion, stay, and emergency-relief findings; unsupported public fraud narratives through evidentiary, materiality, remedy-fit, and sanctions requirements; post-election disruption through no fixed post-election cutoff and emergency-relief findings; sensitive-material demands through stay and protective-order requirements; broad subpoenas, audits, inspections, or forensic demands through screening, narrowing, quashing, conditioning, and sanctions; later-discovered coordination through section 10; and good-faith-report chilling through preserved-activity provisions.

Drafting Notes

- The proposal is Anti-SLAPP-style: it adapts early screening, discovery stay, burden clarification, fee-shifting, and sanctions to election-disruptive proceedings.
- The special motion is motion-invoked, not automatic.
- A pre-election timing bar prevents the motion from being filed for elections more than 180 days away, except where immediate sensitive-material access or a present security/privacy risk is at issue.
- The Act imposes no fixed post-election cutoff; post-election availability depends on functional relation to the election result, election administration, or sensitive election material.
- Section 10 is expressly independent of the special screening motion and survives termination of the underlying proceeding.
- State versions should be checked against state Anti-SLAPP provisions, court-rule authority, separation of powers, open-records clauses, ballot-secrecy provisions, and election-contest statutes.

Source Notes

- Source review should compare each adopting state's election-contest, court-rule, public-records, ballot-secrecy, and Anti-SLAPP statutes; the federal counterpart is ELEC-004. For state Anti-SLAPP variation, review jurisdiction-specific statutes and secondary surveys such as the Reporters Committee for Freedom of the Press Anti-SLAPP guide.